CONSTITUTIONAL LAW 1 REVIEWER -2021-6 Version-

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INTRODUCTION

What is the Constitution?

- fundamental, paramount, and supreme law of the land
- establishes the institution and system of government, lays basic principles, defines the scope of governmental powers, guarantees civil rights (Black's Law, 4th ed.)
- "A charter of government deriving its whole authority from the governed." (Black's Law, 4th ed.)

Key Features of the 1987 Constitution

- expanded the power of judicial review
- set up legal obstacles to dictatorship

Gatmaytan, Constitutional Amendments as Suspect Projects (2019)

1987 Philippine Constitution

- Was adopted in 1987 after Ferdinand Marcos (1917-1989) was forced out of office and into exile
- President Aquino issued Proclamation No. 3, saying that the Marcos ouster "was done in defiance of the provisions of the 1973 Constitution
- Aquino's government was "indisputably a revolutionary government bound by no constitution or legal limitations, except treaty obligations that the revolutionary government, as the de jure government in the Philippines, assumed under international law
- Aquino created the Constitutional Commission to draft the new fundamental law, and it represented the elite, and its work hewed closely to the status quo
    1. Limited the work of the Commission to writing the broad outlines of a constitution, not to sketching a blueprint for social change
    2. It was a conscious effort to place legal obstacles to dictatorship
- More than 30 years old and has never been amended. Filipinos are wary of amending the Constitution - think that politicians will use the amendment process simply to entrench themselves in power

Conclusion

- Attempted constitutional amendments are seen as partisan or personal projects distrust of politicians fuel anti-amendment sentiments
- Consequences of constitutional amendment initiatives:
    1. Since the Marcos constitution, Filipinos have become suspicious of subsequent attempts. While Supreme Court stood in the way, civil society has also played an important role in blocking attempts to introduce changes
    2. However, the Constitution has not been amended in over thirty years - unlike all the other countries in Southeast Asia, there are still protectionist provisions
    3. Amendment process is so tainted with past experience and mistrust that few risk opening the Constitution to changes
- Developments
    1. Federalism of the Duterte Administration
    2. Duterte will eventually have complete control of the Supreme Court. When his term ends in 2022, 13 of 15 Justices of the SC would be his appointees
    3. Duterte's popularity has started to show weaknesses
    4. Growing resistance to constitutional change

Conclusion

- So traumatic was the past experience under Marcos that discussions on Constitutional changes are doomed to fail unless politicians regain the public trust.

Gatmaytan, Legal Method Essentials (Chapter 1-3)

Constitutional Construction

Six Modes of Interpretation (Lawrence H. Tribe)

1. **Textualism** - narrowly passing the text of the document and examining the words alone
    - ○ Text is the most obviously authentic embodiment of constitutional truth
    - ○ Limitations:
        - words and phrase of the Constitution are not definitive, are ambiguous, self-contradictory
        - textualism risks freezing the Constitution and rendering it obsolete
    - ○ Interpreting the Constitution's text requires attention to linguistic context - surrounding language, how the relevant word or phrase was used elsewhere in the document
2. **Structural analysis** - reading across words and looking at the physical arrangement of the Constitution's text
    - Structure - that which the text does not directly say; based on the implicit ordering of the text
    - Example: separation of powers
    - When the text is ambiguous or when the Constitution itself is silent - duty of courts to connect the dots (rational continuum)
3. **Originalism** - looking at the intent or applying the Constitution only in the ways that the framers consciously intended
    - Supplements the text and structure with the original meaning or intent; looks what the provisions or the design meant at the time they were conceived and when they became law
    - Disadvantages:
        - ○ Subordinates ratified and enacted constitutional text to purely subjective and un-acted intentions
        - ○ Focuses on abstract intentions rather than on concrete expectations
        - ○ Constitution's framers, drafters and ratifiers did not always share a single purpose
        - ○ Historical records are often dramatically inconclusive and contradictory
4. **Normative and Pragmatic Approach** - relies on ethos or moral and political character and identity of the nation in interpreting the Constitution
    - 0 Difficulty - inappropriate subjectivity, appeals to values that are not properly part of constitutional law
5. **Judicial Precedent/Stare Decisis** - judicial elaboration of decisional doctrine to derive answers to constitutional questions
    - 0 Constitutional law consists of not only the provisions of the Constitution, but also the opinions of the Supreme Court
    - ○ Advantages: flexibility and stability
        - ■ Ability to adapt to changes - where a provision was read one way during an earlier period, then different in a later period
        - ■ Stability - requires judges to follow constitutional precedents
6. **Combination**

Principles of Constitutional Construction

1. ***Verba legis*** - words used in the Constitution must be given their ordinary meaning, except when the technical terms are employed *(J.M. Tuason & Co vs. Land Tenure Administration)*
    - ○ Fidelity to the Constitution requires commitment to its text - safer to construe the Constitution from what appears upon its face
        - ○ The Constitution is not a lawyer's document and its language should be understood in the sense that it may have in common use
    - ○ Where the words of a statute are clear, plain and free from ambiguity, it must be given its literal meaning and applied without attempted interpretation. Interpretation should be used where a literal interpretation would be impossible, absurd or unjust. (Vicencio v. Villar)
2. ***Ratio legis est anima*** - words of the Constitution should be interpreted in accordance with the intent of the framers
    - ○ Court should bear in mind the object sought to be accomplished by its adoption; a doubtful provision will be examined in the light of the history of the times, and the condition and circumstances under which it was framed (Civil Liberties Union v. Executive Secretary)

- Intent of the framers of the organic law and of the people adopting it should be given effect (Nitafan v. Commission of Internal Revenue)

3. ***Ut magis valeat quam pereat*** - the Constitution is to be interpreted as a whole
   - No one provision of the Constitution is to be separated from all the others, all the provisions bearing upon a particular subject are to be brought into view and to be so interpreted as to effectuate the great purposes of the instrument; Court must harmonize them and must lean in favor of a construction which will render every word operative, rather that one which may make the words idle and nugatory (Civil Liberties Union v. Executive Secretary)
   - One mandate should not be given importance over the other EXCEPT when the primacy of one over the other is clear (Kida v. Senate)

- Prospective Application
  - While penal laws may be given retroactive effect when in favor of the accused, provisions of the Constitution are to be prospectively applied, unless provided otherwise (*Filoteo Jr v. Sandiganbayan)*
- *Expressio unius est exclusio alterius* - when one or more things of a class are expressly mentioned others of the same class are excluded.
- Mandatory and Directory provisions - constitutional provisions are generally mandatory
  - Directory - when no consequential rights or liabilities depend on it, and no injury can result from ignoring it, and the purpose of the legislature can be accomplished in a manner other than that prescribed
  - Self-executing provisions
    - General Rule - the provisions of the Constitution are self-executing (*Manila Prince Hotel v. GSIS)*
    - A provision which lays down a principle is usually not self-executing. But a provision which is complete in itself becomes operative without the aid of supplementary or enabling legislation, or that which supplies sufficient rule by means of which the right it grants may be enjoyed or protected is self-executing. (*Manila Prince Hotel v. GSIS)*

Test for Self-Executing Provisions:

1. If the nature and extent of the right is fixed
2. Liability imposed is fixed

- Exceptions: Article II of the Constitution is a declaration of principles and state policies - not intended to be self-executing principles ready for enforcement through the courts; used by judiciary as aids or as guides in judicial review, or by the legislature in its enactment of laws
- Exception to Exception: *Oposa v. Factoran* - Section 15 and 16 of Article II (right to a balanced and healthful ecology)

Interpreting the Constitution

Manila Prince Hotel v. GSIS (1997)

- A self-executing provision is complete in itself, indicating that 'the nature and extent of the right conferred and the liability imposed' are fixed by the Constitution itself. As such, it becomes operative without the aid of legislation.
- On the other hand, a provision which lays down a general principle, such as those found in Article II of the Constitution, is not intended to be self-executing and instead, is used by the Judiciary as aids in judicial review and by the legislature in law-making.
- In case of doubt, the presumption is that the Constitution is self-executing, unless expressly provided otherwise. A contrary presumption would grant the legislature the power to nullify the mandate of the Constitution by refusing to pass the necessary implementing statute.
- The "Filipino First" policy in Sec 10, Art XII of the 1987 Constitution is a mandatory, positive command which is complete in itself and needs no further guidelines or implementing laws or rules for its enforcement; thus judicially enforceable.
- When the Constitution speaks of national patrimony, it refers not only to the natural resources of the Philippines, but also to the cultural heritage of the Filipinos.

Perfecto v. Meer (1950)

- The constitutional prohibition against the diminution of judicial compensation means that the salaries of judges cannot be reduced, whether directly or indirectly, including by the imposition of income tax. This is a basic limitation upon legislative or executive action that could affect Judicial Independence..

Endencia v. David (1953)

- The legislature cannot, upon passing a law which violates the Constitution, validate it by a declaration that it shall be so construed as not to violate the Constitution. Such an act of interpreting the Constitution is an invasion of the well-defined jurisdiction of the Judiciary.
- Congress, by passing RA 590, cannot declare that payment of income tax is not a 'diminution of compensation' received by a judicial officer, because this is an interpretation of the phrase 'which shall not be diminished during their continuance in office,' found in the old Constitution.
- The Judiciary has the sole jurisdiction of interpreting the laws, so as to protect the separation of powers. The Legislative cannot enact a law that is in contrast to an interpretation already provided by the Judiciary.

Francisco v. The House of Representatives (2003)

- The Senate's 'sole power to try and decide impeachment cases' does not exclude the application of judicial review over it, because the Constitution provided for well-defined limits that could be the basis for determining the validity of the exercise of such power by the Senate. When an act of the legislature is contended to have infringed the Constitution, it becomes not only the right but the duty of the Judiciary to settle the dispute.
- There are two species of political questions: (1) 'truly political questions' and (2) those which are 'not truly political questions.' The determination of a truly political question from a non-justiciable political question lies in the answer to the question of whether there are limits imposed by the Constitution on the powers of political bodies. If there are, then the Judiciary is duty-bound to examine whether there has been breach thereof.
- There are different ways in which the Constitution may be interpreted: *verba legis* (words to be given their ordinary meaning), *ratio legis est anima* (words to be interpreted in accordance with the intent of its framers), and *ut magis valeat quam pereat* (Constitution to be interpreted as a whole).
- Other Doctrines: the initiation takes place by the act of filing and referral or endorsement of the impeachment complaint to the House Committee on Justice. Once an impeachment complaint has been initiated, another impeachment complaint may not be filed against the same official within a one year period.

In re Supreme Court Judicial Independence v. JDF (2015)

- A bill is not subject to judicial review because it is not a law, and thereby it creates no right and imposes no duty legally demandable and enforceable. The Court can exercise its power of judicial review only after a law is enacted.
- The Court cannot restrain Congress from passing any law, because under the principle of separation of powers, the Court cannot exercise judicial review over the internal processes and procedures of Congress.
- As such, the bill, abolishing the JDF and replacing it with the 'Judiciary Support Fund,' cannot be the subject of judicial review. Instead, the remedy is to lobby in Congress.

Interpretation

Nitafan v. CIR (1987)

- *Ratio legis est anima* - Ascertaining the intent is in keeping with the principle of constitutional construction that the intent of the framers and of the people adopting the Constitution be realized. It may be assumed that the people, in ratifying the Constitution, were guided chiefly by the explanation offered by the framers.
- The Constitutional Commission had the intent that the salaries of members of the Judiciary would be subject to the general income tax applied to all taxpayers.
- The Constitution authorizes Congress to pass a law fixing another rate of salary of Justices and Judges, subject to two conditions: (1) that such rate must be higher than that which they are receiving at the time of enactment or (2) if lower, it would be applicable only to those appointed after its enactment.

- The income of the members of the Judiciary may now be taxed. (overturning Perfecto v Meer and Endecia v David)

Filoteo, Jr. v. Sandiganbayan (1996)

- Prospective application - It held that while penal laws may be given retroactive effect when in favor of the accused, provisions of the Constitution are to be prospectively applied, unless provided otherwise.
- The defendant to a crime of hijacking questioned the prosecution's evidence consisting of their extrajudicial confession relating in detail their participation in the crime, pointing to the fact that it was executed without the assistance of counsel, as was the waiver of his right to counsel. The Court ruled against the defendant and noted a difference between the rights of the accused under the 1973 and the 1987 Constitutions.
- The Court concluded that the waiver of the right to counsel must be made with the assistance of counsel *only* under the 1987 Constitution. The provision of the 1987 Constitution, specifically requiring that a waiver by an accused of his right to counsel during custodial investigation must be made with the assistance of counsel, may not be applied retroactively in cases where the extrajudicial confession was made prior to the effectivity of said Constitution.

J.M. Tuason & Co., Inc. v. Land Tenure Administration (1970)

- *Verba legis* - Words are to be given their ordinary meaning except when technical terms are employed.
- This case involved the validity of RA 2616 which authorized the expropriation of the Tatalon Estate in Quezon City. The Supreme Court interpreted the language of the Constitution to determine the scope of power of Congress in relation to the exercise of eminent domain. The Court held that the language of the Constitution must be construed in its ordinary, common meaning.
  Absent any obscurity, it upheld the power of Congress:

Adoption and Amendment

VV Mendoza: Congress as Constitutional Assembly

- Constitution is amended by
  - A ¾ vote of congress in a Constitutional Assembly
  - Constitutional Convention (elected)
  - People's initiative and referendum (but this is difficult)
- Why the houses vote separately
  - Senate would be outnumbered by Congress
- Started writing the Constitution to be unicameral legislation, but later decided for it to be bicameral. They forgot to change "unicameral"
- Note sitting as a ConAss =/= sitting as Congress

Article XVII, 1987 Constitution. Amendments or Revisions.

Section 1. Any amendment to, or revision of, this Constitution may be proposed by:
(1) The Congress, upon a vote of three-fourths of all its Members; or
(2) A constitutional convention.

Section 2. Amendments to this Constitution may likewise be directly proposed by the ***people through initiative*** upon a petition of at least twelve per centum of the total number of registered voters, of which every legislative district must be represented by at least three per centum of the registered voters therein. No amendment under this section shall be authorized within five years following the ratification of this Constitution nor oftener than once every five years thereafter.

The Congress shall provide for the implementation of the exercise of this right.

Section 3. The Congress may, by a vote of two-thirds of all its Members, call a ***constitutional convention***, or by a majority vote of all its Members, submit to the electorate the question of calling such a convention.

Section 4. Any amendment to, or revision of, this Constitution under Section 1 hereof shall be valid when ratified by a majority of the votes cast in a plebiscite which shall be held not earlier than sixty days nor later than ninety days after the approval of

such amendment or revision.

Any amendment under Section 2 hereof shall be valid when ratified by a majority of the votes cast in a plebiscite which shall be held not earlier than sixty days nor later than ninety days after the certification by the Commission on Elections of the sufficiency of the petition.

AMENDMENT

An addition or change within the lines of the original constitution will effect an improvement, or better carry out the purpose for which it was framed; a change that adds, reduces or deletes without altering the basic principles involved; affects only the specific provision being amended. [*Lambino v. COMELEC (2006)*]

REVISION

A change that alters a basic principle in the constitution, like altering the principle of separation of powers or the system of checks-and-balances, alters the substantial entirety of the constitution, as when the change affects substantial provisions of the constitution. [Id.]

Distinguished

Revision	Amendment
Alters a principle in the Constitution like the principle of separation of powers.	Adds, reduces, or deletes *without* altering the principle involved.
Affects several provisions; Alters the substantial entirety of the Constitution, as when the change affects substantial provisions of the Constitution.	Affects only the specific provision being amended.
Through Constituent Assembly, Constitutional Convention (People's Initiative is not applicable)	Through Constituent Assembly, Constitutional Convention and People's Initiative

Three Modes of Amending or Revising the Constitution

1. **CON-ASS** - Through Congress, acting as a constituent assembly, upon three-fourths (¾) vote of 'all its Members.'
    - It is unclear whether the two-thirds vote required to convene Congress as a constituent assembly meant the two chambers voting separately or as one.
    - Vicente Mendoza's Solution: Congress should convene in joint session but vote separately when acting as a Constituent Assembly, following the framework of the 1935 Constitution and the bicameral structure of Congress. Separate voting preserves the Senate's participation in the constitutional amendment process and prevents its members from being outvoted by the more numerous members of the House of Representatives.
2. **CONCON** - Through a constitutional convention, created under a law passed by Congress.
3. **People's initiative**
    - This mode is confined to amendments and excludes revisions.
    - A petition must be brought by at least 12% of the total number of registered voters and at least 3% of every legislative district.
    - The process of an amendment by Initiative, however, must be provided by law.
    - Two essential elements:
        a. The people must author and sign the entire proposal, with the draft attached.
        b. The Proposal must be embodied in a petition.

Steps in Amending or Revising the Constitution

1. Proposal - adoption of a suggested change in the Constitution
    a. CONASS - Congress as a constituent assembly - ¾ vote of ALL of members of Congress
    b. CONCON - Constitutional convention called for the purpose by:
        i. ⅔ vote of all members of Congress

ii. by the electorate, in a referendum called for by a majority of all members of Congress [Art. XVII, Sec. 3]

c. People's Initiative (*strictly* for amendments only)

i. Petition of at least 12% of the total registered voters; Every legislative district represented by at least 3% of its voters

ii. Limit: No amendments in this manner shall be authorized (1) within 5 years from ratification of the Constitution; nor (2) more often than once every 5 years thereafter. iii. Condition: Enabling law passed by Congress that implements this mode of amendment [Provision not self-executory]

2. Ratification

a. Submitted to the people and ratified by a Majority of votes in a plebiscite, held not earlier than 60 days or later than 90 days after approval

b. After approval of Congress' proposal or the ConCon's

c. After certification of COMELEC of sufficiency of the petition

Doctrine of Proper Submission

1. A plebiscite may be held on the same day as a regular election [Gonzales v. COMELEC (1967)].
2. The entire Constitution must be submitted for ratification at one plebiscite only. The people must have a proper "frame of reference". [Tolentino v. COMELEC (1971)].
3. No "piecemeal submission," e.g. submission of age amendment ahead of other proposed amendments. [Tolentino, supra]

Santiago v. COMELEC (1997)

- Atty. Jesus S. Delfin filed an initiatory "Petition to Amend the Constitution to Lift Term Limits of Elective Officials by People's Initiative" with the Commission on Elections (COMELEC). In response, the petitioner, Senator Miriam Defensor Santiago (joined by co-petitioners), filed a special civil action for prohibition with prayer for a temporary restraining order and/or writ of preliminary injunction directly with the Supreme Court, asserting that the COMELEC had no jurisdiction over the matter. Simultaneously, Senator Raul S. Roco entered the fray as an intervenor-oppositor, filing a motion to dismiss the Delfin petition at the COMELEC level on the ground that it was legally untenable.
- COMELEC cannot validly promulgate rules on initiative on amendments of constitution. Under R.A. No. 6735, they have no jurisdiction over such, thus Res. No. 2300 is void, marked *ultra vires*. R.A. 6735 only gives COMELEC jurisdiction over guidelines to national and local initiatives only (to laws and ordinances, not constitution)
- The Act did not sufficiently provide for the contents of a petition for constitutional initiative, the procedures for gathering and verifying signatures, the determination of the sufficiency of the petition, and other essential procedural matters. The absence of a separate subtitle on constitutional initiative further demonstrated the inadequacy of the Act.
- The people's right to directly propose amendments to the Constitution through initiative under Section 2, Article XVII of the 1987 Constitution is not self-executory. It requires an adequate enabling law enacted by Congress.

Gonzales v COMELEC (1967)

- Petitioner filed a petition to enjoin the COMELEC from enforcing RA 4913 which will result to a plebiscite for the ratification of Joint Resolution 1 to increase the membership from 120 to 180, and Joint Resolution 3 to allow the senators and representatives to become delegates to the constitutional convention without forfeiting their respective seat.
- W/N Constitutional amendments can be submitted for ratification during the general election.

- YES, there is nothing in the provision that indicates the election must be special and not general for constitutional amendments

Tolentino v COMELEC (1971)

- Petitioner filed a petition for prohibition to restrain respondent COMELEC from holding a plebiscite on 8 November 1971 wherein a proposed constitutional amendment to reduce the voting age from twenty-one to eighteen years old shall be submitted for ratification by the people, pursuant to Organic Resolution No. 1 of the Constitutional Convention of 1971.
- WON the plebiscite pursuant to Organic Resolution 1 is constitutional.
- NO, The Court held that there had been a violation, specifically with the condition in Sec. 1, Art. XV that all the amendments to be proposed by the same Convention must be submitted to the people in a single election or plebiscite. Therefore, the plebiscite being called for 8 November 1971 for the ratification of only one proposed amendment is not authorized under the Constitution; hence, all acts of the Convention and respondent Comelec are null and void.

Planas v COMELEC (1973)

- The President issued **Presidential Decree No. 73**, calling a plebiscite on January 15, 1973 to ratify or reject the proposed Constitution by the 1971 Constitutional Convention, and appropriate funds for its conduct. There were 10 consolidated cases, including that of Charito Planas, filed against the decree calling that only the Congress has has constitutional and exclusive power to call a plebiscite, prescribe ballots and voting, and appropriate funds; the proposed Constitution can not be properly submitted while the conditions under Martial Law hindered freedom of speech, as well as press and assembly.
- Whether or not the President has authority to issue PD 73
- UNRESOLVED. The case was declared moot and academic due to the General Order No. 20 which postponed the plebiscite under PD 73, which led to the next case, *Javellana*.

Javellana v Executive Secretary (1973)

- Following the facts from Planas (1973), this case determined the constitutionality of the ratification of the 1973 Constitution.
- The question of whether the proposed Constitution had been ratified in accordance with Article XV of the 1935 Constitution was not a political question. It was a matter that the Court could determine by examining the pertinent constitutional and statutory provisions and the acts undertaken to implement them.
- Article XV, Section 1 required ratification in an election or plebiscite held in accordance with law and participated in only by qualified and duly registered voters. Concepcion maintained that the Citizens' Assemblies established under Presidential Decree No. 86 did not satisfy this requirement. They were composed of citizens aged fifteen and above, rather than being restricted to qualified and duly registered voters. Consequently, participation was not confined to the electorate contemplated by the Constitution and the election laws (Concepcion and Zaldivar).
- The proceedings in the Citizens' Assemblies involved questions about several matters, including the New Society, reforms under martial law, the convening of Congress, the holding of a later plebiscite, and approval of the proposed Constitution. Concepcion reasoned that these proceedings could not be treated as the plebiscite required for constitutional ratification. The questions were not confined to the ratification issue, and the manner in which the voting was conducted was not within the intendment of Article XV, Section 1, or in accordance with the Election Code of 1971.
- Concepcion held that the reported affirmative votes did not necessarily reflect the people's genuine acceptance of the proposed Constitution, given his doubts about the freedom of their expression and the accuracy of the voting reports (since it was held during Martial Law). He further maintained that the people's continued existence under the government did not establish valid ratification or cure noncompliance with Article XV, Section 1 of the 1935 Constitution.

Lambino v. COMELEC (2006)

- A people's initiative to change the Constitution applies only to an *amendment* of the Constitution and not to its *revision*.
- The two-part test may be an aid in determining the nature of the change:

1. The **quantitative test** asks whether the change is "so extensive in its provisions as to directly change the 'substantial entirety of the Constitution by alteration of existing provisions."
2. The **qualitative test** inquires into whether the change will 'accomplish such far-reaching changes in the nature of our basic governmental plan as to amount to a revision.'

- Under both the quantitative and qualitative tests, the Lambino Group's initiative is a *revision*. Quantitatively, the Lambino Group's changes overhaul Article VI and VII—affecting a total of 105 provisions. Qualitatively, the changes alter substantially the basic governmental plan, from presidential to parliamentary and from a bicameral to a unicameral legislature.
- The Lambino Group's initiative likewise failed to comply with Article XVII, Section 2 of the Constitution, which requires that an amendment is 'directly proposed by the people through initiative upon a petition.' The Section 2 requirement has two elements—*first*, the people must author and thus, personally sign the proposal. Second, the proposal must be embodied in a petition. The *full* text of the amendment may be either written on the face of the petition or attached to it. If so attached, the petition must state the fact of such attachment.
- The signature sheet is not the 'petition' envisioned in said Section 2. Accordingly, the Lambino Group's failure to include the text of the amendment in the signature sheet renders the initiative void

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Dante Gatmaytan, Changing Constitutions: Judicial Review and Redemption in the Philippines (2007)

- Marcos' SC
  - Ratification of 1973 Consti raised questions on its legality (Javellana v. Exec. Sec)
    - Did the Pres. have power to create citizen's Assemblies + power to proclaim ratification of proposed Consti?
    - Did Assemblies have the power to approve the proposed Constitution?
  - Court ruled that the new Constitution was otherwise in force since only 2 out of 10 voted that it was not
    - Only a majority of SC members ruled that Consti was not validly ratified, not enough to declare any law unconstitutional under the 1935 Constitution
    - Rationale behind decision: to preserve its existence, at great cost to itself by losing public respect
    - SC survived Martial law but emerged a shell of its former self
  - Court mustered enough courage to remind the Pres. that checks & balances still existed while sparing him the embarrassment of a major legal setback
    - Some members of the Court were applauded by constitutionalists in the country; helped them keep faith
- Arroyo's Agenda
  - Hello Garci scandal catalyzed movement for Consti change which was an initial suggestion made by Ramos to provide GMA with a graceful & earlier exit, but the admin took advantage of this to strengthen their hold on office
  - Local officials gathered signatures & filed petition with COMELEC to schedule voting on proposed consti changes under RA 6735
    - Lambino v. Comelec - COMELEC deemed the said law inadequate to proceed → case was elevated to SC
    - other issues on merits of petition: gathered signatures' validity; campaign was spearheaded NOT by the people, but by the government (seen through govt actions & public surveys); what was proposed was a revision of the Consti (required participation of Senate since there was proposal to change PH's form of govt)
  - SC dismissed petition (8 - 7) for ff. reasons:
    - failure to include text of proposed changes in signature sheet → not comply w/ Consti's requirements
    - proposal didn't constitute an amendment, BUT a revision which can't be done via people 's initiative
    - unnecessary application of Santiago ruling since 1st point already deems petition invalid
    - COMELEC didn't act w/ grave abuse of discretion; only followed Santiago ruling

- allusions to "people's sovereign will " couldn't override instructions prescribed by Consti itself re. amendments

- **Fallout -** Admin's Response to Ruling
  - **Supreme Court**
    - motion for reconsideration on the basis of determining sufficiency of the Initiative & Referendum Act + SC ruling on factual matters that should've been left to COMELEC
    - motion for certain justices to be excluded from participating in motion for reconsideration with no legal footing
    - campaign to fill vacancy with a pro-initiative Justice
  - **Congress**
    - convene as a constituent Assembly, even without Senate participation; citing rule that 314 votes of all Congress members was needed without specifying separate voting for each chamber, as Senate claimed
    - preparation of impeachment cases against Justices who **v**oted against the initiative, citing that dismissal of the petition was tainted with their bias, usurping the powers first of COMELEC
  - 1st Motion denied by the SC (8 -7), unanimous decision to deny motion
  - Congress:
    - scrapped rule that consti amendments, like other laws, must be approved separately by both chambers
    - approved resolution calling for convening of Congress as a constituent assembly to propose consti changes
    - Speaker de Venecia gave Senate ultimatum
  - SC denied 2nd motion for recon, even after change of CJ to a pro-initiative one (Panganiban→ Puno)
  - govt was threatened w/ possibility of mass demonstrations → campaign was abandoned by the admin
  - surveys show that Court's reputation improved

Analysis

- Philippine politicians understand concept of the rule of law & are aware of constitutional restraints, yet seek SC's approval when they overstep legal boundaries in order to try to cloak their actions with legality
- # of presidential appointees in SC = not determinate on issue resolution
- SC decisions greatly affect public perception of the SC & keeps it in check

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Judicial Review

> **Article VIII, Section 1, 1987 Constitution.** The judicial power shall be vested in one Supreme Court and in such lower courts as may be established by law.
>
> Judicial power includes the duty of the courts of justice to settle actual controversies involving rights which are legally demandable and enforceable, and to determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government.

Judicial Review - an aspect of judicial power. It is the power of the Courts to test the validity of governmental acts in light of their conformity to a higher norm, the Constitution.

- The case of Marbury v. Madison first established the doctrine of judicial review as a core legal principle in the American constitutional system.
- Unlike the U.S. Constitution which does not provide for the exercise of judicial review by their Supreme Court, the 1987 Philippine Constitution expressly provides for the power of judicial review in Art. VIII, Sec. 1 and Art. VIII, Sec 5(2) (a) and (b).
- **Classical Judicial Review:** judicial power includes the duty of the courts of justice to settle actual controversies involving rights which are legally demandable and enforceable.
  - Needs actual cases before the Supreme Court can exercise its power of review.
- **Expanded Judicial Review:** In response to Martial Law, the framers expanded the power of judicial review to include the power to "to determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the government."

Functions of Judicial Review

A) Checking - invalidating a law or executive act that is found to be contrary to the Constitution.

B) Legitimating - upholding the validity of the law.

C) Symbolic - to educate the bench and the bar as the controlling principles and concepts on matters of great public importance.

Levels of Scrutiny and the Equal Protection Clause

- **Strict Scrutiny Test** - is applied by courts to determine the constitutionality of laws or governmental actions that affect **fundamental rights** (right to travel, etc.) or **involve suspect classifications (**aliens, etc). Under this test, a law or government action will be upheld only if it:
    1. Serves a compelling governmental interest (interest of the highest order, for hte welfare of all); and
    2. Is narrowly tailored to achieve that interest, meaning it must be the least restrictive means available. (aka no over reach and no other alternative or less burdensome method available).
- **Intermediate Scrutiny Test** is applied when the law or governmental action classifies individuals based on what is known as a quasi-suspect classification, or when it involves important, but not fundamental rights. In the context of the Equal Protection Clause, quasi-suspect classifications include, but are not limited to gender, illegitimacy, etc. The test requires that
    - The government must show that the classification **serves an important governmental objective**, and
    - The means employed must be **substantially related** to the achievement of that objective. (This means that the relationship between the classification and the government's goal must be strong and logical, but it need not be the least restrictive means (as is required under strict scrutiny and must not be overbroad)
- **Rational Basis Test** is the most deferential standard of judicial review used by courts in assessing the constitutionality of laws or governmental actions that do not involve suspect classifications or fundamental rights. Under this standard, the law or policy is presumed valid, and the burden is on the challenger to prove that it lacks a rational relationship to a legitimate government interest.
    - Legitimate Interest: the government must have a legitimate government interest that it is willing to pursue (public safety, welfare, health, etc). Doesnt have to be the highest importance but must be lawful and permissible
    - Rational Relationship: There must be a rational or reasonable connection between the classification made by the law and the legitimate government interest being pursued. The law or policy need not be the best or most effective means of achieving the objective. It only needs to be reasonable and not arbitrary or irrational.
    - Presumption of Constitutionality: laws under Rational Basis Test are presumed to be constitutional until proven otherwise.

Separation of Powers

- principle which ordains that each of 3 branches of govt has exclusive cognizance of & is supreme in matters falling within its own constitutionally allocated sphere
- means that legislation belongs to Congress, execution to the Executive, & settlement of legal controversies to the Judiciary
- embedded in this doctrine: principle of non-delegation of powers
    - states that what has been delegated cannot be delegated
    - such delegated power constitutes not only a right, but a duty to be performed by the delegate through the instrumentality of his own judgment and not through the intervening mind of another.

In re Laureta and Maravilla (1987)

- Disgruntled with the judgments of the Supreme Court, Eva Maravilla-Illustre and her counsel, Wenceslao Laureta, sent letters to the justices of the Supreme Court threatening to expose them and proceeded to the Tanodbayan in an effort to relitigate petition.
- The principle of separation of powers states that the three co-equal branches of government are each supreme and independent within the limits of their own

sphere. Neither one can interfere with the performance of the duties of the other.

- Supreme court has the exclusive judicial power to adjudicate with finality all justiciable disputes. No other department or agency may pass upon its judgments or declare them unjust.

Demetria v. Alba (1987)

- Section 44, Paragraph 1 of PD 1177 ('Budget Reform Decree') was declared unconstitutional, because it unduly overextends the privilege granted under Article VIII, Section 16(5) of the *1973* Constitution.
- **General Rule:** Where one branch is acting within the limits of its authority, the Judiciary cannot and ought not to interfere with the former.
- **Exception:** Where such a branch acts beyond the scope of its authority as granted by the Constitution, it becomes the *duty* of the Judiciary to declare those acts as null and void.

Theory and Justification of Judicial Review

Article VIII, Section 1. The judicial power shall be vested in one Supreme Court and in such lower courts as may be established by law.

Article VIII, Section 4. (2) All cases involving the constitutionality of a treaty, international or executive agreement, or law, which shall be heard by the Supreme Court en banc, and all other cases which under the Rules of Court are required to be heard en banc, including those involving the constitutionality, application, or operation of presidential decrees, proclamations, orders, instructions, ordinances, and other regulations, shall be decided with the concurrence of a majority of the Members who actually took part in the deliberations on the issues in the case and voted thereon.

	Judicial Power	**Judicial Review**
Where Vested	Supreme Court & lower courts	
Definition	Duty of the courts of justice to settle actual controversies involving rights which are legally demandable & enforceable; determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the govt	Power to determine the constitutionality of acts of the executive or the legislative branch
Requisites	Jurisdiction	Actual case or controversy, locus standi, earliest opportunity, lis mota

Angara v. Electoral Commission (1936)

- Pedro Ynsua filed an election protest before the Electoral Commission. Angara sought to prohibit the EleCom from taking further action since the National Assembly already proclaimed the winners (Dec. 3), and that had the effect of cutting off the jurisdiction of Elecom to entertain protests.
- In case of conflict wherein the allotment of power by the Constitution to the executive, the legislative and the judicial departments is marred, if not obliterated, the judicial department is the only organ which can be called upon to determine the proper allocation of power.
- When the Judiciary mediates to allocate constitutional boundaries, it does not assert any superiority; it does not nullify an act of the legislature, but only asserts the obligation assigned to it by the Constitution to determine conflicting

claims of authority and to establish for the parties in an actual controversy the rights secured and guaranteed to them.

- The power of judicial review is limited to actual cases and controversies, and limited further to the constitutional question raised. Likewise, legislative enactments are entitled to the presumption of constitutionality.
- Judicial review is an integral component of the system of checks and balances which, together with the corollary principle of separation of powers, forms the bedrock of our republican form of government, and insures that its vast powers are utilized only for the benefit of the people it serves.

JUSTICIABLE & POLITICAL QUESTIONS

Justiciable Issue	Political Question
• implies a given right, legally demandable and enforceable, an act or omission violative of such right, and a remedy granted and sanctioned by law, for said breach of right. • It is one which is proper to be examined or decided in courts of justice because its determination would not involve an encroachment upon the legislative or executive power. • One which affects personal or property rights accorded to every member of the community in cases properly brought before the judicial tribunals • E.g. Issues concerning the right of a citizen in relation to the government.	• Those questions which under the Constitution are o To be decided by the people in their sovereign capacity, or o In regard to which full discretionary authority has been delegated to the legislature or executive branch of government • Connote questions of policy; concerned with issues dependent upon the wisdom, not the legality of a particular measure • Political questions cannot be reviewed by the Judiciary. But 1987 Constitution limits resort to the political question doctrine

Miranda v. Aguirre (1999)

- Case assailing the constitutionality of RA 8528 (changed the status of Santiago, Isabela from an independent component city to a component city). They claimed it was invalid for failing to provide a plebiscite on the question of conversion (required by Art. X, Sec. 10). Respondents argued that the issue was a political one & therefore not subject to the power of judicial review.
- The issue is a justiciable issue and not a political question since the Constitution and the Local Government Code imposes conditions for a valid creation, conversion, and merger of local government units. Congress has acted with grave abuse of discretion by not complying with the requirements.
- SC cannot shy away from the issue for they alone can decide on the matter.
- The issue in this case was not justiciable since downgrading an independent component city substantially altered its political and economic rights (such as subjection to provincial supervision, review of ordinances by the provincial board, and revenue-sharing)

Torrecampo v. MWSS (2011)

- Barangay Captain Torrecampo sought to enjoin DPWH from implementing the C5 project in the Balara area, arguing that this will affect the MWSS aqueducts.
- The matter of where to implement the project is a political question because it is regarding the law's wisdom, not its legality → Court refused to pass judgment because petitioner basically asks the Court to declare that the RIPADA Area is a better area than the Balara Area for the implementation of the C5 Project.

REQUISITES OF JUDICIAL REVIEW

KAPIT v. City of Manila (2026)

- Case assailing the Non-Contact Apprehension Policy (NCAP) instituted by the MMDA and enforced with city-wide ordinances. A TRO was issued in 2022 on both the MMDA and the City Ordinance versions of NCAP
- In 2023, the Metro Manila Traffic Code was adopted which standardized the observance of NCAP across Metro Manila
- Petition dismissed due to **mootness,** as the original NCAP ordinances were no longer resumed because of the adoption of the MMTC 2023.
- Petitions dismissed because of:
    - **lack of actual case/controversy** – because the original assailed ordinances were no longer in effect
    - **lack of standing** – only one of three petitioners were actually directly affected; KAPIT, filing on behalf of members who were public operators and drivers, were found to not have locus standi for failing to establish identity
    - **violation of hierarchy of courts**- did not show that they had exhausted administrative remedies
    - **Forum-shopping** - identity of interest in the cases filed in different courts

- **In the absence of the essential requisites of judicial review, ruling on the issues would be judicial overreach.**

White Light Corporation v. City of Manila (2009)

- Manila City implements Ordinance prohibiting short-time admissions in motels, inns, hotels, pension houses, etc
- Standing = ability to demonstrate sufficient connection and harm from the law; in this case, two exceptions apply:
    - (1) **overbreadth** – the assailed Ordinance infringing on rights to liberty and privacy (freedom of speech)
    - (2) White Light Corp claims **third-party standing** – permitted to petition to raise the rights of third parties (their customers)
        - Criteria:
            - (1) litigant must have suffered an injury-in-fact = sufficient concrete interest
            - (2) Litigant must have a close relation to the third party
            - (3) There must exist some hindrance to the third party's ability to protect his or her own interests
- As a valid measure of police power, the Ordinance fails the **strict scrutiny test:**
    - **Compelling state interest** – claims to prevent immoral sexual behavior; however, legitimate use of short-term stays are impaired
    - **Least restrictive means** – other, less intrusive means such as increased police presence can be done

1. <u>Actual Case or Controversy</u>

- Existing case or controversy which is ripe for determination; not merely conjectural or anticipatory (the Court will not issue an advisory or academic opinion)
    - Ripeness: A question is ripe for adjudication when the challenged governmental or administrative act has reached a final, definitive state, causing a direct, concrete, and adverse effect on the individual or entity bringing the suit.
- The Court's function is to determine controversies between litigants & not to provide advisory opinions

Defects:

A. Prematurity

- Courts can't rule on conjectural or anticipatory questions, lest its decision would amount to an advisory opinion; question before the court must be ripe for adjudication

PACU v. Secretary of Education (1955)

- Petitioners assail constitutionality of RA 2706 which gives the Sec. of Education the power to inspect & permit existence & operations of private schools.
- Case is premature because mere fear that something is yet to happen does not yet constitute a justiciable issue.
- Petitioners failed to prove that they suffered any discernible wrong due to the operation of RA 2706.

Montesclaros v COMELEC (2002)

- Petitioners, who are 20 years old, filed a petition (for certiorari, prohibition, and mandamus with prayer for a temporary restraining order or preliminary injunction) to prevent the enactment of a bill which will postpone the SK elections scheduled on May 6, 2002 and the reduction of the age requirement for SK membership from 21 years old to a maximum of less than 18 years of age. They allege that the law disenfranchises them, preventing them from voting and being voted for in the SK elections.
- Whether or Not there exists an actual justiciable controversy
- A proposed bill is not subject to judicial review because it is not a law. It creates no right and imposes no duty legally enforceable by the Court. It has no legal effect. Thus, it does not violate any constitutional right or duty. The court can only exercise the power of judicial review only after the law is enacted. Therefore, there is no actual case or controversy when it comes to constitutionality.
- Petition is premature, filed before the bill was enacted into law.

Lozano v Nograles (2009)

- Two separate petitions: one from the Lozanos and another from Louis Biraogo. As concerned citizens and taxpayers, petitioners filed for the nullification of House Resolution No. 1109, "A Resolution Calling upon the Members of Congress to Convene for the Purpose of Considering Proposals to Amend or Revise the Constitution, Upon a ¾ vote of All Members of the Congress."
- Whether or Not the petitions present an actual case ripe for judicial adjudication.
- The Court's power of review is limited to actual cases and controversies dealing with parties having adversely legal claims, and limited further to the constitutional question raised or the very *lis mota* presented.
- The House Resolution is a mere call for a future convention. There is no actual convention, nor any proposed amendments as of the filing of the petitions. Hence, there is no actual act that would warrant intervention from the Court. Additionally, the petitioners have not shown elemental injury. There has been no disbursement nor allocation of any public funds that would involve an illegal disbursement of public funds derived from taxation. Transcendental importance is also not applicable as the House Resolution is not yet realized.

PHILCONSA v PH Govt (2016)

- The Government of the Philippines (GPH) and the Moro Islamic Liberation Front (MILF) entered into the Framework Agreement on the Bangsamoro (FAB) on October 15, 2012, and the Comprehensive Agreement on the Bangsamoro (CAB) on March 27, 2014, providing for the creation of an autonomous political entity called the Bangsamoro to replace the Autonomous Region in Muslim Mindanao (ARMM). Petitioners challenged the constitutionality of the agreements, alleging, among others, that they violated the Constitution, usurped the powers of Congress, and committed the government to constitutional amendments beyond the authority of the Executive.
- Case was dismissed since it was not ripe for adjudication because the CAB and FAB could not be implemented without the enactment of the Bangsamoro Basic Law (BBL).
- Even if there was a bill existing, it would not be subject to judicial review (*Montesclaros v. COMELEC*) because a bill is not a law, so it would be rendering an advisory opinion on a proposed act of Congress

B. Mootness

- When an issue ceases to present a justiciable controversy because of supervening events, lending no practical use to the determination of the issue
- There's no actual substantial relief to which the petitioner would be entitled &, which would be negated by dismissal of the petition.
- Court may decide cases otherwise moot if:
  1. There is a grave violation of the Constitution.
  2. The situation has an exceptional character & the paramount public interest is involved.
  3. The Constitutional issue raised requires formulation of controlling principles to guide the bench, the bar, & the public.
  4. Case is capable of repetition yet evading review.

Atlas Fertilizer v. Secretary of DAR (1997)

- Case involving RA 6657 (Comprehensive Agrarian Reform Law); petitioners allege that some portions of CARL violate consti for extending agrarian reform program to aquaculture lands when the consti limits it to agricultural lands only
- Court ruled that the case became moot because the Court already ruled in *Luz Farms* that lands devoted to fishing are not agricultural lands. Moreover, RA 7881 was enacted, exempting farms & fishlands from CARL.

Lacson v Perez (2001)

- On May 1, 2001, President Gloria Macapagal-Arroyo issued Proclamation No. 38, declaring a "state of rebellion" in Metro Manila, and General Order No. 1, directing the AFP and PNP to suppress the rebellion. Petitioners challenged the declaration and the warrantless arrests arising from the May 1 siege of Malacañang as unconstitutional, but the President lifted the declaration on May 6, 2001.
- Since President Macapagal-Arroyo has lifted the declaration of a "state of rebellion" (Proclamation No. 38), the Court has rendered the instant petitions moot and academic.

- Furthermore, in relation to the claim of the petitioners' that the state of rebellion is being used by authorities to do warrantless arrests, the respondents' Joint comment indicated that the Justice Department and police authorities declared intention to obtain regular warrants of arrests from the courts for all acts committed prior to and until May 1, 2001. With the statement, the petitioners' apprehension must be laid to rest.

Sanlakas v Executive Secretary (2004)

- Around 300 junior officers and enlisted men of the AFP, armed with ammunition and explosives, stormed into Oakwood Premiere apartments in Makati. Frustrated with the corruption in the AFP, they demanded the President (GMA), Secretary of Defense, PNP Chief to resign.
- The president then issued Proclamation No. 427 and General Order No. 4, both declaring a state of rebellion and calling out the AFP to suppress the rebellion, which was eventually lifted on August 1, 2003 by virtue of EO 435.
- WON the petition is moot and academic
- The issuance of Proclamation No. 435, declaring that the state of rebellion has ceased to exist, has rendered the case moot. Petitions are then DENIED.
- Whether or Not the President possesses the power to declare a state of rebellion and what are its effects
- Yes. The authority to declare a state of rebellion springs from the powers as chief executive and and as a Commander-in-Chief. These are purely executive powers from Article VII, as opposed to the delegated legislative powers from Article VI.

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2. <u>Proper Party (Locus Standi)</u>

- The person challenging the act must have a personal and substantial interest in the case such that he has sustained, or will sustain direct injury as a result of the enforcement.
- Requirements for standing:
    - Suffered some actual or threatened injury as a result of the allegedly illegal conduct of the government
    - Injury is fairly traceable to the challenged action
    - Injury is likely to be redressed by a favorable action
    - In some cases, the Supreme Court dispenses with the requirement that petitioner has experienced or is in actual danger of suffering direct and personal injury

Joya v. PCGG (1993)

- As Citizens: Petitioners have no standing since the items they want to exclude from being auctioned are not privately theirs nor public property. Thus, they have no personal or material interest in the matter. Only the Metropolitan Museum of Manila Foundation and the Marcoses, who privately own alleged items, can file the case.
- As Taxpayers: Neither can they invoke standing as taxpayers since the governmental act being challenged does not involve the disbursement/expenditure of public funds.

CHR Employees Assoc v CHR (2004)

- The CHR implemented an upgrading and reclassification scheme involving personnel positions, relying on the special provisions of the General Appropriations Act of 1998, but the DBM disapproved the scheme for lack of legal justification. After the CSC Central Office and the Court of Appeals upheld the scheme on the ground of fiscal autonomy, CHREA elevated the case to the Supreme Court, questioning the CHR's authority to implement the changes without the DBM's prior approval.
- The Court held that a proper party is one who has sustained or is in immediate danger of sustaining an injury as a result of the act complained of.
- CHREA's members stood to suffer injury because the upgrading scheme could consume funds allocated for Personnel Services, from which the benefits of the employees, including those in the rank and file, are derived.
- Furthermore, the personality of the petitioner to file this case was already recognized by both the CSC and the Court of Appeals in the proceedings, making the challenge to its personality belated.

Automotive Industry Workers Alliance v Romulo (2005)

- President GMA issued Executive Order No. 185, authorizing the Secretary of Labor and Employment to exercise administrative supervision over the NLRC, its regional

branches, and personnel, prompting ten labor unions to challenge the order as an unconstitutional encroachment upon legislative power. Petitioners alleged that the order effectively amended Republic Act No. 6715, while respondents argued that petitioners lacked legal standing and that the President could exercise control and supervision over the NLRC through the Secretary of Labor.

- The court dismissed the petition for lack of standing. The petitioners do not show that they sustained or will sustain direct injury from EO 185. Their rights will not be prejudiced because the authority of SoL does not extend to the power to review, reverse, revise or modify NLRC decisions. The EO has limited reach. It is an authoritative order from the President to the SoL. Only those directly under SoL's disciplinary authority (Section 1d of EO 185) may have direct interest. In fact, Congress can claim injury from the alleged executive encroachment of legislative function to amend, modify, and/or repeal laws.
- As for Taxpayer Standing, Petitioners have not established that EO 185 will cause the disbursement of public funds. Respondents are correct that EO 185 does not require additional appropriation for its implementation.

A. Citizen Standing

- requires citizen to prove direct injury has been sustained/will be sustained, or citizen seeks enforcement of a public right

Sec. 7, Art. II The right of the people to information on matters of public concern shall be recognized. Access to official records, and to documents and papers pertaining to official acts, transactions, or decisions, as well as to government research data used as basis for policy development, shall be afforded the citizen, subject to such limitations as may be provided by law.

⭐Tañada v. Tuvera (1985) ⭐

- Petitioners sought to have the Marcos-era presidential decrees and issuances published
- As Citizens: Petitioners can be accorded citizen standing since they are seeking for the enforcement of a public right, and the execution of a public duty.
- The Court said that if Petitioners were not allowed to initiate said proceedings, it is "difficult to conceive of any other person to initiate the same [cant seem to bring the text up here hm

Chavez v PEA and Amari

- The government undertook a reclamation project along Manila Bay, which eventually involved the Public Estates Authority (PEA), a government-owned corporation tasked with reclaiming and developing public lands.
- On April 25, 1995, PEA entered into a Joint Venture Agreement (JVA) with AMARI, a private corporation, to develop the Freedom Islands and reclaim additional areas of Manila Bay. The agreement was negotiated without public bidding. Under the amended agreement, AMARI would acquire ownership of substantial portions of reclaimed land and land that was still submerged.
- Francisco I. Chavez, acting as a citizen and taxpayer, filed a petition for mandamus with the Supreme Court. He challenged the agreement on the ground that it violated the 1987 Constitution's restrictions on the disposition of lands of the public domain and sought disclosure of the agreement's terms.
- Whether or Not the petitioner has *locus standi* to bring this suit
- Chavez was permitted to sue as a citizen and taxpayer because the case raised constitutional questions of transcendental importance involving public property and the State's constitutional obligations.
- The 592.15 hectares of submerged areas of Manila bay remain inalienable and outside the commerce of man until classified as alienable/disposable lands open to disposition and declared no longer needed for public service. Since the Amended JVA seeks to transfer to AMARI, a private ownership of 77.34 hectares, such transfer is void for being contrary to Section 3, Article XII of the 1987 Constitution which prohibits private corporations from acquiring any kind of alienable land of the public domain

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B. Associational Standing

- can be invoked by an association on behalf of injured members; the association can assert the concerns of its constituents as long as interest sought to be protected must be germane to the association's purpose
- Third-party standing: due to the nature of one party's relation to another, the former is allowed standing to invoke fundamental due process or equal protection claims of the latter injured by state action

KMU Labor v. Garcia (1994)

- Third-party standing for commuters: Petitioner KMU Labor has standing to question the constitutionality of the DOTC and LTFRB which delegates the power to fix jeepney fares to the private operators, since its members who frequently use public transport suffer direct injury from the arbitrary fare hikes.

IBP v Zamora (2000)

- President Joseph Ejercito Estrada ordered the Philippine Marines to conduct joint visibility patrols with the PNP in Metro Manila in response to the alarming increase in violent crimes, with the operations placed under the leadership of the Metro Manila Police Chief. The IBP filed a petition to annul the deployment as unconstitutional, arguing that it militarized civilian law enforcement and violated civilian supremacy over the military.
- "Legal standing" or locus standi has been defined as a personal and substantial interest in the case such that the party has sustained or will sustain direct injury as a result of the governmental act that is being challenged.
- In the case at bar, the mere invocation by the IBP of its duty to preserve the rule of law and nothing more, is not sufficient to clothe it with standing in this case. This is too general an interest which is shared by other groups and the whole citizenry. IBP, has not shown any specific injury which it has suffered or may suffer by virtue of the questioned governmental act.
- Not only is the presumed "injury" not personal in character, it is likewise too vague, highly speculative and uncertain to satisfy the requirement of standing. Since petitioner has not successfully established a direct and personal injury as a consequence of the questioned act, it does not possess the personality to assail the validity of the deployment of the Marines.

Executive Secretary v CA (2004)

- Republic Act No. 8042, or the *Migrant Workers and Overseas Filipinos Act of 1995*, was enacted to protect Filipino migrant workers and overseas Filipinos. The Asian Recruitment Council Philippine Chapter, Inc. (ARCO-PHIL), representing recruitment agencies, challenged several provisions of the law before the Regional Trial Court (RTC).
- It argued that certain provisions on illegal recruitment and their corresponding penalties were unconstitutional because they allegedly treated licensed recruitment agencies in the same manner as illegal recruiters and imposed excessive penalties. ARCO-PHIL sought a temporary restraining order and a writ of preliminary injunction to prevent the government from enforcing the challenged provisions.
- Whether or Not the Respondent has Locus Standi to file the petition in the RTC in representation of its 11 members
- I*t has locus standi to represent its members but NOT unskilled workers.*
- *The respondent has locus standi with regards to the representation of its members since it and its members are identical.*
- *Third party standing would be recognized if it can be shown that the party suing has substantial relation to the third party. Here, ARCO was formed for the purposes of promoting and supporting the growth of its members and to act as representative of any individual or member on matters related to the manpower recruitment industry. Thus, ARCO is the appropriate party to represent its members.*
- *HOWEVER, the respondent does not have standing to file for petition on behalf of unskilled workers. It failed to implead any unskilled workers in its petition.*

GMA Network, Inc. v. Commission on Elections (2014)

- Third-party standing for election candidates, voters and viewers: Besides from the assailed statute's direct injury on their own freedom of the press, Petitioners GMA Network, Inc. and other broadcast establishments have third party standing in asserting the constitutional freedom of speech of candidates and right to information of the public. They question the arbitrary COMELEC Resolution which imposes aggregate-time based airtime limits for election ads.

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C. Taxpayer's Standing

- correctly alleged when issue deals with unwarranted disbursement/appropriation of public funds, or a waste of public funds through an unconstitutional law's enforcement

Information Technology Foundation of the Philippines v. COMELEC (2004)

- Third-party standing as taxpayers, voters and citizens: Petitioners have taxpayer's standing since they alleged a misuse of public funds through illegal disbursement when the bidding for the automated counting machines was awarded to a noneligible entity.

D. Voters Standing

- There must be a showing of obvious interest in the validity of the election law in question.

Tolentino v Comelec (2004)

- The petitioners have legal standing even if the strict application of the doctrine of standing to litigate disqualifies them.
- The petitioners assert a harm that is a generalized grievance that is shared by many, if not by all voters who participated in the election. Furthermore, they did not allege that the Court should give due course to the petition as COMELEC misappropriated or diverted public funds. With these in mind, they should not have had legal standing.
- However, the Court relaxed the requirement on legal standing and exercised their discretion to give due course to the voters' suits as it raises important questions involving the right of suffrage and that the same questions may likely arise again in other elections.

E. Legislative Standing

- can be invoked by a legislator whose prerogative is negatively affected by a governmental act

Ople v. Torres (1998)

- Standing as Legislator: Petitioner Senator Ople has legislative standing to question A.O. 308 (establishing the National ID System) since the issuance of the AO usurps his legislative power and it is a law which the President does not have the power to issue since it redefines basic rights and intrudes on right to privacy.

F. Governmental Standing

- can be invoked by the State in challenging constitutionality of any law since it has substantial interest to uphold the validity of its own laws

People v. Vera (1937)

- Governmental standing: The government is the proper party to question the statute granting the power to establish probation officers to provincial boards (which is a legislative power) because the State is always interested in the integrity of its Constitution or the statutes involved and can set aside a law that violated the Constitution.

G.Standing for Future Generations and Fauna

- it must be proven that parties alleging standing for environmental cases are real parties-in interest and that they (or their wards) stand to be benefitted or injured by the outcome of the case

Sec. 15, **Art. II.** The State shall protect and promote the right to health of the people and instill health consciousness among them.

Sec. 16, **Art. II.** The State shall protect and advance the right of the people to a balanced and healthful ecology in accord with the rhythm and harmony of nature.

Dante Gatmaytan, The Illusion of Intergenerational Equity (2003) on Oposa v. Factoran (1993)

- In *Oposa*, the Court's discussion on Petitioners' standing for their generation and generations to come were obiter dictum. The doctrine of intergenerational responsibility cannot be regarded as precedent from *Oposa* since it was not

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necessary in resolving the real issue raised – whether or not the Petitioners had cause of action.

- "distinction between present and future generations is inconsequential – we cannot protect the rights of future generations without protecting the rights of the present"
- HELD in *Oposa*: The constitutional right on a balanced and healthful ecology is specific, self-executory, and actionable right.
- Nonetheless, the rights of future generations are already recognized in Philippine laws. As seen in the framers' proposal for Sec. 16, Article II of the 1987 Constitution, the conservation of natural resources is mandated "for the common good and the sustenance of future generations."

Resident Marine Mammals of the Protected Seascape Tanon Strait v. Secretary Reyes (2015)

- Standing in Environmental Cases: Petitioners have standing as stewards who are seeking to protect animals.
    - Under Sec. 5 of the Rules of Procedure for Environmental Cases (RPEC), "citizen suits" are allowed and can permit any Filipino to file an action for violation of environmental laws on the principle that humans are stewards of nature.

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3. <u>Earliest Opportunity</u>

- issue on constitutionality must be raised at the earliest opportunity
- alleging an act or law's unconstitutionality cannot be raised for the first time at the appellate level, unless that court has original jurisdiction over the case
- Exception: The Supreme Court, in its discretion, can take cognizance of the constitutional issues raised by the parties even if the issue was not raised immediately after the execution of the unconstitutional act
- May also mean the first opportunity a petitioner becomes aware of the unconstitutionality of a law (DG P&S)

Falcis III vs Civil Registrar (2019)

- Falcis assails provisions in the FC defining marriage as between a man and a woman, claims that same-sex couples are equally capable of founding family
- Court dismisses the petition on several procedural issues (no actual case or controversy, lack of direct injury, wrong relief sought)
    - Most relevant: **Not raised at Earliest Opportunity**
        - Court held that FC has been effective since 1988, so it cannot be claimed that this is the earliest possible opportunity to raise its unconstitutionality
        - Additionally, Court says petitioner is a lawyer and would have been made aware of the provisions of the Family Code in his first year in law school
- *DG NOTES: he really doesn't like this decision. Believes that the Court took the opportunity to nitpick on procedural issues to avoid ruling on the substantive parts of the petition.*

4. <u>Necessity of Deciding Constitutional Questions (Lis Mota)</u>

- issue on constitutionality must be the *lis mota* of the case
- resolution of the case cannot be done without deciding whether an act or law is unconstitutional
- Presumption of validity accorded executive and legislative acts of the co-equal branches of government and the petitioner has the burden of showing that the case cannot be resolved unless the constitutional question he raised is determined by the Court
- Courts as much as possible will decide in favor of constitutionality

Arceta v Mangrobang (2004)

- Ofelia Arceta was charged with violating B.P. Blg. 22 after issuing a check for ₱740,000 that was dishonored for insufficient funds. Gloria Dy was separately charged after issuing a check for ₱2.5 million that was dishonored because her account was closed.
- Both petitioners sought to have the criminal proceedings against them stopped, arguing that B.P. Blg. 22 was unconstitutional. They wanted the Supreme

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Court to reconsider *Lozano v. Martinez*, which had previously upheld the constitutionality of the Bouncing Checks Law.

- Instead of first filing motions to quash the criminal information before the trial courts, they directly filed petitions for certiorari, prohibition, and mandamus with the Supreme Court.
- WON the case is worthy of Judicial Review
- The instant petitions for certiorari, prohibition, and mandamus are for questioning if the respondent acted in excess of jurisdiction or grave abuse of discretion. These petitions didn't allege anything against the respondent judges.
- Petitions blatantly ignore the hierarchy of courts by immediately elevating the matter to the SC. Earliest opportunity means they should have brought it up the issue of the constitutionality of BP 22 in the MTCs
- No issues raised or argued in the trial courts means these petitions are premature, and the constitutional question raised is not the Lis Mota of the controversy.

Gatmaytan, Variant Technicalities in Pangilinan v. Cayetano

In *Pangilinan v. Cayetano,* the Court fashioned new technicalities to dismiss the case questioning the constitutionality of Duterte's withdrawal from the ICC. Court dismissed the case on two grounds:

- Standing of Petitioners - Petitioner-legislators did not have standing
- Mootness - withdrawal already took effect

Standing

- Before Pangilinan, the rule on standing for legislators was very clear - a Legislator may question an action which amounted to a usurpation of legislative power
    - Legislators have a legal standing to see to it that the prerogative, powers, and privileges vested by the Constitution in their office remain inviolate. They are allowed to question the validity of any official action which infringes on their prerogatives as legislators *(Biraogo v. Philippine Truth Commission)*
- Variant - Since the Senate never sought to enforce the Resolution asserting its prerogative to require its concurrence for withdrawal from a treaty. The Court held that an action by the Senate was necessary before coming to this Court and that the legislators (Pangilinan et. al.) had no standing..
    - Passage of Resolution No. 289 would have been a definite basis on which petitioners-senators can claim a right
    - Petitioners-senators cannot validly come to this Court
- This is unusual - it has always been that an individual Senator has standing. But now the Supreme Court has tied standing to an institutional position to a chamber of Congress
- Critique
    - Institutional position of the Senate does not confer standing; or else minority legislators will not be able to challenge acts that usurp the powers of Congress and when any Senator feels that any branch of government infringes on his prerogative
    - In this case, the constitutionality of an Act is determined by the Senate, by refusing to act on a Resolution
    - This provides a Congress dominated by the President's allies to remove dissent by offering resolutions that require an institutional position on an issue - and then to sit on that resolution
- Transcendental Importance
    - All petitioners invoked transcendental importance.
    - However, the Court ruled that none of the exception conditions warranting the exercise of jurisdiction is present
        - Does not involve funds or assets
            - DG: This is not a taxpayers' suit - no need to argue illegal disbursement of funds
        - No express disregard of a constitutional or statutory prohibition
            - DG: There is because the Senate argues that their resolution/consent is needed before a suit can be validly brought to the Court (not necessary in a case)
        - No other party has a more direct, personal and material interest
            - DG: Not required because the issue is of transcendental importance (asking the Court to set aside the technicality)

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- Alleged transcendental importance will be better served when there are actual cases with the proper parties suffering an actual or imminent injury
- Transcendental importance dispenses with the standing requirement - incorrect for the Court to have said the alleged transcendental importance of the issues raised will be better served when there are actual cases with the proper parties

- Mootness
  - All that was needed to enable withdrawal (the Notice and Acceptance) have been consummated - not a supervening event that would render *Pangilinan* moot
  - If Withdrawal was unconstitutional, nothing could have been validly transmitted to the ICC, and ICC could not have validly accepted the notice
  - Case is similar to one where a candidate for public office disqualified to run for office. If that decision comes after her election, her election is void.
  - Exception to Mootness *(David v. Macapagal-Arroyo)* could have been applied:
    - Grave violation of the Constitution
    - Exceptional character and paramount public interest
    - Requires formulation of controlling principles to guide the bench, the bar and the public
    - Capable of repetition, yet evading review
  - Perceivable benefit
    - Proper interpretation of the Constitution
    - Redress for thousands of victims of EJK
- Final Notes
  - Pangilinan v. Cayetano cluttered constitutional litigation with new technicalities or variants of old rules
  - President Duterte is the only president who has never lost in the Supreme Court

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III. TERRITORY, PEOPLE, AND GOVERNMENT

TERRITORY

Art. I. The national territory comprises the Philippine archipelago, with all the islands and waters embraced therein, and all other territories over which the Philippines has sovereignty or jurisdiction, consisting of its terrestrial, fluvial and aerial domains, including its territorial sea, the seabed, the subsoil, the insular shelves, and other submarine areas. The waters around, between, and connecting the islands of the archipelago, regardless of their breadth and dimensions, form part of the internal waters of the Philippines.

REPUBLIC ACT NO. 9522

- sought to redefine the Philippines' archipelagic baselines to make it consistent with UNCLOS III by amending R.A. 3046 as amended by R.A. 5446

The National territory is comprised of:

1. Philippine archipelago , with all the islands and waters embraced therein
- Internal waters - waters around, between and connecting the islands of the archipelago, regardless of breadth and dimension
2. All other territories over which the Philippines has sovereignty and jurisdiction
- Consists of:
    1. Territorial, fluvial, and aerial domains
    2. Territorial sea, seabed, subsoil, insular shelves and other submarine areas

Archipelagic Doctrine - A body of water studded with islands, or the islands surrounded with water, is viewed as a unity of islands and waters together forming one integrated unit.

Straight baseline method - consist of drawing straight lines connecting appropriate points on the cost without departing to any appreciable extent from the general direction of the coast, in order to delineate the internal waters of an archipelago

UNCLOS III

Internal Waters	All waters and waterways landward side of the baseline	Philippine jurisdiction; No right of passage for foreign vessel
Territorial waters	12 nautical miles from the baseline	Right of innocent passage
Contiguous zone	12 nautical miles from the territorial sea	State can enforce: Customs, Taxation, Immigration and Pollution
Exclusive Economic Zone	200 nautical miles from the baseline	Coastal nation has sole exploitation rights over all natural resources
Continental shelf	Natural prolongation of the land territory or 200 nautical miles, whichever is greater (but never exceed 350 nmi)	Right to harvest mineral and non-living material in the subsoil, to the exclusion of others
High seas	Beyond the EEZ/Continental Shelf	

declared certain areas are within the Philippines' EEZ and not overlapped by any possible Chinese entitlement.

The baseline of analysis is what the features can sustain in their natural condition (unaltered).

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Based on historical evidence, none of the features in the Spratly Islands can sustain either a stable community of people or economic activity that is not dependent on outside resources.

The current presence of personnel on the features is dependent on outside support and does not reflect the capacity of the features in their natural condition.

3. China violated the Convention through its activities in the SCS.

- China violated the Philippines' sovereign rights in its EEZ.
- interfered with Philippine fishermen's traditional fishing rights near Scarborough Shoal.

- China's construction of artificial islands at seven features in the Spratly Islands, as well as illegal fishing and harvesting by Chinese nationals, violated UNCLOS obligations to protect the marine environment.
- Chinese law enforcement vessels unlawfully created a serious risk of collision by physically obstructing Philippine vessels at Scarborough Shoal in 2012.

Magallona v. Ermita (2011)

- R.A. 9522 is constitutional and serves as a statutory tool to demarcate the maritime and continental shelf.
- States may only acquire/lose territory through occupation, accretion, cession, and prescription. R.A. 9522 merely complied with UNCLOS which regulates sea-rights delimiting maritime zones, exclusive economic zones and continental shelves.

In the Matter of the South China Sea Arbitration (2016)

- UNCLOS comprehensively governs the parties' respective rights to maritime zones in the South China Sea. Therefore, China's claim of historic rights to the waters of the South China Sea within its nine-dash line is invalid.
  1. No basis for China's historic rights in the South China Sea within the ninedash line. Whatever historic rights China may have had were extinguished when UNCLOS was adopted, to the extent that those rights were incompatible with UNCLOS.
  2. None of the features claimed by China are entitled to maritime zones beyond 12 nautical miles. No feature in the Spratly Islands generate an EEZ, nor can the Spratly Islands as a unit collectively generate an EEZ. As such, the Tribunal

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People

1. **Citizenship** (Ssee Art IV of the 1987 Constitution and RA 9139)

Sec. 1, Art. IV. The following are citizens of the Philippines:
- Those who are citizens of the Philippines at the time of the adoption of this Constitution;
- Those whose fathers or mothers are citizens of the Philippines;
- Those born before January 17, 1973, of Filipino mothers, who elect Philippine citizenship upon reaching the age of majority; and (4) Those who are naturalized in accordance with law.

Sec. 2, Art. IV. Natural-born citizens are those who are citizens of the Philippines from birth without having to perform any act to acquire or perfect their Philippine citizenship. Those who elect Philippine citizenship in accordance with Paragraph (3), Section 1 hereof shall be deemed natural-born citizens.

Sec. 3, Art. IV. Philippine citizenship may be lost or reacquired in the manner provided by law.

Sec. 4, Art. IV. Citizens of the Philippines who marry aliens shall retain their citizenship, unless by their act or omission they are deemed, under the law to have renounced it.

Sec. 5, Art. IV. Dual allegiance of citizens is inimical to the national interest and shall be dealt with by law

REPUBLIC ACT NO. 9139
The Administrative Naturalization Law of 2000
Qualifications
- born in Philippines & residing therein since birth
- not be less than 18 yrs of age, at time of filing of petition
- must be of good moral character & believes in underlying principles of Consti; must have conducted self in a proper & irreproachable manner during entire period of residence in PH in his relation with duly constituted govt & community in which he/she is living
- must have received primary & secondary education in any public school or private educational institution duly recognized by Department of Education, Culture & Sports, where Philippine history, govt & civics are taught & prescribed as part of school curriculum & where enrollment is not limited to any race/nationality: Provided, That should he/she have minor children of school age, he/she must have enrolled them in similar schools
- must have a known trade, business, profession or lawful occupation, from which he/she derives income sufficient for his/her support & if he/she is married &/or has dependents, also that of his/her family: Provided, however, That this shall not apply to applicants who are college degree holders but are unable to practice their profession because they are disqualified to do so by reason of their citizenship
- must be able to read, write & speak Filipino or any of dialects of PH
- must have mingled with the Filipinos & evinced a sincere desire to learn & embrace the customs, traditions & ideals of the Filipino people.

Disqualifications
- those opposed to organized govt/affiliated with any association/group of persons who uphold & teach doctrines opposing all organized govts
- those defending/teaching necessity of/propriety of violence, personal assault/assassination for success/predominance of their ideas
- polygamists/believers in practice of polygamy
- those convicted of crimes involving moral turpitude
- those suffering from mental alienation/ incurable contagious disease
- those who, during period of their residence in PH, haven't mingled socially with Filipinos/who haven't evinced a sincere desire to learn & embrace customs, traditions & ideals of the Filipinos
- citizens/ subjects with whom the PHis at war, during period of such war
- citizens/subjects of a foreign country whose laws do not grant Filipinos the right to be naturalized citizens/subjects thereof

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Citizens of the Philippines

1. Those who are citizens of the Philippines at the time of the adoption of this constitution (Citizens under 1935 & 1973 Constitutions)

2. Those whose fathers or mothers are citizens of the Philippines
   i Principle of Jus Sanguinis - acquisition of citizenship by blood relationship

3. Those born before Jan. 17, 1973, of Filipino mothers, who elect Philippine Citizenship upon reaching age of majority

○ Process of election of citizenship (CA 625)
- ■ Statement sworn before any officer authorized to administer oaths
- ■ Statement must be filed with the nearest civil registry
- ■ Oath of allegiance to the Philippine Constitution

4. Those who are naturalized in accordance with law
   - ■ General Naturalization Law - judicial process under CA 473
   - ■ Special naturalization law passed by Congress
   - ■ Mass naturalization (Philippine Bill of 1902)
   - ■ Letter of Instruction No. 270 for a limited period after its promulgation
   - ■ Administrative naturalization law - special committee chaired by the Solicitor General under RA 9139

Aznar v. COMELEC (1990)

- petitioner challenged respondent's (Lito Osmeña) right to hold public office on the ground that the latter was an alien. Respondent maintains that he is a son of a Filipino, was a holder of a valid subsisting passport, a continuous resident of the Philippines & a registered voter since 1965. He was, however, also a holder of an alien registration certificate.
- Since Osmena was born to a Filipino father, the presumption is that he is a Filipino citizen & remained Filipino until proof could be shown that he had renounced or lost his Philippine citizenship. The Court ruled further that just because Osmena gained American citizenship at some point before he ran for Governor of Cebu does not mean he lost his Filipino citizenship.
- Modes of losing Filipino Citizenship: naturalization, expressed renunciation, oath of allegiance

Tecson v. Commission on Elections (2004)

- Petitioners sought for respondent Poe's disqualification in Presidential elections for having allegedly misrepresented material facts in his COC by claiming that he's a natural Filipino citizen despite his parents both being foreigners. COMELEC dismissed the petition, holding that Poe was a Filipino Citizen.
- Paternal grandfather Lorenzo was a Spanish subject and then with the Philippine Bill of 1902, there was a mass Filipinization of Spanish subjects so Lorenzo became a Filipino prior to his death (Pangasinan) Lorenzo's citizenship would have extended to his son, Allan--- FPJ's father. FPJ, having been acknowledged as Allan's son to Bessie, though an American citizen, was a Filipino citizen by virtue of paternal filiation as evidenced by his birth certificate.
- If paternity is clear, illegitimate children of Filipino fathers born to alien mothers are Filipino citizens.

Co v. Electoral Tribunal of the House of Representatives (1991)

- Petitioners sought a reversal of HRET's decision in declaring Jose Ong a naturalborn citizen who was proclaimed the duly elected representative of the 2nd district of Northern Samar. Election protests claimed that he was neither a natural-born Filipino citizen nor a resident of said 2nd district.
- Under the 1987 Constitution, those born before Jan. 17, 1973 of Filipino mothers elected citizenship before that date are Filipino citizens. This corrected an earlier provision in the 1935 Constitution where only fathers can pass on their citizenship.
- Ong's mother was a Filipino when he was born so there was no need for him to elect citizenship because he was a natural-born Filipino.
  - o Filing a sworn statement is required for those who still have to elect citizenship. For those already Filipinos when the time to elect came up, there are acts of deliberate choice which cannot be less binding— entering a profession open only to Filipinos, serving in public office where citizenship is a qualification, and voting.

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Yu v. Defensor-Santiago (1989)

- Previously, Yu was issued a Portuguese passport; later, he became a naturalized Filipino citizen. Despite his naturalization, he declared his nationality as Portuguese in any commercial document that he signed. He was again issued a Portuguese passport.
- These acts, when considered together, constitute an express renunciation of Yu's Philippine citizenship as acquired through naturalization.
  - ○ A renunciation is express when it has been made known distinctly and explicitly.
- Philippine citizenship is not a commodity that can be displayed when required and suppressed when convenient.

Angat v. Republic (1999)

- Angat filed before the RTC a petition to regain Philippine citizenship, since he was a natural-born Filipino yet became naturalized, under Commonwealth Act No. 63; RAs 965 and 2630.
- He also took his Oath of Allegiance under RA 8171 which provides for repatriation of natural-born Filipinos who lost their citizenship due to political and economic necessity. Under Commonwealth Act No. 63, one is allowed to reacquire citizenship provided that he is not in opposition to government teaching, not defending violence, not convicted of crimes involving moral turpitude, nor suffering from an incurable disease.
- First, Angat cannot invoke RAs 965 and 2630 because these only apply to persons who had lost their citizenship by rendering service to, or accepting commission in, the Armed Forces of an allied foreign country.
- Second, the jurisdiction of Angat's petition lies with the Special Committee on Naturalization because the petition was filed in 1996, a year after the agency was reactivated.
    - o This agency is for any application for repatriation filed by Filipino women who lost their Philippine citizenship by marriage to aliens, and by natural-born Filipinos who lost their Philippine citizenship.

Bengson III v. Cruz (2001)

- Whether Cruz, a natural-born Filipino who became an American citizen, can still be considered a natural-born Filipino upon his reacquisition of Philippine citizenship. He reacquired Philippine citizenship under RA 2630, when he took an Oath of Allegiance and registered the same with the Local Civil Registry.
- Modes by which Philippine citizenship may be reacquired by a former citizen: naturalization, *repatriation*, direct act of Congress.
- Repatriation may be availed by those who lost their citizenship due to:
  (1) Desertion of the Armed Forces;
  (2) Service in the Armed Forces of the Allied Forces in World War II;
  (3) Service in the Armed Forces of the United States at any other time; (4) Marriage of a Filipino woman to an alien;
  (5) Political and economic necessity.
    - ○ Repatriation applies, because he lost his citizenship when he rendered service in the Armed Forces of the United States.
- The effect of repatriation is the recovery of the **original status.**
    - i Meaning, if he was originally a natural-born citizen before he lost his Philippine citizenship, he will be restored to his former status as a natural-born Filipino.
- *Explaining* this effect – A natural-born citizen is defined as 'a citizen of the Philippines from birth without having to perform any act to acquire or perfect his Philippine citizenship.'
    - i Only naturalized Filipinos are considered not natural-born citizens (*see* Article IV, Section 1).
- Cruz was not required by law to undergo (lengthy) naturalization proceedings in order to reacquire his citizenship; he is a natural-born Filipino.

Tan Co v. Civil Register of Manila (2004)

- Siblings Hubert and Arlene Co sought to correct entries in their birth certificates. Their parents are Chinese citizens, but their father took his oath as a Philippine citizen pursuant to PD 1055, when they were minors.
    - 0 *CA 473* provides that 'minor children of persons naturalized under this law who have been born in the Philippines shall be considered citizens thereof.'

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- PD 1055 and CA 473 are statutes *in pari materia*, and as a jurisprudential rule, such statutes are to be read together.
    - *In pari materia:* All statutes relating to the same subject or having the same general purpose should be read in connection with it, and should be construed together as they constitute one law.
    - Hence, PD 1055 and CA 473 are statutes *in pari materia* because they both govern naturalization of qualified aliens residing in the Philippines; they have the same purpose and objective which is to enable aliens to reside permanently as long as they have demonstrated love and loyalty for the country, an affinity for culture, and contributed to the economic, social, and cultural development of the country.
- The two should be read together—Section 15 of CA 473 which extends grant of Philippine citizenship to minor children of those naturalized should also be applied to those naturalized under PD 1055.

Republic v. Sagun (2012)

- Sagun is the legitimate child of her Chinese father and Filipino mother. She did not elect Philippine citizenship upon reaching the age of majority and only executed an unregistered Oath of Allegiance.
- When she applied for a Philippine passport, it was denied because as a legitimate child, her citizenship followed her father's, unless upon reaching the age of majority, she elected Philippine citizenship.
    - CA 625 prescribes the procedure for a valid election of Philippine citizenship: (1) a statement of election under oath (2) an Oath of Allegiance (3) registration with civil registry.
- Sagun failed to comply with the legal requirements. First, an unregistered Oath of Allegiance. Second, its execution was not within a reasonable time after attaining the age of majority—"reasonable time" has been interpreted to generally mean within 3 years [applied 12 years later].
- Note: Election of Philippine citizenship cannot be had through 'positive acts,' such as voting.

Go v. Republic of the Philippines (2014)

- Go filed a petition for naturalization under Commonwealth Act No. 473. He was born in Manila to Chinese parents and has lived in Manila since birth. He stated that he was exempt from the filing of a Declaration of Intention, having been born and having studied in the Philippines.
- *OSG*: Go failed to prove (1) that he had all the qualifications to be naturalized and (2) that his witnesses were credible.
- His presentation of witnesses was not in compliance with CA 473 which requires two witnesses who are credible (of good standing) persons and who can insure the character of the applicant, based on the witnesses' intimate knowledge about him.
- Besides, Go's failure to state his former residence is a defect in his petition, given that such a statement is a jurisdictional requirement.
- Naturalization is not a right, but a privilege, and may be enjoyed only under the precise conditions prescribed by law—as it is of highest public interest.

Republic v. Go Pei Hung (2018)

- Go Pei Hung filed a petition for naturalization under Commonwealth Act No. 473.
- *OSG*: Go Pei Hung failed to attach a Declaration of Intention and Certificate of Arrival to his Petition for Naturalization (as required by CA 473). Certificate of Arrival shall state the approximate date of one's arrival, the name of the port of debarkation, and the name of the ship on which he came. The failure to attach a copy of the applicant's Certificate of Arrival is fatal to his Petition for Naturalization.
- Go Pei Hung argues that the Certificate of Arrival is a mere component of the Declaration of Intention, which he is exempt from, having stayed in the Philippines for 30 years. This is not correct, because these two are entirely different. The Certificate of Arrival is to ascertain whether he was a documented alien whose arrival and presence in the country is in good faith and with evident intention to submit to and abide by the laws of the Republic.
- Given that Go Pei Hung's Petition for Naturalization is incomplete, it must be denied outright.

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In Re Mahtani v. Republic (2018)

- Whether Mahtani was able to prove that he had some known lucrative trade, profession, or lawful occupation in accordance with Section 2(4), CA 473.
- Based on jurisprudence, 'some known lucrative trade, profession, or lawful occupation' is understood to mean that one enjoys an 'appreciable margin of his income over expense.'
- Mahtani failed to offer documentary evidence showing his actual financial status; he merely proved that he and his family live in comfort.
- Further, the ITR did not help the case because it only showed that his income ranges may have been sufficient to fulfill his basic needs. There is no ample proof that it was enough to create an appreciable margin, considering the costly lifestyle that Mahtani is trying to impress.

David v. Senate Electoral Tribunal (2016)

- David filed before the SET a petition for *quo warranto*, contesting the election of Senator Grace Poe who is a foundling and cannot thereby be a Senator because she is not a natural-born Filipino (*see* Article VI, Section 3).
- SET found Senator Poe to be a natural-born Filipino, qualified to be a Senator, thus dismissing David's petition for *quo warranto*.
- The Constitution sustains a presumption that foundlings found in the Philippines are born to at least 1 Filipino parent. From the deliberations of the 1934 Constitutional Convention, it was never the framers' intention to exclude foundlings from the status of a natural-born.
- Under Article 14 of the Hague Convention of 1930, a foundling is presumed to have been within the State's territory in which it was found, until the contrary is proved.
- Foundlings were, by birth, accorded natural-born status by the Constitution. Hence, Senator Grace Poe is a natural-born Filipino, qualified to hold office as Senator.

2. Suffrage (*see* Article V of the 1987 Constitution)

Section 1. Suffrage may be exercised by all citizens of the Philippines, not otherwise disqualified by law, who are (1) at least eighteen years of age, and (2) who shall have resided in the Philippines for at least one year and in the place wherein they propose to vote, for at least six months immediately preceding the election.

No literacy, property, or other substantive requirement shall be imposed on the exercise of suffrage.

Section 2. The Congress shall provide a system for securing the secrecy and sanctity of the ballot as well as a system for absentee voting by qualified Filipinos abroad.

The Congress shall also design a procedure for the disabled and the illiterates to vote without the assistance of other persons. Until then, they shall be allowed to vote under existing laws and such rules as the Commission on Elections may promulgate to protect the secrecy of the ballot.

Gallego v Verra (1941)

- Pedro Gallego, a native of Abuyog, Leyte, ran for mayor of Abuyog in the December 1940 elections. He won by a majority of nearly 800 votes over his opponent, Vicente Verra. After losing a previous mayoral election in 1937, Gallego sought employment in Mindanao. In June 1938, he obtained work as a nurseryman at a Bureau of Forestry plantation in Malaybalay, Bukidnon
- Verra challenged Gallego's election, arguing that Gallego had established his residence in Malaybalay and therefore failed to satisfy the residency qualification for mayor of Abuyog. The Court of First Instance declared Gallego's election void, and the Court of Appeals affirmed the decision. Gallego then elevated the case to the Supreme Court.
- Whether or not Gallego lost his domicile of origin in Abuyog by working in Malaybalay, registering and voting there, and obtaining a residence certificate.
- The Court found that Gallego had not abandoned his domicile in Abuyog. His stay in Malaybalay was for employment, not an intention to settle there

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indefinitely. The controlling doctrine is that residence, as used in election laws, is synonymous with domicile. A person's domicile is not changed merely by physical presence or employment in another locality. *Refer to the next case on how to acquire a new domicile.*

Romualdez v. RTC (1993)

- In election cases, the term 'residence' is synonymous with 'domicile,' which denotes a fixed residence to which, when absent for some cause, one intends to return (*animus revertendi*).
- Residence may be lost by adopting another domicile by choice. To acquire a new domicile by choice, there must concur:
    1. Residence or bodily presence in the new locality;
    2. An intention to remain there (*animus manendi*); and
    3. An intention to abandon the old domicile (*animus non revertendi*).
- The political landscape following the People's Power Revolution must have caused worry to the Romualdez family over their safety and security. Therefore, their departure from the country can neither be described as 'voluntary,' nor as 'abandonment of residence' at least in light of the concept of 'domicile by choice.'

AKBAYAN v. COMELEC (2001)

- The right of suffrage is not absolute, the exercise of which is subject to substantive and procedural requirements.
    - As to the substantive requirements, *see* Article V, Section 1 of the 1987 Constitution.
    - As to the procedural requirements, a citizen must undergo the process of registration.[1]
- The State, in the exercise of its police power, may enact laws to safeguard and regulate voter's registration, pertinent are:
    - Section 8, RA 8189 – No registration shall be conducted during the period starting 120 days before a regular election and 90 days before a special election.
    - Section 35, RA 8189 – Any registered voter, representative of a political party may file a petition for exclusion of voters from the list except 100 days prior to a regular election.
    - Section 28, RA 8436 ("stand-by power") – COMELEC shall fix other dates for pre-election acts (e.g. voter's registration).

- The two-day special registration sought for can no longer be conducted within the time left. There are tasks that the Commission has yet to do, such as completing the Project of Precincts, constituting the Board of Elections Inspectors, inspecting, verifying and sealing the Book of Voters, finalizing and printing out the Computerized Voters' List, and many more.

Kabataan Party List v. Commission on Elections (2015)

- Assailed is the constitutionality of RA 10367, which requires biometric registration for new voters and biometric verification for registered voters.
- The State may regulate the right of suffrage by imposing statutory disqualifications[2], with the restriction that the same do not amount to a 'literacy, property or other substantive requirement.'
- The concept of a 'qualification' should be distinguished from 'registration,' which is jurisprudentially regarded as only the means by which a person's qualifications to vote is determined.
    - *Biometrics* is not a 'qualification' to the exercise of the right of suffrage, but a step in the registration process, of which the State has the right to reasonably regulate.
- Likewise, such regulation passes the strict scrutiny test[3].
    1. The *biometrics* requirement advances a compelling state interest, designed to cleanse the national voter registry to eliminate electoral fraud and ensure that the outcome of the elections is reflective of the people's will.
    2. It is the least restrictive means for achieving the above-said interest. Registered voters are only required to undergo the validation process

[1] RA 8189 ("Voter's Registration Act of 1996").

[2] Article V, Section 1, 1987 Constitution. '...not otherwise disqualified by law.'

[3] Strict scrutiny refers to the standard for determining the quality and the amount of governmental interest brought to justify the regulation of fundamental freedoms.

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once, provided that he remains an active voter. Deactivated voters could still apply for reactivation.

Palatino v. COMELEC (2009)

- COMELEC set the deadline of voter registration to October 31, 2009 instead of Dec. 15. Originally. Petitioner asked COMELEC to extend voter registration until Jan. 9 or the day before the 120-day prohibitive period.
- Congress itself has determined that the 120-day period and 90-day period is enough time for the COMELEC to prepare for the elections. Such determination of Congress is within the ambit of its legislative power.
- The 'stand-by power' granted to COMELEC (Sec 28 RA 8436) must be exercised only if the preelection acts cannot be reasonably held within the period provided by law.
    - 0 Court finds no ground why the voter registration cannot be reasonably held within the period in Sec. 8, RA 9616 (120 day period)
- This differs from *AKBAYAN v. COMELEC*, because therein petitioners filed their petition—and sought an extension date that was—within the 120-day prohibitive period.

Ceniza v. Commission on Elections (1980)

- Assailed is the constitutionality of Batas Blg. 51 which 'unreasonably' classifies cities as highly urbanized depending on their annual income, and excludes their electorate from voting for provincial officials.
- Article XI, Section 4(1) of the *1973* Constitution places highly urbanized cities (like Cebu City) outside the supervisory power of the province where they are geographically located. Corollary to independence is the concomitant loss of the right to participate in provincial elections.
    - o Such classification is based on substantial distinction. First, a city's income would indicate its capacity to exist and develop independently. Second, it would likewise show whether the city has sufficient economic activity to warrant its independence.
- This cannot be considered an infringement of their rights of suffrage since the Constitution confers no right to a voter in a city to vote for provincial officials. Their right is limited to the right to vote for elective *city* officials, which is not withdrawn.
- Equal protection clause is not violated, since Batas Blg. 51 does not prohibit some voters in the city from voting for provincial officials, while allowing some voters in the *same* city to vote. It is proper to limit the election of the provincial officials to the voters of the province whose interests are vitally affected.
- Neither is this exclusion considered a 'substantive requirement,' which is prohibited by the Constitution, because such requirement is contemplated to be 'burdens on the right of suffrage without achieving permissible State objectives.' Here, no such burdens are imposed. The voters of Cebu and Mandaue are free to exercise their rights without any other requirement.
- Therefore, Batas Blg. 51 is not unconstitutional.

Macalintal v. Commission on Elections (2003)

- Assailed is the constitutionality of certain provisions of RA 9189[4] as they violate the independence of COMELEC, a constitutionally created office.
- Section 5(d) of RA 9189 requires Filipinos abroad who wish to vote as part of the 'absentee voting system' to execute an affidavit, stating that they will return to the Philippines within 3 years. This is not in violation of the residency requirement in Article V, Section 1; instead, following the doctrine of necessary implication, Section 2 is an *exception* to said requirement.
    - ○ This is Congress' way of allowing them to establish that their domicile of origin (which is the Philippines) has not been abandoned.
- In fact, RA 9189 was enacted in obeisance to the mandate of Article V, Section 2 of the Constitution—'Congress shall provide a system for voting by qualified Filipinos abroad.' Absentee voting under Art. V, Sec. 2 is an exception to the residency requirement in Art. V, Sec. 1.
- However, the Court struck down the ff. provisions,
    - ○ JCOC[5] to review, revise, amend, and approve the IRR of RA 9189 are not constitutional, because it arrogates unto Congress a function that is specifically vested in COMELEC by the Constitution.

[4] Overseas Absentee Voting Act of 2003.
[5] Joint Congressional Oversight Committee.

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- Canvassing of votes for President and VP - since only Congress has the power to proclaim the winning Pres/VP

RA 10590 (2012, which amends RA 9198) – Overseas Voting Act of 2013

Qualified to vote:
All citizens of the Philippines abroad, who are **not otherwise disqualified by law**, at least eighteen (18) years of age on the day of elections

Disqualifications:
(a) Those who have **lost their Filipino citizenship** in accordance with Philippine laws

(b) Those who have **expressly renounced their Philippine citizenship** and who have **pledged allegiance to a foreign country** except those who have **reacquired or retained** their Philippine citizenship under **Republic Act No. 9225**, otherwise known as the 'Citizenship Retention and Reacquisition Act of 2003

(d) An **immigrant or a permanent resident** of another country, **unless** he/she executes an affidavit **declaring that he/she shall resume actual physical permanent residence in the Philippines not later than three (3) years from approval** of his/her registration

Government

1. Government of the Philippines, Defined

EXECUTIVE ORDER NO. 292 (1987): ADMINISTRATIVE CODE
Sec. 2(1). "Government of the Philippines" is defined as:
The corporate governmental entity through which the functions of government are exercised throughout the Philippines, including:

(1) The various arms through which political authority is made effective in the Philippines, whether pertaining to:
  (a) The autonomous regions,
  (b) The provincial, city, municipal, or barangay subdivisions, or
  (c) Other forms of local government

US v. Dorr (1903)

- 'The Insular Government of the Philippines' may be defined two ways:
  1. In a general and abstract sense – as that 'aggregate of institutions by which an independent society makes and carries out those rules of action which are necessary to enable men to live in a social state.'
  2. As akin to an 'administration' – as the aggregate of individuals by whom the Government of the Island is, for the time being, administered.
- Defamatory remarks against *individual* members of the government do not necessarily tend to sedition, because the term 'government' in the Sedition Act of 1978 is contemplated in a general and abstract sense—as a governmental *system*.
  - In this case, the form of government by a Civil Commission and a Civil Governor is not assailed. It is the character of the *men* who are entrusted with the administration thereof that is brought into disrepute.

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2.A. Governmental and Proprietary Functions

Laurel v Desierto (2002)

- A public office is defined (per Mechem) as the delegation of a portion of sovereign functions of government, conferred by law, to be exercised for the benefit of the public; compensation or permanency are not essential. The NCC was created by executive order to execute state policies under the Constitution on cultural heritage, national identity, and economic development, thus exercising executive functions.
- Governmental functions are those meant to advance public welfare and execute sovereign duties in pursuance of a state policy; it is government in essence. On the other hand, proprietary functions serve only local or special community benefit (e.g., town fiesta), but there are no governmental or public policy of the state involved therein.
- *Ex proprio vigore* applies: the exercise of sovereign functions defines public office regardless of the temporary or honorary nature of the position
- Other Doctrines: The investigatory and prosecutory power of the Ombudsman is plenary and unqualified. It extends to any illegal, unjust, improper, or inefficient act or omission of any public official or employee.

3. De Facto and De Jure Government

De Jure Government

- Legally constituted government that has been placed in power in accordance with the laws of the land, its constitution or international recognition
- *De jure* = of right; legitimate; lawful; by right and just title

De Facto Government

- A government that has not been elected within the laws of the country
- *De facto* = in fact; in deed; exists actually and must be accepted for all practical purposes, but which is illegal or illegitimate
- **Kinds of de facto governments**
  1. USURPATION – Government that gets possession & control of or usurps, by force or by the voice of the majority, the rightful legal government and maintains control against it
  2. PARAMOUNT FORCE - Established and maintained by military forces who invade and occupy a territory of the enemy in the course of war, and which is denominated as a government of paramount force, like the Second Republic established by the Japanese belligerent
  3. SECESSION - Established as an independent government by the inhabitants of a country who rose in insurrection against the parent state

Co Cham v. Valdez (1945)

- Respondent judge refused to continue the court proceedings arguing that MacArthur's proclamation had the effect of invalidating and nullifying all laws and proceedings initiated during the Japanese (military) occupation.
- Issue: Whether under international law the judicial acts and proceedings of the Courts established in the Philippines under the Philippine Executive Commission and the Republic of the Philippines were good and valid and remained so even after the liberation of the Philippines by the United States and Filipino forces.
  - Note: All acts and proceedings of a *de facto* government are good and valid.
- The PEC and RPH are *de facto* governments of paramount force. Why?
  - It is a government established by the Japanese forces of occupation, and its source of authority was the JP military authority and government, NOT the free expression of the people's will nor the sanction of the US govt.
- While it exists, it must be obeyed in civil matters by private citizens.
  - Under the Hague Convention, de facto government can suspend the old laws and promulgate new ones, but he is enjoined to respect the municipal laws in force which enforce public order and regulate the country's socio-commercial life. Municipal laws are continuing in force so far as they are compatible with the new order, until they are suspended.
  - The fact that the PEC was a civil, not a military government is of no consequence, because it was still a government established by the occupant and the ultimate source of its authority was the same—the Japanese military authority.
- Principle of postliminy: Under postliminy, a state or governmental entity resumes its old place upon the removal of the foreign military force.
- The judicial and legislative acts and proceedings that were NOT of political complexion of the PH courts under JP occupation were good and valid. By virtue

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of the Principle of Postliminy (Postliminium) in international law –it remained good and valid after the reoccupation of the PH by US and Filipino forces under Gen. McArthur

4. Revolutionary Government

Not bound by any Constitution or statutes. Why is Corazon Aquino's rise to power called a

Republic v. Sandiganbayan (2003)

- The EDSA Revolution was 'done in defiance of the provisions of the 1973 Constitution,' as a Batasang Pambansa Resolution had declared Marcos as the winner in the 1986 Presidential Election. This resulted in a revolutionary government, signaling the point where the legal system had ceased to be obeyed by the Filipino. Accordingly, the ***revolutionary government*** was bound by no Constitution except treaty obligations that the revolutionary government, as the *de jure* government, assumed under international law.
- Therefore, during the *interregnum*—after the take-over of power by the revolutionary government up to the adoption of the Provisional Constitution—a person could not invoke any exclusionary right under a Bill of Rights, as there was neither a Constitution nor a Bill of Rights. Directives and orders of the revolutionary government were the supreme law, without a Constitution limiting their extent and scope.
- However, the Revolutionary Government remained bound by its international obligations. The Philippines had obligations under the International Covenant on Civil and Political Rights (ICCPR) and the Universal Declaration of Human Rights, and the Rev Gov must uphold them. As the de jure government, it remained responsible for the State's compliance with its treaty obligations under international law. These were still in effect during the interregnum and afforded the Filipino people practically the same rights found in the Bill of Rights of the 1973 Constitution..
- Under these treaties, the Govt has the responsibility to still follow the right to property and that no one shall be subjected to arbitrary or unlawful interference with his privacy, family, home or correspondence.
- Directives and orders of the revolutionary government, while the supreme law, were valid on the following conditions:
  1. Enforcers did not exceed the authority granted them by the revolutionary government;
  2. The directives and orders should not have violated the Covenant or the Declaration.
- Here, the raiding team exceeded their authority because they confiscated items that were not specified in the warrant. This rendered the search and seizure to be invalid, thus the said items had to be returned to Dimaano.

Q: Can Duterte declare a revolutionary government like Cory did? A: No – Cory Aquino became president, when she refused to acknowledge the fraudulent votes for Marcos and took power 'in the name of the people.' In doing so, she was not duly elected and legally ignored the 1973 Constitution, thus hers was a revolutionary government. Meanwhile, Duterte was duly elected under this Constitution. Hence, if he declares a revolutionary government, he would be in defiance of the 1987 Constitution and would effectively relinquish his title as president. Same effect, if he 'rewrites the Constitution.' Besides, he cannot declare a revolutionary government against himself, because doing so implies overthrowing someone which is impossible because he is the one in power.

5. Parens Patriae

Parens patriae (parent of the country or father of the people) - doctrine that allows the State to step in and serve as a guardian for children, the mentally ill, the incompetent, the elderly, or disabled persons who are unable to care for themselves

- refers to the public policy power of the State to intervene against an abusive or negligent parent, legal guardian, or informal caretaker, and to act as the parent of any child or individual who is in need of protection

Samahan ng mga Progresibong Kabataan (SPARK) v. Quezon City (2017)

- Petitioners question the strict curfew ordinances in Navotas, QC, and Manila in response to the nationwide implementation of curfew for minors (Oplan Rody)
- Right of Parents to rear their Children

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- The superior right of parents over the State when it comes to their own children does not restrict the State from furthering their children's well-being. However, it is not exclusive, but rather, complementary to parental supervision.
- While parents have the primary role in child-rearing, when actions concerning the child have a relation to public welfare, the State may act to promote these legitimate interests (LSI may override the parents' qualified right to control their children)
- Where minors are involved, the State acts as *parens patriae*, taking on the duty of protecting the rights of persons or individuals who, because of age or incapacity, are in an unfavorable position, vis-a-vis other parties. Justifications for differential treatment of minors are:
  - Peculiar vulnerability of children
  - Inability to make critical decisions in an informed and mature manner
  - Importance of the parental role in child rearing

- Right to travel - The right to travel is not an absolute right, and the State's role as *parens patriae* may limit minors' exercise of said right.
- The curfew ordinances were examined in the **strict scrutiny test**. This test is undertaken when a legislative classification a) interferes with the exercise of fundamental rights, and b) burdens the suspect classes. It has a two-pronged approach, considering the presence of the following:
  - **compelling state interest** - children's welfare and the State's mandate to protect and care for them as parens patriae constitute compelling interests to justify regulations by the State. Specifically, the ultimate objective of the Curfew Ordinances is to keep unsupervised minors during the late hours of night time off of public areas, so as to reduce — if not totally eliminate — their exposure to potential harm, and to insulate them against criminal pressure and influences which may even include themselves.
  - **least restrictive means** - when it is possible for governmental regulations to be more narrowly drawn to avoid conflicts with constitutional rights, then they must be so narrowly drawn
    - Manila and Navotas cites exemption but they are not narrowly drawn - they do not account for minors' exercise of the right to free association, free exercise of religion, peaceful assembly and free expression; Hinders them from going to non-school or non-church activities, traditional religious activities at night, and political rallies
    - QC's list of exceptions is more narrowly drawn → constitutional
- Penal provisions
  - Manila Ordinance imposes various sanctions like imprisonment and fines on minors, which goes against the Juvenile Justice Law, and penalizes status offenses like curfew violations → invalid
  - Navotas - community service is valid

Q: Can Duterte invoke parens patriae as basis for ordering the detention of loitering minors?

A: No – Duterte cannot involve parens patriae as a basis for ordering the detention of loitering minors WITHOUT a specific law enabling him to do so. Absent this legislation, Duterte has no right to detain loitering minors. Should he find the need for such a right, he may suggest to Congress to craft a law which he may then certify as urgent granting him such powers.

6. Immunity from Suit

Article XVI, Section 3. The State may not be sued without its consent.

Administrative Code (1987)

Section 10. Non-Suability of the State. – No suit shall lie against the State except with its consent, as provided by law.

Section 11. The State's Responsibility for Acts of **Agents.** –

(1) The State shall be legally bound and responsible only through the acts performed in accordance with the Constitution and the laws by its duly authorized representatives.

(2) The State shall not be bound by the mistakes or errors of its officers/agents in the exercise of their functions.

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State Immunity

- The traditional rule of State immunity which exempts a State from being sued in the courts of another State without the former's consent or waiver has evolved into a restrictive doctrine which distinguishes sovereign and governmental acts (jure imperii) from private, commercial and proprietary acts (jure gestionis).
- Under the restrictive rule of State immunity, State immunity extends only to acts jure imperii. The restrictive application of State immunity is proper only when the proceedings arise out of commercial transactions of the foreign sovereign, its commercial activities or economic affairs.
- If the acts giving rise to a suit are those of a foreign government done by its foreign agent, although not necessarily a diplomatic personage, but acting in his official capacity, the complaint could be barred by the immunity of the foreign sovereign from suit without its consent. Suing a representative of a state is believed to be, in effect, suing the state itself.
- If the judgment against the State itself would require it to perform an affirmative act to satisfy an award, such as the appropriations of the amount needed to pay damages, suit must be regarded as being against the State itself, although it hasn't been formally impleaded.

2 types of Consent to be Sued

1. Express – May be made through a general or special law
2. Implied – When the State itself commences litigation or enters into a contract

Diplomatic immunity

- Vienna Convention on Diplomatic Relations, list classes of heads of diplomatic missions:
    1. Ambassadors or nuncios
    2. Envoys, ministers or internuncios
    3. Charges d'affaires
- Only diplomatic agents are cloaked with blanket immunity from civil and criminal suits.

PASI v. Trinidad-Lichauco (2006)

- PASI entered into a MOA with DOTC for the creation and launch of a Philippine-owned satellite. DOTC Undersecretary Lichauco placed one orbital slot up for bidding and awarded the same to an unknown entity; she also allegedly tried to malign the CEO's name and sabotage PASI. Hence, PASI filed a civil suit against Lichauco claiming damages and praying for nullifying the bid..
- **General Rule:** A suit for acts done in the performance of official functions against an officer of the government which would result in a **charge against or financial liability** to the government must be regarded as a suit against the State itself although it has not been formally impleaded.
- **Exceptions:**
    - If the government no longer has an interest to protect in the outcome of a suit;
        - If the liability of the officer is **personal** because it arises from a tortious act in the performance of his duties.

  While the suit may be based on the acts of Lichauco as DOTC Undersecretary, given that it was the order of the Secretary to conduct a bid, the defense of state immunity does not apply because this suit cannot be characterized as a suit against the State.
        - The causes of action—injunction and declaration of nullity of award—do not seek to impose a charge against or financial liability to the State but merely to nullify an act by the State.
        - [Obiter dicta] Had PASI additionally sought damages in relation to these causes of action; impleaded the DOTC itself, the suit would have been one against the State itself.
- However, with regard to the third cause of action, which is based on acts that are tortious in character, if proven, they would establish liability on the part of Lichauco that is not shielded by state immunity.
    - Unauthorized acts of government officials are not acts of the State.

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Minucher v. Court of Appeals (2003)

- Minucher filed a civil suit for damages in relation to 'trumped-up' charges of drug trafficking imposed by Scalzo.
- As regards Scalzo's defense of **diplomatic immunity,** he is not vested with diplomatic immunity because only diplomatic agents are vested with this.
    - The main yardstick in ascertaining whether a person enjoys diplomatic status is whether he 'performs duties of diplomatic nature.' (i.e. heads of missions or members of the diplomatic staff who perform duties of diplomatic nature - ambassadors)
    - Attachés, like Scalzo, are not regarded as members of the diplomatic mission, as they only assist a chief of mission.
- Vesting a person with diplomatic immunity is a prerogative of the Executive, not of the Judiciary.
- However, Scalzo enjoys **state immunity**, as a foreign agent, whose acts were within his functions as an agent of the United States Drug Enforcement Agency.
- A State cannot be sued in the Courts of a foreign State, as co-equals.
    - **Conditional Rule:** A foreign agent can be cloaked with immunity from suit, as long as it can be established that he is acting within the directives of the sending State and that the host State has consented to said directives.
- Foreign agents are not clothed with state immunity when they are sued in their private and personal capacity; for acts contrary to law and injurious to the rights of others.
- Here, the official exchanges of communication indicate that the Philippine government has given its *imprimatur* (aka consent) to the acts of Scalzo within Philippine territory. The presence of the Philippine Narcotics Team during Minucher's arrest also showed his coordination with the local police.
- His job description tasked him to conduct surveillance on suspected drug dealers, and therefore he did not act beyond the scope of his official duties.

GTZ v. Court of Appeals (2009)

- GTZ, as the implementing agency of the Government of the Federal Republic of Germany, does not automatically vest GTZ with state immunity.
- It must first be ascertained whether the agency is incorporated or unincorporated.
    - An incorporated agency has a charter of its own that vests the agency with a separate juridical personality;
    - As a general rule, if its charter states that the agency is suable, then it could be sued, regardless of the nature of its functions.
- Here, it appears that GTZ was organized under private law similar to Philippine corporations under the Corporation Law even if fully owned by the Philippine government (i.e. GOCC).
    - Every corporation incorporated under this Code has the power and capacity to sue and be sued.
- Absent evidence to the contrary, the Court presumes that the foreign law on this matter is the same as the Philippines' (processual presumption). Accordingly, GTZ is akin to a GOCC without original charter which by virtue of the Corporation Law has expressly consented to be sued. GTZ should have secured a certification from the DFA of its diplomatic status to claim immunity.
- Because it has been held that GTZ has a separate corporate personality and is not immune from suit, the Labor Arbiter acted with proper, lawful jurisdiction over the illegal dismissal case. Hence, his decision was not a patent nullity and has become final and executory.

Vigilar v Aquino (2011)

- Contractor Arnulfo Aquino completed a DPWH river dike project in 1992, but the government refused to pay the remaining balance because the underlying contract lacked proper funding appropriations and legal certification. The DPWH invoked state immunity from suit to avoid payment, prompting the contractor to sue for his compensation despite not first exhausting all administrative remedies through the Commission on Audit.
- The Court upheld the right of the defendant to file the civil suit notwithstanding the State's immunity from suit.
- The Court ruled that the petitioners cannot escape the obligation to compensate respondent for the services rendered and work done by invoking the State's immunity from suit. Immunity of suit cannot serve as an instrument for perpetuating an injustice to a citizen.
- Even though the formal contract was void, the principle of *quantum meruit*

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(recovering the reasonable value of services rendered) applies in this case to prevent unjust enrichment at the expense of the contractor

Arigo v. Swift (2014)

- The U.S. respondents were sued in their official capacity as commanding officers of the Navy who controlled and supervised over the USS Guardian and its crew, when they ran aground the South Shoal of the Tubbataha Reefs.
- Considering that the satisfaction of a judgment against said officers would require remedial actions and appropriation of funds by the U.S. government, the suit is deemed to be one against the U.S. itself. Therefore, it must be dismissed.
- par in parem, non habet imperium – all states are sovereign equals and cannot assert jurisdiction over one another. Therefore, the principle of state immunity bars the exercise of jurisdiction by the Court over the U.S. respondents.

7. Money Claims

Republic v. Fetalvero (2019)

- DPWH took a portion of a land from the respondent for a flood-control project, and eventually they executed a Compromise Agreement for the amount of just compensation to be paid by DPWH. A writ of garnishment was granted to the respondent for the enforcement of said Agreement.
- **General Rule:** Government funds cannot be seized by virtue of writs of execution and of garnishment. This is because no money can be taken out of the treasury without appropriation. Disbursements of said funds must be covered by the corresponding appropriation as required by law.
- Since there is an existing appropriation for the payment of just compensation (roads-rights-of-way), and this Court already settled that petitioner is bound by the Compromise Agreement, respondent is legally entitled to his money claim.
- However, he still has to go through the appropriate procedure for making a claim against the government—the money claim should have been first brought before the COA. Without this necessary procedural step, the respondent's money claim cannot be entertained by the courts through a writ of execution.

8. Inherent Powers of the State

A. Police Power

- It is the inherent and plenary power of the state which enables it to prohibit all that is hurtful to the comfort, safety and welfare of society [Ermita-Malate Hotel and Motel Operators Association, Inc. v. Mayor of Manila, G.R. No. L-24693 (1967)]
- Police power, amongst the three fundamental and inherent powers of the state, is the most pervasive and comprehensive. "It has been defined as the 'state authority to enact legislation that may interfere with personal liberty or property in order to promote general welfare."
- Police power being defined as an inherent authority of the state to enact legislation that may interfere with personal liberty or property in order to promote general welfare & prescribe regulations to promote health, morals, peace, education, good order & safety.
- "It consists of (1) imposition or restraint upon liberty or property, (2) in order to foster the common good."
- The police power "finds no specific Constitutional grant for the plain reason that it does not owe its origin to the Charter" since "it is inborn in the very fact of statehood and sovereignty."

3 TYPES OF TESTS: (1) strict scrutiny test applies when a classification either interferes with the exercise of fundamental rights or burdens suspect classes (2) intermediate scrutiny test applies when a classification does not involve suspect classes or fundamental rights but requires heightened scrutiny (3) rational basis test applies to all other subjects not covered by the first two sets)

- ***Test of Valid Exercise of Police Power: Means Purpose Test***
  1. Lawful Subject - the interests of the public, generally, as distinguished from those of a particular class, require such interference and that the subject of the measure is within the scope of the police power
  2. Lawful means - means employed are reasonably necessary for the accomplishment of the purpose and not unduly oppressive upon individuals
- Stated differently, the police power legislation must be firmly grounded on public interest and welfare and a reasonable relation must exist between the purposes and the means.

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- Lacking these requisites, police measures shall be struck down as an arbitrary intrusion into private rights.

B. Eminent Domain

- The ultimate right of the sovereign power to appropriate, not only the public but the private property of all citizens within the territorial sovereignty, to public purpose [Republic v. Heirs of Borbon, G.R. No. 165354 (2015)].
- Scope and Limitation: two mandatory requirements should underlie the Government's exercise of the power of eminent domain, namely:
  1. that it is for a particular public purpose
  2. that just compensation be paid to the property owner

C. Taxation

- power by which the State raises revenue to defray the necessary expenses of the Government. It is the enforced proportional contributions from persons and property, levied by the State by virtue of its sovereignty, for the support of the government and for all public needs.
- It is as broad as the purpose for which it is given.
- Purpose:
  1 To raise revenue
  2 Tool for regulation
  3 Protection/power to keep alive

Rubi vs Provincial Board (1919) -> [FOR REVIEW: may be bad law?]

- Rubi and various other Manguianes in the Province of Mindoro were ordered by the provincial governor of Mindoro to remove their residence from their native habitat and to establish themselves on a reservation at Tigbao in the Province of Mindoro and to remain there, or be punished by imprisonment if they escaped. Petitioners filed an application for habeas corpus alleging illegal deprivation of liberty by provincial officials of Mindoro.
- This order, pursuant to Sec. 2145, is not a deprivation of liberty. The Manguianes are restrained for their welfare and to further their development. The court says that if we are to develop the resources on the PH, the Manguianes must be confined for a time, for their own good and the good of the country. Segregation really constitutes protection for the Mangyans, as letting them alone in the path of destruction will not do. The main goal is to make them useful citizens and lead them to the path of civilization.
- The restraint is a valid exercise of police power for the common good. Since they are not unlawfully imprisoned or restrained of their liberty, habeas corpus can, therefore, not issue.

Agustin v. Edu (1979)

- Petitioner Agustin challenges the constitutionality of LOI 229 & its IRR, which requires cars to be equipped with early warning devices (triangle). Petitioner says LOI 229 is oppressive, financially burdensome, discriminatory & implementation of it is not within powers of the State.
- Implementation of LOI 229 was in line with the inherent police power of the State to ensure public safety. Marcos provided the statistics necessitating the EWDs to prevent more accidents. He also cited the 1968 Vienna Convention, of which the PH is a signatory of. The Convention recommended the enactment of local legislation for the installation of road safety signs and devices for traffic safety.

Zabal v. Duterte (2019)

- When Pres. Duterte announced the temporary closure of Boracay for its 6-month rehabilitation plan, the petitioners filed motions challenging the constitutionality of Proc. No. 475 which places Boracay under state of calamity. They argued that the proc. is an invalid exercise of legislative powers & that the closure couldn't be anchored in the exercise of police power. The respondents on the other hand argued that the proc. is a valid exercise of delegated legislative powers & that the closure is a reasonable prerogative of the State. The SC ruled in favor of the respondents.
- Proclamation is a valid exercise of police power.
- Proclamation No. 475 draws its framework from the Constitutional provisions concerned with the environment, health and safety, and well-being of the general public
- Police power constitutes an implied limitation on the Bill of Rights, but is for the greater good and must be exercised through lawful means

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- Compelling State Interest - Rights to a balanced and healthful ecology and to health. Primarily for environment and health and safety
- On being reasonably necessary to be closed for 6 months - The temporary closure of Boracay was necessary for its rehabilitation – Tourist influx was one of the main problems of Boracay, and the closure gave the island a much-needed breather. → a reasonable timeframe for the Court
- These works could not have easily been done with tourists present. The rehabilitation works in the first place were not simple, superficial or mere cosmetic but rather quite complicated, major, & permanent in character as they were intended to serve as long-term solutions to the problem.

DISSENT:

- The validity of Proclamation No. 475 is based on RA 10121 (Philippine Disaster Risk Reduction and Management Act of 2010). There is nothing in RA 10121 which empowers the NDRRMC or the President to close an entire island even in a calamitous situation. Under Sec. 17 of the Act, a pres. declaration of state of calamity only grants remedial measures
    - Price ceiling on basic necessities
    - Monitoring of overpricing and hoarding
    - Reprogramming public infrastructure funds
    - No-interest loans
- Police power is primarily lodged by the Constitution in the Legislature. Thus, it cannot be exercised by any group or body not possessing legislative power.
- President's exercise of this requires strict conformity with valid statutory delegation from Congress that satisfies the "completeness" and "sufficient standard" test. – An absence of an enabling statutory authority in this case

Iloilo Electric v Executive Secretary (2024)

- ILECO I, II, and III, filed a Petition for Certiorari and Prohibition challenging the constitutionality of Section 1 of Republic Act No. 11918. They assailed this statutory provision because it expanded the franchise area of MORE Electric and Power Corporation into fifteen municipalities and one city, directly overlapping with the exclusive franchise areas previously granted to the electric cooperatives.
- Exclusive franchises are not sanctioned by the Constitution, as stated by Sec. 11, Art. XII. Moreover, franchises are subject to amendment, alteration, or repeal by the Congress when the common good so requires.
- Ultimately, a franchise is a privilege granted by the State. It is not an exclusive private property of the franchisee and must yield to serve the common good, as may be determined by Congress as the people's elected representatives. In the first place, the very essence of a franchise is to serve public welfare.
- Assuming that the assailed act did change the terms of their respective contracts, the State may validly limit the non-impairment clause in exercise of its police power. Police power is superior to property rights, including non-impairment of contracts.
- Carlos Superdrug Corp v. Department of Social Welfare and Development - we declared that when the conditions so demand, as determined by legislature, property rights must bow to the primacy of police power because property rights must yield to general welfare.
- This is especially true in cases of a franchise, which partakes of the nature of a grant, which, in turn, is beyond the purview of the non impairment clause of the Constitution.
- *Leonen Dissent:* Leonen argued that electricity distribution is a naturally monopolistic industry, where multiple distributors may duplicate infrastructure and increase costs, contrary to the public interest. Under Article XII, Section 19 of the Constitution, the State shall regulate or prohibit monopolies when public interest so requires; thus, competition is not necessarily beneficial. Reading Article XII, Section 11, which prohibits exclusive public utility franchises and permits their amendment when the common good requires, he contended that MORE's expanded franchise must be justified by the common good, not merely by introducing competition.

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The Branches of Government

A. Legislative (Congress)

Power, Composition, Qualification and Term of Office

Senate; House of Representatives

	Senate (Article VI, Section 2–4)	**House of Representatives** (Article VI, Section 5–7)
Composition	Senators who shall be elected at large by the qualified voters of the Philippines, as may be provided by law. 24 Senators	Not more than 250 members, unless otherwise fixed by law, who shall be elected: (1) From legislative district; (2) Through a party-list system (20% of the total number of reps).
Qualification	(1) Natural-born Filipino; (2) At least 35 years, on election day; (3) Able to read and write; (4) Registered voter; (5) Philippine resident for not less than 2 years preceding election day.	(1) Natural-born Filipino; (2) At least 25 years, on election day; (3) Able to read and write (4) Except the party-list representatives, a registered voter in the his district (5) Resident thereof for not less than 1 year preceding election day. (6) For party-list representatives - must be a bona fide member of the party/organization which he seeks to represent for at least 90 days preceding the day of the election.
Term of Office	6 years; commences on June 30, 12nn.	3 years; commences on June 30, 12nn.
Term Limit	2 consecutive terms.	3 consecutive terms.

Article VI, Section 1. The legislative power shall be vested in the Congress of the Philippines which shall consist of a Senate and a House of Representatives, except to the extent reserved to the people by the provision on initiative and referendum.

Article VI, Section 2. The Senate shall be composed of twenty-four senators who shall be elected at large by the qualified voters of the Philippines, as may be provided by law.

Article VI, Section 3. No person shall be a Senator unless he is a natural-born citizen of the Philippines, and, on the day of the election, is at least thirty-five years of age, able to read and write, a registered voter, and a resident of the Philippines for not less than 2 years immediately preceding the day of the election.

Article VI, Section 4. The term of office of the Senators shall be six years and shall commence, unless otherwise provided by law, at noon on the thirtieth day of June next following their election.
No senator shall serve for more than two consecutive terms. Voluntary renunciation of the office for any length of time shall not be considered as an interruption in the continuity of his service for the full term for which he was elected.

Article VI, Section 5. The House of Representatives shall be composed of not more than two hundred and fifty members, unless otherwise fixed by law, who

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shall be elected from legislative districts apportioned among the provinces, cities, and the Metropolitan Manila area in accordance with the number of their respective inhabitants, and on the basis of a uniform and progressive ratio, and those who, as provided by law, shall be elected through a party-list system of registered national, regional, and sectoral parties or organizations.

The party-list representatives shall constitute twenty per centum of the total number of representatives including those under the party-list. For three consecutive terms after the ratification of this Constitution, one-half of the seats allocated to party-list representatives shall be filled, as provided by law, by selection or election from the labor, peasant, urban poor, indigenous cultural communities, women, youth, and such other sectors as may be provided by law, except the religious sector.

Each legislative district shall comprise, as far as practicable, contiguous, compact, and adjacent territory. Each city with a population of at least two hundred fifty thousand, or each province, shall have at least one representative.

Within three years following the return of every census, the Congress shall make a reapportionment of legislative districts based on the standard provided in this section.

Article VI, Section 6. No person shall be a Member of the House of Representatives unless he is a natural-born citizen of the Philippines, and on the day of the election, is at least twenty-five years of age, able to read and write, and, except the party-list representatives, a registered voter in the district in which he shall be elected, and a resident thereof for a period of not less than one year immediately preceding the day of the election.

Article VI, Section 7. The Members of the House of Representatives shall be elected for a term of three years which shall begin, unless otherwise provided by law, at noon on the thirtieth day of June next following their election.

Legislative power

- Authority under the Constitution to make, alter, and repeal laws.
- Grant of legislative power is broad, general and comprehensive
- Vested in a bicameral Congress composed of a Senate and a House of Representatives.

For House of Representatives

1. DISTRICT REPRESENTATIVES – elected from legislative districts apportioned among the provinces, cities and the Metropolitan Manila area

RULES ON APPORTIONMENT OF LEGISLATIVE DISTRICTS

1. Each district shall compromise, as far as practicable contiguous, compact and adjacent territory [Art VI, Sec. 5, par 3]
2. Apportionment of legislative district must be made by law which could be a:
    1. General Appropriations Law; or
    2. Special Law (i.e, creation of a new province)
    3. Proportional representation based on number of inhabitants [Art VI, Sec. 5, par 3]
        1. Each city with not less than 250,000 inhabitants is entitled to at least 1 representative
        2. Each province, irrespective of the number of inhabitants, is entitled to at least 1 representative
4. Re-apportionment of legislative districts by Congress within 3 years following the return of every census [Art VI, Sec. 5, par 4]

GERRYMANDERING:

The standards used to determine the apportionment of legislative districts is meant to prevent 'gerrymandering', which is the formation of a legislative district out of separate territories so as to favor a particular candidate or party. This is not allowed (Bernas)

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2. PARTY-LIST REPRESENTATIVES

The party-list is not synonymous with that of sectoral representation. The framers of the 1987 Constitution did not intend to leave out "non-sectoral parties" in the partylist and exclusively limit it to sectoral groups. The framers intended the sectoral parties to constitute a part but not the entirety, of the party-list system (Atong Paglaum v. COMELEC).

1. Constitute 20% of the total number of representatives, including those under the party-list system (thus a maximum of 50 party-list members of the House)
2. However, for 3 consecutive terms from 2 February 1987 (i.e., the 1987-92, 9295 and 95-98 terms), 25 seats shall be allotted to sectoral representatives.

Atong Paglaum, Inc. v. COMELEC (2013)

- 52 petitions from 54 party-list groups & orgs were consolidated into 1 assailing resolutions from COMELEC disqualifying them from May 2013 party list elections
- The court held that COMELEC did not commit any grave abuse of discretion for following the guidelines set in *Ang Bagong Bayani,* but the decision sets new parameters for the party-list system, overturning the ABB Doctrine.
- Guidelines of party-list participation:
  1. Three different groups may participate in the party-list system → (1) national parties or organizations, (2) regional parties or organizations, and (3) sectoral parties or organizations.
  2. National parties or organizations and regional parties or organizations do not need to organize along sectoral lines and do not need to represent any "marginalized & underrepresented" sector.
  3. Political parties can participate in party-list elections provided they register under the party-list system and do not field candidates in legislative district elections.
     a. A political party's sectoral wing is by itself an independent sectoral party, and is linked to a political party through a coalition.
  4. Sectoral parties or organizations may either be "marginalized and underrepresented" or lacking in "well-defined political constituencies." It is enough that their principal advocacy pertains to the special interest and concerns of their sector.
  5. A majority of the members of sectoral parties or organizations that represent the "marginalized & underrepresented" must belong to the "marginalized & underrepresented" sector they represent. Similarly, a majority of the members of sectoral parties or organizations that lack "well-defined political constituencies" must belong to the sector they represent.
     a. The nominees of sectoral parties or organizations that represent the "marginalized and underrepresented," or that represent those who lack "well-defined political constituencies," either must belong to their respective sectors, or must have a track record of advocacy for their respective sectors.
     b. The nominees of national and regional parties or organizations must be bona-fide members of such parties or organizations.
  6. National, regional, and sectoral parties or organizations shall not be disqualified if some of their nominees are disqualified, provided that they have at least one nominee who remains qualified.
- *SERENO DISSENT:* The party-list system is primarily a tool for social justice. The ponencia may have further marginalized those already marginalized and underrepresented. The party-list provisions were intended to realize social justice in the political arena, particularly by giving weaker segments of society a means to overcome the advantages of more entrenched political parties. In the guise of political plurality, it allows national and regional parties/organizations to invade what should be a constitutionally and statutorily protected space.

Abang Lingkod Party-List v. COMELEC (2013)

- ABANG Lingkod presented digitally-altered photographs of its activities to COMELEC as proof of its continuing compliance with RA 7941 (Party-List System Act). COMELEC denied its registration under party-list system because of untruthful statements & failure to present its track record
- Court ruled in favor of ABANG, saying that RA 7941 didn't require groups to submit proof of their track record. *Ang Bagong Bayani* required groups to show by-laws, history, platform and track record, but *Atong Paglaum* already modified this framework.

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- Sectoral parties/organizations are no longer required to adduce evidence of their track record. It is enough that their principal advocacy pertains to the special interest and concerns of their sector.
- In *Atong Paglaum*, nominees of sectoral parties either must belong to their respective sectors, or must have a track record of advocacy for their respective sectors. (i.e., Track record remains relevant for a sectoral nominee who does not actually belong to the sector. A nominee who actually belongs to the sector does not need a track record of advocacy.)
- 3 out of 5 ABANG LINGKOD nominees are farmers → thus not required to submit a track record. Lastly, the Court held that ABANG LINGKOD's faking of its activities couldn't be considered an untruthful statement that would constitute a ground for cancellation of its registration.

Ang Ladlad LGBT Party v. COMELEC (2010)

- ALLP petitions SC to annul COMELEC resolutions denying their registration on "moral grounds". The court ruled that ALLP did comply with requirements set by Consti & RA 9471. COMELEC's argument on ALLP making "untruthful statements" re. their national existence doesn't stand since ALLP never claimed to exist in each province but showed their national statistics.
- The court held that the enumeration of marginalized and underrepresented sectors in the Constitution and RA 7941 are not exclusive.
- COMELEC's resolution violated the non-establishment of religion clause in Consti as they explicitly cited Bible & Koran as basis for rejecting ALLP's registration & that moral disapproval on its own is not sufficient to justify exclusion from participation (benevolent neutrality of govt).
- Also, there is no law that criminalizes homosexual behavior, and moral disapproval is not a legitimate state interest.
- LGBT persons have the same interest in participating in the party-list system as other similarly situated political groups

Lokin, Jr. v. COMELEC (2012)

- COMELEC 1st division issued a resolution expunging the Certificate of Nomination which includes the petitioners Lokin & Planas as representatives of the party-list CIBAC (Citizen's battle against corruption). 2 different groups representing CIBAC submitted an intent to participate (Derla v Villanueva).
- After which, COMELEC declared Villanueva's faction as true nominees of CIBAC due to the amount of evidence it presented to show its rightful representation. Derla was also unable to prove her authority vis-à-vis respondents' evidence to prove their authenticity.
- The court held that COMELEC has jurisdiction over cases pertaining to party leadership & nomination of party representatives, and intra-party disputes since this is an incident to its enforcement powers.

Lico v. COMELEC (2015)

- There was an internal conflict between rival factions within Ating Koop, a partylist group which won a seat in the HoR in the 2010 elections. The issue arose from Ating Koop's petition before the COMELEC to expel Lico from the partylist group as well as from his position in the HoR because of his alleged involvement in corrupt practices & his refusal to acknowledge their term-sharing agreement. They also petitioned that COMELEC acknowledge the Rimas group, & not the Lico group, as the legitimate representative of Ating Koop.
- COMELEC affirmed Ating Koop's expulsion of Lico from the group, but dismissed the petition to unseat him from his position in Congress for wanting jurisdiction, since it will be HRET who has jurisdiction. COMELEC also granted the petition to acknowledge Rimas group as the legitimate representative of Ating Koop.
- HRET acquires jurisdiction over a disqualification case:
  1. upon proclamation of the winning party-list group
  2. oath of the nominee, and
  3. assumption of office as member of the House of Representatives.
- COMELEC is correct that it has no jurisdiction over the expulsion of a Member of the House of Representatives from his party-list organization. It is HRET that has jurisdiction over the disqualification case.
- Bona fide membership in the party-list organization is a continuing qualification of a party-list representative → Lico's alleged expulsion from Ating Koop is a matter for the HRET, not COMELEC.

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- By virtue of the hold-over principle, the Interim Central Committee remains to be Ating Koop's legitimate representative.

An Waray Partylist v COMELEC (2024)

- An Waray Party-List participated in the 2013 elections and initially received an allocation of two seats in the House of Representatives. Its first nominee, Neil Benedict Montejo, was proclaimed, while Victoria Isabel Noel later assumed the second seat despite not having been proclaimed by COMELEC.
- In 2014, after the Supreme Court's ruling in *Abang Lingkod Party-List v. COMELEC*, COMELEC issued a final distribution of party-list seats showing that An Waray was entitled to only one seat.
- Despite this resolution, An Waray's second nominee continued to occupy a seat in the House of Representatives until the end of the congressional term.
- In 2019, Danilo Pornias and Jude Acidre filed a petition before COMELEC to cancel An Waray's registration as a party-list organization based on Section 6(5) of Republic Act No. 794120 or the "Party-List System Act" .
- COMELEC granted the petition in 2023, finding that An Waray had violated election laws and regulations. The COMELEC En Banc affirmed the cancellation.
- The Constitution and Republic Act No. 7941 give COMELEC authority over the registration and cancellation of party-list organizations. The HRET's constitutional jurisdiction covers contests relating to the election, returns, and qualifications of Members of the House of Representatives; it does not have jurisdiction over petitions to cancel the registration of party-lists, even including those whose nominees are HOR members.
- An Waray is not the HOR member, the nominee is. Nominee's possible HoR removal after partylist cancellation does not mean its now under HRET
- A party-list registration is a mere privilege/concession granted by the State, akin to a legislative franchise. It never gains finality or irrefutable conclusiveness against the granting authority; hence, COMELEC's statutory power to revoke a registration under R.A. No. 7941 does not prescribe
- An Waray committed a flagrant violation of election laws under Section 6(5) by deliberately defying NBOC Resolution No. 13-030 (final seats allocation). Thus, it warranted the cancellation of its registration.

Coalition of Associations of Senior Citizens v. COMELEC (2013)

- The COSC participated in the 2010 elections & agreed to an "irrevocable covenant" of term sharing (if they win 2 seats; 2nd nominee to serve 1.5 years & 3rd nominee to serve 1.5 years). There existed 2 rival factions of COSC; that of Francisco Datol (3rd Nominee) & Aquiza (incumbent representative). After serving 1.5 years, 2nd nominee Kho tendered resignation & Arquiza petitioned with COMELEC to have Remedios Arquiza as replacement. COMELEC dismissed Arquiza's petition for lack of merit as Kho's resignation can't be recognized to create a vacancy & change the order of nominees ruling that the change of nominees allowed in RA 7941 is only when; nominee dies, withdraws in writing, or becomes incapacitated.
- Kho later on changed his mind & continued with his term. For 2013 elections, both factions filed intent to participate & COMELEC ordered the cancellation for noncompliance & violating election laws through term sharing.
- The Court ruled that hearing & due notice are indispensable for COMELEC before disqualification of candidates – which they did not accord to COSC.
- The Court affirmed that term-sharing agreements among party-list nominees are null and void ab initio for being contrary to public policy and Article VI, Section 7 of the Constitution. Public office is a public trust, not a commodity subject to private contractual bargaining.
- Thus, the Court ruled that COMELEC erred in cancelling COSC since the term sharing agreement was abandoned and never implemented; hence, there was no violation of any election law, rule, or regulation occurring under Section 6(5) of R.A. No. 7941.
- Petition was granted & COMELEC was ordered to proclaim Senior Citizens among party-list winners.

COCOFED-Philippine Coconut Producers Federation, Inc. v. COMELEC (2013)

- COCOFED submitted to COMELEC its manifestation to participate in the 2013 elections & submitted the names of 2 nominees. COMELEC cancelled COCOFED's registration because it failed to comply with the requirement of Sec. 8 or RA 7941 which requires a list of 5 nominees. COCOFED argues that in doing so, COMELEC gravely abused its discretion.

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- Under Sec. 8 of RA 7941, party-lists must submit a list of not less than 5 names from which party-list representatives would be chosen in case the party-list org obtains required # of votes.
- The disqualification parameters outlined in Atong Paglaum is premised on at least 1 qualified nominee. This does **not** excuse an entire party-list groups' inexcusable failure to comply with the law to provide at least 5 nominees.
- The Court upheld COMELEC's cancellation of COCOFED's registration on the basis of its failure to submit a list of 5 nominees & said that COMELEC did not abuse its discretion.
- Requirement exists to: (1) Inform the public of the people behind the party-list; (2) Address contingencies in case vacancies arise

DU30 Youth v COMELEC

- P3PWD Party-List initially submitted five nominees for the May 2022 National and Local Elections. After P3PWD obtained one seat in the House of Representatives and its five nominees resigned en masse in June 2022, P3PWD submitted a new list led by former COMELEC Commissioner Guanzon. COMELEC approved the substitution through Minute Resolution No. 22-0774, prompting Duterte Youth Party-List to challenge the approval as having been made beyond the prescribed deadline and in violation of the electorate's right to information on matters of public concern.
- The Party-List System Act does not prohibit the withdrawal per se of a nominee. What it prohibits is the change of name or alteration of order of nominees **after submission** of the list to the COMELEC, subject to certain exceptions (e.g., when the nominee (a) dies; (b) withdraws in writing their nomination; or (c) becomes incapacitated). There being no prohibition on the withdrawal of nominees whether before, during or after elections, the COMELEC technically may neither deny nor grant a withdrawal but merely note the same.
- Section 16 of RA 7941 applies to a vacancy in a party-list seat during the representative's term, not to the exhaustion of the list of nominees before the term begins. Since P3PWD's seat had not yet legally come into existence when all five nominees resigned, Section 16 did not apply to justify their immediate replacement.
- Rules and regulations on substitution of party-list nominees are mandatory even after elections. The timing of the substitution of nominees is not merely a matter of form but of substance. It affects the very right of the electorate to know the identities of the nominees of a party-list organization in order to make an intelligent and informed choice come election day
- In this case, COMELEC En Banc acted with grave abuse of discretion in allowing the substitution of P3PWD's nominees after the election.

Araro v. COMELEC (2013)

- In computing for the percentage of votes garnered by a party-list, COMELEC uses as the divisor the total number of votes for party-list candidates. ARARO argues that the Party-List System Act (RA 7941) does not distinguish between valid & invalid votes. Thus, votes, whether counted or not, should be included. COMELEC responded that invalid or stray votes should not be part of the divisor.
- The divisor for determining a party-list group's percentage is the total number of valid votes cast for party-list candidates, including valid votes for groups disqualified after the elections, but excluding invalid or spoiled votes, and votes for disqualified groups before the elections. A subsequent disqualification cannot retroactively invalidate votes cast by voters who relied on the official ballot.

Aksyon Magsasaka-Partido Tinig ng Masa v. COMELEC (2015)

- Petitioner was among accredited candidates for party-list representative during national & local elections held on May 13, 2013.
- COMELEC En Banc sitting as the National Board of Canvassers (NBOC) proclaimed 14 party-list groups, which obtained at least 2% of total votes cast for the party-list system & were thus entitled to 1 guaranteed seat each and proclaimed a total of 53 guaranteed &/or additional seats. Petitioner contends that COMELEC's allocation of additional seats for those 2-percenters & 38 other groups proclaimed as initial winners greatly prejudiced its interest & those other parties or organizations as potential winners. It points out that the proclamation of initial winners with additional seats on the 2nd round was hasty & premature because at the time the canvassing for party-list was still ongoing.
- Court held that COMELEC is authorized by law to proclaim winning candidates if the remaining uncanvassed votes will not affect results of the elections.

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- Sec. 233 of the Omnibus Election Code authorizes the board of canvassers to proclaim winning candidates in cases of delayed or lost election returns if the missing returns will not affect the results of the election. COMELEC also followed the rulings in BANAT for the allocation of the party-list seats and proclamation of winners.

Albano v COMELEC (2023)

- Sec 8 of RA 7941: Prevents a candidate for any elective office or a person who has lost in the immediately preceding elections from being included in the list of nominees for party-list representatives
- Secs 5(d) and 10 of COMELEC Reso 10717: Preventing defeated candidates in the 2019 elections from being included in the list of nominees for party-list representations
- *Congress is empowered to determine, by law, who shall be elected through the party-list system and, therefore, determine the qualifications of the party-list representatives elected under this system.*
- Sec 5(1), Art VI, indicated, "and those who, as provided by law, shall be elected through a party-list system" → Congress is given the plenary power to legislate on who shall be qualified to be elected under the party-list system and which national, regional, and sectoral parties or organizations are eligible for registration
- The above is not applicable for district representatives nor Senators, as the Constitution did not provide such allowance for the Congress to enact further qualifications.
- However, *the assailed provisions insofar as it bars losing candidates in the immediately preceding elections must be struck down as unconstitutional for being violative of the equal protection clause.*
- There is no clear connection appears to exist between the weakness of the candidate in the previous elections and the probability that their participation would perpetuate the abuse of the party-list system
- The law made arbitrary distinctions, as it only prohibits candidates who lost in the most recent election (but not the preceding election to that), and they can run for district posts, but not for party-list nominees.

Aquino v. COMELEC (1995)

- Petitioner filed his COC for the new 2nd district of Makati. Originally from Tarlac, he leased a unit in Makati and stated that he has been a resident of Makati for 10 months.
- Petitioner has failed to provide positive proof and evidence of his fulfillment of the residency requirement because intention to lease is not the same as intention to establish a permanent home.
- Domicile of origin is not easily lost. To successfully effect a change of domicile, petitioner must prove an actual removal or an actual change of domicile, a bona fide intention of abandoning the former place of residence and establishing a new one and definite acts which correspond with the purpose → Petitioner failed → In the absence of clear and positive proof, the domicile of origin should be deemed to continue
- Imposing the one-year residency requirement on a newly created district is not a "legal impossibility." It is still carved out from an old but real and existing area that people actually lived or were domiciled in.
- COMELEC's Order for the proclamation of the runner-up as the new winner is against the *Labo* doctrine; the runner-up was not the choice of the sovereign will and is not entitled to be declared as such.

Marcos v. COMELEC (1995)

- COMELEC has jurisdiction because HRET only gains jurisdiction after a candidate has become a member of the House of Representatives.
- Court held that:
  1. Minor follows the domicile of parents - despite being born in Manila, her domicile of origin by operation of law was Tacloban when her father brought his family back to Leyte
  2. Domicile is not easily lost - following the requisites to successfully elect a domicile:
     a. Actual removal or change of domicile (physical presence)
     b. A bona fide intention of abandoning the former place
     c. Acts which correspond with the purpose
  3. A wife has not lost her domicile of origin by operation of law through her marriage

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- What the Civil Code refers to is residence or the conjugal home, and not domicile; It doesn't automatically suggest that the female spouse loses her domicile of origin upon marriage

- The Court ruled that the absence from legal residence or domicile to pursue a profession, to study or to do other things of a temporary or semi-permanent nature does not constitute loss of residence.
- In the absence of clear and positive proof of change of domicile, the domicile of origin is deemed to continue.
  - Even during her husband's presidency, Mrs. Marcos still visited Tacloban a lot and held many publicized events there.

Mangudadatu v Comelec (2025)

- Pax Ali S. Mangudadatu, then incumbent Mayor of DAS Maguindanao, filed his COC for Governor of Sultan Kudarat, declaring that he had resided there for one year and eight months. Respondents sought cancellation of his COC for false material representation, arguing that his continued performance of his mayoral duties negated his claimed transfer of residence.
- Although Pax Ali presented evidence of his return to his domicile of origin in Sultan Kudarat, the COMELEC cancelled his COC, prompting his petition before the Supreme Court.
- Re residency (apart from Domicile already defined previously)
  - An incumbent local official who continues exercising the rights and duties of office in one locality cannot claim to have abandoned that domicile and claim a new domicile in another locality that is outside the territory represented. An elected official must maintain the qualifications required for the office throughout the official's tenure.
  - The claim of a new domicile of choice was only effectuated when he resigned as Mayor of DAS (which was still less than 1 year before the elections). Thus, his declaration under oath in his COC that he is eligible for the position of Governor is FALSE
- Re: 2nd Placer Rule: The second placer rule has no legal basis and is abandoned; when a permanent vacancy results from a local elective official's disqualification or cancellation of the COC, the rules on succession under the Local Government Code apply. The second placer lost the election and was not the choice of the electorate. Imposing an unchosen runner-up is unconstitutional and violates the right of suffrage. The resulting seat is treated as a vacancy.

Election

Regular election

Sec. 8, Art. VI. Unless otherwise provided by law, the regular election of the Senators and the Members of the House of Representatives shall be held on the second Monday of May.

Special election

Sec. 9, Art. VI. In case of vacancy in the Senate or in the House of Representatives, a special election may be called to fill such vacancy in the manner prescribed by law, but the Senator or Members of the House of Representatives thus elected shall serve only for the unexpired term.

RULES ON SPECIAL ELECTIONS (Hagedorn V. House of Representatives (2025))
For vacancies in the **Senate** or **House** occurring at least **1 year** before the expiration of the term, **COMELEC** shall call and hold a special election **no earlier than 60 days nor longer than 90 days after the vacancy arises.** (Section 4, par 2, RA 7166)
In the case of such vacancy in the **Senate,** the special elections shall be held simultaneously with the next succeeding regular elections. (Section 4, RA 7166)
Those elected to fill the vacancies shall serve only the unexpired term.

Differences between **RA 6645** (old) and **RA 7166** (new):

a) Requirement for **certification from HoR** certifying the vacancy and calling for special election **has been removed**
b) Vacancy must now occur at least one year **before the expiration of the term** (used to be at least one year in the HoR or 18 months in the Senate **before the next regular election for members of Congress**)
c) Now the **power and duty resides with the COMELEC, not the Senate/HoR,** to call and hold the special election

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Tolentino v. COMELEC (2004)

- Senate passed a resolution certifying the existence of a vacancy in the Senate following the appointment of Sen. Guingona as Vice President, and to fill a vacancy through a special election held simultaneously with the 2001 elections.
- The Court clarified the rules governing special elections as provided for in Article VI, as enabled by RA 6645. [see above]
- The special election is validly held in accordance with Sec. 1 and 2 of RA 6645 as amended by RA 7166.
- COMELEC's failure to give notice of the time of the special election did not negate the calling of such election, since there is an existing statute that charges the voters with its knowledge. There is also no proof that it misled the voters.
- On Separate Documentation and Canvassing
    - No such requirements exist that special election votes be counted separately
    - And COMELEC merely implemented the procedure specified by the Senate in Resolution No. 84 - where the 13th highest votes gets the seat
    - COMELEC was free to adopt the methods to conduct the special election and adopted the Senate's proposal
- The Court reminded the COMELEC that the calling of a special election, and if necessary, the giving of notice to the electorate, are central to an informed exercise of the right of suffrage. It should not take chances in future elections.

Bañas-Nograles v. COMELEC (2019)

- RA 11243 was signed and took effect on April 4, 2019, creating the legislative district of General Santos City. The election for its representative is set to commence in the next election after the effectivity of the law. COMELEC issued a resolution setting a special election for the affected districts 6 months after.
- The Court held that the COMELEC resolutions violated the Fair Election Act and the Constitution.
- The Constitution provides the date for election for Congress. The term "unless otherwise provided by law" in Sec. 8, Art. VI contemplates two situations: (1) when the law specifically states when the elections should be held on a date other than the second Monday of May; and (2) when the law delegates the setting of the date of the elections to COMELEC.
- In the present case, neither of the two situations were found in RA 11243 and the election period for the 2019 elections had already begun when it was enacted; thus, the reapportionment could only be intended by Congress to be implemented in the 2022 elections.
- Further, if the Court were to follow COMELEC's interpretation, it would only entitle the winning candidate with a term of less than 3 years – which was not provided by RA11243 nor the Constitution.
- COMELEC's administrative power in running elections is still limited and bound by the Constitution.

Hagedorn v House of Representatives (2025)

- Rep. Edward S. Hagedorn of the 3rd District of Palawan died on Oct. 3, 2023. However, no special election was called to replace Rep. Hagedorn. Instead the House of Representative assigned the House Speaker Martin Romualdez as the legislative caretaker.
- Numerous requests went unheard. COMELEC invoked Republic Act No. 6645 to state that before it can conduct a special election, the HOR must first issue a resolution certifying the existence of the vacancy and calling for a special election
- W/N Congress may be compelled through *mandamus* to issue a resolution calling for a special election due to vacancy
- NO. Contrary to the claim of petitioner, Sec 9 Art VI (1987)[8], used the word "may" and not "shall" which means that the House of Representative has the discretion over the matter. In the absence of constitutional or legal mandate, the Court may not compel the House of Representatives to issue a resolution which clearly falls within their discretion, as provided by their internal rules.
- W/N COMELEC may be compelled through *mandamus* to issue a resolution calling for a special election due to vacancy
- YES. RA 6645 was amended by Sec 4 RA7716, and mandated the COMELEC to conduct a special election within 60-90 days upon the existence of permanent vacancy.
- In solving the difference between RA 6645 and RA 7166, the Court cited two scenarios on how deletion of a phrase by the new statute affects the old statute: 1) remove and discontinue a grant *(Gloria v CA*) and 2) abandonment of limitation or qualification *(Galman v Palmaran*).

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- In this case, the deletion of the requirement for a resolution in RA 7166 now allows COLEMEC to conduct a special election due to the existence of permanent vacancy even without a resolution certifying the existence of vacancy from the House of Representatives.
- The Court holds to not retain the certification requirement from the Congress as it would interfere with the COMELEC's duty to call and hold the elections not earlier than 60 days but not later than 90 days from the occurrence of the vacancy, which is mandatory.
- COMELEC can check official press releases or announcements from Congress, or a certification from the Speaker of the HOR or the Secretary-General even when Congress is in session, without the need of compelling Congress to go through the process of issuing a resolution.
- The power and duty to call for and hold a special election in case of a vacancy in the HOR now resides with the COMELEC, who must now call and hold the special election no later than 90 days from the occurrence of the vacancy, and without need of any positive act from Congress.

Organizations and Sessions

Election of officers

Sec. 16(1), Art. VI. The Senate shall elect its President and the House of Representatives, its Speaker, by a majority vote of all its respective Members. Each House shall choose such other officers as it may deem necessary.

Santiago v. Guingona (1998)

- Sen. Tatad, w/ agreement of Santiago, manifested that he would assume the role of the minority leader, but it was Sen. Guingona who was chosen as the minority leader.
- Sec. 16, Art. VI does not provide that the members who did not vote for the winning Senate President shall *ipso facto* constitute the "minority," who could thereby elect the minority leader. It is also silent on the matter of selecting other officers of the chambers, except for the Senate President and the Speaker of the House.
- There is no law or regulation that states that the defeated candidate for Senate President automatically becomes the minority leader. The method of selecting must be prescribed by the Senate itself, not the Court.
- The Senate Rules on Internal Affairs is also silent regarding "majority" and "minority."
- The method must be prescribed by the Senate itself, not by the Court. In this regard, the Constitution vests in each house of Congress the power "to determine the rules of its proceedings."

Baguilat v. Alvarez (2017)

- Petitioners hoped that the "long-standing tradition" of the house - where the candidate who garnered the 2nd highest number of votes for Speakership automatically becomes the Minority Leader - would allow Rep. Baguilat to be declared as Minority Leader. However, it was Rep. Suarez who was chosen.
- Then Acting Floor Leader Farinas deviated from the long-standing tradition of the house (who gets Minority, those who abstained being Independent and cannot vote for Minority). Since it was un-objected, it was adopted by the House.
- The method of choosing who will be such other officers is merely a derivative of the exercise of the prerogative conferred by the Constitution. Therefore, such a method must be prescribed by the House of Representatives itself, not by the Court.
- Section 16(3) Article VI of the Constitution vests in the House of Representatives the sole authority to determine the rules of its proceedings. → The court has no authority to interfere and unilaterally intrude into the exclusive jurisdiction of the HoR

Quorum

Sec. 16(2), Art. VI. A majority of each House shall constitute a quorum to do business, but a smaller number may adjourn from day to day and may compel the attendance of absent Members in such manner, and under such penalties, as such House may provide.

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Avelino v. Cuenco (1949)

- SC had no jurisdiction over the election of the Senate President because the 1935 Constitution grants to the Senate the power to elect its own president, and thus, such matter is an internal matter that the Court is not allowed to delve into with respect to the doctrine of the separation of powers.
- When the 1935 Constitution declared that a majority of "each House" shall constitute a quorum, it did not mean "all" the members. Even a majority of all the members present constitute "the House." Therefore, an absolute majority (12) of all senators less one (23) constitutes constitutional majority of the Senate for purposes of a quorum.
- Quorum Calculation Based on Active Membership: The Court ruled that a constitutional quorum is determined based on the active members of the chamber who are within the country and capable of participating, rather than a rigid count of the total statutory membership.
  - The Court ruled that senators who are outside the country or beyond the Senate's coercive physical jurisdiction are not functionally available or compellable by the Sergeant-at-Arms. Thus, they do not count for quorum calculation.
- The Court held that the walkout of the 10 senators did not prevent the remaining 12 from continuing the session and passing the resolution unanimously. The answer might be different had the resolution been approved only by ten or less (since it would need a quorum)

Tinio v Duterte (2023)

- This petition is questioning the constitutionality of RA 10963 - Tax Reform for Acceleration and Inclusion Act (TRAIN Act). TRAIN Act amended parts of the RA 8424 - National Internal Revenue Code. Petitioners alleged that it increased the tax prices of kerosene, diesel, coal, and LPG, affecting the entire nation due to the regressive tax system imposed on the people; and that the law was passed without quorum.
- Once a quorum has been established at the beginning of a session of the House of Representatives, its continued existence is presumed unless properly challenged in accordance with the House's internal rules.
- Clearly, the physical absences of these Members do not automatically translate to the fact of quorum being "lost," especially so when they have had their presence recorded during the initial roll call.
- The determination of whether a quorum has been lost during the session is generally an internal matter of the House, beyond judicial review, because each House has the constitutional authority to determine its own rules of proceedings.
- In the present cases, both the enrolled bill and Journal No. 48 do not mention any infirmity in the passage of the law. It removes any doubt as to the validity of the ratification of the TRAIN BCC Report.

Rules of Proceedings

> **Sec. 16(3), Art. VI.** Each House may determine the rules of its proceedings, punish its Members for disorderly behavior, and with the concurrence of two-thirds of all its Members, suspend or expel a Member. A penalty of suspension, when imposed, shall not exceed sixty days.

Pacete v. Commission on Appointments (1971)

- Whenever the rights of third parties are involved, the Court may intervene in order to enforce rules of procedure.
- The Court reversed a decision by the Commission of Appointments recalling the appointment of the petitioner as Municipal Judge of Pigcawayan, Cotabato because a member of the Commission raised an objection *after* his confirmation.
- The Court ruled that a mere motion for reconsideration to a confirmation duly made (which is not approved by the majority) cannot have the effect of setting aside such confirmation. Only a vote of majority of the CA members present can reopen the appointment and recall the confirmation. It must be an action of the collective body, not just a single member.

Arroyo v. De Venecia (1997)

- The Court generally refuses to intervene in matters of procedure involving rules governing the proceedings of Congress.
- Osmeña v Pendatun - 'Parliamentary rules are merely procedural, and with their observance, the courts have no concern. They may be waived or disregarded by the legislative body.' Consequently, 'mere failure to conform to parliamentary usage

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will not invalidate the action (taken by a deliberative body) when the requisite number of members have agreed to a particular measure.'

- Absent a showing of a violation of the Constitution or grave abuse of discretion, the Court held that it could not use judicial power to inquire into allegations that, in enacting a law, a House of Congress failed to comply with its own rules.

Discipline of Members

> **Sec. 16(3), Art. VI.** *supra.* , with the concurrence of two-thirds of all its Members, suspend or expel a Member. A penalty of suspension, when imposed, shall not exceed sixty days

Other disciplinary measures (based on RA 3019):

(1) Deletion of unparliamentary remarks from record;
(2) Fine;
(3) Imprisonment; and
(4) Censure.

Alejandrino v Quezon (1924) > bad law? No appointed Senators anymore

- In 1924, appointed Senator Jose Alejandrino assaulted Senator Vicente de Vera after a Senate session and was subsequently deprived by a Senate resolution of his senatorial privileges, prerogatives, and emoluments for one year. Alejandrino petitioned the Supreme Court for mandamus and injunction to declare the resolution void and compel the Senate to restore his rights as a senator.
- Either House may thus punish an appointive member for disorderly behavior. However, the law does NOT give both Houses the power to expel an appointive member for any reason.
- Suspension leaves the seat occupied while silencing the senator, leaving the district without a voice and with no legal mechanism to fill the vacancy. Consequently, a one-year suspension is equivalent to a qualified expulsion or removal.
- Conceding therefore that the power of the Senate to punish its members for disorderly behavior does not authorize it to suspend an appointive member from the exercise of his office for one year, yet the writ prayed for cannot issue, for the all-conclusive reason that the Supreme Court does not possess the power of coercion to make the Philippine Senate take any particular action.
- *Johnson, Dissenting:* On the Legality of the resolution, he believes that the legislature exceeded their authority in effectively expelling (albeit temporarily but sabi daw it doesn't make a difference) a member. Such suspension removes petitioner from participation in the affairs of government and deprives him of his rights. On the matter of Jurisdiction of the court, the existence of the separation of powers is there, but the court may intervene and rule on the legality of POSITIVE ACTIONS made by the other branches, all the more so if they concern the rights of citizens. Petitioner was deprived of rights due to the actions of the legislature and as such the court should have taken jurisdiction. On the matter of remedies, the court cannot act as a representative of another department, and a declaration that the resolution is ultra vires would suffice. But for the majority to say that no remedy is in order, he disagrees, instead the remedy should be granted but modified.

Osmena v Pendatun (1960)

- Congressman Sergio Osmeña, Jr. delivered a privilege speech in the House of Representatives criticizing President Carlos P. Garcia and accusing him of corruption and other wrongdoing (accepting bribery). The House Committee on Rules investigated the speech, and the House subsequently adopted a resolution suspending Osmeña from office for 15 months for disorderly behavior.
- Section 15, Article VI of our Constitution provides that "for any speech or debate" in Congress, the Senators or Members of the House of Representatives "shall not be questioned in any other place." → The members may be questioned in the Congress itself.
- ***Parliamentary Immunity*** purpose - "is to enable and encourage a representative of the public to discharge his public trust with firmness and success" for "it is indispensably necessary that he should enjoy the fullest liberty of speech, and that he should be protected from the resentment of every one, however powerful, to whom the exercise of that liberty may occasion offense."
- Parliamentary immunity is not absolute. The privilege of speech and debate protects legislators from being questioned or held liable in any other place for their speeches in Congress, but it does not exempt them from disciplinary action by Congress itself for disorderly or unbecoming conduct.

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- The Court held that the Congress has the exclusive power to determine what constitutes disorderly behavior and the disciplinary measures to be taken up against its members; The courts have no jurisdiction to interfere in this regard due to separation of powers.
- The Congress has the inherent legislative prerogative of suspension which the Constitution did not impair

De Venecia v. Sandiganbayan (2002)

- General rule: each chamber of Congress has the power to discipline its Members
  - However, when there is a finding of preventive suspension under RA 3019 (The Anti-Graft and Corrupt Practices Act), members of Congress are subject to the mandate.
- The suspension provided for in RA 3019 is mandatory. It is not a penalty, but a precautionary measure to prevent the accused public officer from frustrating his prosecution by influencing witnesses or tampering with documentary evidence and from committing further acts of malfeasance while in office.
- In Defensor Santiago v. Sandiganbayan - separation of powers does not exclude Congress members from following the mandate of RA 3019. – The order of suspension prescribed by RA3019 is distinct from the power of Congress to discipline its own ranks under the Constitution.
- The doctrine of separation of powers by itself may not be deemed to have effectively excluded members of Congress from RA3019 nor from its sanctions.

Pobre v. Defensor-Santiago (2009)

- The Court refused to disbar then Senator Miriam Defensor-Santiago for remarks directed against the Court made in open session on two grounds:
  - It was protected speech under the doctrine of parliamentary immunity as provided for in Sec. 11 Article VII (*infra*) of the 1987 Constitution.
  - It left the decision to discipline Defensor-Santiago to the Senate.
- Note: The parliamentary immunity for Members of Congress is only protecting speech and not any other kind of conduct. The speech has to be made in Congress or in any committee thereof.

Pimentel v. Senate Committee of the Whole (2011)

- The referral of the investigation to the Committee of the Whole was an extraordinary remedy undertaken by the Ethics Committee and approved by a majority of the members of the Senate, in view of the actions of Sen. Villar and the Minority.
- General rule: The Court will not interfere in matters of procedure. Sec. 16(3), Art. VI of the Constitution grants the Senate full discretionary authority to formulate, adopt and promulgate its own rules, and as such, is generally exempt from judicial supervision and interference, except on a clear showing of such arbitrary and improvident use of the power as to constitute a denial of due process.
  - Subject only to the imperatives of (1) quorum, (2) voting and (3) publication.
- The Constitution does not require publication of the internal rules of the House or Senate, unless such rules expressly provide for their publication before the rules can take effect.
- However, in this case, publication is required because even if the Rules of the Senate Committee of the Whole merely adopted the Rules of the Ethics Committee which had been published before, Sec. 81, Rule 15 of the Rules of the Senate Committee of the Whole provides that these Rules shall be effective after publication in the Official Gazette or in a newspaper of general circulation.

Journal and Record

Sec. 16(4), Art. VI. Each House shall keep a Journal of its proceedings, and from time to time publish the same excepting such parts as may, in its judgment, affect national security; and the yeas and nays on any question shall, at the request of one-fifth of the Members present be entered in the Journal. Each House shall also keep a Record of its proceedings.

A. The Enrolled Bill Doctrine

(a) signing of a bill by the Speaker of the House and the President of the Senate, and; (b) certification by the secretaries of both Houses of Congress that it was passed are conclusive of its due enactment.

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It is the approval of the Congress, not the signature, which makes a bill enrolled. The President makes a decision to sign or veto based on what is on his desk.

- After both houses have given final approval to a bill, a final copy of the bill, known as the "enrolled bill," shall be printed and certified as correct by the Secretary of the Senate and the Secretary General of the House of Representatives. After which, it will be signed by the Speaker of the House and the Senate President.
- If a bill was enrolled with its certification by the Senate President and the Speaker of the House of Representatives as having been duly passed by both Houses, the Supreme Court must take this to mean that the bill indeed underwent the proper lawmaking process.
- *Note:* The Enrolled Bill Doctrine does not actually have any constitutional basis; no constitutional provision expressly created this doctrine or made it binding on the courts. It was created by the courts.

Council of Teachers and Staff of Colleges and Universities of the Philippines v. Secretary of Education (2018)

- Under the enrolled bill doctrine, the signing of a bill by the Speaker of the House and the Senate President and the certification of the Secretaries of both Houses of Congress that it was passed is conclusive not only as to its provisions but also as to its due enactment.
  - Ratio for this doctrine: Separation of powers binds the Court to honor and respect the legislative process as one of a coequal and independent department.
- *Astorga* is not in point in this case. In that case, the Senate President's mistake and withdrawal of his signature (no longer making it an enrolled bill) prompted the Court's review. Without such fact, the Court is compelled to apply the enrolled bill doctrine.

B. Probative Value of the Journal

- Legislative journals are the best evidence of what happened and when a law was approved.
- The Journal is conclusive upon the courts. *(US v. Pons)*

United States v. Pons (1912)

- There are no adjudicated cases in the Philippines on the issue of whether the courts may take judicial notice of the legislative journals, but in the US, the courts may take notice of the journals to determine whether a particular bill became a law or not (Herron v. Smith)
- A signed copy of a legislative journal serves as conclusive proof of its contents and enactment. Because the official journals of both the Assembly and the Commission clearly record that the Legislature adjourned sine die at 12:00AM on February 28, 1914, that recorded date is final and binding.
- The Court refused to go beyond the Journals and find extraneous evidence: . Inquiring into the veracity of the Journals would violate the separation of powers, since these journals are conclusive proof of the Legislative acts and powers of the Legislative
- Imperative reasons of public policy demand that the authenticity of laws rest upon permanent public memorials rather than the uncertain, treacherous memory of witnesses. The Court cited U.S. jurisprudence holding that legislative journals are controlling and unimpeachable

B. Matters to be entered in the Journal

- What are the matters entered in the Journal?

1. Yeas and nays on the third and final reading of a bill (Art. 6 Sec 26 (2))
2. Veto message of the President (Art. 6 Sec 27 (1))
3. Yeas and nays on re-passing a bill vetoed by the President
4. Yeas and nays on any question at the request of 1/5 of the members present (Art. 6 Sec 16 (4))
5. The vote of each member of the House of Representatives in impeachment cases (Art. 6 Sec. 3 (3))

- What may be kept out of the Journal? Only such matters, as may in Congress' judgment, affect national security

B. Journal Entry Rule v. Enrolled Bill Theory

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- *General rule:* If there is a conflict between the journal and the enrolled bill, the latter prevails.
- The enrolled bill is the official copy of approved legislation and bears the certification of the presiding officer of the legislative body The respect due to a coequal department requires the courts to accept the certification of the presiding officer as conclusive assurance that the bill so certified is authentic. *(Casco Philippine Chemical Co v. Gimenez)*

Astorga v. Villegas (1974)

- The law-making process in Congress ends when the bill is approved by both Houses, and the certification does not add to the validity of the bill or cure any defect already present upon its passage.
- It is the approval by Congress and not the signatures of the presiding officers that is essential. Absent such attestation, and consequently there being no enrolled bill to speak of (since the Senate President withdrew his signature on the enrolled bill), in such cases, the entries in the journal should be consulted.
- According to the Journal, key amendments introduced and approved by the Senate were not in the version sent for the President's approval and therefore the journal does not support the due enactment of the bill itself.
- RA 4065 is declared not to have been duly enacted and therefore did not become law. The temporary restraining order is made permanent.
- The journal of the proceedings of each House of Congress is no ordinary record. The Constitution requires it. While it is true that the journal is not authenticated and is subject to the risks of misprinting and other errors, the journal can be looked upon in this case. The SC is merely asked to inquire whether the text of House Bill No. 9266 signed by the President was the same text passed by both Houses of Congress. Under the specific facts and circumstances of this case, the SC can do this and resort to the Senate journal for the purpose.

Morales v. Subido (1969)

- Morales contended that the phrase "who has served the police department of a city or" was present in the version approved by Congress but was later omitted by a legislative employee during proofreading, thereby altering the provision's meaning
- The respect due to the other branches of the Government demands that we act upon the faith and credit of what the officers of the said branches attest to as the official acts of their respective departments.
- The Court outlined instances when the Court may look into the Journal, such as when the Constitution explicitly requires a journal entry.
- The enrolled bill is conclusive upon the courts as regards the tenor of the measure passed by Congress and approved by the President. If there has been any mistake in the printing of the bill before it was certified by the officers of Congress and approved by the Executive – on which we cannot speculate, without jeopardizing the principle of separation of powers and undermining one of the cornerstones of our democratic system – the remedy is by amendment or curative legislation, not by judicial decree
- With respect to matters not expressly required to be entered in the journal by the Constitution, the enrolled bill prevails in the event of any discrepancy.

E. Congressional Record

- usually contain the record of the plenary proceedings during each session of Congress, a verbatim account of remarks made during proceedings of the House subject only to technical, grammatical, and typographical corrections authorized by the member involved.

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Session

Sec. 16(5), Art. VI. Neither House during the sessions of the Congress shall, without the consent of the other, adjourn for more than three days, nor to any other place than that which the two Houses shall be sitting.

Regular sessions and special sessions

Sec. 15, Art. VI. The Congress shall convene once every year on the fourth Monday of July for its **regular session**, unless a different date is fixed by law, and shall continue to be in session for such number of days as it may determine until thirty days before the opening of its next regular session, exclusive of Saturdays, Sundays, and legal holidays. The President may call a **special session** any time.

Joint sessions

Sec. 23(1), Art. VI. The Congress, by a vote of two-thirds of both Houses in a joint session assembled, voting separately shall have the sole power to declare the existence of a state of war.

Sec. 4(4), Art. VII. The returns of every election for President and Vice President, duly certified by the board of canvassers of each province or city, shall be transmitted to the Congress, directed to the President of the Senate. Upon receipt of the certificates of canvass, the President of the Senate shall, not later than thirty days after the day of the election, open all the certificates in the presence of the Senate and the House of Representatives in joint public session, and the Congress, upon determination of the authenticity and due execution thereof in the manner provided by law, canvass the votes.

Sec. 18(1), Art. VII. xxx Within forty-eight hours from the proclamation of martial law or the suspension of the writ of habeas corpus, the President shall submit a report in person or in writing to the Congress. The Congress, voting jointly, by a vote of at least a majority of all its Members in regular or special session, may revoke such proclamation or suspension, which revocation shall not be set aside by the President.
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Sec. 23, Art. VII. The President shall address the Congress at the opening of its regular session. He may also appear before it at any other time.

Regular Session

The Congress shall convene once every year on the fourth Monday of July, unless a different date is fixed by law, and shall continue to be in session for such number of days as it may determine until thirty days before the opening of its next regular session, exclusive of Saturdays, Sundays, and legal holidays. (Art. VI, Sec. 15 of the 1987 Constitution)

Special Sessions

Special sessions are those by the President while the legislature is in recess. (Art. VI, Sec. 15 of the 1987 Constitution) These are held between regular sessions to handle emergencies or urgent matters.

Joint Sessions

This is when both chambers of Congress convene together for:

(1) declaration of existence of State of War [Article VI, Section 23]
(2) canvassing of votes after presidential elections [Article VII, Section 4]
(3) State of the Nation Address [Article VII, Section 23]
(4) revocation or extension of martial law or suspension of writ of habeas corpus. [Article VII, Section 18]

Salaries, Privileges and Disqualifications

A. Salaries

Sec. 10, Art. VI. The salaries of Senators and Members of the House of Representatives shall be determined by law. No increase in said compensation shall take effect until after the expiration of the full term of all the Members of the Senate and the House of Representatives approving such increase.

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PHILCONSA v. Mathay (1966)

- The Court enjoined the auditor general from authorizing the increased salaries provided for by RA No. 4134 to the Speaker of the House and the members of the House.
- Sec. 14, Art. VI acts as a deterrent to the temptation for legislators to increase their own salaries while in power by enforcing its effectivity only after their term expires. Not that the power to provide for higher compensation is lacking, but with the length of time that has to elapse before an increase becomes effective, there is a deterrent factor to any such measure unless the need for it is clearly felt
- The bar on increased salaries is lifted only after the expiration of the full term of *all the members of both the Senate and the House* approving such increase. Under either the original limitation or the present one, as amended, a maximum delay of six years and a minimum of four years is necessary before an increase of legislators' compensation can take effect.

Ligot v. Mathay (1974)

- A retired member of the House could not benefit from increased salaries because to do so would be to indirectly contravene the ruling in *PHILCONSA v Mathay*.
- A salary increase for members of Congress cannot be applied to compute the retirement benefits of outgoing members whose terms had not yet expired when the increase was approved, because doing so would circumvent the constitutional prohibition against increasing their compensation during their term of office.
- Retirement gratuity or benefit is a form of compensation/emoluments within the purview of the Constitutional prohibition because it is a part of compensation for services of one possessing any office.

B. Freedom from Arrest

Sec. 11, Art. VI. A Senator or Member of the House of Representatives shall, in all offenses punishable by **not more than six years imprisonment**, be privileged from arrest while the Congress is in session. No member shall be questioned nor be held liable in any other place for any speech or debate in the Congress or in any committee thereof.

People v. Jalosjos (2000)

- A Congressman cannot be allowed to attend legislative sessions when he is under detention. Jalosjos was convicted of statutory rape, an offense carrying the afflictive penalty of reclusion perpetua (>6 years). Therefore, he enjoys absolutely no constitutional immunity from arrest or detention.
- The performance of legitimate and even essential duties by public officers has never been an excuse to free a person validly in prison. A strict scrutiny of classifications is essential lest wittingly or otherwise, insidious discriminations are made in favor of or against groups or types of individuals.
- When voters elected Jalosjos while he was in jail, they did so with full awareness of his confinement and the legal restraints on his physical movement. The popular mandate cannot override insuperable procedural and penal restraints imposed by law.
- Congress does not exempt accused and convicted members from statutes and rules which apply to validly incarcerated people. There is no immunity if crime is punishable with a penalty of more than 6 years and Batasang Pambansa will have to surrender the member within 24 hours of adjournment.
- Emergency or compelling temporary leaves from imprisonment are allowed to all prisoners, at the discretion of the authorities or upon court orders. To attend congressional sessions and committee meetings for five days or more in a week, is not of an emergency nature and would make him a free man with all the privileges to his position

Trillanes v Pimentel (2008)

- Election does not obliterate a criminal charge.
    - When the voters elected Trillanes to the Senate, they did so with full awareness of his incarceration and the legal restraints on his physical movement.
    - They elected him knowing he could achieve only such legislative results as were achievable within prison confines (which he was already doing by drafting bills, issuing press releases, and receiving staff at his custodial office).
- The functions and duties of high office do not constitute substantial distinctions that lift a detainee out of the class of prisoners interrupted in their

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freedom and restricted in physical movement.

- All prisoners whether under preventive detention or serving sentence cannot practice their profession nor engage in any business or occupation or hold office, elective, or appointive while in detention (*People v. Hon Maceda)*

C. Speech and Debate Clause

Sec. 11, Art. VI. No Member shall be questioned nor be held liable in any other place for any speech or debate in the Congress or in any committee thereof

- *Parliamentary immunity* — grants members of Congress freedom of expression without fear of being made responsible in criminal or civil actions before courts or forums outside Congress
- **What speech is covered under this provision?**
  1. Protected Acts Include (*Jimenez v Cabangbang)*:
     (1) Speeches delivered on the floor of Congress while in session;
     (2) Statements made or votes cast in the halls of Congress while in session;
     (3) Bills introduced in Congress, whether in session or not; and
     (4) Other official acts performed by Congressmen, inside or outside congressional premises, in the official discharge of their duties as members of Congress or authorized Congressional Committees.

Jimenez v Cabangbang (1966)

- Congressman Cabangbang was sued for damages by Col. Francisco Jimenez for allegedly publishing and circulating a letter accusing Jimenez and other military officers of plotting a coup d'état against the government.
- Parliamentary immunity over privileged 'speech and debate' covers only those made in performance of official duty, and during session of Congress, excluding any made in commercial media or newspapers and those made during legislative recess.
- Defendant Cabangbang authored the open letter on November 14, 1958, when Congress was not in session, and caused it to be published in commercial newspapers of general circulation. He was not performing his official legislative duties as a Congress Member or a Committee member → not protected by Parliamentary Immunity

Trillanes IV v. Castillo-Marigomen (2018)

- The Speech or Debate Clause prohibits inquiry only into those things generally said or done in the House or the Senate in the performance of official duties and into the motivation for those acts
- The privilege arises not because the statement is made by a lawmaker, but because it is uttered in furtherance of legislation.
- Remarks made to news reporters during breaks are not part of any speech delivered in the Senate, nor spoken in the course of floor or committee debate, nor integral to the legislative process.
- The Court stressed that while communicating with the press is an ordinary political activity expected of elected officials, it is "political in nature, rather than legislative" and thus not covered by absolutely privileged communication

D. Disqualifications

Sec. 13, Art. VI. No Senator or Members of the House of Representatives may hold any other office or employment in the government, or any subdivision, agency, or instrumentality thereof, including government-owned or controlled corporations or their subsidiaries, during his term without forfeiting his seat. Neither shall he be appointed to any office which may have been created nor the emoluments thereof increased during the term which he was elected.

Sec. 14, Art. VI. No Senator or Member of the House of Representatives may personally appear as counsel before any court of justice or before the Electoral Tribunals, or quasi-judicial and other administrative bodies. Neither shall be, directly or indirectly, be interested financially in any contract with, or in any franchise or special privilege granted by the Government, or any subdivision, agency, or instrumentality thereof, including any government-owned or controlled corporation, or its subsidiary, during his term of office. He shall not intervene in any matter before any office of the Government for his pecuniary benefit or where he may be called upon to act on account of his office.

1. **Incompatible office.** May not hold any other office or employment in the government during his term without forfeiting his seat (Art VI, Sec 13)

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2. **Forbidden office.** May not be appointed to any office created or the emoluments were increased during the term for which he was elected (Art VI, Sec 13) He cannot validly take the office even if he is willing to give up his seat
3. **Shall not be financially interested**, directly or indirectly, in any contract with or franchise or special privilege granted by the government during his term of office (Art VI, Sec 14)
4. **Shall not intervene in any matter** before any office of the government when it is for his pecuniary benefit or where he may be called upon to act on account of his office. (Art. VI, Sec. 14)
5. **Cannot personally appear as counsel** before any court, electoral tribunal, quasi-judicial and administrative bodies during his term of office (Art VI. Sec 14)

Ineligible office (for elective officials) where the appointment is invalid since it is contrary to the Constitution, regardless if the official resigns or not (Sec 7, Art IX – B), and an incompatible office (for members of Congress and the Senate) where the appointment is valid and the official may hold the appointed office provided that he/she resigns his/her current office.

Adaza v Pacana (1985)

- Adaza, Governor of Misamis Oriental, was also elected as Batas Pambansa Member. Pacana, the Vice Governor, who also ran for the same position in Batas Pambansa but lost to Adaza, succeeded Adaza as the Governor of the said province. Adaza avers that he should be entitled to both BP and Governatorial seats.
- The constitutional prohibition against a member of the Batasan Pambansa from holding any other office or employment in the government during his tenure is clear and unambiguous (Sec 10, Art VIII of the 1973 Consti) - only exception is the offices of the Prime Minister and Cabinet Member.
- Hence, when Adaza took his oath of office as an elected Mambabatas Pambansa and performed its duties, he vacated his former post as provincial governor and cannot continue to occupy it nor attempt to discharge its functions. Pacana was right when he assumed the position of Governor.

Puyat v De Guzman (1982)

- The Acero Group questioned before the SEC the election of directors of IPI, while Assemblyman Fernandez initially sought to appear as counsel for the Acero Group. After his appearance was objected to on constitutional grounds, Fernandez purchased 10 shares of the corporation and moved to intervene in the proceedings as a stockholder, prompting the Puyat Group to challenge the SEC order allowing his intervention.
- Upholding the intervention would make Sec 11. Art VIII of the Constitution ineffective, as any Assemblyman seeking to influence an administrative body could simply acquire minimal participation in the "interest" of the client and then intervene in the proceedings.
- A legislator who is constitutionally disqualified from acting as a lawyer before an administrative body cannot bypass this rule by buying a tiny share in a company just to intervene in the proceedings.
- In brief, we hold that the intervention of Assemblyman Fernandez in SEC No. 1747 falls within the ambit of the prohibition contained in Section 11, Article VIII of the Constitution.

Pangilinan v Cayetano (Notice) (2018)

- Senator De Lima, who was detained for a non-bailable offense, was one of the petitioners questioning the withdrawal of the Rome Statute.
- During the pendency of the case, she asked to personally appear to represent herself in oral arguments since it was her right as a petitioner, and not as counsel.
- De Lima does have the right to appear for herself BUT she cannot insist upon such appearance, since it would be a total disregard of the lawful restraints made by her status.
- This Court finds no compelling reason for lifting the restraint of detention on Senator De Lima. She will not be denied representation before this Court plainly on account of her non-participation in oral argument. The Court ruled that her fellow co-petitioners such as Sens. Pangilinan and Drilon can adequately do the task. Therefore, her motion to appear personally was denied.

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Liban v. Gordon (2009) and (2011)

- Gordon did not forfeit his seat in the Senate since PNRC is not a GOCC.
- The incumbent Chairman of PNRC, respondent Senator Gordon, was elected by a private sector-controlled PNRC Board. The President does not appoint the Chairman of the PNRC. Neither does the head of any department, agency, commission or board appoint the PNRC Chairman. Thus, the PNRC Chairman is not an official or employee of the Executive branch since his appointment does not fall under Section 16, Art 7 of the Constitution. Not being a government official or employee, the PNRC Chairman, as such, does not hold a government office or employment.
- The Court ruled that it should not have declared parts of R.A. No. 95 as void because the law's constitutionality was never directly challenged in the case. Applying the principle of judicial restraint, the Court emphasized that it should only resolve constitutional issues when necessary.
- It upheld R.A. No. 95 as valid, recognizing the PNRC as a sui generis institution (neither purely private nor a government entity). The PNRC's unique status comes from its role as an auxiliary to the government in humanitarian work and as part of the international Red Cross Movement, which helps the Philippines fulfill its obligations under the Geneva Convention.
- RULING: The Supreme Court granted the motions for reconsideration and reinstated the validity of R.A. No. 95 in full. It removed the portion of the earlier decision that had struck down parts of the PNRC Charter and reaffirmed that the PNRC is a sui generis humanitarian organization, distinct from both private corporations and government agencies. PNRC enjoys a special status as an important ally and auxiliary of the government in the humanitarian field in accordance with its commitments under international law.

Q: How does Republic Act No. 10530 (2013) address issues raised regarding the constitutionality of Republic Act No. 95 (1947) entitled "Incorporation of the Philippine National Red Cross" which were identified in Liban v. Gordon?

- Republic Act No. 10530 (2013) or the "Red Cross and Other Emblems Act," addresses the constitutional issues raised in Liban v. Gordon by strengthening the Philippine National Red Cross's (PNRC) legal and international foundations.
- In Liban, the Court initially found Republic Act No. 95 unconstitutional for creating a private corporation by special law, but later upheld it upon recognizing the PNRC's sui generis status as an auxiliary of the State under the Geneva Conventions.
- RA 10530 reinforces this basis by incorporating the Hague and Geneva Conventions into Philippine law, defining the PNRC's official role as the national society assisting the government in humanitarian functions, and affirming that special laws governing the PNRC prevail over the Corporation Code.
- RA 10530 confirms that the PNRC's creation by special charter is constitutional because it fulfills international obligations rather than operating as an ordinary private corporation.

E. Duty to disclose

Sec. 12, Art. VI. All members of the Senate and the House of Representatives shall, upon assumption of office, make a full disclosure of their financial and business interests. They shall notify the House concerned of a potential conflict of interest that may arise from the filing of a proposed legislation of which they are authors.

1. SALN

A public officer or employee shall submit a declaration under oath of his assets, liabilities, and net worth, which shall be disclosed to the public in the cases of (Art XI, Sec 17):

- President
- Vice President
- Members of Cabinet
- Congress
- Supreme Court
- Constitutional Commissions and other constitutional offices
- Officers of the armed forces with general or flag rank

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How often?

a. Upon assumption of office

b. as often as required by law

2. Financial and business interests

All Members of the Senate and the House of Representatives shall, upon assumption of office, make a full disclosure of their financial and business interests. (Art VI, Sec. 12)

3. Potential conflicts of interests

They shall notify the House concerned of a potential conflict of interest that may arise from the filing of a proposed legislation of which they are authors (Art VI, Sec. 12)

4. Amounts paid to/expenses incurred by each Member

The records and books of accounts of Congress shall be preserved and be open to the public in accordance with law, such books shall be audited by the Commission on Audit which shall publish annually an itemized list of amounts paid to and expenses incurred for each Member. (Art VI, Sec 20)

Electoral Tribunals

Sec. 17, Art. VI. The Senate and the House of Representatives shall each have an Electoral Tribunal which shall be the sole judge of all contests relating to the election, returns, and qualifications of their respective Members. Each Electoral Tribunal shall be composed of nine members, three of whom shall be justices of the Supreme Court to be designated by the Chief Justice, and the remaining six shall be Members of the Senate or the House of Representatives, as the case may be, who shall be chosen on the basis of proportional representation from the political parties and the parties or organizations registered under the party-list system represented therein. The senior Justice in the Electoral Tribunal shall be its chairman.

Electoral Tribunals

1. Senate Electoral Tribunal (SET)
2. House Electoral Tribunal (HRET) (Art VI,, Sec 17)

Who are Members of the Electoral Tribunals – 9 members

1. 3 Supreme Court justices, one will be the Chairman designated by the Chief Justice - to balance the political aspect
2. 6 Members of the Senate or House, chosen on the basis of proportional representation - relating to the qualifications of its members

Composition Rules

1. ET shall be constituted within 30 days after the Senate and House shall have been organized with the election of the Senate President and the Speaker (Art VI, Sec. 19)
2. Members chosen enjoy security of tenure and cannot be removed by mere change of party affiliation. (Bondoc v. Pineda)

Valid grounds/just cause for termination of membership to the tribunal: (Bondoc v. Pineda)

1. Expiration of Congressional term of office;
2. Death or permanent disability;
3. Resignation from political party which one represents in the tribunal;
4. Formal affiliation with another political party
5. Removal from office for other valid reasons. Note: Disloyalty to party and breach of party discipline are not valid grounds for the expulsion of a member of the tribunal.

Nature of the Electoral Tribunals

1. **Exclusive Jurisdiction:** sole judge of all contests relating to the election, returns, and qualifications of their respective members. (exclusive and exhaustive jurisdiction)
2. **Independent -** ETs are independent constitutional bodies, independent from the Courts and Congress.

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3. **Non-political body** - The ETs were created to function as a nonpartisan court although two-thirds of its members are politicians.

When does it acquire jurisdiction? (Lazatin v. HRET)

1. when there is an election contest
2. after the proclamation of the candidate

   Note: In the absence of an election contest and before the proclamation, jurisdiction is still with COMELEC (Tanada v. COMELEC)

When will a candidate be considered a Member? (Reyes v. COMELEC)

1. Valid proclamation
2. valid oath of office a. before the Speaker b. during open session
3. Assumption of office

Election Contest - one where a defeated candidate challenges the qualification and claims for himself the seat of a proclaimed winner.

Abbas v. SET (1988)

- Petitioners filed a petition against the election of 22 Senatorial candidates, 6 of whom are all in the SET itself. Petitioners were then trying to amend Sec 17, Art 6 of the 1987 Constitution on the ground that 6 of the respondents actually belonged to the body that would try their case, and 3 Justices alone can resolve the Senate election contest.
- The Constitution intended that both those "judicial" and "legislative" components commonly share the duty and authority of deciding all contests relating to the election, returns and qualifications of Senators.
- The 2:1 ratio of Senators to Justices further indicates that the legislative component in the Tribunal cannot be completely excluded from participation in the resolution of senatorial election contests, without doing violence to the spirit and intent of the Constitution. Therefore, a rule allowing the SET to function with only the 3 Justices would be against the constitutionally mandated composition of the Tribunal.
- A member may refrain from participating in the case where he feels his personal interest or bias would get in the way of him making an objective judgement.
- The SET cannot legally function as such, without any Senator-members at all, and that no amendment of its Rules can confer on the three Justices-Members alone the power of valid adjudication of a senatorial election contest.

Bondoc v. Pineda (1991)

- The use of the word "sole" in the Constitution underscores the exclusive jurisdiction of the House Electoral Tribunal as judge of contests relating to the election, returns and qualifications of the members of the HOR.
- The purpose of the constitutional convention creating the Electoral Commission was to provide an independent and impartial tribunal for the determination of contests to legislative office, devoid of partisan consideration, and to transfer to that tribunal all the powers previously exercised by the legislature in matters pertaining to contested elections of its members.
- Therefore, to be able to exercise exclusive jurisdiction, the House Electoral Tribunal must be independent and non-partisan. Its jurisdiction to hear and decide congressional election contests is not to be shared by it with the Legislature nor with the Courts.
- The resolution of the HoR removing Camasura in the HRET for disloyalty to LDP, because he cast his vote in favor of Bondoc (NP), is a clear impairment of the constitutional prerogative of the HRET to be the sole judge of election contests. It also affected Casamura's right to security of tenure.
- Grounds for valid termination of membership in the Tribunal:
  - Expiration of term of office
  - Death or permanent disability
  - Resignation from political party
  - Formal affiliation with another party
  - Removal for other valid cause
- A member may not be expelled by the HOR for "party disloyalty" short of proof that he has formally affiliated with another political group.

Reyes v. COMELEC (2013)

- The COMELEC retains jurisdiction over a candidate up until the moment he or she has fully compiled with the requisites for such office after winning the elections.

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- The HRET only acquires jurisdiction over election contests after the following events:
  1. Valid Proclamation
  2. Oath in Open Session and Before the Speaker of the HOR in an open session
  3. Assumption of Office
- The Court ruled that Reyes was not yet a Member of Congress when COMELEC cancelled her COC, as her term had not begun. Her early oath-taking was invalid because it was unclear if she took it in open session, so COMELEC retained jurisdiction.
- The Court also held that R.A. No. 9225 did not add new qualifications but merely enforced the constitutional requirement of being a natural-born Filipino. Reyes failed to prove she had reacquired Philippine citizenship. Her petition was dismissed, and COMELEC's decision cancelling her COC was upheld.

Codilla v. De Venecia (2002)

- **FACTS**: In the 2001 elections Codilla won as Representative of Leyte's 4th District over Locsin. A disqualification case was filed against him for allegedly soliciting votes. Without proper notice or a finding that the evidence of guilt was strong, the COMELEC Second Division ordered the suspension of his proclamation and disqualified him, directing the proclamation of Locsin, the second placer. Locsin was proclaimed and took her oath, but Codilla's motion for reconsideration was granted by the COMELEC en banc, which nullified Locsin's proclamation and affirmed Codilla's victory. Locsin refused to vacate, claiming the HRET now had jurisdiction. Codilla filed a petition to compel the House Speaker and Secretary-General to recognize him.
- **ISSUE**: Was Locsin's proclamation valid? Did her proclamation and oath-taking remove COMELEC's jurisdiction (now HRET)? Were the House Speaker and Secretary-General bound to recognize Codilla under the final COMELEC ruling?
- **DOCTRINE**: A proclamation made without due process is void. Votes for a candidate who has not been disqualified by final judgment cannot be considered stray, and the second placer cannot be proclaimed. A motion for reconsideration suspends the effect of a COMELEC Division's ruling, so jurisdiction remains with the COMELEC until its decision becomes final. Once the COMELEC's decision is final, the Speaker and Secretary-General have a ministerial duty to recognize the rightful winner.
- The doctrinal ruling that once a proclamation has been made and a candidate-elect has assumed office, it is [the HRET] that has jurisdiction over an election contest involving members of the House of Representatives, could not have been immediately applicable due to the issue regarding the validity of the very COMELEC pronouncement themselves. This is because the HRET has no jurisdiction to review resolutions or decisions of the COMELEC.
- RULING: The Court ruled that Locsin's proclamation was invalid because Codilla was denied due process and his disqualification was not yet final. The COMELEC en banc properly retained jurisdiction, as the HRET could not assume authority over a non-final ruling. The Court granted Codilla's petition and ordered the Speaker to administer his oath and the Secretary-General to enroll his name in the official Roll of Members of the House of Representatives [considered as ministerial duties].

Velasco v. Speaker (2016)

- FACTS: Regina Ongsiako Reyes's Certificate of Candidacy for Representative of Marinduque was cancelled by COMELEC for false claims about her citizenship and residency. Despite this, she was still proclaimed winner. The Supreme Court later upheld the cancellation, declaring her proclamation void. COMELEC then proclaimed Lord Allan Jay Velasco as the rightful winner. However, Speaker Feliciano Belmonte, Jr. and Secretary-General Marilyn Barua-Yap refused to administer Velasco's oath or record his name in the Roll of Members. Velasco filed a petition for mandamus to compel them to recognize him.
- Mandamus was proper because Velasco's right to the seat had already been finally settled by COMELEC and the Supreme Court. HRET's jurisdiction applies only to validly proclaimed and sworn members. Since Reyes's COC was cancelled before her proclamation, she never became a member of the House. Once Velasco was lawfully proclaimed, the duties of the Speaker and Secretary-General to administer his oath and record his name became purely ministerial.
- The Speaker and Secretary-General of the HoR are legally duty-bound to follow the final and executory Decisions and Resolution of the SC and the COMELEC.

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The acts of administration of oath and registration in Roll of Members of the rightful candidate are ministerial in character and not a matter of discretion.

- Velasco is declared the winner because Reyes' COC was declared invalid prior to the elections, thus the votes of Reyes were stray and invalid.

Reyes v. HRET (2018)

- Petitioner alleges that the requirement under Rule 6 of the 2015 HRET Rules that at least one Justice should be present to constitute a quorum violates the equal protection clause of the 1987 Constitution and gives undue power to the Justices over the Legislators.
- The HRET is a collegial body with members from two separate departments of the government to ensure impartiality in the judgment of cases. The intent of the framers is to make the tribunal an independent, constitutional body. The presence of the three Justices, as against six members of the House of Representatives, is meant to tone down the political nature of the cases involved and do away with the impression that party interests play a part in the decision-making process of the Tribunal.
- Only a Justice can chair the Electoral Tribunal. As such, there should always be one member of the Tribunal who is a Justice.
- The SC and the HoR have the authority to designate a Special Member/s to replace Members of the Tribunal who inhibit or are disqualified from deliberations in a particular contest when the required quorum cannot be met.

Pimentel v. HRET (2002)

- FACTS: After the 1998 elections, 14 party-list representatives joined Congress. When the House formed its members for the HRET and Commission on Appointments (CA), only district representatives were chosen. The party-list groups did not nominate any of their members. Senator Aquilino Pimentel, Jr. asked that the HRET and CA be reconstituted to include party-list representatives, but no action was taken. He and several party-list members then filed petitions before the Supreme Court, arguing that their exclusion violated proportional representation under the Constitution.
- Section 18, Article 6 of the Constitution explicitly confers on the Senate and on the House the authority to elect among their members tho who would fill the 12 seats for Senators and 12 seats for House members in the the Commission on Appointment.
- Under Sec 17, Art 6, each chamber of Congress exercises the power to choose, within constitutionally defined limits, who among their members would occupy the allotted 6 seats of each chambers' respective electoral tribunal.
- If party-list representatives desired to be represented in these bodies, the primary recourse is the House, not the Court. Only if the House fails to comply with the directive of the Constitution on proportional representation of political parties in the HRET and the CA can the party-list representatives seek recourse to this Court under its power of judicial review.

Abayon v. HRET (2016)

- The HRET, as the sole judge of all contests relating to the election, returns and qualifications of members of the House of Representatives, may annul election results if in its determination, fraud, terrorism or other electoral irregularities existed to warrant the annulment. But HRET's independence is not without limits as the Court retains certiorari jurisdiction over it only to check whether it had gravely abused its discretion. A decision that is not supported by substantial evidence is definitely a decision tainted with grave abuse or discretion.
- The Court held that HRET committed grave abuse of discretion by annulling the election because the claim of terrorism was not supported by substantial evidence.

Annulment of Elections *HRET*	Failure of Elections *COMELEC*
Exercise of judicial function	Exercise of admin. function
Electoral tribunals only annul the election results connected with the election contest	Failure of elections by the COMELEC relates to the entire election in the concerned precinct or political unit.
Does so only to determine who among the candidates garnered a majority of the legal votes cast	Declares a failure of elections with the objective of holding or continuing the elections which were not held or were suspended or if there was one, resulted in a failure to elect

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Special elections are not conducted after declaration of annulment.	Special elections will have to be conducted after declaration of failure.

Commission on Appointments

Sec. 18, Art. VI. There shall be a Commission on Appointments consisting of the President of the Senate, as ex-officio Chairman, twelve Senators, and twelve Members of the House of Representatives, elected by each House on the basis of proportional representation from the political parties and parties or organizations registered under the party-list system represented therein. The chairman of the Commission shall not vote, except in the case of a tie. The Commission shall act on all appointments submitted to it within 30 session days of the Congress from their submission. The Commission shall rule by a majority vote of all the Members.

Sec. 19, Art. VI. The Electoral Tribunals and the Commission on Appointments shall be constituted within thirty days after the Senate and the House of Representatives shall have been organized with the election of the President and the Speaker. The Commission on Appointments shall meet only while the Congress is in session, at the call of its Chairman or a majority of all its Members, to discharge such powers and functions as are herein conferred upon it.

Composition:

1. Senate President as ex-officio chairman (who shall not vote except in case of a tie)
2. 12 Senators
3. 12 Members of the House of Representatives

Rule on Proportional Representation:

- The 12 Senators and 12 Representatives are elected on the basis of **proportional representation** from the political parties and party-list groups.
- Such a rule is **mandatory in character** and does not leave any discretion to the majority party in the Senate.

Rules on Voting in the CA:

1. The CA shall rule by a **majority vote of all the members.**
2. The Chairman shall only vote in case of a tie.
3. The CA shall act on all appointments within **30 session days** from their submission to Congress.

Jurisdiction:

- CA shall **confirm appointments by the President** for the following positions:

1. Heads of Executive Departments (except the VP appointed to a cabinet position)
2. Ambassadors and other public ministers or consuls
3. Officers of the AFP from the rank of Colonel or Naval Captain
4. Other officers whose appointments are vested in the President by the Constitution (eg. Members of constitutional commissions)

Limitations on the Confirmation of Appointment:

- Congress cannot prescribe that the appointment of a person to an office by such law be subject to confirmation by the Commission.
- Appointments extended by the President while Congress is not in session shall **only be effective until disapproval by the Commission or until the next adjournment of Congress**.

General Concepts:

- The Commission on Appointments (CA) shall be constituted within 30 days after both houses shall have been organized with the election of the President and the Speaker.
- The power to approve or disapprove appointments is conferred upon the **CA as a body and NOT on the individual members**.
- CA shall only meet while Congress is in session.
- The Rules of Procedure of the CA are outside the scope of congressional powers and that of the judiciary (because CA is an independent constitutional body

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- Meetings are held either
  1. At the call of the Chairman or
  2. By a majority vote of all its members

Daza v. Singson (1989)

- FACTS: After the 1987 elections, Raul Daza (Liberal Party) was elected as one of the House's 12 representatives to the Commission on Appointments (CA). In 1988, 24 LP members defected to the newly formed Laban ng Demokratikong Pilipino (LDP), reducing LP's House membership. The House then reorganized the CA to reflect the new party alignments, replacing Daza with Luis Singson (LDP). Daza challenged his removal, arguing that his CA seat was permanent and that the LDP was not yet a registered or stable party.
- The Court held that the House has the authority to change its representation in the Commission on Appointments to reflect at *any time* the changes in the political alignments of its membership. However, the changes must be **permanent** and must involve severance of political loyalties or formal disaffiliation & permanent shifts of allegiance, not merely temporary alliances or factional divisions.
- The Supreme Court dismissed the petition and upheld the reorganization. It ruled that the House validly replaced Daza with Singson because the shift of 24 members from the LP to the LDP was a permanent realignment, requiring the CA's composition to be adjusted to maintain proportional representation

Coseteng v. Mitra, Jr. (1990)

- Coseteng, the lone member of KAIBA, sought a seat at CA and HRET, claiming that she had 9 endorsements from other members.
- Petition should be dismissed because the revision of the House representation in the Commission on Appointments is based on proportional representation of the political parties therein as provided in Section 18, Article VI of the 1987 Constitution
- The threshold for CoA seats is that to be entitled to 1 seat out of 12 House seats in the CoA, a political party must represent at least 1/12th or 8.4% of the total House membership equating to electing at least 17 representatives.
- KAIBA, with lone member Rep. Coseteng, did not meet this (0.4% > 1%). Endorsement from 9 other Congresspersons did not confer entitlement because they are not members of her party and also endorsed another candidate

DRILON v DE VENECIA (2009)

- FACTS: Two petitions questioned the composition of the CA for violating proportional representation. In G.R. No. 180055 (1st petition), the LP claimed it was entitled to one House seat in the CA based on its 20-member strength, but its request was delayed or denied. In G.R. No. 183055 (2nd petition), Senator Madrigal alleged that both Senate and House contingents were improperly composed, with certain parties being overrepresented, and asked the Court to order a reorganization.
- ISSUE: Did the composition of the CA violate the constitutional rule on proportional party representation? Can the Supreme Court compel Congress to reorganize the CA?
- DOCTRINE: The Court held that only the Senate and the House have the constitutional power to elect their CA members. Under the doctrine of primary jurisdiction, complaints about CA representation must first be raised before the respective chamber. The Supreme Court may only intervene if a House clearly refuses to fulfill its constitutional duty. Petitioners must also show locus standi by proving a direct and personal injury.
- RULING: The first petition was dismissed as moot since the Liberal Party later received a CA seat. The second petition was dismissed for lack of standing and prematurity because Senator Madrigal failed to show her party suffered direct injury and had not first raised her claims before the Senate.

Guingona v. Gonzales (1992)

- **FACTS**: After the 1992 elections, the Senate was divided among four groups:

Party	# of Senators	Proportional Seats
Laban ng Demokratikong Pilipino (LDP)	15	7.5

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National People's Coalition (NPC)	5	2.5
LAKAS-NUCD	3	1.5
LD-PDP-LABAN	1 (Sen. Tañada)	0.5

- Despite being entitled to only 7.5 seats, the LDP nominated eight members, including Senator Alberto Romulo, and also gave Senator Wigberto Tañada (LP-PDP-LABAN) a full seat. Senator Guingona, representing LAKAS-NUCD, objected and filed a petition, arguing this violated the constitutional rule of proportional representation by giving the majority party more than its fair share.
- ISSUE: Did the election of Senators Romulo and Tañada to the Commission on Appointments comply with the constitutional rule of proportional representation?
- DOCTRINE: No. The Constitution (Article VI, Section 18) requires strict proportional representation of political parties in the CA. This rule is mandatory and cannot be altered by majority vote or compromise. The Court held that even fractional entitlements must be respected; adding or rounding up seats in favor of one party distorts proportionality. It also clarified that a party must have at least two senators per CA seat, so a party with only one senator cannot constitutionally hold a CA seat. The legality of CA membership is a justiciable, not political, issue.
- In order to obtain a seat in the Commission, (1) a party must have at least 2 senators, and (2) if there are more than 2 parties, then a party with a lone senator could not claim a seat.
- The Constitution does not require the presence of 12 Senator-members in the CA, ruling that the CA could function with only 4 members from each House.
- RULING: The Supreme Court declared the election of Senators Romulo and Tañada null and void for violating proportional representation. It ruled that the LDP majority acted with grave abuse of discretion by giving itself and the LP-PDP-LABAN more than their rightful share. The Court issued a writ of prohibition, preventing Romulo and Tanada from serving in the CA, and ordering the Senate President to stop recognizing them.

Powers of Congress

A. General Plenary Powers

Sec. 1, Art. VI. The legislative power shall be vested in the Congress of the Philippines which shall consist of a Senate and a House of Representatives, except to the extent reserved to the people by the provision on initiative and referendum.

Plenary powers

- The grant of legislative power to Congress is broad, general and comprehensive. The legislative body possesses plenary power for all purposes of civil government. Any power, deemed to be legislative by usage and tradition, is necessarily possessed by Congress, unless the Constitution has lodged this power elsewhere. In other words, except as limited by the Constitution, either expressly or impliedly, legislative power embraces all subjects and extends to matters of general concern or common interest.

Sema v. COMELEC (2008)

- The 1987 Constitution apportioned Maguindanao into 2 districts, the first including Cotabato City and 8 municipalities. Maguindanao joined ARMM but Cotabato City did not. In 2006, the ARMM Regional Assembly passed MMA Act 201 creating Shariff Kabunsuan Province from those 8 municipalities. COMELEC issued Reso. 7902 renaming the first district as "Shariff Kabunsuan and Cotabato City".
- Petitioner Sema, a candidate for representative, assailed this, arguing that only Congress can create legislative districts and COMELEC usurped legislative power
- The Court ruled that Sec. 19, Article VI of RA 9054 is unconstitutional for granting the ARMM the authority to create provinces and cities. Since creating a province entails creating a legislative district, the power belongs solely to Congress and cannot be delegated.
    - But COMELEC Reso 7902 was valid .
- Only Congress has the plenary power to create legislative districts under Art. VI, Sec. 5 of the Constitution. The creation of a province or city automatically entails

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the creation of a district; a national legislative act cannot be delegated to regional assemblies.

- By the principle of expressio unius est exclusio alterius, the Constitution is silent on giving autonomous regions this authority. Therefore, they do not have such power.

Torralba v. Sibagat (1987)

- Petitioners are assailing the constitutionality of BP 56 which created the Municipality of Sibagat. Under Sec. 3, Art. XI of the 1973 Consti, a Local Government Code **must first be enacted** to determine the criteria for the creation, division, merger, abolition, or substantial alteration of the boundary of any province, city, municipality, or barrio
- It is a long-recognized principle that the power to create a municipal corporation is essentially legislative in nature. In the absence of any constitutional limitations, a legislative body may create any corporation it deems essential for the more efficient administration of government. The absence of an LGC at the time of BP 56 did not curtail nor was it intended to cripple legislative competence to create municipal corporations
- What the Constitutional provision means is that once said Code is enacted, the creation, modification or dissolution of local government units should conform with the criteria thus laid down. In the interregnum, before the enactment of such Code, the legislative power remains plenary except that the creation of the new local government unit should be approved by the people concerned in a plebiscite called for the purpose.
- The creation of the Municipality of Sibagat satisfied all mandatory requisites: a plebiscite was conducted and approved by the voters of the unit/units affected, and the appointed municipal officers took their oaths and performed their duties; thus creating a de jure entity.

B. <u>Limitations on the Legislative Power</u>

1. Substantive limitations

1. Supermajority Votes - Congress cannot, by its own act, limit its power to amend or repeal laws. When Congress requires a higher number of votes to amend a law (e.g. ¾ of each House), the Supreme Court has the duty to strike down such an act for interfering with the plenary powers of Congress. Each House has the power to approve bills by a mere majority vote, provided there is a quorum. The act of one legislature is not binding upon, and cannot tie the hands of, future legislatures.
2. Irrepealable Laws - These deprive succeeding legislatures of the power to craft laws appropriate to the current environment. The rule is that laws cannot have a provision stating that it is beyond Congress' power to repeal it.
3. Unconstitutional Laws - Laws can be unconstitutional when it is beyond the legislature's power to enact, or it creates or establishes methods or forms that infringe constitutional principles, or its purpose or effect violates the Constitution or its basic principles. The Court determines whether a law is constitutional or not. When parts of a law are void while some are valid, the law can still be enforced unless the parts are so mutually dependent and connected, that the legislature intended them as a whole, that the nullity of one part will vitiate the rest.
4. Supreme Court's Rule-Making Power - By virtue of the 1987 Constitution, Congress does not have the power anymore to repeal, alter, or supplement rules concerning pleading, practice and procedure. For example, Congress cannot exempt entities from payment of legal fees because it is proscribed by the Court's judicial autonomy.
5. Riders - a provision that is alien to the subject or purpose of the bill in which it is incorporated. It is not allowed to prevent hodge-podge or log-rolling legislation, to avoid surprise or fraud upon the legislature, and to fairly apprise the people of the subjects of legislation that are being considered.

   Sec 25(2), Art 6, 1987 Consti

   No provision or enactment shall be embraced in the general appropriations bill unless it relates specifically to some particular appropriation therein. Any such provision or enactment shall be limited in its operation to the appropriation to which it relates.

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Sec 26(1), Art 6, 1987 Consti

Every bill passed by the Congress shall embrace only one subject which shall be expressed in the title thereof.

6. One-Subject-One-Bill-Rule - The title should be comprehensive enough as to include the general object which the statue seeks to effect, and where the persons interested are informed of the nature, scope, and consequences of the proposed law and its operation (*Giron v. COMELEC*).
7. No Amendment Rule - From Sec 26(2), Art 6, when a House passes its own version of a bill, it cannot introduce any amendment on the 3rd reading. This, however, does not prevent changes to be made once the bill reaches the Bicameral Conference Committee.
8. Uniform Equitable and Progressive System of Taxation - From Sec 28(1), Art 6, equality and uniformity of taxation means that all taxable articles or property of the same class must be taxed at the same rate. To satisfy this requirement, it is enough that the statute or ordinance applies equally to all persons, forms and corporations placed in a similar situation (*Tolentino v. Sec of Finance).*
9. Appellate Jurisdiction of the SC - From Sec 30, Art 6, Congress should have the advice and consent of the SC when it passes a law increasing its appellate jurisdiction *(Fabian v. Desierto)*.
10. Legislative Vetoes
    - Once a law is enacted and approved, the legislative function is deemed accomplished and complete. Any post-enactment congressional measure should be limited to the following:
        - Scrutiny — based on the powers of Congress to determine the economy and operational efficiency of the government (i.e. budget deliberations)
        - Investigation — involves more intensive inquiry into the workings of government (i.e. Senate hearings in aid of legislation)
    - Legislative supervision or continuing and informed awareness on the executive is tantamount to a legislative veto when such supervision gives Congress the right to approve or disapprove any regulation before it takes effect. This violates the precepts of the separation of powers.
11. Delegation of Powers — in general, Congress cannot delegate legislative powers, except the following:
    - Tariff powers to the President under Section 28(2) of Article VI of the Constitution
    - Emergency Powers to the President under Section 23(2) of Article VI of the Constitution
    - To the people at large (RA 6735, law on initiative and referendum)
    - To local governments
    - To administrative bodies – supplementary and contingent rule-making

    For a delegation of power to valid, it must:
    1. Completeness test - Be complete in itself by setting forth the policy to be executed, carried out or implemented by the delegate
    2. Sufficient Standard test - Have sufficient standards which are sufficiently determinate and determinable.
12. Sunset Clause — a provision in the law that sets a date after which the law becomes ineffective

2. Procedural limitations

ABAKADA GURO Party List v. Purisima (2008)

- RA 9335 was enacted to optimize revenue generation of the BIR and BOC. Art. 12 of RA 9335 prescribes a Joint Congressional Oversight Committee (JCOC), composed of members of Congress, to approve the IRR formulated by the agencies concerned. Petitioners assail this as an alleged encroachment on the executive function of "implementing and enforcing the law" by the Congress
- Categories of congressional oversight functions
    a. Scrutiny - a lesser intensity and continuity of attention to administrative operations. Congress may ask for reports/info from other branches
    b. Congressional investigation - a more intense digging of facts
    c. Legislative supervision - third and most encompassing form, connoting a continuing and informed awareness on the part of a congressional

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committee regarding executive operations; allows Congress to scrutinize the exercise of delegated law-making authority. Legislative veto - Congress retains a "right" to approve or disapprove any regulation before it takes effect

- Any post-enactment congressional measure should be limited to scrutiny and investigation. Any action or step beyond that will undermine the separation of powers, such as legislative vetoes.
- A provision that requires Congress or its members to approve the implementing rules of a law after it has already taken effect shall be unconstitutional, as it allows Congress or its members to overturn any directive or ruling made by the members of the executive branch charged with the implementation of the law.
- RULING: The Court partially granted the petition: Section 12 of R.A. 9335 was struck down as unconstitutional for granting Congress the power to approve the IRR, which encroaches on executive functions and bypasses constitutional lawmaking procedures. The rest of the law was upheld due to its separability clause, making the reward and sanction system for BIR and BOC personnel valid.

LEGISLATIVE PROCESS

Requirements as to bills

A. Titles of bills

Sec. 26, Art. VI. Every bill passed by Congress shall embrace only one subject which shall be expressed in the title thereof.

Lidasan v. COMELEC (1967)

- RA 4790, entitled "An Act creating the Municipality of Dianaton in the Province of Lanao del Sur", is being assailed by Bara Lidasan as unconstitutional because not all the barrios listed in RA 4790 belongs to the municipality of Butig and Balabagan in the province of Lanao del Sur as the statute claims. 12 of the Barrios are in Cotabato.
- Bills must not embrace more than one subject expressed in the title. This constitutional provision contains dual limitations upon legislative power: (1) Congress is to refrain from conglomeration, under one statute, of heterogeneous subjects; (2) the title to the bills is to be couched in a language sufficient to notify the legislators and the public and those concerned of the import of the single subject thereof.
- A title is defective if it is misleading, restrictive, or fails to reflect essential matters embraced in the law. Validity also depends on inseparability: if the unconstitutional parts are integral to the whole, the entire law is void.
- RULING: The Court declared R.A. 4790 unconstitutional in its entirety. The law's title referred only to Lanao del Sur, but its body also detached barrios from Cotabato, misleading legislators and residents about the law's true scope. Since the creation of Dianaton was premised on all 21 barrios, removing the 12 Cotabato barrios would alter viability and legislative intent, making the valid and invalid parts inseparable. Thus, the whole Act was struck down and COMELEC was prohibited from implementing it.
- The title must serve the purpose of the constitutional demand that it informs the legislators (persons interested in the subject of the bill) and the public of the nature, scope and consequences of the proposed law and its operation to lead them to inquire into the body of the bill and prevent surprise or fraud upon the legislators.

Cruz v Paras (1983)

- Petitioners, operators of nightclubs and cabarets in Bocaue, Bulacan, challenged Municipal Ordinance No. 84 - "Prohibition and Closure Ordinance", which prohibited the operation of nightclubs, cabaret, and dance halls, and revoked existing licenses and permits.
- The title of RA 938 only contained 'Regulate' and Sec 1 granted the power to only regulate, not prohibit. Later, when the law was amended, the body gave power to municipalities to 'Prohibit or Regulate'. However, the title of the amended law stayed the same.
- Article VI, Section 26(1) 1987 Constitution: *"Every bill shall embrace only one subject which shall be expressed in the title thereof."* , therefore, with two possible interpretations, one that makes it constitutional shall be followed. In this case, the municipal ordinance in question is deemed null.
- The Local Government Code expressly grants municipalities - sangguniang bayan - authority to regulate establishments and forms of entertainment, reinforcing the limitation already found in RA No. 938.

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- RULING: The Court struck down Ordinance No. 84 as null and unconstitutional, holding that the municipality had no authority to prohibit the operation of nightclubs and cabarets since the enabling law's title limited their power to regulation. The prohibition was unreasonable and overbroad, as the municipality could have achieved its goal of protecting public morals through regulatory measures rather than an outright ban. The petition was granted, reversing the lower court's ruling.

Giron v. COMELEC

- FACTS: Henry Giron assailed the constitutionality of Sections 12 and 14 of the Fair Election Act (R.A. 9006), claiming they violated the "one subject–one title" rule under Article VI, Section 26(1) of the 1987 Constitution. He argued that provisions on substitution of candidates and repeal of Section 67 of the Omnibus Election Code were unrelated to the law's supposed subject of lifting the political ad ban.
- ISSUE: Whether the inclusion of Sections 12 and 14 in the Fair Election Act violates the constitutional requirement that every bill must embrace only one subject expressed in its title.
- DOCTRINE: The constitutional rule on titles of bills prevents surprise or fraud and ensures legislators and the public are informed of a bill's scope. It does not require the title to be a complete index of its contents. An act having a single general subject may contain any number or diversity of provisions, as long as they are not inconsistent with or foreign to the general subject, and may be considered in furtherance of the subject by providing for the method and means of it.
- RULING: The Court dismissed the petition, holding that Sections 12 and 14 of R.A. 9006 do not violate the one subject–one title rule. The title and objectives of the Fair Election Act were broad enough to cover substitution of candidates and repeal of automatic resignation provisions. Requiring the law's title to list every detail would cripple legislation, and records showed Congress deliberately framed the title to encompass election reforms beyond the ad ban.

Q: Can the longer title of a bill cure a defect in its shorter title? (e.g. Bayanihan to Heal as One) A: No, because the purpose of the constitutional directive on the titles of bills is to apprise the legislators of the purposes, the nature and scope of its provisions. The bill is more often referred to by the legislators and the general public by its shorter name, and its nature must already be clear from this title alone. (In the first reading of bills, titles are heavily depended on.)

B. Requirements as to certain laws

a. Appropriation laws

Sec. 24, Art. VI. All appropriation, revenue or tariff bills, bills authorizing increase of the public debt, bills of local application, and private bills, shall originate exclusively in the House of Representatives but the Senate may propose or concur with amendments.

Sec. 25, Art. VI.

(1) The Congress may not increase the appropriations recommended by the President for the operation of the Government as specified in the budget. The form, content, and manner of preparation of the budget shall be prescribed by law.

(2) No provision or enactment shall be embraced in the general appropriations bill unless it relates specifically to some particular appropriation therein. Any such provision or enactment shall be limited in its operation to the appropriation to which it relates.

Appropriation Bills

- The primary aim of an appropriation bill is to appropriate a sum of money from the public treasury
- Example of this is a bill enacting the budget.
- A bill creating a new office and appropriating funds therefor is NOT an appropriation bill.

General Limitations:

1. Appropriations must be for a public purpose
2. Cannot appropriate public funds or property in favor of i. Any sect, church, denomination or sectarian institution or system of religion ii. Any priest, preacher, minister, or other religious teacher or dignitary *except if the priest is*

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assigned to the armed forces, any penal institution, government orphanage, leprosarium.

3. Government is not prohibited from appropriating money for a valid secular purpose, even if it incidentally benefits a religion.

Specific Limitations [Article VI, Section 25]

1. Congress may not increase the appropriations recommended by the President for the operation of the Government as specified in the budget.
2. Form, content and manner of preparation of the budget shall be prescribed by law.
3. No provision or enactment shall be embraced in the general appropriations bill unless it relates specifically to some particular appropriation therein.
4. No law shall be passed authorizing any transfer of appropriations, but the following may augment items from savings: President, Senate President, Speaker of the HOR, CJ of the SC, Chairs of ConComms.

General Concepts

- If Congress fails to pass the general appropriations bill by the end of any fiscal year, the bill for the previous year is deemed reenacted. It shall remain in force until a bill is passed by Congress. [Article VI, Section 25 (7)]
- No money shall be paid out of the National Treasury except in pursuance of an appropriation made by law. However, this rule does not prohibit continuing appropriations (debt service) because this rule does not require annual appropriation.
- What the Constitution requires is for revenue bills themselves to originate from the House. This does not preclude the Senate from formulating a bill in anticipation of the House version. Once a revenue bill is transmitted to the Senate, the Senate is within its bounds to substantially amend it. The Senate cannot be bound to pass the House version, given the express Constitutional grant of power to propose amendments.

Are automatic debt appropriations valid?

- Yes. The question of the validity of automatic debt appropriations was raised in Guingona v Carague. Court held that the laws which provided for automatic debt servicing had sufficient standards to guide the disbursement of funds, namely that payments made out of the treasury to service debts will only be made as loans became due and that the amount of the debt service is fixed by a maximum provided in the Bureau of the Treasury.

Demetria v. Alba (1987)

- Petitioners are assailing the constitutionality of Sec. 44(1) of PD 1177 or the Budget Reform Decree, which states that the President has the authority to transfer any fund, appropriated for different departments, bureaus, offices and agencies of the Executive in the GAA to ANY program, project, or activity of ANY department in the GAA.
- The Court held that this provision unduly extended the power of the Executive by allowing him to indiscriminately transfer funds without regard as to W/N they are actually savings and W/N they will be used for augmentation, which is what is stated in Sec. 16(5), Art. VIII, 1973 Consti (now under Sec. 25 (5), Art. VI, 1987 Consti).
- To allow the President to indiscriminately transfer funds from different departments without regard to whether or not these funds were taken from savings would be tantamount to a violation of the separation of powers, because a grant of such authority would have the effect of nullifying the legislature's power over the purse.

Guingona v. Carague (1981)

- Petitioners question the constitutionality of automatic appropriation for debt service in the 1990 budget. In the budget, debt service had a higher allocation (P86.8) than that of the DEPED (P27B), which for the petitioners, violates Sec. 5(5), Art. XIV of the 1987 Constitution.
- While it is true that Section 5(5), Art XIV of the Constitution Congress is mandated to "assign the highest budgetary priority to education", it does not thereby follow that the hands of Congress are so hamstrung as to deprive it the

power to respond to the imperatives of the national interest and for the attainment of other state policies or objectives.

- The highest budgetary **priority** is shown by how since 1985, the budget for DEPED has tripled to upgrade and improve the facilities, and to increase the compensation of the teachers. The budget for DEPED is the highest budgetary allocation among all department budgets. This is a clear compliance with the aforesaid constitutional mandate according highest priority to education.

🚫Philconsa v. Enriquez (1994) 🚫

- FACTS: House Bill No. 10900, or the General Appropriations Bill of 1994, was passed by Congress and signed into law as RA 7663. The President, however, vetoed several provisions and imposed conditions on others, including those relating to the Countrywide Development Fund (pork barrel), fund realignments, and appropriations for debt service, SUCs, AFP, DPWH, and constitutional bodies. Petitioners questioned the constitutionality of the CDF, realignment powers, prioritization of debt service over education, and the validity of presidential vetoes and conditions.

DOCTRINES

- Power of Appropriation – Congress has the power to appropriate and specify the project or activity to be funded under the appropriation law which can be as detailed or broad as it wants to be. Under the CDF, legislators can propose and identify projects to be implemented by the President as it will be subject to the approval of the latter. → merely recommendatory
- Realignment of Savings – Only authorized officials (President, SP, Speaker, CJ, heads of constitutional commissions) may realign savings; members of Congress may only recommend realignment subject to approval.
- Priority of Education – Constitution requires education to be given highest priority, but Congress retains discretion to allocate funds considering national interests (e.g., debt service).
- Item Veto Power – The Constitution is explicit that what Congress can include in a GAB must relate specifically to some particular appropriation therein and be limited in its operation to the appropriation it relates. When the legislature inserts inappropriate provisions in a general appropriation bill, such provisions must be treated as 'items' for purposes of the Governor's item veto power over general appropriation bills.
- "Inappropriate provisions" - those unrelated to appropriations, or which amend substantive law or where it is better suited to be enacted in a separate legislation → must be vetoed

RULING: Petitions were generally dismissed, upholding the constitutionality of the CDF (recommendatory only) and validity of most presidential vetoes/conditions. However, the Court struck down vetoes that invalidly separated "appropriate provisions" inseparable from the appropriated items—such as (1) parts of the debt service item, (2) the 70/30 DPWH road maintenance ratio, and (3) AFP medicine purchases. Thus, most vetoes and conditions were sustained, but select vetoes were declared unconstitutional.

LAMP v. The Secretary of Budget (2012)

- LAMP filed a petition to declare PDAF unconstitutional arguing that DBM illegally made and directly released budgetary allocations to individual legislators.
- Presumption of Constitutionality – Appropriation laws are presumed valid; to strike them down requires clear, convincing proof of constitutional breach.
- Power of Appropriation vs. Execution – Congress has the "power of the purse" to appropriate, but budget execution belongs to the Executive; legislators may only recommend projects.
- Inadequacy of Speculation – Media reports, conjectures, or general allegations of misuse cannot overturn appropriation statutes without factual and documentary evidence.
- RULING: The Court dismissed the petition, holding that the 2004 PDAF was valid and constitutional. Petitioners failed to prove that funds were released directly to legislators or that they exercised control over spending. Congress' role was limited to recommending projects, while implementation and disbursement were handled by the Executive. In the absence of clear evidence of constitutional violation, the presumption of validity of appropriation laws stood, and the separation of powers remained intact

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Belgica v. Executive Secretary (2013)

- Petitioners question the constitutionality of the PDAF in the 2013 GAA and the Presidential Pork Barrel (Malampaya Funds and the Presidential Social Fund)
- The Pork Barrel System allowed legislators to identify projects and programs to be financed by the government after the enactment. This gave legislators a postenactment role that amounted to legislative supervision and transcended scrutiny and investigation.
  - Overturned the rulings in *PHILCONSA v. Enriquez* and *LAMP v. Secretary of Budget* which upheld the validity of forms of pork barrel.
  - Legislative power is limited to law-making, save for the oversight powers of scrutiny and investigation.
- The Pork Barrel system was unconstitutional for violating the rule on the separation of powers. Also violates non-delegability of legislative power since legislative power is exercised by the bicameral body (both Houses). PDAF confers authority to individual legislators to appropriate funds by allowing them to identify and choose projects. It allowed legislators to intervene and/or assume duties that properly belong to the sphere of budget execution → which belongs to the Executive. This is no longer "recommendatory", because without the individual legislator's participation, the PDAF cannot be utilized.
- To ensure that the President may be able to exercise his power of item veto, an item of appropriation must be an item characterized by singular correspondence — meaning an allocation of a specified singular amount for a specified singular purpose, otherwise known as a "line-item."
- PDAF also violates the principle of checks and balances since it deprives the President the power to veto any particular item in an appropriations bill since the PDAF is a lump-sum appropriation and that the projects are identified after the enactment of the budget, this is an intermediate appropriation (a budget within a budget). Congress cannot check on its members.
- Congressional Pork Barrel goes against the principles of local autonomy by allowing district representatives, who are national officers, to substitute their judgements in utilising funds for local developments
- On the President's lump sum funds: While discretionary funds in themselves are not unconstitutional, disbursement of such funds must meet the requirements for a valid delegation of legislative power.
- The Court upheld the validity of the Presidential Social Fund, and the Malampaya Fund, which were funds disbursed under the discretion of the President but invalidated provisions of the laws establishing these funds which gave the President wide latitude in disbursing these funds without legislative guidelines.

BELGICA v EXEC SEC (2019)

- FACTS: After the 2013 Belgica ruling struck down the PDAF as unconstitutional, Belgica challenged the validity of several lump-sum appropriations in the 2014 GAA—namely the Unprogrammed Fund, Contingent Fund, E-Government Fund, and Local Government Support Fund—arguing that they violated the constitutional requirement that appropriations must state a specific purpose and not leave undue discretion to the Executive.
- DOCTRINE: Appropriation laws must embody the rule of singular correspondence—each "item" means a specific sum for a specific purpose. Lump-sum funds are not per se unconstitutional; they are valid if they serve a discernible single purpose, contain sufficient standards to guide execution, and do not negate the President's veto power. Only lump-sums that fund multiple unrelated purposes with vague standards, such as the PDAF, are unconstitutional.
- *Prohibited Lump-sum Appropriations* - do not indicate a specific appropriation or purpose for the money, hence there is no proper line item the president may veto; pres can only veto it as a whole or not at all – generally unconstitutional
- *Allowed Lump-sum Appropriations* - a lump-sum amount may still be considered as a valid item subject to the President's item veto power for as long as:
  - the lump-sum amount is meant as a funding source for multiple programs, projects, or activities that may all be clearly classified as falling under one singular appropriation purpose.
  - This singular purpose may be as general or specific as the legislative department deems it to be, provided that such generality or specificity does not negate the President's proper exercise of his item veto power. (not multiple unrelated purposes nor vague and amorphous)
- RULING: The Court upheld the constitutionality of the Unprogrammed Fund, Contingent Fund, E-Government Fund, and Local Government Support Fund in the 2014 GAA, ruling that each had a clear singular purpose and sufficient legislative

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standards. Unlike the PDAF, these funds did not involve post-enactment discretion by legislators nor negate the line-item veto. The petition was dismissed for lack of merit.

Araullo v. Aquino III (2014)

- FACTS: The Disbursement Acceleration Program (DAP) was created in 2011 as an executive fiscal strategy to accelerate spending by pooling unobligated allotments, unreleased appropriations, and unprogrammed funds. Petitioners challenged its constitutionality, arguing that it violated the Constitution's rules on appropriations, savings, and augmentation of funds, which are powers reserved to Congress.
- 3 Requisites of Section 25 (5), Article VI:
  1. There is a law authorizing the President to transfer funds within his office (i.e. the GAA)
  2. That there are savings or any programmed appropriation in the GAA free from any obligation (when a project is completed or discontinued, efficiency savings or balances from unfilled plantilla at the end of the year)
  3. Purpose of the transfer is to augment an item in the GAA for their respective offices
- While the President has discretion in implementing the budget, this does not translate to an unfettered discretion that allowed the President to substitute his own will for that of Congress. Since DAP also transferred funds to the COA and HoR, which are not under the President's offices, it is considered a cross-border transaction and is prohibited under Sec. 25(5), Art. VI.
- Further, what the Executive determined as savings were contrary to what was prescribed in the GAA, which stated that savings only exist when funds allocated for a specific purpose have been already satisfied or the need for such funds have ceased to exist. Also, it was shown in the evidence that savings pooled under DAP were allocated to items not covered by any appropriation in the GAA.
- RULING: The Court declared unconstitutional the following DAP practices: (1) declaring savings from withdrawn unobligated allotments before the end of the fiscal year, (2) cross-border transfers of executive savings to other branches or constitutional bodies, (3) funding projects not covered by the GAA, and (4) use of unprogrammed funds without certification of excess revenues. However, the DAP itself as a strategy was not invalid per se. Completed projects funded under DAP are recognized under the doctrine of operative fact, but officials responsible may still be held liable.

Macalintal v. COMELEC (2023)

- Congress enacted RA 11935 postponing the December 2022 Barangay and SK Elections to October 2023, allowing incumbent officials to take over. The law's real purpose, as revealed in deliberations and by COMELEC's testimony was to realign the P8.4B election funds for the executive's COVID 19 and economic recovery programs. Petitioners challenged the law for violating the constitutional safeguards on appropriations and the right to suffrage.
- RA 11935 was unconstitutional. Congress committed GAD by postponing the BSKE without a valid reason. By realigning COMELEC's appropriations, it constituted an impermissible transfer of appropriations. As explicitly provided under Article VI, Section 25 (5) of the Constitution, this COMELEC allocation can only be constitutionally transferred by the COMELEC's chairperson, and only with respect to the COMELEC's "item, project, or activity with an appropriation." It cannot be transferred to another branch or constitutional body. - fiscal autonomy
- It unlawfully suspended the right to suffrage. The Operative Fact doctrine was applied for the BSKE to be still held in October 2023 due to practicality reasons.
- A postponement of elections which serves as a vehicle to transfer funds is an invalid exercise of legislative power.

Guidelines in Determining the Validity of Future Postponement of Elections:

- Such other important, substantial, or compelling reasons that necessitate the postponement of the elections, i.e., necessitated by public emergency, but only if and to the extent strictly required by the exigencies of the situation.
- Reasons such as election fatigue, purported resulting divisiveness, shortness of existing term, and/or other superficial or farcical reasons, alone, may not serve as important, substantial, or compelling reasons to justify the postponement of the elections. To be sufficiently important, the reason for the postponement must primarily be justified by the need to safeguard the right of suffrage or other fundamental rights or required by a public emergency situation.
- The postponement must still guarantee that the elections will be held at regular periodic intervals that are not unduly long, it must still guarantee the conduct of free, honest, orderly and safe elections, and safeguard the electorate's right of suffrage.

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Dela Cruz v. Ochoa (2018)

- FACTS: Petitioners questioned the legality of the LTO's ₱3.85-billion Motor Vehicle License Plate Standardization Program (MVPSP), funded under the 2014 GAA. They alleged irregular use of funds and the lack of a valid Multi-Year Obligational Authority. The COA later disallowed ₱477.9 million in advance payments to the contractor JKG-Power Plates for being illegal. (not raised)
- ISSUE: (1) W/N using the 2014 GAA appropriation to fund the MVPSP was an unconstitutional transfer of funds, (2) W/N the Major Final Output appropriation was an unconstitutional lump-sum
- DOCTRINE: To be valid, an appropriation must indicate a specific amount and a specific purpose. A specific purpose encompasses sub-categories that are naturally included in such.
- RULING:
- (1) No. Under the Major Final Output (MFO) Item "Motor Vehicle Registration and Driver's Licensing Regulatory Services," this naturally includes plate-making inasmuch as plate-making is an integral component of the registration process.
- (2) No. The Court held that under the 2014 GAA's Performance-Informed Budgeting system, "Major Final Outputs" (MFOs) are merely broad categories, not specific appropriations. A valid budget "item" must have a definite purpose and amount that can be subject to presidential veto. The MVPSP qualified as a proper "item" since the detailed budget under MFO clearly allocated funds for the "motor vehicle registration system," fulfilling constitutional requirements.

Pichay, Jr. v. Office of the Deputy Executive Secretary (2012)

- President Aquino abolished the Presidential Anti-Graft Commission (PAGC) and transferred its functions to the newly created Investigative and Adjudicatory Division (IAD) of the Office of the Deputy Executive Secretary for Legal Affairs (ODESLA). A case against Pichay was filed before the ODESLA. Pichay is questioning the creation of the IAD and the appropriation of funds by the president in the EO 13.
- The president is given discretion to augment items in the appropriations act for offices under his authority using savings from appropriations made for other items under his office. This authority, however, is limited. The President has continuing authority to reorganize his office under the Administrative Code.
- RULING: EO 13 is constitutional. SC held that the President validly reorganized the Office of the President by abolishing the PAGC and transferring its functions to ODESLA under Section 31 of the Administrative Code, which authorizes such reorganization for efficiency. The IAD-ODESLA was not a new office with quasi-judicial powers but merely a fact-finding and recommendatory body, consistent with the President's power of control and duty to ensure laws are faithfully executed. No usurpation of legislative or appropriation powers occurred, since the IAD was funded within the President's existing budget under the GAA and constitutional authority to realign savings. There was no encroachment upon the Ombudsman's jurisdiction, as administrative investigations may be concurrently conducted by the President. Lastly, due process and equal protection were not violated: Pichay was given the chance to respond, and the classification of presidential appointees for investigation was reasonable given the President's disciplinary authority over them.

Nazareth v. Villar (2013)

- FACTS: DOST Region IX personnel in Zamboanga City received Magna Carta benefits under R.A. 8439 from 1998 to 2001, despite the absence of a specific appropriation in the GAA. The regional office used its savings to fund these payments, which later led the COA to issue Notices of Disallowance after post-audit. In 2000, DOST Secretary Filemon Uriarte sought and obtained presidential approval from Executive Secretary Ronaldo Zamora to continue using savings for these benefits. COA lifted the disallowances for 1998 to 2000, as they were covered by the presidential approval, but upheld the 2001 disallowance, ruling that the approval did not extend to that year. Brenda Nazareth, the DOST Regional Director, then alleged that COA gravely abused its discretion in maintaining the 2001 disallowance.
- DOCTRINE: No money shall be paid out of the Treasury except in pursuance of an appropriation made by law. Violation warrants disallowance. A government agency cannot claim benefits if these benefits are not specifically appropriated for by law.
- RULING: SC upheld COA's disallowance of the 2001 payments, finding no grave abuse of discretion. It held that under Article VI, Section 29(1), no public funds

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may be disbursed without an appropriation made by law, and R.A. 8439 expressly requires Magna Carta benefits to be funded through the GAA. The President's power to augment appropriations under Article VI, Section 25(5) applies only when there are actual savings and an existing item to be augmented. Since the April 12, 2000 Memorandum authorizing the use of DOST savings covered only 1998–2000, and no authority or appropriation existed for 2001, the payments were unconstitutional and illegal.

Madera v. Commission on Audit (2020)

- FACTS: The Municipality of Mondragon, Northern Samar, issued several ordinances and resolutions granting allowances such as Economic Crisis Assistance, Monetary Augmentation, Agricultural Crisis Assistance, and Mitigation Allowance to local and national employees, totaling ₱7.7 million. The COA issued 11 Notices of Disallowance in February 2014, citing violations of the Salary Standardization Law (R.A. 6758), DBM circulars, and CSC rules. The approving officers—including the mayor, accountant, treasurer, and budget officer—were held liable, while recipients were excused due to good faith. After the COA Regional Director and COA Proper upheld the disallowances, the approving officers filed for certiorari before the Supreme Court.
- DOCTRINE: Allowances and benefits not expressly exempted under Section 12 of R.A. 6758 are deemed integrated into standardized salaries, and their grant without legal basis is void even if done in good faith or by long practice.
- RULING: The Supreme Court affirmed the validity of the disallowances. It held that under Section 12 of R.A. 6758, all allowances are integrated into standardized salaries except for a few expressly exempted ones—none of which included the benefits granted by the municipality. The Sangguniang Bayan's authority under the Local Government Code cannot override the Salary Standardization Law, and the two statutes must be harmonized.
- The Court further ruled that benefits given by mere practice do not create vested rights, especially when they lack a lawful basis or connection to the employees' official functions.
- The Court holds that petitioners, as approving and certifying officers, need not refund the disallowed amounts because they acted in good faith.

Rules on Returns of Notice of Disallowances

- If a Notice of Disallowance is set aside by the Court, no return shall be required from any of the persons held liable therein.
- If a Notice of Disallowance is upheld, the rules on return are as follows:
  - Approving and certifying officers who acted in good faith, are not civilly liable to return
  - Approving and certifying officers who are clearly shown to have acted in bad faith, malice, or gross negligence are solidarily liable to return only the net disallowed amount (total disallowed amount minus amount excused to be returned by the payees)
  - Recipients — whether approving or certifying officers or mere passive recipients — are liable to return the disallowed amounts respectively received by them, unless they are able to show that the amounts they received were genuinely given in consideration of services rendered.
  - The Court may likewise excuse the return of recipients based on undue prejudice, social justice considerations, and other bona fide exceptions as it may determine on a case to case basis.

b. Tax laws

Sec. 28, Art. VI.

(1) The rule of taxation shall be uniform and equitable. The Congress shall evolve a progressive system of taxation.

(2) The Congress may, by law, authorize the President to fix within specified limits, and subject to such limitations and restrictions as it may impose, tariff rates, import and export quotas, tonnage and wharfage dues, and other duties or imposts within the framework of the national development program of the Government.

(3) Charitable institutions, churches and parsonages or convents appurtenant thereto, mosques, non-profit cemeteries, and all lands, buildings, and improvements, actually, directly, and exclusively used for religious, charitable, or educational purposes shall be exempt from taxation.

(4) No law granting any tax exemption shall be passed without the concurrence of a majority of all the Members of the Congress.

Sec. 29, Art. VI.

(1) No money shall be paid out of the Treasury except in pursuance of an appropriation made by law.

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(2) No public money or property shall be appropriated, applied, paid, or employed, directly or indirectly, for the use, benefit or support of any sect, church, denomination, sectarian institution, or system of religion, or of any priest, preacher, minister, or other religious teacher, or dignitary as such, except when such priest, preacher, minister, or dignitary is assigned to the armed forces, or to any penal institution, or government orphanage or leprosarium.

(3) All money collected on any tax levied for a special purpose shall be treated as a special fund and paid out for such purpose only. If the purpose for which a special fund was created has been fulfilled or abandoned, the balance, if any, shall be transferred to the general funds of the Government.

Uniform and Equitable

- Uniformity in taxation merely requires that all subjects of taxation similarly situated are treated the same.
- Requirements of a valid classification *(Tan v. Del Rosario)*
  1. Substantial standards
  2. Categorization is germane to achieving a legislative purpose
  3. The law applies to both present and future conditions
  4. Classification applies equally well to all those of the same class

Tolentino v. Secretary of Finance (1994)

- FACTS: Multiple petitions were filed challenging the constitutionality of R.A. 7716, the Expanded VAT Law, which sought to widen the VAT base and improve tax collection. Petitioners claimed the law was invalid for procedural defects—arguing it did not properly originate from the House, violated the three-reading rule, and exceeded the Conference Committee's powers. They also raised substantive issues, alleging violations of press and religious freedom, due process, equal protection, and the constitutional ban on regressive taxes.
- **Tax Bills shall originate exclusively in the House of Representatives:** it is not the law, but the revenue bill, which is required by the Constitution to "originate exclusively" in the House of Representatives.
- A bill originating in the House may undergo such extensive changes in the Senate that the result may be a rewriting of the whole. As a result of the Senate action, a distinct bill may be produced.
- To insist that it must substantially be the same as the House bill would:
  - deny the Senate's power to "concur with amendments" and to "propose amendments."
  - violate the co-equality of legislative power of the two houses of Congress
  - make the House superior to the Senate.
- What the Constitution simply means is that the initiative for filing revenue, tariff, or tax bills, bills authorizing an increase of the public debt, private bills and bills of local application must come from the House of Representatives on the theory that, elected as they are from the districts, the members of the House can be expected to be more sensitive to the local needs and problems. On the other hand, senators, who are elected at large, are expected to approach the same problems from the national perspective. Both views are thereby made to bear on the enactment of such laws.
- The Constitution does not prohibit the filing in the Senate of a substitute bill in anticipation of its receipt of the bill from the House, so long as action by the Senate as a body is withheld pending receipt of the House bill.
- The presidential certification also dispensed with the requirement not only of printing but also that of reading the bill on separate days.
- The Court held that it is within the power of a conference committee to include in its report an entirely new provision that is not found either in the House Bill or in the Senate Bill, and they are not constrained to only consider conflicting provisions.
- The provision on a progressive system of taxation is not self-executory. It is an incentive to legislate, and does not constitute an enforceable right.

Lung Center v. Quezon City (2004)

- FACTS: The Lung Center of the Philippines, a non-stock, non-profit entity created by P.D. No. 1823 in 1981, owns a 121,463 sq. m. lot in Quezon City where its hospital operates. It provides services to both paying and non-paying patients and receives annual government subsidies. Portions of its property are leased commercially: ground floor spaces for a canteen and stores, hospital spaces to private medical practitioners, and a large land area to Elliptical Orchids and Garden

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Center. Petitioner filed a Claim for Exemption from real property taxes on the claim that it is a charitable institution

- City Assessor denied → Local Board of Assessment Appeals of QC dismissed → Central Board of Assessment Appeals of QC affirmed QC-LBAA's decision → CA affirmed CBAA's decision (petitioner was not a charitable institution and that its real properties were not actually, directly and exclusively used for charitable purposes; hence, it was not entitled to real property tax exemption under the constitution and the law)
- Definition of Charitable Organization or Institution: charity may be fully defined as a gift for the benefit of an indefinite number of persons; It may be applied to almost anything that tends to promote the well-doing and well-being of a social man. It embraces the improvement and promotion of the happiness of man. The word "charitable" is not restricted to relief of the poor or sick. The test whether an enterprise is charitable or not is whether it exists to carry out a purpose reorganized in law as a charitable or whether it is maintained for gain, profit, or private advantage.
- For charitable institutions, the exemption from property tax is for the land, building and improvements, actually, directly, and exclusively used for charitable purposes (Section 28 (3), Article VI)
    - If real property is used for one or more commercial purposes, it is not exclusively used for the exempted purposes but is subject to taxation. Solely is synonymous with exclusively.
    - **Actual, direct, and exclusive use of the property for charitable purposes -** the direct and immediate and actual application of the property itself to the purposes for which the charitable institution is organized. It is not the use of the income from the real property that is determinative of whether the property is used for tax-exempt purposes
- RULING: The petitioner failed to discharge its burden to prove that the entirety of its real property is actually, directly and exclusively used for charitable purposes
- Other portions of the hospital are leased to private individuals for their clinics and a canteen; Portion of land is being leased for a business enterprise "Elliptical Orchids and Garden Center" - these parts are not exempt from RP taxes
- Portions of land occupied by the hospital and portions of the hospital used for its patients, whether for paying or non-paying, are exempt from RP taxes

Garcia v. Executive Secretary (1992)

- FACTS: President Ramos issued EO No. 438, imposing an additional 5% ad valorem duty on all imports, including crude oil and oil products. EO No. 443 increased this additional duty to 9% ad valorem. The Department of Finance requested the Tariff Commission to begin procedures for imposing a specific levy on crude oil and petroleum products, prompting the Commission to hold a public hearing under Section 401 of the Tariff and Customs Code. EO No. 475 reduced the additional duty on all imports back to 5%, except for crude oil and oil products, which remained at 9%. Then, EO No. 478 imposed a special duty of ₱0.95 per liter on imported crude oil and ₱1.00 per liter on imported oil products, in addition to existing duties. Congressman Garcia filed a petition questioning the validity of EOs 475 and 478.
- DOCTRINE: The enactment of appropriation, revenue and tariff bills, like all other bills, is within the province of the Legislative rather than the Executive Department. But under Sec 28(2), Art 6, there is explicit constitutional permission for Congress to authorize the President "subject to such limitations and restrictions as [Congress] may impose" to fix "within specific limits" "tariff rates ... and other duties or imposts..."
- RULING: The Court upheld the validity of 2 executive orders subjecting crude oil and other oil products to special duties pursuant to the power delegated to the President under the Tariff and Customs Code. Section 401 grants broad authority to adjust tariffs for general welfare. The President's authority must be exercised in "the interest of national economy, general welfare and/or national security.", as provided by the Tariff and Customs Code. The concept of the "protection of local industries" as the only permissible objective for the exercise of that delegated authority is stiflingly narrow → Court cannot build it into the Constitution and Customs Law.
- Accordingly, we believe and so hold that Executive Orders Nos. 475 and 478 which may be conceded to be substantially moved by the desire to generate additional public revenues, are not, for that reason alone, either constitutionally flawed, or legally infirm under Section 401 of the Tariff and Customs Code.

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John Hay PAC v. Lim (2003)

- FACTS: R.A. No. 7227, the Bases Conversion and Development Act of 1992, aimed to convert former U.S. military bases, including Camp John Hay in Baguio City, into productive civilian uses and created the Bases Conversion and Development Authority (BCDA) to manage these areas. The law authorized the President, with the LGU, to establish Special Economic Zones (SEZs) in these base areas. FVR issued Proclamation No. 420 on July 5, 1994, officially creating the JHSEZ and granting it the same incentives as the Subic SEZ, including tax and duty-free importation and exemption from local and national taxes. Residents and city councilors of Baguio City filed a petition challenging the constitutionality of Proclamation No. 420
- The Supreme Court, however, said that the tax exemption in RA 7227 is clearly intended for the Subic SEZ only. There is no express extension of the aforesaid benefits to other SEZs still to be created at the time via presidential proclamation
- Proclamation No. 420, insofar as it grants JHSEZ with the benefits of Subic SEZ and more incentives, cannot be sustained. It was an unwarranted delegation.
- **Tax exemptions may be granted by Congress:** The legislature has the full power to exempt any person or corporation from taxation. Other than Congress, the Constitution may itself provide for specific tax exemptions, or local governments may pass ordinances on exemption only from local taxes.
- The challenged grant of tax exemption would circumvent the Constitution's imposition that a law granting any tax exemption must have the concurrence of a majority of all the members of Congress.
- The other privileges given to John Hay SEZ are also, by tradition and usage, what Congress legislates on
- Tax exemptions cannot be implied, it must be categorically and unmistakably expressed - it must be expressly granted in a statute stated in a language too clear to be mistaken.
- The President cannot, by proclamation, extend tax exemptions absent legislation by Congress.
- This Court then declares that the grant by Proclamation No. 420 of tax exemption and other privileges to the John Hay SEZ is void for being violative of the Constitution.

c. Appellate jurisdiction of the Supreme Court

Sec. 30, Art. VI. No law shall be passed increasing the appellate jurisdiction of the Supreme Court as provided in this Constitution without its advice and concurrence.

Fabian v. Desierto (1998)

- Section 27 of RA 6770 cannot validly authorize an appeal to this Court from decisions of the Office of the Ombudsman in administrative disciplinary cases. It consequently violates the proscription in Sec 30, Art 6 of the Constitution against a law which increases the appellate jurisdiction of this Court. The constitutional prohibition was intended to give this Court a measure of control over cases placed under its appellate jurisdiction. Otherwise, the indiscriminate enactment of legislation enlarging its appellate jurisdiction would unnecessarily burden the Court.
- Court took note of the fact that it was not consulted when its appellate jurisdiction was increased, in contravention to the provisions of the 1987 Constitution.
- Whenever the legislature intends that the decisions or resolutions of the quasijudicial agency shall be reviewable by the Supreme Court or the Court of Appeals, a specific provision to that effect is included in the law creating that quasi-judicial agency and, for that matter, any special statutory court.
- The jurisdiction of a court is not a question of acquiescence as a matter of fact but an issue of conferment as a matter of law.

Carpio-Morales v. Court of Appeals (2015)

- Ombudsman Carpio-Morales found Binay guilty of violating the Anti-Graft Law due to anomalies in relation to the construction of the Makati City Hall Parking Building during his term as Makati mayor.
- Power of Congress is limited only to creating lower courts and defining the jurisdiction (Sec. 1, Article VIII) but it may not deprive the Supreme Court of its jurisdiction over cases enumerated under Sec. 5, Article VII, including the power to promulgate rules concerning protection of constitutional rights under Sec. 5 (5), Article VIII.
    - Included in the inherent powers of a court endowed with subject matter jurisdiction is the power to issue preliminary writs to ensure that supervening

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events (or preserve the status quo) will not render a Court's decision moot while the Court is hearing the case. Sec. 14, by disallowing the power to issue a TRO/WPI or preliminary writs, Congress encroached upon the rule-making authority of the Supreme Court.

- Par. 1 and 2 of Sec. 14 of the Ombudsman Act prohibits all remedies against issuances of the Office the Ombudsman except for the Rule 45 remedy to the Court on pure questions of law. By confining the remedy to a Rule 45 appeal, the provision takes away the remedy of certiorari, grounded on errors of jurisdiction and in effect, increased jurisdiction of SC without showing that the Court consented to it - hence, the provision is UNCONSTITUTIONAL AND INVALID thus, Court of Appeals retains appellate jurisdiction.

Procedure for the passage of bills

Sec. 26(2), Art. VI. No bill passed by either House shall become a law unless it has passed three readings on separate days, and printed copies thereof in its final form have been distributed to its Members three days before its passage, except when the President certifies to the necessity of its immediate enactment to meet a public calamity or emergency. Upon the last reading of a bill, no amendment thereto shall be allowed and the vote thereon shall be taken immediately thereafter, and the yeas and nays entered in the journal.

- General rule: A bill must undergo 3 readings on 3 separate days and printed copies in its final form have been distributed 3 days before its passage.
- Exception: When the President certifies a bill as urgent to meet a public calamity or emergency, a bill still has to undergo 3 readings but not necessarily on separate days, and a printed copy of the bill may no longer be distributed before final passage. (Tolentino v. Secretary of Finance)

How a Bill Becomes a Law

- 2 ways a bill is passed
    1. Jointly - joint session
    2. Separately
        a. Simultaneously (both Houses take up a bill at the same time)
        b. Sequentially (a bill is first passed in the House and is then transmitted to the Senate)
- Whenever a bill is passed separately by both Houses, it becomes necessary for the two to reconcile their versions of the bill through the Conference Committee, in which both Houses of Congress are represented.

President's Veto Power

- General Rule: The President must veto bills in their entirety.
- Exceptions:
    1. Veto specific items but only in appropriations or tariff bills
    2. Veto "inappropriate provisions"

Tolentino v. Secretary of Finance (1994)

- The presidential certification dispensed with the requirement not only of printing but also that of reading the bill on separate days. The phrase "except when the President certifies to the necessity of its immediate enactment, etc" qualifies the two stated conditions before a bill can become law:
    - The bill has passed three readings on separate days and
    - It has been printed in its final form and distributed three days before it is finally approved
- It is within the power of a conference committee to include in its report an entirely new provision that is not found either in the House Bill or in the Senate Bill. If the committee can propose an amendment consisting of one or two provisions, there is no reason why it cannot propose several provisions, collectively considered as an "amendment in the nature of a substitute," so long as such amendment is germane to the subject of the bills before the committee. After all, its report is not final but needs the approval of both houses of Congress to become valid as an act of the legislative department.
- Art 6, Sec 26(2) must be construed as referring only to bills introduced for the first time in either house of Congress, not to the conference committee report. We

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cannot say that, as a matter of fact, the members of Congress were not fully informed of the provisions of the bill.

- A Conference Committee report does not need to undergo three readings.

Kida v. Senate, G.R. No. 196271 (2011)

- Presidential certification of bill as urgent - exception to the Constitutional requirement that a bill must go through three readings on three separate days, and that the bill in its printed form be distributed prior to approval
- The purpose of the three separate readings requirement are:
  1. To inform the legislators and other parties interested in pending bills to intelligently respond to them
  2. To give them notice that a measure is in progress through the enactment process
- While the judicial department and this Court are not bound by the acceptance of the President's certification by both the House of Representatives and the Senate, prudent exercise of our powers and respect due our co-equal branches of government in matter committed to them by the Constitution, caution a stay of the judicial hand.
    - The factual basis of presidential certification of bills is not subject to judicial review (political question)
    - There is no requirement that there must be a public calamity.

Ang Nars Party-List v. The Executive Secretary (2019)

- Petition questioned the constitutionality of JR no. 4 for amending the Nursing Act.
- A joint resolution is not a bill and will not amend a law.

Bill	**Joint Resolution**
To be approved by Congress, it must pass 3 readings on separate days (exception to rule: if Pres. certifies bill as urgent)	Congress can approve a JR after 1/2/3 readings, on the same day or on separate days, depending on the rules of procedure that Senate or House may, at their sole discretion, adopt.
Before a bill is approved, printed copies of the bill in its final form must be distributed to Members of the Senate and House 3 days before its passage (unless urgent)	Can be approved on same day, or several days after, the final printed copies are distributed to Members of the Senate & the House, depending on rules of procedure that Senate or House may, at their sole discretion, adopt.
The bill approved by Congress must be presented to Pres. for his signature or veto	JR approved by Congress does not require President's signature or veto, unless Senate or House, in their respective rules of procedure, at their sole discretion, requires such presentation to Pres.
Upon the last reading of bill, no amendment is allowed & voting on bill shall immediately be taken.	No such requirement in approving a JR, unless Senate & House, at their sole discretion, adopt such requirement.
The procedure in enacting a bill into law is permanently fixed as prescribed by the Constitution & cannot be amended by any act of Congress.	Procedure for passing a JR is adopted separately by Senate & House; can be changed at any time by Senate or House, respectively

Del Rosario v. Commission on Elections (2020)

- Petitioners question the constitutionality of RA 11259 (Law creating the 3 provinces of Palwan) for not undergoing public consultation and disqualifying the voters of Puerto Princesa City from participating in the plebiscite.
- The Constitution does not require prior public consultation as a prerequisite for the validity of a statute. Article XIII, Sec 16 is merely a protection against any action which serves to abridge the right of people's organization to "effective and reasonable participation at all levels of social, political, and economic decision-making"
- Article X, Sec 10 requires that the division of a province must be approved "by a majority of the votes cast in a plebiscite in the political units directly affected." First

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obtained "the approval of a majority of votes in the plebiscite in the unit or units affected" whenever a province is created, divided or merged and there is substantial alteration of the boundaries.

- Three factors in determining whether an LGU is a political entity directly affected by an LGU change or conversion:
    1. Territorial alteration → The Law will neither alter the boundaries of Puerto Princesa nor reduce its land area as it is no longer part of the boundaries of the Province of Palawan itself.
    2. Political effects → Citing the LGC Code (Section 452) and Article X, Section 12 of the Constitution, HUCs are independent of the province and voters of highly urbanized cities shall remain excluded from voting for elective provincial officials since HUCs have attained a level of population growth and economic development which the legislature has deemed sufficient for devolution of governmental powers as self-contained political units. HUCs are intended to function at the same level as provinces and are independent from the provinces.
    3. Economic effects → An HUC is fiscally autonomous from the province – does not share in taxes, or IRA of Palawan. Puerto Princesa in its own right has the power to impose its own taxes, fees and charges, and the revenues of which accrue to its own treasury. It also is entitled to its own internal revenue allotment (IRA) and its own share in natural resources.

Effectivity of laws

When does a law become effective?

- 15 days following the completion of their publication in either the Official Gazette, or in a newspaper of general circulation in the Philippines.
- Publication through newspapers now allowed - amended by EO 200. Very few people now read the printed Official Gazette so publication in a newspaper of general circulation has wider circulation.
- Newspaper of General Circulation - made within the court's jurisdiction, published at regular intervals, with bona fide subscription list of paying subscribers and if it is not devoted to the interest or published for the entertainment of a particular class, profession, trade, calling, race or religious denomination.

Q: Is the online Official Gazette considered to satisfy the publication requirement?

NO, the internet is not a medium for publication of laws and issuances. Publication in an online website is only for evidentiary purposes. (See Garcillano v. House of Representatives)

Tanada v. Tuvera (1985)

- The publication of all [statutes] "of a public nature" or "of general applicability" is mandated by law.
- Without publication, the people have no means of knowing what presidential decrees have actually been promulgated, much less a definite way of informing themselves of the specific contents and texts of such decrees.
- Publication therefore is the basis for the legal maxim of "ignorantia legis non excusat."
- Publication is a condition sine qua non for the effectivity of a statute.

Tanada v. Tuvera (1986) RESOLUTION

- All statutes, including those of local application and private laws, shall be published as a condition for their effectivity, which shall begin fifteen days after publication unless a different effectivity date is fixed by the legislature.
- What needs to be published:
    - Presidential Decrees and Executive Orders promulgated by the President in the exercise of legislative powers whenever the same are validly delegated by the legislature or, at present, directly conferred by the Constitution.
    - Administrative rules and regulations must also be published if their purpose is to enforce or implement existing law pursuant also to a valid delegation
    - The charter of a city must be published notwithstanding that it applies to only a portion of the national territory and directly affects only the inhabitants of that place.

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- All presidential decrees must be published, including even, say, those naming a public place after a favored individual or exempting him from certain prohibitions or requirements.
- The circulars issued by the Monetary Board must be published if they are meant not merely to interpret but to "Fill in the details" of the Central Bank Act which that body is supposed to enforce.

- Need not be published:
  - Interpretative regulations and those merely internal in nature, that is, regulating only the personnel of the administrative agency and not the public, need not be published.
  - Neither is publication required of the so-called letters of instructions issued by administrative superiors concerning the rules or guidelines to be followed by their subordinates in the performance of their duties.
  - No publication is required of the instructions issued by, say, the Minister of Social Welfare on the case studies to be made in petitions for adoption or the rules laid down by the head of a government agency on the assignments or workload of his personnel or the wearing of office uniforms.
  - Parenthetically, municipal ordinances are not covered by this rule but by the Local Government Code.

Are the rules and regulations issued by administrative agencies exempt from the publication requirement?

No. Rules and regulations issued by administrative agencies are laws. While these rules and regulations cannot supersede laws enacted by the legislature, and merely implement these laws, they cannot be exempted from the requirement of publication, especially since many of these rules and regulations are, like laws, of general applicability.

Question hour and Legislative Investigation

Question Hour:	**Legislative Investigation:**
Sec. 22, Art. VI. The heads of departments may, upon their own initiative, with the consent of the President, or upon the request of either House, as the rules of each House shall provide, appear before, and be heard by such House on any matter pertaining to their departments. Written questions shall be submitted to the President of the Senate or the Speaker of the House of Representatives at least 3 days before their scheduled appearance. Interpellations shall not be limited to written questions, but may cover matters related thereto. When the security of the State or the public interest so requires and the President so states in writing, the appearance shall be conducted in executive session.	**Sec. 21, Art. VI.** The Senate or the House of Representatives or any of its respective committees may conduct inquiries in aid of legislation in accordance with its duly published rules of procedure. The rights of persons appearing in, or affected by, such inquiries shall be respected.

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CONGRESSIONAL OVERSIGHT

The power of oversight embraces all activities undertaken by Congress to enhance its understanding of an influence over the implementation of legislation it has enacted. Clearly, oversight concerns post-enactment measures undertaken by Congress:

- To monitor bureaucratic compliance with program objectives
- To determine whether agencies are properly administered
- To eliminate executive waste and dishonesty
- To assess executive conformity with the congressional perception of public interest

Categories of Congressional Oversight Functions

Scrutiny: implies a lesser intensity and continuity of attention to administrative operations; a passive process of looking at the facts that are readily available

- Its primary purpose is to determine economy and efficiency of the operation of government activities.

	Sec. 21 - Legislative Investigation	Sec. 22 - Question Hour
Subject matter	In aid of legislation	Matters related to department only (implementation of laws and oversight function)
Who may appear	Any person	Department Heads
Who may be summoned	Anyone except the President and SC members (Senate v. Ermita)	Attendance only upon their own initiative, with the Consent of the President
Obligatory force of appearance	Mandatory; Contempt power may be used to compel attendance or punish contumacious witness	Discretionary
Requirements	1. In aid of legislation (there must be a contemplated law) 2. In accordance with the duly published rules of procedure of Senate/HOR [publication is mandatory] 3. Rights of persons appearing in or affected shall be respected [Bill of Rights]	1. Requires the consent of the President to attend, or at the Request of Congress 2. Written questions submitted to the President of the Senate or Speaker of the House at least 3 days before scheduled appearance 3. Interpellations not limited to written questions but any matter related 4. When security of the State or public interest requires, and the President states in writing, appearance shall be conducted in executive session

Balag v. Senate (2018)

- Congress' power of contempt rests solely upon the right of self-preservation and does not extend to the infliction of punishment as such. An indefinite and unspecified period of detention will amount to excessive restriction and will violate any person's right to liberty.
- Congress power of contempt lasts only:
  1. Upon the approval or disapproval of the Committee Report – as the legislative inquiry ends, the basis for the detention of the recalcitrant witness likewise ends;
  2. Upon the expiration of one (1) Congress – while the Senate is a continuing institution, its proceedings are terminated upon the expiration of that

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Congress at the final adjournment of its last session. Hence, as the legislative inquiry ends upon that expiration, the imprisonment of the detained witnesses likewise ends.

- The Court said that although the Senate, as an institution, is a continuing body, the Senate of each Congress acts separately and independently of the Senate of the Congress before it in the conduct of its day-to-day business. As such, all pending matters and proceedings of the Senate, even legislative investigations, are considered terminated upon the expiration of that Congress and it is merely optional on the Senate of the succeeding Congress to take up such unfinished matters.
- Senate may still exercise its power of contempt during legislature hearings while on recess provided that the period of imprisonment shall only last until the termination of the legislative inquiry, specifically, upon the approval or disapproval of the Committee Report.

In Re Sabio (2006)

- EO No. 1 issued by President Aquino, which created the PCGG, included Sec. 4 (b) which states that no member of the Commission shall be required to testify in any proceeding concerning matters within its official cognizance.
- No law or executive order shall exempt any person from appearing before a Congressional inquiry in aid of legislation.
- The power of inquiry – with process to enforce it – is an essential and appropriate auxiliary to the legislative function. A legislative body cannot legislate wisely or effectively in the absence of information respecting the conditions which the legislation is intended to affect or change; and where the legislation body does not itself possess the requisite information – which is not infrequently true – recourse must be had to others who possess it.
- The 1987 Constitution recognizes the power of investigation, not just of Congress, but also of "any of its committee." It constitutes a direct conferral of investigatory power upon the committees and it means the mechanisms of the Houses can take in order to effectively perform its investigative function are also available to the committees.
- An important limitation to the power of legislative inquiry is that "the rights of persons appearing in or affected by such inquiries shall be respected" such as:
    - the right to privacy - not absolute when there is a compelling state interest to exact vital information to aid the legislature in crafting laws
    - the privilege against self-incrimination - can only be invoked when the incriminating question is being asked, since there is no way of knowing in advance the nature or effect of questions.

Bengzon v. Senate Blue Ribbon Committee (1991)

- For a legislative inquiry to be valid, it should adhere to the requirements of Art. VI, Sec. 21 of the Constitution:
    1. It must be in aid of legislation (there must be a contemplated law)
    2. In accordance with the duly published rules of procedure of the Senate/HOR (publication is mandatory)
    3. The rights of persons appearing in or affected shall be respected (BIll of Rights)
- Inquiries may refer to the implementation or re-examination of any law or in connection with any proposed legislation or the formulation of future legislation. They may also extend to any and all matters vested by the Congress and/or in the Senate alone. Inquiry to be within the jurisdiction of the legislative body making it, must be material or necessary to the exercise of a power in it vested by the Constitution, such as to legislate or to expel a member.
- The Senate may refer to any committee or committees any speech or resolution filed by any Senator which in its judgement requires an appropriate inquiry in aid of legislation. In order to ascertain the character or nature of an inquiry, resort must be had to the speech or resolution under which such an inquiry is proposed to be made.
- The speech of Senator Enrile contained no suggestion of contemplated legislation. The purpose of the inquiry to be conducted by the Blue Ribbon Committee was to find out whether or not the relatives of President Aquino, particularly Mr. Ricardo Lopa, had violated the law in connection with the alleged sale of the 36 or 39 corporations belonging to Benjamin "Kokoy" Romualdez to the Lopa Group.
  There appears to be, therefore, no intended legislation involved.

Senate of the Philippines v. Ermita (2006)

- Section 21 and 22 of the 1987 Constitution should not be considered as pertaining to the same power of Congress. One specifically relates to the power to conduct

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inquiries in aid of legislation, the aim of which is to elicit information that may be used for legislation, while the other pertains to the power to conduct a question hour, the objective of which is to obtain information in pursuit of Congress' oversight function. When Congress merely seeks to be informed on how department heads are implementing the statutes which it has issued, its right to such information is not as imperative as that of the President to whom such department heads must give a report of their performance as a matter of duty. In such instances, Section 22, in keeping with the separation of powers, states that Congress may only request their appearance. Nonetheless, when the inquiry in which Congress requires their appearance is "in aid of legislation" under Section 21, the appearance is mandatory. While the executive branch is a co-equal branch of the legislature, it cannot frustrate the power of Congress to legislate by refusing to comply with its demands for information.

- Executive privilege is an exemption to the legislative power of inquiry but only the President is entitled to that exemption. Department heads and other executive officials are not entitled to that privilege just because of their positions (contrary to EO 464). A valid claim must be made by the President for the privilege to be recognized.
  - Executive privilege only in relation to certain types of information of a sensitive character
  - Claim may be valid or not depending on the ground invoked to justify it and the context in which it is made

Gudani v. Senga (2006)

- President, as Commander-in-Chief, may prevent AFP members from testifying before a legislative inquiry, but he may still be compelled by judicial order to compel the attendance of the AFP members.
- President's Commander-in-Chief powers are not the same as Presidential Authority.

Neri v. Senate Committee on Accountability of Public Officers and Investigations (2008)

- The Congress can only make inquiries that are related to law-making.
- The Senate Committee committed grave abuse of discretion since there was a legitimate claim of executive privilege so the issuance of the contempt Order suffers from constitutional infirmity. Respondent committees did not comply with the requirement laid down in Senate v. Ermita:
  - "possible needed statute which prompted the need for the inquiry"
  - "usual indication of the subject of inquiry and the questions relative to and in furtherance thereof"
- Court clarified that Senate as an institution is continuing, as it is not dissolved with each national election or composition of its members
  - However, conduct of its day-to-day business the Senate of each Congress acts separately and independently of the Congress before it
  - Each Senate is distinct from the previous one so all pending matters and proceedings shall terminate upon expiration of one Congress. Thus, the need to republish the rules on Senate legislative inquiries

Criteria for invoking Executive Privilege:

1. Protected communication must be related to a non-delegable presidential power
2. Operational proximity of author or receive of information
3. Showing of adequate need that info contains important evidence and unavailability of info elsewhere

Garcillano v. The House of Representatives Committee on Public Information (2008)

- Although the Senate is a continuing body, it must publish its rules on legislative inquiry in the Official Gazette or in a newspaper of general circulation.
- Publication on the internet or online website does not comply with this requirement, as this is only for evidentiary purposes.

AKBAYAN v. Aquino (2008)

- Executive privilege can also be invoked in other forums aside from legislative inquiry, such as diplomatic relations.

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- Diplomatic negotiations enjoy a presumptive privilege against disclosure and are not violative of freedom of speech or access to information. The nature of diplomacy requires the centralization of authority and confidential nature.

Agcaoili, Jr. v. Farinas (2018)

- (Fourth issue) Congress does not have the power to cite in contempt and compel attendance of Court of Appeals justices because the Supreme Court has primary authority over them.
- Judicial privilege - limited to matters part of internal deliberations and actions of the SC in exercise of the Members' adjudicatory functions and duties
  - Excludes - information relating to commission of crimes or misconduct, violations of the Code of Judicial Conduct, and those outside adjudicatory functions such as financial, budgetary, personnel and admin matters
  - Purpose of judicial privilege is principally for the effective discharge of judicial power

Executive Privilege

- Power to withhold information from the public, the Courts, and the Congress.
- 3 general categories:
  1. State Secrets — disclosure of which would subvert crucial military or diplomatic objectives
  2. Informer's privilege — privilege not to disclose the identity of informer
  3. Generic privilege — covers internal deliberations
- A claim of executive privilege is valid if it falls under the above-mentioned categories, given a particular setting. The usual approach to the invocation of executive privilege is taken from U.S. v Nixon, where the court balanced the claim of executive privilege and that of the public interest.

Who can claim executive privilege?

- Only the president or the executive secretary by the authority of the president since it is an exceptional power which can only be invoked against the public interest if there is a high degree of necessity.
- Claim must be made explicitly and cannot be assumed by silence.

Can executive privilege cover categories of persons?

- No. Executive privilege extends to categories of information, not to categories of persons. An official in a particular position is not automatically covered by executive privilege.

Types of Executive Privilege

1. Presidential Communications Privilege (Neri v. Senate Blue Ribbon Committee)
   - Executive privilege also covers communications of the President that fulfill the following requirements:
     - The communication relates to a quintessential and non-delegable power (i.e. treaty-making power)
     - The communication is solicited or received by officials within the operational proximity of the President (i.e. cabinet members)
     - The privilege may be overcome by a showing of adequate need, such that the information sought "likely contains important evidence," and by the unavailability of the information elsewhere by an appropriate investigating authority.
2. Deliberative Process Privilege

- Materials that comprise the process by which government policies are formulated may form part of the deliberative process privilege.
- Diplomatic negotiations can be considered privileged information, even if such negotiations do not concern national security. (Akbayan v Aquino)

Publication Requirement

- The rules of the Congress concerning inquiries in aid of legislation must be published in the Official Gazette or a newspaper of general circulation in order to be valid (Art. 2, Civil Code as amended).

Is the one-time publication of rules sufficient to meet the publication requirement?

- No. The Court ruled in *Neri v. Senate Blue Ribbon Committee* and *Garcillano v. House of Representatives Committee on Public Information* that rules on legislative

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inquiries must be published by every new Senate, regardless of whether or not the rules are substantially the same as those of previous Senates.

- While the Senate is a continuing institution, each session of the Senate acts independently of previous Senates, thus the senate must publish rules of procedure every time it reconvenes.

Is online publication sufficient?

- No. The E-Commerce Act only recognized the admissibility of internet materials as evidence.
- This does not necessarily mean online publication meets the standards of publication set forth by the Constitution and the Civil Code. (*Garcillano v. House of Representatives Committees)*

Other Powers

A. Act as board of canvassers for presidential election

Par. 4, Sec. 4, Art. VII. xxx The returns of every election for President and Vice-President, duly certified by the board of canvassers of each province or city, shall be transmitted to the Congress, directed to the President of the Senate. Upon receipt of the certificates of canvass, the President of the Senate shall, not later than thirty days after the day of the election, open all certificates in the presence of the Senate and the House of Representatives in joint public session, and the Congress, upon determination of the authenticity and due execution thereof in the manner provided by law, canvass the votes.

- When the Congress acts as a Board of Canvassers (BOC) for Presidential elections, it functions outside of its role as the legislature. Thus, the function of the BOC is unaffected by Congress' adjournment sine die. Legislative functions may end upon adjournment, but Congress can continue with its non-legislative functions. The BOC cannot adjourn until it completes its constitutionally mandated tasks. (*Pimentel v. Congress,* 2004)

B. Call a special election for Presidency

Sec. 10, Art. VII. The Congress shall, at ten o'clock in the morning of the third day after the vacancy in the offices of the President and Vice-President occurs, convene in accordance with its rules without need of a call and within seven days enact a law calling for a special election to elect a President and a Vice-President to be held not earlier than forty-five days nor later than sixty days from the time of such call. The bill calling such special election shall be deemed certified under paragraph 2, Section 26, Article VI of this Constitution and shall become law upon its approval on third reading by the Congress. Appropriations for the special election shall be charged against any current appropriations and shall be exempt from the requirements of paragraph 4, Section 25, Article VI of this Constitution. The convening of the Congress cannot be suspended nor the special election postponed. No special election shall be called if the vacancy occurs within eighteen months before the date of the next presidential election.

Requirement

- A vacancy for the positions of both the Presidency and the Vice-Presidency

Procedure

1. On the 3rd day after the vacancy, Congress shall convene, in accordance with its rules without need of a call
2. Within 7 days from the 3rd day after the vacancy, Congress shall enact a law calling for a special election
3. Special elections must be held between 45-60 days from the time of the call for elections

Rules:

1. Convening of the Congress cannot be suspended, nor the special election be postponed
2. No special election shall be called if the vacancy occurs within 18 months before the date of the next presidential election

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C. Decide on disability of the President

Par. 2–4, Sec. 11, Art. VII of the Constitution

xxx Whenever a majority of all the Members of the Cabinet transmit to the President of the Senate and to the Speaker of the House of Representatives their written declaration that the President is unable to discharge the powers and duties of his office, the Vice-President shall immediately assume the powers and duties of the office as Acting President.

Thereafter, when the President transmits to the President of the Senate and to the Speaker of the House of Representatives his written declaration that no inability exists, he shall reassume the powers and duties of his office. Meanwhile, should a majority of all the Members of the Cabinet transmit within five days to the President of the Senate and to the Speaker of the House of Representatives their written declaration that the President is unable to discharge the powers and duties of his office, the Congress shall decide the issue. For that purpose, the Congress shall convene, if it is not in session, within forty-eight hours, in accordance with its rules and without need of call.

If the Congress, within ten days after receipt of the last written declaration, or, if not in session, within twelve days after it is required to assemble, determines by a twothirds vote of both Houses, voting separately, that the President is unable to discharge the powers and duties of his office, the Vice-President shall act as the President; otherwise, the President shall continue exercising the powers and duties of his office.

Requirement

- A written declaration from a majority of all the members of the cabinet that the President is unable to discharge his functions, submitted to the Senate President and House Speaker

Procedure

1. To decide the issue, the Congress shall convene. If it is not in session, it shall convene within 48 hours.
2. Congress determines by a ⅔ vote of both Houses, voting separately, that the President is unable to discharge the powers and duties of his office.

D Legislative veto or extension for suspension of writ of habeas corpus or declaration of martial law

Par. 1–2, Sec. 18, Art. VII. xxx Within forty-eight hours from the proclamation of martial law or the suspension of the privilege of the writ of habeas corpus, the President shall submit a report in person or in writing to the Congress. The Congress, voting jointly, by a vote of at least a majority of all its Members in regular or special session, may revoke such proclamation or suspension, which revocation shall not be set aside by the President. Upon the initiative of the President, the Congress may, in the same manner, extend such proclamation or suspension for a period to be determined by the Congress, if the invasion or rebellion shall persist and public safety requires it.

The Congress, if not in session, shall, within twenty-four hours following such proclamation or suspension, convene in accordance with its rules without any need of a call.

- The Congress may revoke the proclamation of martial law or suspension of the writ of habeas corpus. However, there is no such equivalent provision dealing with the revocation of the President's action to call out the armed forces.
- Sec. 18 is a shared power between the President and the Congress.

Padilla v. Congress, 2017

- After the President has initiated the proclamation or suspension, only the Congress can maintain the same based on its own evaluation of the situation on the ground, a power the President does not have.
- Sec. 18, Art. VII of the Constitution does not expressly require Congress to convene and deliberate publicly to decide whether Martial Law and suspension of the writ of habeas corpus. They are only required to come together and to vote jointly to revoke the proclamation/suspension. They may approve separately.
- No clear obligation to convene in a joint session as the provision on revocation under Art. VII, Sec. 18 did not even come into operation in light of resolutions separately adopted by 2 Houses of Congress

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Requirements

1. A proclamation of Martial Law and/or a Suspension of the Privilege of the Writ of Habeas Corpus
2. A report in person or in writing from the President

Procedure

1. President's proclamation or suspension is temporary, good for only 60 days
2. President must, within 48 hours of the proclamation or suspension, report his action in person or in writing to Congress
3. Both houses of Congress, if not in session must jointly convene within 24 hours of the proclamation or suspension for the purpose of reviewing its validity
4. Congress, voting jointly, may revoke of affirm the President's proclamation or suspension, allow their limited effectivity to lapse, or extend the same if Congress deems warranted

E. Presidential amnesties

Sec. 19, Art. VII. Except in cases of impeachment, or as otherwise provided in this Constitution, the President may grant reprieves, commutations and pardons, and remit fines and forfeitures, after conviction by final judgment.

He shall also have the power to grant amnesty with the concurrence of a majority of all the Members of the Congress.

F Concur in treaties

Sec. 21, Art. VII. No treaty or international agreement shall be valid and effective unless concurred in by at least two-thirds of all the Members of the Senate.

Sec. 25, Art. XVIII. After the expiration in 1991 of the Agreement between the Republic of the Philippines and the United States of America concerning Military Bases, foreign military bases, troops, or facilities shall not be allowed in the Philippines except under a treaty duly concurred in by the Senate and, when the Congress so requires, ratified by a majority of the votes cast by the people in a national referendum held for that purpose, and recognized as a treaty by the other contracting State.

Definition of a treaty

- Art. 2 of the Vienna Convention on the Law of Treaties defines a treaty as "an international agreement concluded between states in written form and governed by international law, whether embodied in a single instrument or in two or more related instruments and whatever its particular designation." (*Bayan Muna v. Romulo*, 2011)
- International agreements may be in the form of:
  1. Treaties that require legislative concurrence after executive ratification; or
  2. Executive agreements that are similar to treaties, except that they do not require legislative concurrence and are usually less formal and deal with a narrower range of subject matters.

TREATIES	EXECUTIVE AGREEMENTS
○ Formal contracts between the Philippines and other State-parties which require ratification with the approval of two-thirds of the Senate and which are in the nature of international agreements ○ Considered superior to executive agreements since they are products of acts of both the Executive and the Senate and treaties are regarded on ○ the same level as statutes If there is an irreconcilable conflict, a later law or treaty takes precedence over the prior	○ generally made to *implement a treaty already enforced* or to determine the details for the implementation of the treaty**.** ○ Becomes binding through executive action without the need of a vote by the Senate or by Congress ○ Involve arrangements on the implementation of existing policies, rules, laws, or agreements: (1) to adjust the details of a prior treaty; (2) pursuant to or upon confirmation by a legislative act; (3) in the exercise of the President's independent powers ○ Constitutional Commission members decided that

	"international agreements" as contemplated in Sec 21, Art 7 does not include executive agreements ○ Hinged on prior constitutional or legislative authorizations ○ An executive agreement may not be used to amend a treaty ○ If inconsistent with a law or treaty, executive agreements become ineffective

Pimentel v. Executive Secretary

- The President as the head of state is the sole organ and authority in external relations and sole representative with foreign relations.
- It is within the authority of the President to refuse to submit a treaty to the Senate or, having secured its consent for its ratification, refuse to ratify it. This decision is within the competence of the President alone, which cannot be encroached by the Supreme Court via writ of mandamus. The role of the Senate, however, is limited only to giving or withholding its consent, or concurrence, to the ratification.
- The signature does not signify the final consent of the State to the treaty. It is the ratification that binds the State. Under our Constitution, the power to ratify is vested in the President, subject to the concurrence of the Senate. The role of the Senate is limited only to giving or withholding its consent or concurrence to the ratification.
- Court cannot issue a writ of mandamus prayed for by the petitioners as it is beyond its jurisdiction to compel the executive branch of the government to transmit the signed text of Rome Statute to the Senate.

Saguisag v. Ochoa (2016)

- President may enter into an executive agreement on foreign military bases if :
    1) it is not the very instrument that allows the presence of foreign military bases; or
    2) merely aims to implement an existing law or treaty
- If the foreign military bases already "entered" the Philippines or first allowed their presence under a treaty, then the President may choose the form of the agreement (either an executive agreement or treaty)
- Since the VFA already allowed the entry of troops in the Philippines *(Lim v. Executive Secretary).* Also, the Mutual Defense Treaty is still valid since as late as 2009, SC continued to recognize its validity. President chose to enter into EDCA in the form of an executive agreement
- In order to determine the validity of an executive agreement, we determine if:
    1. Executive agreement must not go beyond the parameters, limitations, and standards set by the law or treaty
    2. Must not duly expand the international obligation mentioned or implied in the treaty
    3. Must be consistent with the Constitution and laws

The president as the chief executive architect of foreign policy:

- As the head of state, he is regarded as the sole organ and authority in external relations and is the country's sole representative with foreign nations.
- In the realm of treaty-making, the President has the sole authority to negotiate with other states.

Required concurrence by the senate:

- The law provides a limitation to the President's power by requiring the concurrence of two-thirds of all the members of the Senate for the validity of the treaty or international agreement entered into by him.
- However, the Senate's role is limited only to giving or withholding its consent, or concurrence, to the ratification.
- It is also within the discretion of the President, as the sole organ and authority in external relations, to refuse to submit a treaty to the Senate or, having secured its consent for ratification, refuse to ratify it. Neither can this Court encroach upon such authority of the President and compel him to submit a treaty to the Senate

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for its concurrence via a writ of mandamus. *(Pimentel v. Executive Secretary, 2005)*

- Neither the Senate, nor the HoR, may interfere in the field of treaty negotiations.

Treaty-making process: signing and ratifying

1. Negotiating - may be made by heads of State or their accredited representatives
2. Signature
   - A means of authenticating the instrument
   - A symbol of the good faith of the parties
   - Usually performed by the state's authorized representative in the diplomatic mission
3. Ratification
   - The formal act by which a state confirms and accepts the provisions of a treaty concluded by its representative
   - Generally held to be an executive act, undertaken by the head of the state or of the government
   - The President ratifies a treaty. The Senate merely concurs in its ratification. *(Pimentel v. Executive Secretary, 2005)*

E.O. 459 provides the guidelines in the negotiation of international agreements and its ratification

- Mandates that after the treaty has been signed by the PH representative, the same shall be transmitted to the DFA, who shall then prepare the ratification papers and forward the signed copy of the treaty to the President for ratification
- After ratification by the President, the DFA shall submit the same to the Senate for concurrence
- Upon receipt of Senate concurrence, the DFA shall comply with the provisions of the treaty to render it effective

In contrast with Sec. 25, Art. XVIII

- Sec. 25, Art. XVIII is a special provision that applies to treaties which involve the presence of foreign military bases, troops or facilities in the PH.
- Concurrence of the Senate is only one of the requisites; the provision requires that "foreign military bases, troops, or facilities" may be allowed in the PH only by:
  - 0 Virtue of a treaty duly concurred in by the Senate;
  - ○ Ratified by a majority of the votes cast in a national referendum held for that purpose if so required by Congress; and
  - ○ Recognized as such by the other contracting state.
- Similarity: (1) both provisions are couched in the negative, and thus are deemed prohibitory in mandate and character; ○ Sec. 21 opens with the clause "No treaty..."
  - 0 Sec. 25 contains the phrase "shall not be allowed." and (2) the concurrence of the Senate is indispensable to render the treaty of international agreement valid and effective.

The status of forces agreements

- The rule in international law is that a foreign armed forces allowed to enter one's territory is immune from local jurisdiction, except to the extent agreed upon.
- General principle: the receiving State can exercise jurisdiction over the forces of the sending State only to the extent agreed upon by the parties. Nothing in the Constitution prohibits agreements recognizing immunity from jurisdiction or some aspects of jurisdiction, in relation to long-recognized subjects of such immunity like Heads of State, diplomats, and other members of the armed forces contingents of a foreign State allowed to enter another State's territory.

Wilson v. Ermita (2016)

- Under the 1987 Constitution, international law can become part of the sphere of domestic law either by transformation or incorporation.
- The Transformation Method requires that an international law be transformed into a domestic law through a constitutional mechanism such as local legislation.
- The Incorporation Method applies when by mere constitutional declaration, international law is deemed to have the force of domestic law.
- Treaties become part of the law of the land through transformation pursuant to Art 7, Sec 21 of the Constitution which provides that "[n]o treaty or

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international agreement shall be valid and effective unless concurred in by at least-two thirds of all the members of the Senate." Thus, treaties or conventional international law must go through a process prescribed by the Constitution for it to be transformed into municipal law that can be applied to domestic conflicts.

Pangilinan, et al. v Cayetano (2021)

- **Article 127 of the Rome Statute provides the mechanism how a state party may withdraw**
    - o Through written notification addressed to the Secretary-General of the United Nations. Withdrawal shall take effect one year after the receipt of the notification, unless the notification specifies a later date o A State shall not be discharged, by reason of its withdrawal, from the obligations arising from this Statute while it was a Party to the Statute - shall not affect any cooperation in connection with criminal investigations and proceedings prior to the date of withdrawal
- **While Senate concurrence is expressly required to make treaties valid and effective, no similar express mechanism concerning withdrawal from treaties is provided in the Constitution**
    - o No constitutional or statutory provision grants the president the power to terminate treaties
    - o President's withdrawal was in accordance with the mechanism in the treaty
- A win for Duterte; gave the President what he wanted—opting out of the Rome Statute o Media's focus: Philippines still has to cooperate with the ICC
    - o But, the Supreme Court did not rule that the Philippines was bound to cooperate with the ICC--found on the Rome Statute itself (Article 127: Withdrawal) -- withdrawal should not discharge a previous party from obligations
- Less a constitutional/international law case; more a legal method case o The SC dismissed the case on technicalities
- The Senators-petitioners did not have standing; and ● The case had become moot

Sources of International Law (Article 38(1) of the Statute of the International Court of Justice (ICJ):

1. international conventions, whether general or particular, establishing rules expressly recognized by the contesting states;
2. international custom, as evidence of a general practice accepted as law;
3. the general principles of law recognized by civilized nations; and
4. subject to the provisions of Article 59, judicial decisions and the teachings of the most highly qualified publicists of the various nations, as subsidiary means for the determination of rules of law.

G. Declaration of existence of war

> **Sec. 23(1), Art. VI.** The Congress, by a vote of two-thirds of both Houses in joint session assembled, voting separately, shall have the sole power to declare the existence of a state of war. xxx

H. Delegation of emergency powers

> **Sec. 23(2), Art. VI.** In times of war or other national emergency, the Congress may, by law, authorize the President, for a limited period and subject to such restrictions as it may prescribe, to exercise powers necessary and proper to carry out a declared national policy. Unless sooner withdrawn by resolution of the Congress, such powers shall cease upon the next adjournment thereof.

- Delegation is made only through law; but withdrawal can be done through a resolution.
- The provision delegates legislative powers to the President under certain circumstances.
- The delegation now is not as restricted as it was under the 1935 Constitution. The older Constitution merely delegated the power "to promulgate rules and regulations to carry out a declared national policy." Whereas, the 1987 Constitution delegates legislative power, and not merely rule-making powers.

Restrictions on the delegated power

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1. The power is temporary and the delegation automatically ends when Congress adjourns or when it is sooner withdrawn by Congress. ● Withdrawal is done by resolution
   ● Resolution does not require President's approval
2. The Congress may add restrictions on the powers — the Constitution has left Congress with broad discretion on the nature or extent of these restrictions

I. Utilization of natural resources

Par. 3, Sec. 2, Art. XII. xxx The Congress may, by law, allow small-scale utilization of natural resources by Filipino citizens, as well as cooperative fish farming, with priority to subsistence fishermen and fishworkers in rivers, lakes, bays, and lagoons. xxx

J. Amendment of the Constitution

(See: Discussion on Amendments and Revision)

K. Power of Impeachment

Sec. 3, Art. XI.

(1) The House of Representatives shall have the exclusive power to initiate all cases of impeachment.

(2) A verified complaint for impeachment may be filed by any Member of the House of Representatives or by any citizen upon a resolution of endorsement by any Member thereof, which shall be included in the Order of Business within ten session days, and referred to the proper Committee within three session days thereafter. The Committee, after hearing, and by a majority vote of all its Members, shall submit its report to the House within sixty session days from such referral, together with the corresponding resolution. The resolution shall be calendared for consideration by the House within ten session days from receipt thereof.

(3) A vote of at least one-third of all the Members of the House shall be necessary either to a<rm a favorable resolution with the Articles of Impeachment of the Committee, or override its contrary resolution. The vote of each Member shall be recorded.

(4) In case the verified complaint or resolution of impeachment is filed by at least onethird of all the Members of the House, the same shall constitute the Articles of Impeachment, and trial by the Senate shall forthwith proceed.

(5) No impeachment proceedings shall be initiated against the same official more than once within a period of one year.

(6) The Senate shall have the sole power to try and decide all cases of impeachment.
When sitting for that purpose, the Senators shall be on oath or affirmation. When the President of the Philippines is on trial, the Chief Justice of the Supreme Court shall preside, but shall not vote. No person shall be convicted without the concurrence of two-thirds of all the Members of the Senate.

(7) Judgment in cases of impeachment shall not extend further than removal from office and disqualification to hold any o<ce under the Republic of the Philippines, but the party convicted shall nevertheless be liable and subject to prosecution, trial, and punishment according to law.

(8) The Congress shall promulgate its rules on impeachment to effectively carry out the purpose of this section.

Impeachable officials, according to Sec. 2, Art. XI:

1. President
2. Vice-President
3. Members of the SC
4. Members of the Constitutional Commissions
5. Ombudsman

Grounds for impeachment, according to Sec. 2, Art. XI:

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1. Culpable violation of the Constitution
2. Treason
3. Bribery
4. Graft and corruption
5. Other high crimes
6. Betrayal of public trust

Q: What is the effect of a judgment in cases of impeachment?
A: A judgment in cases of impeachment cannot extend further than removal from office and disqualification to hold office.
Effects of judgment of impeachment is only removal from office and disqualification from holding any public office. Thus, separate proceedings are needed to determine an impeached public officer's civil, criminal or administrative liabilities. The Supreme Court held that an impeached public officer may be considered involuntarily retired from service and entitled to retirement benefits. *(In re: Ma. Cristina Roco Corona)*

Q: When does the one year ban on impeachment proceedings begin?
A: When the impeachment proceeding is initiated, meaning when a complaint is filed and referred to the proper committee. The referral is the first action the House takes on a complaint because it is voted upon by the House in plenary session. *(Gutierrez v. HoR Committee on Justice, 2011)*

Q: Can there be multiple complaints within the span of a year?
A: Yes. The one year ban exists for proceedings and not complaints. The limitation created by the constitution is on time and not on the number of complaints. The ban was placed to allow the concerned official to defend himself in only one proceeding and to allow Congress to focus on legislation. (Gutierrez v. HoR Committee on Justice, 2011)

Q: Must an impeachment complaint be sufficient in form and substance?
A: Not necessarily. All the Constitution requires is that there be a hearing at the Committee level. The House determines its own rules on impeachment and what constitutes an impeachable offense, and absent a showing of grave abuse of discretion, the Court cannot intervene. (Gutierrez v. HoR Committee on Justice, 2011)

Q: Can the Court determine whether the rules on impeachment were followed by the Senate? A: No. The Court is confined to preserving the system of checks and balances; it cannot enforce the Senate's impeachment rules. (Corona v. Senate, 2012)
Corona and Francisco rulings distinguished: In Francisco, the Court ruled that the question on the validity of the impeachment of Chief Justice Davide was justiciable because the issues raised concerned the constitutionality of the rules adopted to guide the impeachment process. The same test was applied in Gutierrez, where the Court held that under its expanded review powers, it could take cognizance of a case questioning the validity of the rules followed in the impeachment of Ombudsman Meceditas Gutierrez. In Corona, however, the Court refused to pass judgment on the question of adherence to the rules of impeachment themselves, ruling that the issue raised by then Chief Justice Corona was a political question best left to the Senate to decide.

Q: Does the Constitution require publication of rules on impeachment?
A: No. It merely requires promulgation. Promulgation should be understood in its general sense, i.e. to make something known. Absent any clear statutory standards, the House is free to determine its own rules on promulgation. (Gutierrez v. HoR Committee on Justice, 2011)

Re: Ma Cristina Roco Corona (2021)

- Sans the judicial conviction, the impeached official shall only be removed from office and perpetually disqualified. Without proper determination of or even a basis for any recoverable liability under the law due to causes beyond his control (his death), CJ Corona may be considered involuntarily retired from public service.
- Since a removal by impeachment does not explicitly provide for forfeiture as a consequence thereof, as opposed to a criminal conviction carrying the penalty of perpetual or absolute disqualification, an impeached official, like former Chief Justice Corona, cannot be deprived of his retirement benefits on the sole ground of his removal. Such forfeiture could have been imposed upon criminal conviction which, however, was pre-empted by his death.

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B. Executive (*see* Article VII of the 1987 Constitution)

President

a. Qualifications, Election, Term and Oath

Section 2. No person may be elected President unless he is a natural-born citizen of the Philippines, a registered voter, able to read and write, at least forty years of age on the day of the election, and a resident of the Philippines for at least ten years immediately preceding such election.

Section 4. The President and the Vice-President shall be elected by direct vote of the people for a term of six years which shall begin at noon on the thirtieth day of June next following the day of the election and shall end at noon of the same date six years thereafter. The President shall not be eligible for any reelection. No person who has succeeded as President and has served as such for more than four years shall be qualified for election to the same office at any time.

No Vice-President shall serve for more than two consecutive terms. Voluntary renunciation of the office for any length of time shall not be considered as an interruption in the continuity of the service for the full term for which he was elected.

Unless otherwise provided by law, the regular election for President and Vice-President shall be held on the second Monday of May.

The returns of every election for President and Vice-President, duly certified by the board of canvassers of each province or city, shall be transmitted to the Congress, directed to the President of the Senate. Upon receipt of the certificates of canvass, the President of the Senate shall, not later than thirty days after the day of the election, open all certificates in the presence of the Senate and the House of Representatives in joint public session, and the Congress, upon determination of the authenticity and due execution thereof in the manner provided by law, canvass the votes.

The person having the highest number of votes shall be proclaimed elected, but in case two or more shall have an equal and highest number of votes, one of them shall forthwith be chosen by the vote of a majority of all the Members of both Houses of the Congress, voting separately.

The Congress shall promulgate its rules for the canvassing of the certificates.

The Supreme Court, sitting en banc, shall be the sole judge of all contests relating to the election, returns, and qualifications of the President or Vice- President, and may promulgate its rules for the purpose.

Section 5. Before they enter on the execution of their office, the President, the VicePresident, or the Acting President shall take the following oath or affirmation:

"I do solemnly swear (or affirm) that I will faithfully and conscientiously fulfill my duties as President (or Vice-President or Acting President) of the Philippines, preserve and defend its Constitution, execute its laws, do justice to every man, and consecrate myself to the service of the Nation. So help me God." (In case of affirmation, last sentence will be omitted.)

Qualifications (Section 2)

1. Natural-born citizen;
2. Registered voter;
3. Able to read and write;
4. Forty years, on election day;
5. Resident of the Philippines for at least 10 years before election

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Pamatong v. Duterte (2019)

- **General Rule:** A petition for *quo warranto* is filed by the Government against an individual.
- **Exception:** It may be filed by an individual, but one who claims to be entitled to a public office or position usurped or unlawfully held or exercised by another in his own name.
- As regards the period of filing, a petition for *quo warranto* must be filed within 1 year after the right to hold office arose.
  - **Exception:** if filed by the Government; imprescriptible (*Republic v. Sereno*)

○ [Notes] If an individual is filing a petition for *quo warranto*, he is claiming that he has a right to the position. This is different from filing a petition to deny due course; anyone can do that.

Election; Term (Section 4)

- Elections are held on the 2nd Monday of May, unless otherwise provided by law.
- The term of the President is six years without any reelection. A person who has succeeded as President and served for more than 4 years cannot run for the *same* office again.

Pormento v. Estrada (2010)

- Issue: Whether a former President who "resigned" can run as President.
- When Erap sought the presidency again in 2010, Pormento opposed his candidacy, invoking Article VII, Section 4 which states that "The President shall not be eligible for any reelection."
  - ○ Nonetheless, Erap was able to participate in the election, garnering the 2nd highest votes.
- Moot – Since the issue as to the proper interpretation of the phrase "any reelection" is premised on a candidate's second election as President, any resolution thereof is now hypothetical and speculative, given that Erap was not elected President again.

○ [Notes] *COMELEC*: The prohibition in Section 4 only applies to a sitting President. As Erap was "ousted," he was not a sitting President and so the prohibition does not apply to him. Being moot, the case of *Pormento* did not rule on COMELEC's ratio.

Pamatong v. Duterte (2018)

- Petitioner filed a quo warranto against President Duterte.
- Quo warranto available to individual who claims to have a lawful right to the disputed office
- Quo warranto suit must be filed within 1 year after the right to hold office arose
  - ○ Exception: quo warranto suit brought by the government in Republic v. Sereno; Does not apply to private individuals

b. Privileges and Salary

Section 6. The President shall have an official residence. The salaries of the President and Vice-President shall be determined by law and shall not be decreased during their tenure. No increase in said compensation shall take effect until after the expiration of the term of the incumbent during which such increase was approved. They shall not receive during their tenure any other emolument from the Government or any other source.

Privileges	Art. VII, Sec. 6 ● Official Residence
Salary	Art. VII, Sec. 6 (Same for Pres and VP) ● Salaries determined by law ● Not decreased during tenure ● No increase until after expiration of term of incumbent when increase was approved ● Shall not receive any other emolument from Gov't or any other source

Section 2, RA 1379. Whenever any public officer or employee has acquired during his incumbency an amount of property which is manifestly out of proportion to his salary as such public officer or employee and to his other lawful income and the

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income from legitimately acquired property, said property shall be presumed *prima facie* to have been unlawfully acquired.

Republic v. Sandiganbayan (2003)

- The President is prohibited from receiving any other emolument from the Government or any other source. The discrepancy between the lawful salary of the President (Marcos) and IMelda, vs. the Swiss Deposit Accounts led the Court to conclude that these are ill-gotten wealth subject to forfeiture.
- Prima facie presumption that a property or wealth is unlawfully acquired and is subject to forfeiture if manifestly disproportionate to the official salary and other lawful income of the public officer

Marcos, Jr. v. Republic of the Philippines (2014)

- Prima facie presumption of ill-gotten wealth:
    1. Offender is a public employee
    2. Acquired a considerable amount of money during incumbency
    3. Said amount is manifestly out of proportion to his salary as a public officer
- The Court held that RP's success in obtaining summary judgment over the Swiss accounts does not mean it is precluded from seeking partial summary judgment over a different subject matter (Arelma accounts) covered by the same petition for forfeiture. *Republic has the right to a speedy disposition of this case* at it is apparent that Marcoses have been deliberately resorting to ways to delay the resolution
- Forfeiture proceedings are in rem or quasi in rem
    - Jurisdiction over the res is acquired either by seizure of the property or as a result of legal proceedings; the property, though at all times within the potential power of the Court, may not be in the actual custody of the court

c. Succession

Vacancy at the Beginning of the Term

Section 7. The President-elect and the Vice-President-elect shall assume office at the beginning of their terms.

If the President-elect fails to qualify, the Vice-President-elect shall act as President until the President-elect shall have qualified.

If a President shall not have been chosen, the Vice-President-elect shall act as President until a President shall have been chosen and qualified.

If at the beginning of the term of the President, the President-elect shall have died or shall have become permanently disabled, the Vice-President-elect shall become President.

Where no President and Vice-President shall have been chosen or shall have qualified, or where both shall have died or become permanently disabled, the President of the Senate or, in case of his inability, the Speaker of the House of Representatives shall act as President until a President or a Vice-President shall have been chosen and qualified.

The Congress shall, by law, provide for the manner in which one who is to act as President shall be selected until a President or a Vice-President shall have qualified, in case of death, permanent disability, or inability of the officials mentioned in the next preceding paragraph.

Vacancy During the Term

Section 8. In case of death, permanent disability, removal from office, or resignation of the President, the Vice-President shall become the President to serve the unexpired term. In case of death, permanent disability, removal from office, or resignation of both the President and Vice-President, the President of the Senate or,

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in case of his inability, the Speaker of the House of Representatives, shall then act as President until the President or Vice-President shall have been elected and qualified.

The Congress shall, by law, provide who shall serve as President in case of death, permanent disability, or resignation of the Acting President. He shall serve until the President or the Vice-President shall have been elected and qualified, and be subject to the same restrictions of powers and disqualifications as the Acting President.

Section 10. The Congress shall, at ten o'clock in the morning of the third day after the vacancy in the offices of the President and Vice-President occurs, convene in accordance with its rules without need of a call and within seven days enact a law calling for a special election to elect a President and a Vice-President to be held not earlier than forty-five days nor later than sixty days from the time of such call. The bill calling such special election shall be deemed certified under paragraph 2, Section 26, Article VI of this Constitution and shall become law upon its approval on third reading by the Congress. Appropriations for the special election shall be charged against any current appropriations and shall be exempt from the requirements of paragraph 4, Section 25, Article VI of this Constitution. The convening of the Congress cannot be suspended nor the special election postponed. No special election shall be called if the vacancy occurs within eighteen months before the date of the next presidential election.

Temporary Disability

Section 11. Whenever the President transmits to the President of the Senate and the Speaker of the House of Representatives his written declaration that he is unable to discharge the powers and duties of his office, and until he transmits to them a written declaration to the contrary, such powers and duties shall be discharged by the Vice President as Acting President.

Whenever a majority of all the Members of the Cabinet transmit to the President of the Senate and to the Speaker of the House of Representatives their written declaration that the President is unable to discharge the powers and duties of his office, the Vice-President shall immediately assume the powers and duties of the office as Acting President.

Whenever a majority of all the Members of the Cabinet transmit to the President of the Senate and to the Speaker of the House of Representatives their written declaration that the President is unable to discharge the powers and duties of his office, the Vice-President shall immediately assume the powers and duties of the office as Acting President.

Thereafter, when the President transmits to the President of the Senate and to the Speaker of the House of Representatives his written declaration that no inability exists, he shall reassume the powers and duties of his office. Meanwhile, should a majority of all the Members of the Cabinet transmit within five days to the President of the Senate and to the Speaker of the House of Representatives their written declaration that the President is unable to discharge the powers and duties of his office, the Congress shall decide the issue. For that purpose, the Congress shall convene, if it is not in session, within forty-eight hours, in accordance with its rules and without need of call.

If the Congress, within ten days after receipt of the last written declaration, or, if not in session, within twelve days after it is required to assemble, determines by a twothirds vote of both Houses, voting separately, that the President is unable to discharge the powers and duties of his office, the Vice-President shall act as the President; otherwise, the President shall continue exercising the powers and duties of his office.

Addition

Section 12. In case of serious illness of the President, the public shall be informed of the state of his health. The Members of the Cabinet in charge of national security and foreign relations and the Chief of Staff of the Armed

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Forces of the Philippines, shall not be denied access to the President during such illness.

Vacancy At Beginning of Term (Sec 7. Art VII)

Type of Vacancy	**Succession**
President-elect not qualified	VP-elect as Acting President until President-elect shall have qualified
President not chosen	VP-elect as Acting President until a President have been chosen and qualified
President-elect 1. Death 2. Permanent disability	VP-elect as President
President and VP 1. Not chosen 2. Not qualified 3. Death 4. Permanent disability	Acting President until a President or VP have been chosen and qualified (In order) 1. Senate President 2. Speaker of the House Congress shall, by law, provided for the manner in which one to act as President

Vacancy During Term

President (Sec. 8, Art. VII) 1. Death 2. Permanent disability 3. Removal from office 4. Resignation	VP as President (for the unexpired term)
Acting President (Sec. 8 (2), Art. VII) 1. Death 2. Permanent disability 3. Resignation	Congress shall provide who shall serve as President (who will serve until Pres or VP shall have been elected and qualified)
Vice President (Sec. 9, Art. VII)	1. President nominates from Congress 2. Confirmation by majority vote of Congress, voting Separately
President and VP (Sec. 10, Art. VII) 1. Death 2. Permanent disability 3. Removal from Office 4. Resignation	Congress (10am of 3rd day after vacancy) will convene and within 7 days, enact law calling for special election to elect Pres and VP (within 45 to 60 days from call) ● Bill deemed certified as urgent and become law upon approval on its 3rd reading by Congress ● Appropriations charged against current appropriations ● Convening of Congress cannot be suspended nor postponed Exception: No special election shall be called if vacancy occurs within 18 months before the next presidential

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	election

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Temporary Disability (Sec. 11, Art. VII)

Pres unable to discharge powers and duties (written declaration to Senate Pres. And House Speaker)	VP as acting Pres until written declaration of Pres to Senate Pres and House Speaker of ability to discharge powers and duties again
Pres unable to discharge powers and duties (written declaration of majority of Members of the Cabinet to Senate Pres. And House Speaker)	VP as Acting Pres until written declaration of Pres to Senate Pres and House Speaker that no inability exists, then Pres reassumes the powers and duties of his office
Pres unable to discharge powers and duties (written declaration of majority of Members of Cabinet to Senate Pres and House Speaker within 5 days of President's resumption)	Congress shall decide the issue and to convene within 48 hours 1. W/in 10 days after receipt of last written declaration, or if not in session, w/in 12 days after required to assemble, 2/3 of Congress, voting separately, determine that the Pres is unable to discharge powers and duties of office - VP as Acting President 2. Otherwise, President continue to exercise powers

Cordon Sanitaire

Art. VII, Sec. 12. Public shall be informed of President's state in case of serious illness; the ff shall not be denied access to Pres. during such illness:

1. Member of Cabinet in charge of national security and foreign relations
2. Chief of Staff of AFP

Q: Does the Senate President and the Speaker of the House ever succeed as President?

A: No – The Senate President and the Speaker of the House can only assume office as Acting President.

Estrada v. Arroyo (2001)

- EDSA I is different from EDSA II, such that the latter is not a political question.
    - 0 EDSA I: People's Power Revolution; extra-constitutional; legitimacy of new government is not subject to judicial review.
    - ○ EDSA II: People's Power of Freedom of Speech and Assembly; intraconstitutional; resignation and succession are subject to judicial review.
- Based on totality of evidence, Erap's acts before, during and after January 2001 were held to have indicated that he resigned as President.
    - 0 The elements of resignation are: (1) intent to resign and (2) acts of relinquishment.
    - ○ The diary of Executive Secretary Angara established intent; acts of relinquishment included acknowledging Arroyo's oath-taking and leaving the Palace.
- While Erap furnished Congress a letter, stating that he was *temporarily* unable to be President, Congress recognized Arroyo as President, with the House passing Resolutions expressing support and with Senate confirming Guingona's appointment as Vice-President.
    - 0 Congress has the ultimate authority under the Constitution to determine whether the President is incapable of performing his functions. (*see* Article VII, Section 11)
    - ○ [Notes] Arroyo is *de jure* President. If Erap's inability is temporary, then Arroyo would only be acting in the capacity of President.

De Leon v. Duterte (2020)

- A petition for *mandamus* and a freedom of information were filed to clarify the status of President Duterte's health and to compel disclosure of his health records; invoking people's right to information (Article III, Section 7) and right to be informed of the President's state of health (Article VII, Section 12).
- For a *mandamus* to lie, there should be a ministerial duty and a legal right.

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- 0 The Office of the President has the prerogative to choose the means of releasing the information to the public.

- [Notes: from Gatmaytan, The President's Health:]
  - 0 It is a ministerial duty on the part of the Office of the President to make the status of the President known to the public. What is discretionary is the manner in which it is to be released
  - ○ The Court ignored the discussion in the Records that referred to a right of the people to know the state of the President's health.
  - ○ The people have a right to be informed of the President's health. At this point, anything pertaining to his health will be surmises and conjectures, hence why the people have to be informed why he is acting a certain way.
  - ○ This decision prevents us from discovering the state of the President's health, because it will all depend on whether the Office of the President will release information

d. Removal (*see* discussion on impeachment)

e. Prohibitions

- Prohibited Acts during tenure
  - 0 Hold any other office or employment (unless otherwise is stated in the Constitution)
  - ○ Practice any other profession (directly / indirectly)
  - ○ Participate in any business (directly / indirectly)
  - ○ Financially interested in any contract / franchise / special privilege granted by Government or any subdivision, agency, or instrumentality (including GOCCs or their subsidiaries)
  - ○ Appointment of spouse and relatives by consanguinity or affinity within 4th civil degree of President to the / as ff:
    1. Members of the Constitutional Commissions
    2. Office of the Ombudsman
    3. Secretaries, Undersecretaries, Chairmen, or heads of bureaus or offices (incl. GOCCs and subsidiaries)

f. Exceptions to Prohibition of Holding Another Office

Section 13. The President, Vice-President, the Members of the Cabinet, and their deputies or assistants shall not, unless otherwise provided in this Constitution, hold any other office or employment during their tenure. They shall not, during said tenure, directly or indirectly, practice any other profession, participate in any business, or be financially interested in any contract with, or in any franchise, or special privilege granted by the Government or any subdivision, agency, or instrumentality thereof, including government-owned or controlled corporations or their subsidiaries. They shall strictly avoid conflict of interest in the conduct of their office.

The spouse and relatives by consanguinity or affinity within the fourth civil degree of the President shall not, during his tenure, be appointed as Members of the Constitutional Commissions, or the Office of the Ombudsman, or as Secretaries, Undersecretaries, chairmen or heads of bureaus or offices, including government-owned or controlled corporations and their subsidiaries.

- Section 13 must be read with Article IX-B, Section 7, Paragraph 2 which provides that "Unless otherwise allowed by law or by the primary functions of his position, no appointive official shall hold any other office or employment in the Government or any subdivision, agency or instrumentality thereof, including government-owned or -controlled corporations or their subsidiaries."
  - 0 → All such appointive officials are allowed to hold another office or employment in the Government during their tenure, when such is allowed by *law* or by the primary functions of their position.
  - ○ → However, Members of the Cabinet, their deputies and assistants may do so only when expressly authorized by the *Constitution* itself.
- The phrase "the Members of the Cabinet, and their deputies or assistants" refers to the heads of the various executive departments, their undersecretaries and assistant secretaries, and not to other public officials and employees accorded the rank of secretary, undersecretary or assistant secretary. (*Civil Liberties Union v. Executive Secretary*)
- This prohibition is to be understood as to apply to all appointments, whether of permanent or temporary nature.

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- The objective of Section 13 is to prevent the concentration of powers in the Executive.

1. President
    a. Can assume a Cabinet position under the doctrine of qualified political agency, wherein acts of the heads of departments are considered acts of the President (*DENR v. DENR Region 12 Employees, 2003*)
    b. Can hold *ex-officio* positions (e.g. Chairman of NEDA)

2. Vice-President
    a. May be appointed a Member of the Cabinet, without the confirmation of the CA (*see* Article VII, Section 3(2))
    b. To act as President without relinquishing the Vice-Presidency where the President shall not have been chosen or fails to qualify[6]
3. Members of the Cabinet
    a. The Secretary of Justice, as *ex-officio* member of the JBC (Article VIII, Section 8(1))

Q: What happens to officials who hold multiple offices in good faith? A: They may be considered *de facto* officials who discharged their duties and possessed an office under color of a known election and appointment, and are entitled to emoluments for services actually rendered.[7] However, this grant does not cover officials designated to positions to represent Members of the Cabinet who held such positions in an *ex-officio* capacity, because they are merely designates and the officials they are representing are not entitled to compensation in the first place.[8]

Ex-Officio Positions; Primary Functions, Defined

- *Ex-officio* means 'from office; by virtue of office'; denotes an 'act done in an official capacity, or as a consequence of office, and without any other appointment or authority than that conferred by the office.'
    0 Example: Secretary of Transportation and Communications as the *exofficio* Chairman of the Board of the Philippines Ports Authority
- With reference to *primary functions*, the additional functions must not only be closely related to, but must be required by the official's primary functions.
    0 Example: Secretaries of Finance and Budget as Members of the Monetary Board

Civil Liberties Union v. Executive Secretary (1991)

- (*see* discussion above)
- Section 7 has the qualifying phrase 'in the Government...,' while Section 13 does not.
    ○ → Section 13 is an absolute prohibition which covers both public and private office or employment.
- Note: The executive officials in Section 13 can exercise additional functions which are (1) *required* by their primary functions, (2) performed in an *ex-officio* capacity, (3) as provided by law, and (4) without receiving any additional compensation therefor.

Dela Cruz v. COA (2001)

- The payment of representation allowances and per diems of Members of the Cabinet as *ex-officio* members of the National Housing Authority Board of Directors and/or their respective alternates was disallowed.
- Since the Executive Department Secretaries, as *ex-officio* members of the NHA Board, are prohibited from receiving additional compensation, it follows that their alternates cannot likewise be entitled to receive such compensation. A contrary rule would give the *alternates* a better right than their *principals*.

[6] *Civil Liberties Union v. Executive Secretary* (1991); *see generally* Article VII, Section 7, Paragraphs 2 and 3.
[7] *Id.*
[8] *National Amnesty Commission v. Commission on Audit* (2004).

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National Amnesty Commission v. COA (2004)

- *Ex-officio* members of the National Amnesty Commission let their representatives attend initial NAC meetings, for which the latter were paid *honoraria*.
- The representatives are not entitled to something their own principals are prohibited from receiving.
- Appointment v. Designation
    - Appointment – selection by the proper authority of an individual who is to exercise the powers and functions of a given office
    - Designation – merely an imposition of additional duties upon a person already in public service by virtue of an earlier appointment
- Designation does not entail additional benefits or grant upon the person so designated since the legal basis of an employee's right to claim the salary is a duly issued appointment and not a mere designation.

Powers and Functions of the President

a. Executive Power

Section 1. The executive power shall be vested in the President of the Philippines.

- The President is 'head of State as well as head of Government,' so it is not accurate to state that *executive power* is the power to enforce laws, that is only *one* of the President's powers. The President exercises other powers that do not involve the execution of any provision of law, such as his power over the country's foreign relations.
- Whatever power inherent in the government that is neither legislative nor judicial has to be executive.[9]

Q: Can executive power be delegated? Doctrine of Qualified Political Agency A: Yes – Under the doctrine of qualified political agency, the acts of the various heads of the executive departments are presumed to be acts of the President. The exceptions are: (1) when the President is required by the Constitution or by law to act personally and (2) when the exigencies of the situation demand that he act personally. Examples: Commander-in-Chief powers, Sign FTAAs

- The different executive and administrative functions of the Chief Executive are performed by and through the executive departments. The acts of the Secretaries of such departments, performed and promulgated in the regular course of business, are presumptively the acts of the Chief executive, unless disapproved or reprobated by the Chief Executive.

Marcos v. Manglapus (1989)

- Issue: Whether, in the exercise of the powers granted by the Constitution, the President may prohibit the Marcoses from returning to the Philippines.
- **Residual Powers are unstated powers** possessed by the President which are 1) not enumerated in the Constitution, 2) implied with the grant of executive power, and 3) not possessed by the legislative and judiciary. It includes powers unrelated to the execution of provision of law.
- Here, in balancing the general welfare and the common good against the exercise of rights of certain individuals, the power involved is the President's *residual* power implicit in and correlative to the paramount duty to protect the general welfare of the people.
    - The basis of this power is the President's duty to defend and uphold the Constitution.
    - Article II, Section 4 ("defend the State"); Section 5 ("peace and order").
- Particularly, the power of the President to keep peace is not limited to times of emergency but extends to the day-to-day.
- *Pro hac vice:* The Court determined that there are factual bases for the President's decision not to allow the Marcoses to come home—the destabilization which would be caused by their return and which would wipe away the gains achieved during the past few years.

The Province of North Cotabato v. The Government of the Republic of the Philippines Peace Panel on Ancestral Domain (2008)

- The President's power to conduct peace negotiations is implicitly included in her powers as Chief Executive (general duty to promote peace) and as

[9] *Springer v. Government of the Philippine Islands* (1928).

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Commander-in-Chief (specific duty to prevent and suppress rebellion and lawless violence).

- However, the President may not unilaterally implement the solutions that she deems viable, but she may submit them as recommendations to Congress, which could act upon them pursuant to the procedure for amendments and revisions to the Constitution.

- Hence, she cannot guarantee to any third party that the required amendments to pursue reforms will eventually be put in place, whatever the method may be.

Banda v. Ermita (2010)

- The President has the power to reorganize the offices and agencies of the *executive* department in line with the President's constitutionally granted power of control[10] over executive offices and by virtue of previous delegation of the legislative power[11] to reorganize executive offices.
    - 0 *Reorganization* involves the reduction of personnel, consolidation of offices, and abolition thereof by reason of economy and redundancy of functions. *Alterations* include the lines of control, authority and responsibility among offices.[12]
- Specifically, the President is authorized:
    - 0 To abolish, merge or consolidate offices in the Office of the President Proper;
    - ○ To transfer functions or offices not only among the offices in the Office of the President Proper but also the rest of the Office of the President and the Executive Branch.
- Concomitant to this power, the President implicitly has the power to effect less radical changes to the Office of the President, including the modification of functions of such executive offices 'as the exigencies of the service may require.'
- **Limitations:**
    - 0 The power to reorganize pertains only to the Office of the President and the departments, offices and agencies of the Executive Branch and does not include the Judiciary, the Legislature, and the constitutionally created and mandated bodies;
    - ○ It must be subject to the condition that such reorganization is carried out in good faith.

Biraogo v. Philippine Truth Commission (2010)

- The delegated legislative power to reorganize (Section 31, Administrative Code) contemplates *modification* of an existing office, not *creation* of a public office.
- Neither is the creation of an office (like the PTC) justified by the President's power of control. The power of control[13] is entirely different from the power to create public offices.
    - 0 The former is inherent in the Executive, while the latter is either based on a valid delegated authority from Congress or on the President's duty to 'faithfully execute the laws.[14]'
- **The power to conduct investigations to aid the President in the faithful execution of laws is inherent in the powers of the President as the Chief Executive.** Also included in such powers is the power to create *ad hoc* committees.
    - 0 *Ad hoc* investigating bodies inquire into matters such as graft and corruption that will allow the President to be guided in the faithful execution of laws.
    - ○ Remember that the power to investigate is distinct from the power to adjudicate. In the case of *ad hoc* investigating bodies, they do not enjoy quasi-judicial powers, as they cannot adjudicate rights of persons.
- In any case, the PTC violates the equal protection clause, because it arbitrarily targets the previous administration of Arroyo.

[10] Article VII, Section 17. The President shall have control of all the executive departments, bureaus, and offices.

[11] Section 31, Administrative Code of 1987. *Continuing Authority of the President to Reorganize his Office.*

[12] *Canonizado v. Aguirre* (2000).

[13] *Definition*. Control is the power to alter, modify, nullify or set aside what a subordinate officer had done in the performance of his duties and to substitute the judgment of the former with that of the latter.

[14] Faithful-Execution Clause; *see* Article VII, Section 17.

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Taguiwalo v. Duque (2020)

- In a case where a petition for *mandamus* was filed to compel the Government to implement mass testing in order to protect the right to health, the Court explained that without a demonstration that an official in the Executive Branch failed to perform a mandatory, *nondiscretionary* duty, Courts have no authority to issue a writ of *mandamus*, 'no matter how dire the emergency.' *Mandamus* is not available to direct the exercise of discretion in a particular way.
- [Notes from dissent] Even if the duty is discretionary, the Court could still compel its fulfillment since DOH's obligations are set by law. The right to health and for the State's duty to provide for health are self-executory.

Nepomuceno v. Duterte (2021)

- As in the case of *Taguiwalo*, the herein petition for *mandamus* failed to allege the existence of a *ministerial* duty which clearly and completely compels the Government to conduct trials for and procure vaccines for COVID-19.

b. Control of Executive Departments

Section 17. The President shall have control of all the executive departments, bureaus, and offices. He shall ensure that the laws be faithfully executed.

- *Power of control*, as exercised by only one Chief Executive over the Executive Branch of Government, extends to all employees therein 'from Cabinet Secretary to the lowliest clerk.' Such power is self-executing, and the exercise thereof may not be limited, much less withdrawn, by the Legislature.
- Control is the power to alter, modify, nullify or set aside what a subordinate officer had done in the performance of his duties and to substitute the judgment of the former with that of the latter.
    - "[t]he President can, by virtue of his power of control, review, modify, alter or nullify any action, or decision, of his subordinate in the executive departments, bureaus, or offices under him. He can exercise this power motu propio without the need of any appeal from any party."

Blaquera v. Alcala (1998)

- When the President issued AO 29—limiting the amount of productivity incentive benefits, enjoining heads of government agencies from granting incentive benefits without prior approval from him, and directing the refund of the excess over the prescribed amount, the President was just exercising his power of control over executive departments.
- In the view of the President, respondents made a mistake in granting incentives without his prior approval, and this had to be corrected.
- Additionally, the function to fix the amount of the incentive benefits belongs to the President, as implicitly provided in EO 292: 'The President... is authorized to incur whatever necessary expenses involved in the honorary recognition of subordinate officers and employees...'

Hutchison Ports v. SBMA (2000)

- The Office of the President has authority to set aside the award made by SBMA in favor of HPPL for justifiable reasons, since the SBMA Board of Directors and officers are subject to the control and supervision of the Office of the President.
- As a chartered institution, the SBMA is always under the direct control of the Office of the President, particularly when the projects undertaken by the SBMA entail substantial amounts of money.[15] Such projects require the approval of the President.

NEA v. COA (2002)

- The power of control extends to all executive employees. **The power of control of the President also means that subordinate officers have an obligation to faithfully follow the orders and directives of the President.** The salary increases, therefore, were void and validly subjected to notices of disallowance.
- NEA accelerated the implementation of the salary increase provided for by law. As a GOCC is subject to the control of the President, NEA ought to have abided by the directives and orders of the President, which were in accordance with law.

[15] LOI 620. All contracts of national government offices, agencies, and instrumentalities, including government-owned or controlled corporations, involving two million pesos (P2,000,000.00) and above, awarded through public bidding or by negotiation, shall be subject to the approval of the President of the Philippines.

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Zabal v. Duterte (2019)

- The Court, in upholding President Duterte's order to temporarily close Boracay, stated that the President in doing so, did not intrude into the autonomy of the local governments.
- *Dissenting re* power of control and power of supervision
  - President Duterte exercised control over the local governments, rather than mere supervision.
  - The President shall exercise [only] general supervision over local governments (Article X, Section 4).
- *Power of control* is the power to lay down rules in the performance of an act.
- *Power of supervision* only necessitates that *existing* rules are observed; that officials are performing their duties within the bounds of law.
  - The President cannot arrogate unto itself an authority which has been statutorily granted to local governments under Section 2(l) of RA 10121: 'Recognize and strengthen the capacities of LGUs and communities in mitigating and preparing for, responding to, and recovering from the impact of disasters.' This is in line with the local autonomy granted to all territorial and political subdivisions (Article X, Section 2).

c. General Supervision over Local Governments/Autonomous Regions

Article X, Section 4. The President of the Philippines shall exercise general supervision over local governments. Provinces with respect to component cities and municipalities, and cities and municipalities with respect to component barangays shall ensure that the acts of their component units are within the scope of their prescribed powers and functions.

- The President does not exercise control over local officials. He is limited only to exercise general supervision over such local governments.

Supervision	Control
Authority to see that subordinate officers perform their duties, and to take such action as prescribed by law in case of non-fulfillment	Power to alter/modify/nullify/set aside what a subordinate officer has done in the performance of his duties and to substitute their judgment for that of his own
Power of mere oversight over an inferior body and does not include any restraining authority; no power to lay down such rules or discretion to modify or replace them; if not observed, compliance or redoing may be ordered only to conform to such rules	Power to lay down the rules in the performance or accomplishment of an act; if not followed, undoing or redoing of the act may be ordered

Pimentel v. Aguirre (2000)

- Supervision means overseeing or the power or authority of an officer to see that subordinate officers perform their duties. If the latter fail or neglect to fulfill them, the former may take such action or step as prescribed by law to make them perform their duties.
- He cannot interfere with local governments, so long as they act within the scope of their authority. Supervisory power, when contrasted with control, is the power of mere oversight over an inferior body; it does not include any restraining authority over such a body.
- Supervising officials merely see to it that the rules are followed, but they themselves do not lay down such rules, nor do they have the discretion to modify or replace them. If the rules are not observed, they may order the work done or redone, but only to conform to such rules. They may not prescribe their own manner of execution of the act. They have no discretion on this matter except to see to it that the rules are followed.

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- Requisites before the President may interfere with local fiscal matters
    a. Unmanaged public sector deficit
    b. Consultations with heads of Congress and leaders of various local leagues
    c. Recommendation of Secretaries of Finance, Budget and Management, and Interior and Local Gov't
    d. IRAs must not be reduced to lesser than 30% of collection of National Internal Revenue Taxes of 3rd Fiscal Qtr, preceding the current year

Administration	Power
• Delegation of administrative powers to political subdivisions in order to broaden the base of government power and make local governments more responsive and accountable, and ensure their fullest development as self-reliant communities • Relieves the central government of the burden of managing local affairs • President exercises general supervision over them only to ensure that local affairs are administered according to law	• Abdication of political power in favor of LGUs declared to be autonomous • Autonomous govt is subject to minimum intervention from central authorities • Self-immolation – accountable not to the central authorities but to its constituency

- Currently, only administrative powers over local affairs are delegated to political subdivisions, to make governance more directly responsive and effective at the local levels. But the programs and policies at the local level must be integrated and coordinated towards a common goal. Thus, policysetting for the entire country still lies in the President and Congress. Municipal governments are still agents of the national gov't.

d. Power of Appointment

Art. VII. Sec. 15. Two months immediately before the next presidential elections and up to the end of his term, a President or Acting President shall not make appointments, except temporary appointments to executive positions when continued vacancies therein will prejudice public service or endanger public safety.

Art. VII. Sec. 16. The President shall nominate and, with the consent of the Commission on Appointments, appoint the heads of the executive departments, ambassadors, other public ministers and consuls, or officers of the armed forces from the rank of colonel or naval captain, and other officers whose appointments are vested in him in this Constitution. He shall also appoint all other officers of the Government whose appointments are not otherwise provided for by law, and those whom he may be authorized by law to appoint. The Congress may, by law, vest the appointment of other officers lower in rank in the President alone, in the courts, or in the heads of departments, agencies, commissions, or boards.

The President shall have the power to make appointments during the recess of the Congress, whether voluntary or compulsory, but such appointments shall be effective only until after disapproval by the Commission on Appointments or until the next adjournment of the Congress.

- Congress may prescribe the qualifications for particular positions in offices. However, it is still upon the President's prerogative to appoint among those who are qualified.
- Appointment Power is executive in nature. Congress cannot usurp the same.

SCOPE of President's Appointment Power:

1. Heads of the executive depts, ambassadors, other public ministers and consuls, officers of armed forces with rank of colonel and naval captain, and <u>other officers whose appointments are vested in him in the Constitution, such as:</u>
    a. Chairmen and members of COMELEC, COA and CSC
    b. Regular members of the Judicial Bar Council (JBC)

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2. All other officers of the Government whose appointments are not otherwise provided for by law
3. Those whom the President may be authorized by law to appoint. e.g. Chairman and members of the Commission on Human Rights.
4. Those officers lower in rank whose appointments Congress may by law vest in the President alone.

- Only the positions in the first group require the confirmation from the Commission on Appointments (CA)
- No need for CA Confirmation (those going through JBC process): Members of the Supreme Court and lower court judges, and the Ombudsmanand his deputies
- Congress may vest the appointment of other officers lower in rank in the President alone or in courts or heads of depts., agencies, boards or commission.
- Congress cannot require CA confirmation of appointment of other officers for offices created subsequent to the 1987 Constitution (e.g. NLRC Commissioners, Bangko Sentral Governor)
- Voluntary submission by the President to the CA for confirmation of an appointment which is not required to be confirmed does not give CA jurisdiction. The President cannot extend the scope of CA's power.

LIMITATION

1. **Appointment Ban**

- Art. VII. Sec. 15. 2 months immediately before the next Presidential Elections up to the end of his term, the President or Acting President shall not make appointments. → to prevent "midnight appointments"
- **EXCEPTIONS to Appointment Ban**
  - President or Acting President can make TEMPORARY APPOINTMENTS to fill Executive Positions if continued vacancies will (a) **prejudice public service** or (b) **endanger public safety.**
  - **Limited to Executive Department:** Appointments to the Judiciary are not covered by the appointment ban (*De Castro v. JBC*)
  - Appointments by an ACTING PRESIDENT shall remain effective UNLESS revoked by the elected President within 90 days from his assumption / reassumption of office.
  - **Applies only to the President:** Ban does not extend to appointments made by local executive officials

2. The President cannot appoint spouse and relatives by consanguinity and affinity within the 4th civil degree, during his tenure [Art. VII, Sec. 13 (2)]

PROCEDURE:

3. Appointments where CA confirmation is required

→ Nomination by President → Confirmation by CA → Appointment by President (Appointment Paper) →Transmittal by MRO →Receipt of Appointment Paper → Acceptance by Appointee (Oath of Office)

**The President may withdraw the nomination/appointment at any time before all four steps have been completed.

4. Appointments without CA confirmation required

→ appointment by President (Appointment Paper) →Transmittal by MRO →Receipt of Appointment Paper → Acceptance by Appointee (Oath of Office)

**The President can no longer withdraw the appointment once the appointee accepts.

Types of Appointment requiring Confirmation

1. **Regular** – If CA (Congress) is in session and
   a. Made by the President while Congress is in Session
   b. Takes effect only after confirmation by the CA
   c. Once approved, continues until end of the term
2. **Ad Interim** – during recess of Congress (because the CA shall meet only while congress is in session)
   a. Made by the President while Congress is NOT in session
   b. Takes effect immediately, BUT ceases to be valid (1) if disapproved by the CA or (2) upon the next adjournment of Congress [Sec. 16(2), Art. VII]
   c. Ad interim appointments are permanent appointments.

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- Ad interim appointments to the Constitutional Commissions (e.g. CPOMELEC) are permanent as these take effect immediately and can no longer be withdrawn by the President once the appointee has qualified into office. The fact that it is subject to the confirmation of the CA does not alter its permanent character [*Matibag v. Benipayo (2002)]*

Acting/Temporary Appointment – Can be withdrawn or revoked at the pleasure of the appointing power. The appointee does not enjoy security of tenure.

Temporary Designations – The President may designate an officer already in the government service or any other competent person to perform the functions of any office in the executive branch, appointment to which is vested inn him by law when:

1. The officer regularly appointed to the office is unable to perform his duties by reason of illness, absence or any other cause; or 2. There exists a vacancy

Note: In no case shall a temporary designation exceed 1 year [Sec. 17, Book III, Admin Code]

POWER OF REMOVAL

General Rule: Power to remove may be implied from the power to appoint Exceptions:

- The President cannot remove officials appointed by him where the Constitution prescribes certain methods for separation of such officers from public service (e.g. Members of ConstiComms who can be removed through impeachment or judges who are subject to the disciplinary authority of the Supreme Court
- Career Civil Service – members of the career civil service who are appointed by the President may be directly disciplined by him, but not removed without grounds
- Serve at the pleasure of the President – those whose continuity in office depends upon the pleasure of the president may be replaced at any time

Bermudez v. Torres (1999)

- Appointment calls for discretion on the part of the appointing authority. The power to appoint prosecutors is given to the President. The Secretary of Justice is under the control of the President. Hence the law must be read simply s allowing the SOJ to advice the President.
- When the Constitution or the law clothes the President with the power to appoint a subordinate officer, such conferment must be understood as necessarily carrying with it an ample discretion of whom to appoint.
- The recommendation of the Secretary of Justice and the appointment of the President are both acts of the Executive Department itself, and there is no sharing of power to speak of, the latter being deemed for all intents and purposes as being merely an extension of the personality of the President.

Sarmiento v. Mison (1987)

Grp #	Members	CoA Consent
1	- The heads of the executive departments - ambassadors, other public ministers and consuls - officers of the armed forces from the rank of colonel or naval captain, - and other officers whose appointments are vested in him in this Constitution (e.g. regular members of the JBC, Members of ConstiComms)	Must be appointed w/ consent
2	All other officers of the Government whose appointments are not otherwise provided for by law;	May be appointed w/o the consent
3	Those whom the President may be authorized by law to appoint;	
4	Officers lower in rank whose appointments the Congress may be law vest in the President alone.	

- Mison's appointment is not under the first group in Sec. 16 and needs no confirmation from the Commission on Appointments'. He is part of the third

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group because the president is authorized to make the appointment of the BOC commissioner by law.

- Only those appointments to positions expressly stated in the first group require the consent of the Commission on Appointments (see #1 of Sec. 16, Art. VII)
- The framers of the 1987 Constitution and the people adopting it, struck a "middle ground" by requiring the consent of the Commission on Appointments for the first group (#1) of appointments and leaving to the President, without such confirmation, the appointment of other officers (#2 & #3)
- The power to appoint is fundamentally executive or presidential in character. Limitations on or qualifications of such power should be strictly construed against them. Such limitations or qualifications must be clearly stated in order to be recognized.

Calderon v. Carale (1992)

- **Court held that Congress cannot expand the list of appointments needing confirmation** in addition to those mentioned in the first sentence of Section 16, Article 7 because it amends the constitution and the list is exclusive.
- To the extent that RA 6175 requires confirmation by the CoA of the appointments of respondent Chairman and Members of the National Labor Relations Commission, it is unconstitutional because:
    - It amends by legislation, the first sentence of Section 16, Article 7 by adding thereto appointments requiring confirmation by the CoA and
    - It amends by legislation the second sentence of Sec 16, Article 7 of the Constitution by imposing the confirmation of the CoA on appointments which are otherwise entrusted only with the President.

Manalo v. Sistoza (1999)

- **PNP officers (Section 6, Art. XVI) are not officers of the armed forces (Section 4, Art. XVI)** because they are under different provisions in the constitution. Thus, directors and chief superintendents of the PNP, such as the herein respondent police officers, do not fall under the first category of presidential appointees requiring the confirmation by the CoA.
- Congress cannot by law expand the Commission on Appointments' power of confirmation and amend the constitution by requiring confirmation of positions not in the first group of Section 16, Article 7 of the 1987 Constitution.

Soriano v. Lista (2003)

- The **Philippine Coast Guard is under the DOTC and no longer part of the Philippine Navy or the Armed Forces** of the Philippines, the promotions, and appointments of respondent officers of the PCG, or any PCG officer from the rank of captain and higher for that matter, do not require confirmation by the CoA.
- Only appointed officers from the rank of colonel or naval captain in the armed forces require confirmation by the CoA. Since the promotions and appointments of respondent officers are not covered by the provision of the Constitution, the same need not be confirmed by the CoA.

Pimentel v. Ermita (2005)

- **Congress, through a law, cannot impose on the President the obligation to appoint automatically the undersecretary as her temporary alter ego.**
- President may make appointments in "acting capacity" without seeking confirmation from the CA even when Congress is in session because under the Admin Code, the president may temporarily designate an officer already in government service or any other competent person to perform the functions of an office in the executive branch.
- Essence of appointment in acting capacity is its temporary nature; it is only intended to fill an office for a limited time until the appointment of a permanent appointee. In case of vacancy in an office occupied by an alter ego of the President, the President must necessarily appoint an alter ego of her choice as acting secretary before the permanent appointee of her choice could assume. The person may or may not be the permanent appointee, but practical reasons may make it expedient that the acting appointee will also be the permanent appointee.

Appointment in an Acting Cap.	**Ad Interim Appointment**
Effective upon acceptance	

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May be extended any time there is a vacancy	Extended only during a recess of Congress
Not submitted to the CoA	Submitted to the CoA for confirmation or rejection
Way of temporarily filing important offices (cannot exceed 1 year)	Are permanent

General v. Urro (2011)

- General contended that he was a appointed in a "regular" (permanent) capacity since R.A. 6975 does not allow "acting" appointments in the NAPOLCOM, and that his term has not ended yet, thereby making Urro's appointment invalid.
- The President's appointment powers include the power to make temporary appointments. He is allowed to do so unless it is specifically prohibited by the Constitution or if the temporary appointment is repugnant to the nature of the office involved.
- A person who accepts an appointment in an acting capacity, extended and received without any protest or reservation, and who acts by virtue of that appointment for a considerable time, cannot later on be heard to say that the appointment was really a permanent one so that he could not be removed except for cause.

Two (2) Classifications of Appointments 1.

Nature:

- Permanent appointee can be only removed from office for cause
- Temporary appointee can be removed even without hearing or cause; no security of tenure

2. *Manner in which it is made*:

- Regular appointment is made while congress is in session
- Ad interim appointment is issued during the recess of Congress

De Castro v. JBC (2010)

- **Prohibition on midnight appointments does not apply to the SC because it only applies to the executive department**. The nomination and screening process of the JBC would prevent midnight appointments, and it depoliticized judicial appointments. *In re Valenzuela* doctrine is now abandoned.
- The President must fill the vacancy in the Supreme Court within 90 days.

De Rama v. Court of Appeals (2001)

- Newly elected Mayor of Pagbilao, Quezon sought the recall of appointments of municipal employees who were allegedly "midnight" appointments of the former mayor. CSC denied petitioner's request.
- The prohibition on midnight appointments only applies to presidential appointments. **There is no law that prohibits local elective officials from making appointments during the last days of their tenure.**

Velicaria-Garafil v. Office of the President (2016)

- Pres. Arroyo made around 800 appointments within the period of the constitutional ban on appointment. None of the petitioners have shown that their appointment papers have been issued and released before the ban. The only reliable evidence of actual transmittal of the appointment paper from P. Arroyo were the dates of receipt of the Malacanang Records Office, which are dates all falling under the midnight appointment ban.
- Acceptance is indispensable to complete an appointment. Assuming office and taking the oath amount to acceptance of the appointment. An oath of office is a qualifying requirement for a public office, a prerequisite to the full investiture of the office.
- These 4 elements should always concur in making a **valid appointment and operate as a single process**, regardless of when the appointment is made: a. Appointing authority and evidence of the exercise of the authority;
  b. Transmittal of the appointment paper by the MRO and the evidence of it;
  c. A vacant position at the time of appointment;
  d. The receipt and acceptance of the appointment by the appointee.
- There is no valid appointment if the process even lacks one step
- Petitioners have failed to show compliance with all 4 elements of a valid appointment. They failed to prove with certainty that their appointment papers were transmitted before the ban took effect, in fact, even admitting that they took their oaths during the ban.

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Matibag v. Benipayo (2002)

- **Ad interim appointments** to the COMELEC do not violate the Constitutional prohibition on "temporary appointments" because said appointments are **permanent in nature, takes effect immediately and can no longer be withdrawn by the president once the appointee has qualified into office**
- An appointment or designation in a temporary or acting capacity can be withdrawn or revoked at the pleasure of the appointing power. A temporary or acting appointee does not enjoy any security of tenure. This is the kind of appointment that the Constitution prohibits the President from making to the three independent constitutional commissions, including the COMELEC.
- Renewal of by-passed ad interim appointments do not violate the prohibition on reappointments under S1(2), A9-C because reappointments presupposes previous confirmed appointments
  - The ad interim appointments and subsequent renewals of appointments of Benipayo, Borra and Tuason do not violate the prohibition on reappointments because there were no previous appointments that were confirmed by the Commission on Appointments. A reappointment presupposes a previous confirmed appointment.

Disapproved	By-passed
A disapproved appointment is a final and binding decision of the CA and is not anymore repealable. Therefore, the President cannot anymore renew a disapproved appointment.	A by-passed appointment is not considered an express disapproval and therefore, there is no final decision yet from the CA. Therefore, the President can still renew by-passed appointments.

Larin v. Executive Secretary (1997)

- President issued EO 32 which abolished some offices in the BIR, the office of Larin was one of the affected and he questioned his unlawful removal since he was a CESO and he was acquitted by the Supreme Court.
- Though appointed by the President, Larin enjoys security of tenure as a career service officer (CESO) and may not be removed unless for any of the causes enumerated by law (dishonesty, oppression, misconduct, conviction of a crime involving moral turpitude)
  - Unlike those officials co-terminus with the President, a career service officer may only be removed for cause and in accordance with due process

Article IX-D, Section 2. (2) The Chairman and the Commissioners shall be appointed by the President for a term of seven years without reappointment. Of those first appointed, the Chairman shall hold office for seven years, one Commissioner for five years, and the other Commissioner for three years, without reappointment. Appointment to any vacancy shall be only for the unexpired portion of the term of the predecessor. In no case shall any Member be appointed or designated in a temporary or acting capacity.

Funa v. COA Chair, Villar (2012)

- Promotion/Upgrading of appointments [from Commission to Chairman] in the COA is allowed and not considered a reappointment.
- *Dissecting* Section 2(2) o The Chairman shall be appointed by the President for a term of seven years, and if he has served the full term, then he can no longer be reappointed. This also applies to a Commissioner.
  - o The bar on reappointment likewise applied to the Chairman and Commissioners first appointed under the 1987 Constitution. o There is nothing in the Section that explicitly precludes a promotional appointment from Commissioner to Chairman, provided it is made under the following conditions:
    - i. That the appointment to any vacancy shall be only for the unexpired portion of the term of the predecessor;
    - ii. That the promotional appointment must conform to the staggering of terms such that the aggregate of service as Commissioner and as Chairman must not exceed 7 years.
  - o The bar lies in reappointment, which in the strict legal sense is different from promotional appointment.
    - i. *Reappointment* means a second appointment to one and the same office.

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ii. *Promotional appointment*, while entailing a second appointment, involves a different office.

- Where the Constitution (and a statute) has fixed the term of office of a public official, the appointing authority is without authority to specify in the appointment a term shorter or longer than that fixed by the law. The President has only two options on terms of appointment:
  1. For a full 7-year term when the vacancy results from the *expiration* of the term;
  2. For a shorter period corresponding to the *unexpired* term of the predecessor when the vacancy occurs by reason of death, physical disability, resignation or impeachment.
- If the vacancy calls for a full 7-year appointment (as in 1.), the President is barred from extending a *promotional* appointment.

Funa v. Agra (2013)

- Agra concurrently held two offices in acting capacities: Secretary of Justice and Solicitor General.
- Clearly, the prohibition from holding another office (Article VII, Section 13) applies to Agra, as Solicitor General (rank of Member of the Cabinet), because the Constitution has not otherwise provided; neither does she fall under the two exceptions (stated below).
    - **Note:** This prohibition applies to all appointments and designations, whether of permanent or temporary nature.
- To reiterate here, the only two exceptions to this otherwise absolute prohibition are:
    - Those provided for under the Constitution, such as Article VII, Section 3, authorizing the Vice-President to become a Member of the Cabinet;
    - Posts occupied by Executive officials without additional compensation in *ex-officio* capacities as provided by law and as required by primary functions of the officials' offices.
- 'There is no legal objection to a government official occupying two government offices and performing the functions of both **as long as there is no incompatibility.**
    - **Test in determining whether incompatibility exists between two offices**— Whether one office is subordinate to the other, such that one office has the right to interfere with the other.
    - The primary functions of the OSG are not related to those of the DOJ.

Funa v. Civil Service Commission (2014)

- Duque, as Chairman of the CSC, was designated as a member of the Board of four GOCCs in an *ex-officio* capacity.
- Being an appointive official who does not occupy a Cabinet position, Duque was covered by the general prohibition on holding another office (Article IX-B, Section 7, Paragraph 2). As such, he can hold another office if such holding is allowed by law or by the primary functions of his position.
- Article IX-A, Section 2 expressly describes all the Constitutional Commissions as 'independent.' Although their respective functions are executive in nature, they are not under the control of the President.
    - Hence, Duque's designation as a member of the Board of the four GOCCs, which are under the President's control, impairs the independence of the CSC.
- Besides, his designation as member of the Board entitles him to receive *per diem*, a form of compensation that is disallowed by the concept of an *ex-officio* position—which is unconstitutional (Article IX-A, Section 2).

Gaminde v. COA (2000)

- The starting point of the *terms* of office of the first appointees to the Constitutional Commissions under the 1987 Constitution must be on the date of its adoption, **February 2, 1987.**
- **Rule:** In case of a belated appointment, the interval between the start of the term and the actual qualification of the appointee must be counted against the latter.

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- Distinction between 'term' and 'tenure':
  - *Term* means the time during which the officer may claim to hold office as a right, and fixes the interval after which the several incumbents shall succeed one another.
  - *Tenure* represents the term during which the incumbent actually holds the office. Tenure may be shorter than term.
- The *Transitory Provisions* (Article XVIII), which state that the incumbent Members shall continue in office for one year, refer to *tenure*. Such tenure may be cut short by: removal from office for cause, incapacity, and appointment to a new term.
  - **Note:** The *Transitory Provisions* do not affect the term of office in Article IX, providing for a seven-five-three rotation period for the first appointees under this Constitution—so as not to disturb the two-year interval.

Gonzales III v. Office of the President (2012; 2014)

- Court later ruled in a motion for reconsideration and declared that the President has no jurisdiction to exercise administrative authority over the Deputy Ombudsman as this would violate the independence of said office and is thus unconstitutional. For the Special Prosecutor, Sec 8(2) still applies since Court did not consider the OSP to be constitutionally within the Office of the Ombudsman and is not entitled to the independence the latter enjoys since the Court voted 8-7 in favor of maintaining the validity of Sec 8(2) insofar as Sulit is concerned
- The Court held that the Constitution gives the Ombudsman the independence from executive control and supervision or any form of political influence.
- Since the President's officials in the Executive Dept are under the disciplinary authority of the Ombudsman, the President's power to discipline and remove the Deputies puts the independence of the Ombudsman at risk. Intent of the framers is to insulate the Ombudsman from political pressure.
- Given this, what applies to the Ombudsman must be equally and necessarily true for her Deputies who act as agents of the Ombudsman in the performance of their duties.
  - Therefore, Section 8(2) of R.A. No 6770 granting the President the power to remove a Deputy Ombudsman should be declared void. The Court stated that intrusion upon the constitutionally granted independence is what Section 8 (2) of RA No. 6770 exactly did.
  - By enacting the Sec 8 (2) of the Ombudsman Act, Congress' power to create officers and determine the manner of removal of non-impeachable officers is not absolute and should still be consistent with the core constitutional principle of the Office of the Ombudsman.

Ifurung v. Carpio-Morales (2018)

- **The Office of the Ombudsman is not a Constitutional Commission.**
  - The Commissions are collegial bodies whose manner of working is characterized by a sharing of responsibility among the Chairman and the Commissioners.
  - The Office of the Ombudsman is not a collegial body. The Ombudsman and his deputies do not resolve cases by a majority of all its members but rather are confined within the sphere of their respective jurisdictions.
- It is only as to the rank and salary that the Ombudsman and the deputies shall be the same as the Chairman and members, respectively, of the Constitutional Commissions.
- Harmonizing Article XI, Section 11 with Section 8(3) of RA 6770, in any vacancy for the positions of the Ombudsman and the deputies, the successor shall always be appointed for a *full* term of seven years—regardless of the reason for the vacancy. (Not just the unexpired term, as argued by Ifurung)
- The *Gaminde* ruling—that the start of the term shall be on February 2, 1987—applies to the Constitutional Commissions and not to the Office of the Ombudsman.

b. Executive Clemency

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Section 19. Except in cases of impeachment, or as otherwise provided in this Constitution, the President may grant reprieves, commutations, and pardons, and remit fines and forfeitures, after conviction by final judgment.

He shall also have the power to grant amnesty with the concurrence of a majority of all the Members of the Congress.

Forms of Executive Clemency

1. **Reprieve** postpones the execution of the sentence to a certain day.[16]
2. **Commutation** is a remission of a part of the punishment; a substitution of a lower penalty for the one originally imposed.[17]
3. **Remission of Fines and Forfeitures** prevents the collection of fines and confiscation of forfeited property.
4. **Pardon** – A permanent cancellation of sentence; an act of grace proceeding from the power entrusted with the execution of the laws, which exempts the individual from the punishment the law inflicts for the crime he has committed; remission of guilt; forgiveness of the offense.
    a. **Plenary Pardon** extinguishes all the penalties imposed upon the offender, including accessory disabilities.
    b. **Partial Pardon** does not extinguish all the penalties imposed.
    c. **Absolute Pardon** has to be accepted by the individual on whom it is bestowed.
    d. **Conditional Pardon** may be rejected by the offender, since he may feel that the condition imposed is more onerous than the penalty sought to be remitted.
    e. **Limitations**
        i. Cannot be granted in cases of impeachment;
        ii. Cannot be granted in cases of violation of election laws, absent a favorable recommendation from COMELEC;
        iii. Can be granted only after conviction by *final* judgment; iv. Cannot absolve the convict of civil liability;
        v. Cannot be granted in cases of legislative or civil contempt;
        vi. Cannot restore public offices forfeited.[18]
        vii. Delivery is not complete without acceptance.

5. **Amnesty**
    - A sovereign act of oblivion for past acts, granted by the Government generally to a class of persons who have been guilty usually of political offense and who are subject to trial but have not yet been convicted; often conditional to their return to obedience and duty within a prescribed time.
    - Requires concurrence of a majority of all members of Congress (Requires a Law).
    - May be granted either after conviction or even before the charges are filed.
    - Two Types:
        i. Unconditional/Collective – mere enactment of a statute or decree is sufficient to grant amnesty
        ii. Conditional – grant is subject to the fulfillment of certain requisites such as requirement to submit an application form

Pardon	Amnesty
Granted solely by the Chief Executive	Granted by the Chief Executive with the concurrence of a majority of all the Members of Congress (Law)
Granted to a private individual	Granted to classes of person or communities who may be guilty of political offenses

[16] *18 People v. Vera* (1937).

[17] *Id.*

[18] *20 Monsanto v. Factoran* (1989).

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Private executive act - which must be pleaded and proved by the person pardoned when in court	Public Act/executive proclamation which courts take judicial notice of without the accused proving it in court
Granted to one after a conviction of a final judgment	Granted before or after the institutions of the criminal prosecution or after conviction
Looks forward and relieves the offender from the consequences of an offense of which he has been convicted	Looks backward and obliterates the offense completely
Forgives the punishment but does not automatically restore the rights of the person (e.g. to hold public office, suffrage) unless expressly restored by the terms of the pardon	Person stands before the law precisely as though he had committed no offense
Acceptance of the recipient is necessary	No need for distinct acts of acceptance (except if conditional)

Monsanto v. Factoran (1989)

- A pardon, granted *after* conviction, frees the individual from all the disabilities attached to the conviction (such as disqualification and suspension from public office), yet it 'cannot erase the stain of bad character.' o Note that while her conviction was on appeal, when she accepted the absolute pardon, she was deemed to have abandoned her motion for reconsideration, and her unreversed conviction by the Sandiganbayan assumed the character of finality.
- While a pardon has generally been regarded as 'blotting out the existence of guilt,'[19] it does not operate for all purposes. It does not erase the 'historical' fact of the crime and corresponding conviction.
- Accordingly, a pardon does not *ipso facto* restore an offender like Monsanto to public office, although such pardon restores her eligibility for appointment to that office, which was necessarily forfeited by reason of conviction.
- A public office, before anything, serves the 'collective protection, safety and benefit' of the people. As such, the facts constituting her offense must be considered to ascertain whether she may once again be entrusted with public funds.

Torres v. Gonzales (1987)

- Wilfredo Torres was convicted of estafa and pardoned by the president, with the condition that he will not violate penal laws again. He was charged again with crimes of estafa and the president cancelled the pardon.
- **Conditional pardon** - no need for another final conviction before the petitioner can be validly rearrested for violation of the terms. The grant of pardon and the determination of the terms and conditions of a *conditional* pardon are purely executive acts which are not subject to judicial scrutiny.
- In determining whether a condition of a pardon had been breached and what the consequences are of such breach, the President may either proceed in two ways:
    - Under Section 64(i) of the Revised Administrative Code – as a purely executive act, not subject to judicial scrutiny;
    - Under Article 159 of the Revised Penal Code – as a judicial act consisting of trial for and conviction of violation of a conditional pardon.
- Where the President opts to proceed under the first way, no judicial pronouncement of guilt of a subsequent crime is necessary, in order that a convict may be recommended for the violation of his conditional pardon.
    - That choice is an exercise of the President's executive prerogative.

Risos-Vidal v. COMELEC (2015)

- Erap was granted an absolute pardon that 'fully restored all his civil and political rights,' which naturally includes the right to seek public elective office. ● Articles

[19] *Ex Parte Garland* is now being rejected, insofar as it characterizes pardon as blotting out the existence of guilt, so that in the eye of the law the offender is as innocent as if he had never committed the offense.

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36[20] and 41[21] of the Revised Penal Code shall be read such that the President's power to grant executive clemency is not unduly restricted. Simply put, the President's pardoning power cannot be limited by legislative action.

- Phrase in the presidential pardon at issue is clear, plain, and free from ambiguity, and must be given its literal meaning and applied without attempted interpretation. *(verba legis)*
- **Pardon was not conditional** - does not explicitly impose a condition or limiation, considering the unqualified use of the term "civil and political rights" as being restored.

Trillanes v. Alameda (2021) - Court of Appeals Case

- Whether or not an amnesty may be revoked is a novel issue since there is no constitutional basis for the revocation of an amnesty.
- CA outlined amnesty and its limits:
    1. Substantive limits - scope and coverage of the amnesty (crime or offenses subject of amnesty power, purpose, persons)
    2. Procedural limits - steps to be undertaken by an individual seeking amnesty, process to be implemented by the amnesty-granting authority
        - In Conditional amnesty, amnesty law provides for the mechanism to process applications and assess compliance
- Rule: for a grant of amnesty to be legitimate, it must be both substantively and procedurally sound
    - Unconditional - only one operative act - passage of a law; amnesty law grants amnesty ipso facto
    - Conditional - two operative acts necessary:
        - Passage of an amnesty law
        - Individualized compliance of a person who falls within the scope of the amnesty law
    - Only upon compliance with the procedural formalities that amnesty is effectively granted
- CA ruled that a conditional amnesty may be revoked on the limited ground that the attached conditions have not been met. The amnesty granted to Trillanes was conditioned upon the filing of an application for amnesty and admission of guilt, and absent those conditions, the amnesty may be revoked. But the CA ruled that the respondent RTC Makati branch committed grave abuse in granting the motion of the DOJ, since it no longer had jurisdiction over the rebellion case.

[20] *Pardon; Its Effects.* – A pardon shall not work the restoration of the right to hold public office, or the right of suffrage, unless such rights be expressly restored by the terms of the pardon.

[21] *Reclusion Perpetua and Reclusion Temporal – Their Accessory Penalties.* – The penalties of *reclusion perpetua* and *reclusion temporal* shall carry with them that of… perpetual absolute disqualification which the offender shall suffer even though pardoned as to the principal penalty, unless the same shall have been expressly remitted in the pardon.

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c. Commander-in-Chief Powers of the President as Commander-in-Chief

Section 18. The President shall be the Commander-in-Chief of all armed forces of the Philippines and whenever it becomes necessary, he **may call out such armed forces to prevent or suppress lawless violence, invasion, or rebellion. In case of invasion or rebellion, when the public safety requires it, he may, for a period not exceeding sixty days, suspend the privilege of the writ of habeas corpus or place the Philippines or any part thereof under martial law.** Within forty-eight hours from the proclamation of martial law or the suspension of the privilege of the writ of habeas corpus, the President shall submit a report in person or in writing to the Congress. The Congress, voting jointly, by a vote of at least a majority of all its Members in regular or special session, may revoke such proclamation or suspension, which revocation shall not be set aside by the President. Upon the initiative of the President, the Congress may, in the same manner, extend such proclamation or suspension for a period to be determined by the Congress, if the invasion or rebellion shall persist and public safety requires it.

The Congress, if not in session, shall, within twenty-four hours following such proclamation or suspension, convene in accordance with its rules without need of a call.

The Supreme Court may review, in an appropriate proceeding filed by any citizen, the sufficiency of the factual basis of the proclamation of martial law or the suspension of the privilege of the writ of habeas corpus or the extension thereof, and must promulgate its decision thereon within thirty days from its filing.

A state of martial law does not suspend the operation of the Constitution, nor supplant the functioning of the civil courts or legislative assemblies, nor authorize the conferment of jurisdiction on military courts and agencies over civilians where civil courts are able to function, nor automatically suspend the privilege of the writ of habeas corpus.

The suspension of the privilege of the writ of habeas corpus shall apply only to persons judicially charged for rebellion or offenses inherent in, or directly connected with, invasion.

During the suspension of the privilege of the writ of habeas corpus, any person thus arrested or detained shall be judicially charged within three days, otherwise he shall be released.

1. He may **call out such armed forces** to prevent or suppress lawless violence, invasion or rebellion.
2. He may **suspend the privilege of the writ of habeas corpus**.
3. He may **proclaim martial law** over the Philippines or any part thereof.

1. Call Out Power

- Power to call out military to **suppress lawless violence**, **invasion or rebellion** is broad enough that his action is **not subject to judicial review** because of the absence of textual standards to review it.
- The authority to call out and determine whether there is lawless violence is vested solely on the President and is conclusive upon Courts.
  - The only criterion needed to call out the military is "when it is necessary" [*Sanlakas v. Executive Secretary* (2004)]
- Note: Philippine National Police is under the Executive Department and is **civilian in nature**. It is not included in this provision.

2. Suspension of the Privilege of the Writ of Habeas Corpus

- A writ of *habeas corpus* is an order by the Court to produce the body of someone who has been detained and determine why he is being restrained without necessarily ordering the release of the prisoner.

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- Privilege of *habeas corpus* is an order coming from the Court to immediately release the prisoner if the Court finds out that the detention is without legal cause or authority.

○ Note: It is the *privilege* and not the writ that is suspended.

- **Requisites:**
  - ○ Invasion/rebellion; *and*
  - ○ When public safety requires it.
- Duration: not to exceed 60 days unless extended by Congress.
- **Effects:**

3. Proclaim Martial Law

- Requisites:
  - ○ Invasion or rebellion
  - ○ Public safety requires the proclamation of martial law all over the Philippines or any part thereof
- The following CANNOT be done:
  - ○ Suspend the operation of the Constitution
  - ○ Supplant the functioning of the civil courts and the legislative assemblies
  - ○ Confer jurisdiction upon military courts and agencies over civilians where civil courts are able to function
    - ■ "Open Court Doctrine" - civilians cannot be tried by military courts if civil courts are open and functioning
  - ○ Automatically suspend the privilege of the writ of habeas corpus

Effects of the declaration of either power (Martial Law/Suspension of the Privilege of the Writ):

- Congress has to convene within 24 hours, regardless if they are in session or not – to determine whether there is sufficient cause.
  - ○ Applies only to persons 'judicially charged' for rebellion or offenses inherent in or indirectly connected with invasion.
  - ○ Persons *suspected* of the above crimes can be arrested and detained without any warrant; not necessarily legal, but is allowed.
- Justified by the emergency due to the difficulty in applying for a warrant.

○ Any person detained shall be judicially charged within 3 days, otherwise he shall be released.

- Extends the period during which one can be detained without a warrant.
  - ○ Refer to **Padilla v. Congress**
- The President has to report to Congress within 48 hours personally or by writing.
- Can be reviewed by either Congress or the Supreme Court
  - ○ Congress has the power to determine the duration of the suspension of the privilege or the effectivity of martial law **by a joint vote of Congress** [check *Padilla v. Congress* (2017) - Congress only needs to convene jointly when they revoke or extend]
    - ■ **Initiative for extension must come from the President**
  - ○ Supreme Court review limited by the need for a citizen to file the appropriate proceeding
  - ○ Judicial review can be done before Congress acts and the decision of the Supreme Court would also bind Congress

Ways to lift the suspension or proclamation:

- Lifting by the President himself
- By operation of law – after 60 days, unless extended by Congress
- Revocation by Congress
- Nullification by the Supreme Court (Judicial Review)

Control over the Armed Forces (Gudani v. Sena):

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- Absolute authority over the persons and actions of the members of the armed forces
- Ability of the president to restrict the travel, movement and speech of military officers activities which may otherwise be sanctioned under civilian law

Fortun v. Macapagal-Arroyo (2012)

- After the Ampatuan massacre, PGMA issued a proclamation declaring martial law and suspending the writ of the privilege of habeas corpus in Maguindanao. Since PGMA withdrew martial law in just 8 days, it has not been meaningfully implemented and petition became moot.
- Although the Constitution reserves to the Court the power to review the sufficiency of the factual basis of the proclamation or suspension, Congress must first review the Martial Law declaration before SC can step in to do so (overturned in *Lagman v. Medialdea I*)

Lagman v. Medialdea (2017)

- **The power of the Court to review can be exercised independently from the power of revocation of Congress** (overturned *Fortun v. Macapagal-Arroyo)*
- The power of judicial review does not extend to calibrating the President's decision pertaining to which extraordinary power to avail given a set of facts of conditions
  0 The power and prerogative to determine whether the situation warrants a mere exercise of the calling out power, power to declare martial law, or the suspension of the privilege of the writ of habeas corpus lies solely with the President.
- The Court held that the President, in issuing Proclamation No. 216, had sufficient factual bases tending to show that actual rebellion exists. The President's conclusion, that there was an armed public uprising, the culpable purpose of which was the removal from the allegiance of the Philippine Government a portion of its territory and the deprivation of the President from performing his powers and prerogatives, was reached after a tactical consideration of the facts. In fine, the President satisfactorily discharged his burden of proof
  0 The Court is not concerned about the absolute correctness, accuracy, or precision of the facts but the sufficiency of the factual basis as to convince the President that there is probable cause because to do so would unduly tie the hands of the President in responding to an urgent situation (!!!) ■ *Reviewer*-maker's comment: Recall SEC. 18, Art. 7 (VII) which states that "The Supreme Court may review...the sufficiency of the factual basis of the proclamation of martial law...."

Padilla v. Congress (2017)

- The Congress is not constitutionally mandated to convene in joint session except to vote jointly to revoke the President's declaration or suspension
- "Voting jointly" ≠ "joint session"; and even if it were, the provision only applies when the Congress revokes the President's proclamation of martial law

Lagman v. Pimentel III (2018)

- The Court cannot review the rules promulgated by Congress in the absence of any constitutional violation. Petitioners have not shown that the rules of the Joint Session violated any provision or right under the Constitution
- Section 18, Article VII did not also fix the period of the extension of the proclamation and suspension. However, it clearly gave the Congress the authority to decide on its duration; thus, the provision states that the extension shall be "for a period to be determined by the Congress." ○ Congress can extend ML for an unlimited time
- **ONLY Limitations to Congress Extending Proclamation/Suspension** ○ Must be upon President's initiative
  0 Grounded on the persistence of invasion or rebellion and the demands of public safety
  ○ Subject to the Court's review of the sufficiency of its factual basis upon the petition of any citizen

Lagman v. Medialdea (2019)

- Manner by which Congress extended ML is a political question. Consti safeguards in Sec. 18, Art. VII does not demand that a city be first taken over or people get killed before the President is justified to use his powers as Commander-in-Chief
- Declaration should not be arbitrary or whimsical, but its basis should not also be so accurate that there is no room for changes for correction. Considering the volatility of the conflict, situations may change and the Executive must act decisively

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LESSONS FROM THE DUTERTE ML CASES (c/o Sir DG himself)

- The SC's review of the "factual" basis for the declaration of ML can be based on false, incomplete, or inaccurate allegations of the President
- Congress does not have to convene jointly when the President declares ML, unless it revokes ML
- Congress can extend ML for any length of time as long as the invasion or rebellion persists
- Constitutional constraints have been rendered inert
- This kind of approach ignores the fact that, as the SC said before, the Congress and the Judiciary both have a part to play in emergencies (review/revocation/extension/etc.)

Olaguer v. Military Commission No. 34 (1987)

- The Court ruled that the Military Commission had no authority because Proclamation No. 2045 that lifted Martial Law, the petitioners were given provisional liberty - rendering petitions for Habeas Corpus moot and academic.
- Military Commissions/Tribunals have no jurisdiction to try cases against civilians when civil courts are already open or functioning

Navales v. Abaya (2004)

- Case involved consolidated petitions assailing the jurisdiction of the General Court Martial to conduct the Court-Martial Proceedings involving officers in the Armed Forces that were involved in the Oakwood Mutiny
- The RTC acted in excess of its jurisdiction when it declared that all charges are not service oriented and violated Section 1, RA No. 7055.
- Court ruled that the petitioners are not entitled to writs of prohibition and habeas corpus because the General Court Martial has jurisdiction over the cases filed
  - Has jurisdiction over service-connected crimes committed by members of the armed forces

In Re De Villa (2004)

- It would not be appropriate to issue a writ of habeas corpus to release an individual already convicted by final judgment
  - Habeas corpus generally cannot assail a final judgment by a competent court
- Habeas corpus is an extraordinary remedy, which applies to all cases of illegal confinement and detention
- The person would have to be deprived of liberty or their rightful custody would have to be withheld but if there is a valid legal process Habeas Corpus is not the proper remedy. Habeas Corpus cannot extend to errors of trial courts acting within its jurisdiction.

Garcia v. Executive Secretary (2012)

- Court-martial has jurisdiction over retired officers if offense was committed before retiring
  - The Court Martial has obtained jurisdiction over Petitioner even before his compulsory retirement and retains this jurisdiction until the case is over. Consequently, it is within the jurisdiction of the President to confirm Petitioner's sentence.
- The President as Commander-in-Chief can confirm sentences by Court Martial [Art. 47 Articles of War]. Further, Articles 48 and 49 respectively provide the President with the powers to confirm, including powers to disapprove, and to mitigate or remit any sentence
- A court-martial case is a criminal case and the General Court Martial is a "court" akin to any other courts. That court-martial cases are criminal cases within the meaning of Section 17, Article VI, of the Constitution is also evident, because the crimes and misdemeanors forbidden or punished by the Articles of War are offenses against the Republic of the Philippines.

d. Emergency Powers

Article VI, Section 23. (1) The Congress, by a vote of two-thirds of both Houses in joint session assembled, voting separately, shall have the sole power to declare the existence of a state of war.

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(2) In times of war or other national emergency, the Congress may, by law, authorize the President, for a limited period and subject to such restrictions as it may prescribe, to exercise powers necessary and proper to carry out a declared national policy. Unless sooner withdrawn by resolution of the Congress, such powers shall cease upon the next adjournment thereof.

Article VII, Section 18. The President shall be the Commander-in-Chief of all armed forces of the Philippines and whenever it becomes necessary, he may call out such armed forces to prevent or suppress lawless violence, invasion or rebellion...

Article XII, Section 17. In times of national emergency, when the public interest so requires, the State may, during the emergency and under reasonable terms prescribed by it, temporarily take over or direct the operation of any privately-owned public utility or business affected with public interest.

EMERGENCY POWERS

- Pre-condition: war or other national emergency
- Powers vested upon the president by the Congress since Congress is the repository of emergency powers, evident in Sec. 23 (2), Art. VI
- Main purpose: "to exercise powers necessary and proper to carry out a declared national policy"
    - ○ Authorizes delegation of real legislative power but on a limited scale ○ Not amounting to the legislature's abdication of its power.
- Requisites for grant of Emergency Powers *(David v. Macapagal-Arroyo)*
    1. There must be an existing war or national emergency
    2. The delegation must be for a limited period only
        - ■ Congress either specifies a date or power automatically ceases upon the next adjournment of a session in Congress
    3. The delegation must be subject to restrictions as the Congress may prescribe
    4. The emergency powers must be exercised to carry out a national policy declared by Congress

Concept of Emergency

- Emergency, as a generic term, connotes the existence of conditions suddenly intensifying the degree of existing danger to life or well-being beyond that which is accepted as normal. Implicit in these definitions are the elements of intensity, variety, and perception.
- occasioned by a wide range of situations, classifiable under three principal heads: (a) economic, (b) natural disaster, and (c) national security.
- It may include rebellion, economic crisis, pestilence or epidemic, typhoon, flood, or other similar catastrophe of nationwide proportions or effect.

Commander-in-Chief	**Emergency Powers**
Power is directly vested by the Constitution to the President	Power vested by Congress to the President
Whenever it becomes necessary to suppress lawless violence, invasion or rebellion, or when public safety demands it	Needs to be declared when there is a state of war or national emergency

David v. Macapagal-Arroyo (2006)

- The Presidential Proclamation 1017 (Declaring a State of National Emergency) was woven out of the "calling out" and "take care" powers joined with the "temporary takeover" provision under Sec. 17, Art. XII. PP1017 grants to the President, without delegation from Congress, the power to take over or direct operation of any privately-owned public utility or business affected with public interest.
- 3 Emergency Powers in PP 1017
    1. Calling Out Power - Based on Art VII, Sec 18. Call out the Armed Forces to prevent or suppress lawless violence, inv. The only criterion for the exercise of the calling-out power is that "whenever it becomes necessary," the President may call the armed forces "to prevent or suppress lawless violence, invasion or rebellion."

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2. Take Care Power - Based on Art VII, Sec 17. Primary function of the President is to enforce the laws as well as to formulate policies to be embodied in existing laws. He sees to it that all laws are enforced by the officials and employees of the Executive department. President has the Ordinance Power to issue executive orders but NOT presidential decrees (which are laws with the same binding force of statutes).
3. Take Over Power - Based on Art XII, Sec 17. take over privately-owned public utilities and businesses, without Congressional authority

- To the President's authority to declare "a state of national emergency", Section 18, Article VII grants the President such power, hence, no legitimate constitutional objection can be raised. But the exercise of emergency powers requires a delegation from Congress.
- Emergency may include rebellion, economic crisis, pestilence or epidemic, typhoon, flood, or other similar catastrophe of nationwide proportions or effect.
- PP 1017 was constitutional insofar as it constitutes the calling-out power to prevent or suppress lawless violence. However, provisions commanding the AFP to enforce laws not related to lawless violence and the power to issue decrees promulgated by the President are unconstitutional, since the ordinance power is limited. The President is not authorized to take over privately-owned public utility or business affected with public interest without prior delegation from Congress.

REPUBLIC ACT NO. 11469

Bayanihan to Heal as One Act

- Following PP No. 922 that declaring a State of Public Health Emergency throughout the Philippines due to the Corona Virus Disease 2019 (COVID-19), Congress through above law declared a state of national emergency over the country
- Pursuant to **Article VI, Section 23(2)** of the Constitution, the President is hereby authorized to exercise powers that are necessary and proper to carry out the declared national policy. The President shall have the power to adopt the following temporary emergency measures to respond to crisis brought by the pandemic: (too many emergency powers to list down).

e. Contracting and Guaranteeing Foreign Loans

Article VII, Section 20. The President may contract or guarantee foreign loans on behalf of the Republic of the Philippines with the prior concurrence of the Monetary Board, and subject to such limitations as may be provided by law. The Monetary Board shall, within thirty days from the end of every quarter of the calendar year, submit to the Congress a complete report of its decision on applications for loans to be contracted or guaranteed by the Government or government-owned and controlled corporations which would have the effect of increasing the foreign debt, and containing other matters as may be provided by law.

LIMITATIONS OF BORROWING POWER:

- Cannot contract or guarantee foreign loans without the concurrence of the Monetary Board.
- These transactions are also subject to limitations that may be provided by law
- Information on foreign loans obtained or guaranteed shall be made available to the public

Role of Congress in such Foreign Loans:

The President does not need prior approval by Congress

a. Because the Constitution places the power to check the President's power on the Monetary Board
b. BUT Congress may provide guidelines and have them enforced through the Monetary Board

Constantino v. Cuisia (2005)

- The Constitution allows the President to contract and guarantee foreign loans, with no prohibition on the issuance of certain kinds of loans/instruments (foreign loans may be in the form of bonds) nor restrictions on payment or manners.
- The only restriction that the Constitution provides, aside from the prior concurrence of the Monetary Board, is that the loans must be subject to limitations provided by law.
- Buyback is a necessary power which springs from the grant of the foreign borrowing power. The President is not empowered to borrow money from foreign

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banks and governments on the credit of the Republic only to be left bereft of authority to implement the payment despite appropriations therefor.

- **Obiter Dictum: Alter Ego Doctrine/Doctrine of Qualified Political Agency:**
  - *Villena v. Secretary of Interior:* executive secretaries are extensions of the personality of the President. Any acts by them, so long as consented to by the President, are deemed as acts of the President himself.
  - Applied in the present case, the Secretary of Finance is within his duties to execute the debt-relief contracts, seeing as the same falls within the realm of expertise of the Department of Finance, and that then President Aquino avowed to honor and restructure existing foreign debts, thereby giving presidential approval to acts of the respondents.
- Certain powers of the president are non-delegable such as the declaration of martial law, the suspension of the writ of habeas corpus, and pardoning power. They belong to a special class of powers that may be exercised exclusively by the president, as they may only be exercised during extraordinary circumstances. The Court held that the foreign borrowing power does not fall within the same exceptional class, as it is only akin to a contractual obligation of the sovereign, which arises not from extraordinary circumstances but from established functions of government.

f. Foreign Affairs

Article VII, Section 21. No treaty or international agreement shall be valid and effective unless concurred in by at least two-thirds of all the Members of the Senate.

Article XVIII, Section 25. After the expiration in 1991 of the Agreement between the Republic of the Philippines and the United States of America concerning military bases, foreign military bases, troops or facilities shall not be allowed in the Philippines except under a treaty duly concurred in by the Senate and, when the Congress requires, ratified by a majority of the votes cast by the people in a national referendum held for that purpose, and recognized as a treaty by the other contracting State.

FORMS OF DIPLOMATIC POWER

The President's diplomatic power includes:

- Power to negotiate, enter into, and ratify international agreements or treaties with other nations.
  - Exception: Executive agreements such as exchange of notes, etc.
  - **Doctrine of Incorporation:** Treaties and international agreements will only be binding in the Philippines once the Senate concurs by **at least 2/3 of all Members of the Senate.**
- Power to appoint ambassadors, other public ministers, and consuls.
- Power to receive ambassadors and other public ministers duly accredited to the Philippines
- Power to contract and guarantee foreign loans
- Deportation Power [Go Tek v. Deportation Board (1977)]

Nicolas v. Romulo (2009)

- VFA is constitutional as ratified by the Philippine Senate. Although the US Senate has not concurred with the VFA, it is considered an internal matter of US law and also has been recognized as a treaty by the US as attested and certified by a duly authorized representative of the US government. The Court also explained that the VFA is essentially the implementing agreement of the main RP-US Military Defense Treaty which was concurred and ratified by both PH and US Senates.
  - In *Bayan v. Executive Secretary Zamora*, the VFA was duly concurred in by the Philippine Senate and has been recognized as a treaty by the United States
- VFA is self-executing given that its provisions are enforceable and the implementing law of the RP-US Mutual Defense Treaty
- However, the Romulo-Kenney Agreements are unconstitutional as they are not in accordance with the Visiting Forces Agreement

Comm. of Customs v. Eastern Sea Trading (1961)

- *Treaties* are formal documents which require ratification with the approval of two-thirds of the Senate. *Executive agreements* become binding through executive action without the need of a vote by Congress.

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- International agreements involving political issues and international arrangements of a permanent character usually take the form of *treaties*. Meanwhile, international agreements embodying adjustments of detail carrying out well-established national policies and traditions and those involving international arrangements of a more or less temporary nature usually take the form of *executive agreements*.
    - They cover such subjects as the inspection of vessels, navigation dues, income tax on shipping profits, the admission of civil aircraft, customs matters, and commercial relations generally, international claims, postal matters, the registration of trade-marks and copyrights, etc.

      [List no longer applicable or exclusive]

Go Tek v. Deportation Board (1977)

- The State has the *inherent* power to deport undesirable aliens which may be exercised by the Chief Executive with full discretion 'when he deems it necessary for the peace and domestic tranquility of the nation.'
- There is no constitutional provision defining the power to deport aliens because the intention of the law is to grant the Chief Executive full discretion to determine whether an alien's residence in the country is so undesirable as to affect or injure the security, welfare, or interest of the State. His decision is final and executory.
- Two ways of deporting an undesirable alien:
    1. By order of the President after due investigation under Admin Code
    2. By the Commissioner of Immigration under Immigration Law
- Conviction of a crime is not necessary to warrant deportation.

g. Legislation

Address Congress

Article VII, Section 23. The President shall address the Congress at the opening of its regular session. He may also appear before it at any other time.

Preparation and Submission of the Budget

Article VII, Section 22. The President shall submit to the Congress, within thirty days from the opening of every regular session as the basis of the general appropriations bill, a budget of expenditures and sources of financing, including receipts from existing and proposed revenue measures.

Veto Power

Article VI, Section 27. (1) Every bill passed by the Congress shall, before it becomes a law, be presented to the President. If he approves the same, he shall sign it; otherwise, he shall veto it and return the same with his objections to the House where it originated, which shall enter the objections at large in its Journal and proceed to reconsider it. If, after such reconsideration, two-thirds of all the Members of such House shall agree to pass the bill, it shall be sent, together with the objections, to the other House by which it shall likewise be reconsidered, and if approved by two-thirds of all the Members of that House, it shall become a law. In all such cases, the votes of each House shall be determined by yeas or nays, and the names of the Members voting for or against shall be entered in its Journal. The President shall communicate his veto of any bill to the House where it originated within thirty days after the date of receipt thereof; otherwise, it shall become a law as if he had signed it.

(2) The President shall have the power to veto any particular item or items in an appropriation, revenue, or tariff bill, but the veto shall not affect the item or items to which he does not object.

Fixing of Tariff Rates

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Article VI, Section 28. (2) The Congress may, by law, authorize the President to fix within specified limits, and subject to such limitations and restrictions as it may impose, tariff rates, import and export quotas, tonnage and wharfage dues, and other duties or imposts within the framework of the national development program of the Government.

DUTY TO ADDRESS CONGRESS

- The President addresses the Congress at the opening of its regular session (SONA). It is through this session that he informs Congress the information they need for the basis of legislation.

PREPARATION AND SUBMISSION OF BUDGET

- The President submits to Congress:
  - Budget of expenditures
  - Sources of Financing including receipts from existing and proposed revenue measures
- Should be submitted within 30 days from the opening of every regular session
- Limitations: Congress may not increase the appropriation recommended by the President as specified in the budget.

VETO POWER

- Two kinds of Presidential Veto:
  - General Veto – If a President vetoes a general bill enacted by Congress, he should veto the entire bill. He is not allowed to veto separate items of the bill.
  - Item Veto – specific only to appropriations, revenue, or tariff bills where the President can veto specific items without affecting the entire bill.

Beltran v. Makasiar (1988)

- Journalists who were sued for libel by Pres. Cory Aquino arguing that the President, who cannot be sued, cannot initiate criminal proceedings following the logic that immunity from suit frees the President from any hindrance or distraction considering that being the Chief Executive of the Government, it requires all the office-holder's time and undivided attention; therefore, being part of criminal proceedings would be counter the purpose of the presidential immunity from suit.
- Pocket Veto: If the President does not act upon the billed within 30 days will render the bill enacted.

h. Immunity from Suit

- Not expressly stated in the Constitution (unlike in 1973 Constitution)
- Rationale: assure the exercise of presidential duties and functions free from any hindrance or distraction
  - Being President requires undivided attention
- Once out of office, immunity from suit for non-official acts is lost. The rule is that unlawful acts of public officials are not acts of the State and the officer who acts illegally is not acting as such but stands on the same footing as any other trespasser *(Estrada v. Desierto)*

FIXING OF TARIFF RATES

The Congress may, by law, authorize the President to fix (1) within specified limits, and (2) subject to such limitations and restrictions as it maym impose:

a. Tariff rates
b. Import and export quotas
c. Tonnage and wharfage dues
d. Other duties or imposts within the framework of the national development program of the government

Rational for delegation: Highly technical nature of international commerce, and the need to constantly and with relative ease adapt the rates to prevailing commercial standards.

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- The privilege of immunity from suit to the President may be invoked only by the President herself. As such, the accused cannot invoke such privilege as a defense to prevent the case from ensuing.
- Nothing in the law that would prevent the President from waiving the privilege. The President may shed the protection afforded by the privilege and submit to the Court's jurisdiction, though such is *solely* the President's prerogative.

Gloria v. Court of Appeals (2000)

- Petition for prohibition was filed against the Secretary and Regional Directors of the DECS to restrain them from reassigning Dr. Icasiano to another post which was already approved by Pres. Cory Aquino. Court held that the petition is valid since it is directed to the Secretary and not against the President.
- Only the President is entitled to immunity from suit.
- Presidential decisions may be questioned before the courts where there is grave abuse of discretion/excess in jurisdiction.

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Vice President

Section 3. There shall be a Vice-President who shall have the same qualifications and term of office and be elected with, and in the same manner, as the President. He may be removed from office in the same manner as the President.

The Vice-President may be appointed as a Member of the Cabinet. Such appointment requires no confirmation.

Section 4. (1) The President and the Vice-President shall be elected by direct vote of the people for a term of six years which shall begin at noon on the thirtieth day of June next following the day of the election and shall end at noon of the same date, six years thereafter. The President shall not be eligible for any re-election. No person who has succeeded as President and has served as such for more than four years shall be qualified for election to the same office at any time.

(2) No Vice-President shall serve for more than two successive terms. Voluntary renunciation of the office for any length of time shall not be considered as an interruption in the continuity of the service for the full term for which he was elected.

(3) Unless otherwise provided by law, the regular election for President and VicePresident shall be held on the second Monday of May.

(4) The returns of every election for President and Vice-President, duly certified by the board of canvassers of each province or city, shall be transmitted to the Congress, directed to the President of the Senate. Upon receipt of the certificates of canvass, the President of the Senate shall, not later than thirty days after the day of the election, open all the certificates in the presence of the Senate and the House of Representatives in joint public session, and the Congress, upon determination of the authenticity and due execution thereof in the manner provided by law, canvass the votes.

(5) The person having the highest number of votes shall be proclaimed elected, but in case two or more shall have an equal and highest number of votes, one of them shall forthwith be chosen by the vote of a majority of all the Members of both Houses of the Congress, voting separately.

(6) The Congress shall promulgate its rules for the canvassing of the certificates.

(7) The Supreme Court, sitting en banc, shall be the sole judge of all contests relating to the election, returns, and qualifications of the President or Vice-President, and may promulgate its rules for the purpose.

Section 5. Before they enter on the execution of their office, the President, the VicePresident, or the Acting President shall take the following oath or affirmation:

"I do solemnly swear [or affirm] that I will faithfully and conscientiously fulfill my duties as President [or Vice-President or Acting President] of the Philippines, preserve and defend its Constitution, execute its laws, do justice to every man, and consecrate myself to the service of the Nation. So help me God." [In case of affirmation, last sentence will be omitted].

Marcos, Jr. v. Robredo (2019)

- Described the current state of the VP electoral protest so far; discussed the mechanisms and tests to determine failure of elections in different regions
- The Presidential Electoral Tribunal, composed by the SC en banc, shall have exclusive jurisdiction over electoral protests and quo warranto cases against the President or Vice-President.

PET Rules shall govern the process of recount and revision in cases alleging electoral fraud. Should the initial recount of three pilot provinces fail to show that majority of the votes were illegally tampered/invalid/fraudulent, further proceedings will be dismissed. Otherwise, total recount will be conducted and the reappreciated vote count will be the final basis for determination of the rightfully elected President/Vice President.

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C. THE JUDICIAL DEPARTMENT

Judicial Power

Sec. 1, Art. VIII. The judicial power shall be vested in one Supreme Court and in such lower courts as may be established by law.

Judicial power includes the duty of the courts of justice to settle actual controversies involving rights which are legally demandable and enforceable, and to determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government.

Judicial power is vested in:

1. One Supreme Court
2. Such lower courts as may be established by law

Judicial power includes the duty of the courts to:

1. Settle actual controversies involving rights which are legally demandable and enforceable [Classic Certiorari Jurisdiction]
2. To determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government [Expanded Certiorari jurisdiction]

- Grave abuse of discretion
    - Such capricious and whimsical exercise of judgment as is equivalent to lack of jurisdiction
    - Must be patent and gross as to amount to an evasion of positive duty or a virtual refusal to perform a duty enjoined by law, or to act at all in contemplation of law, as where the power is exercised in an arbitrary and despotic manner by reason of passion or hostility

The Supreme Court

a. Composition and Modes of Sitting

Sec. 4, Art. VIII

(1) The Supreme Court shall be composed of a Chief Justice and fourteen Associate Justices. It may sit en banc or in its discretion, in division of three, five, or seven Members. Any vacancy shall be filled within ninety days from the concurrence thereof.

(2) All cases involving the constitutionality of a treaty, international or executive agreement, or law, which shall be heard by the Supreme Court en banc, and all other cases which under the Rules of Court are required to be heard en banc, including those involving the constitutionality, application, or operation of presidential decrees, proclamations, orders, instructions, ordinances, and other regulations, shall be decided with the concurrence of a majority of the Members who actually took part in the deliberations on the issues in the case and voted thereon.

(3) Cases or matters heard by a division shall be decided or resolved with the concurrence of a majority of the Members who actually took part in the deliberations on the issues in the case and voted thereon, and in no case without the concurrence of at least three of such Members. When the required number is not obtained, the case shall be decided en banc: Provided, that no doctrine or principle of law laid down by the court in a decision rendered en banc or in division may be modified or reversed except by the court sitting en banc.

Composition:

1. Chief Justice - 1
2. Associate Justice - 14

Primus inter pares (first among equals) - a person is the most senior of a group of people sharing the same rank or office.

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- Describes the status, condition or role of the Chief Justice (Carpio-Morales,
  Dissenting in *De Castro v. JBC)*

(Current) Divisions - 3 Divisions of 5 Members each

Cases that must be decided en banc:

1. All cases involving the constitutionality of a treaty, international or executive agreement, or law
2. All cases which under the Rules of Court are required to be heard en banc
3. All cases involving the constitutionality, application or operation of presidential decrees, proclamations, orders, instructions, ordinances and other regulations
4. Cases heard by a division when the required majority in the division is not obtained
5. Cases where the Supreme Court modifies or reverses a doctrine or principle of law previously laid down either *en banc* or in division
6. Administrative cases involving the discipline or dismissal of judges of lowers courts [Section 11]
7. Election contests for President or Vice-President, sitting as PET

People v. Gacott (1995)

- First clause of Section 11, Article 8 (VIII) "the SC *en banc* shall have the power to discipline judges of lower courts" is a declaration of the grant of that disciplinary power to the Court *en banc* as well as the determination of disciplinary procedure but it was not intended that all administrative cases must be heard and decided by the whole court (it would lead to absurdity)
- Second clause "order their dismissal by a vote of a majority of the Members who actually took part in the deliberations on the issues of the case and voted therein", demonstrates that only cases involving DISMISSAL of judges of lower courts are specifically required to be decided by the Court *en banc.*

Administrative cases decided en banc:

1) A penalty that is imposed for the dismissal of a judge, officer or employee of the judiciary
2) Disbarment of a lawyer
3) Suspensions of any of them for a period of more than one year or a fine imposed that amounts to more than 10,000 or both

b. Appointments & Qualifications

Sec. 7, Art. VIII

(1) No person shall be appointed Member of the Supreme Court or any lower collegiate court unless he is a natural-born citizen of the Philippines. A Member of the Supreme Court must be at least forty years of age, and must have been for fifteen years or more, a judge of a lower court or engaged in the practice of law in the Philippines.

(2) The Congress shall prescribe the qualifications of judges of lower courts, but no person may be appointed judge thereof unless he is a citizen of the Philippines and a member of the Philippines Bar.

(3) A Member of the Judiciary must be a person of proven competence, integrity, probity, and independence.

Qualifications	Art. VIII, Sec. 7 [Supreme Court Justices and Court of Appeals] 1. Natural-born citizen 2. At least 40 years of age 3. Must have been for 15 years or more a judge of a lower court or engaged in the practice of law in the Philippines 4. Person of proven competence, integrity, probity and independence

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	• Congress may not alter the qualifications of Members of the Supreme Court and the constitutional qualifications of other members of the Judiciary
Tenure	Art. VIII, Sec. 11 Until age of 70 years or become incapacitated to discharge the duties of their office or impeached
Appointment	Art. VIII, Sec. 9 Appointed by the President from a list of at least 3 nominees by the JBC for each vacancy (No clustering of nominees - *Aguinaldo v. Aquino*)

Kilosbayan v. Ermita (2007)

- SC may litigate issues on qualifications for membership in SC (not only JBC has jurisdiction)
  - JBC is under the supervision of the SC (SEC. 8, Art. VIII)
- Only natural-born Filipinos may sit in the SC
- Gregory Ong was appointed as Associate Justice of the Supreme Court. It was later found out that his birth certificate indicated that he is a Chinese citizen. Judge Ong needs to prove his citizenship in a judicial proceeding, hence the Court could not accept his appointment until the determination of his citizenship. A subsequent recognition of a natural-born status by the Bureau of Immigration and DOJ cannot amend the final decision of the trial court that one is naturalized

c. No Non-Judicial Work for Judges

Sec. 12, Art. VIII. The Members of the Supreme Court and of other courts established by law shall not be designated to any agency performing quasi-judicial or administrative functions.

Meralco v. Pasay Trans Co. (1932)

- MERALCO invoked Sec. 11 of Act No. 1446 and asked the Supreme Court, sitting as Board of Arbitrators, to dix the terms on how certain transportation companies may use the Pasig Bridge and how much MERALCO's compensation be for their use.
- Two scenarios if petition if awarded:
  - If the Members of the SC, sitting as a board of arbitrators, **exercise judicial functions.**
    - It is not within the jurisdiction granted to the SC. Even if it does, it presupposes the right to bring the matter in dispute before the courts.
    - An anomaly of a decision by the members of the SC sitting as a board of arbitrators will eventually come before the SC, where it will review the decision of its members acting as arbitrators
  - If the Members of the Supreme Court, sitting as a board of arbitrators, **exercise administrative or quasi-judicial functions.**
    - This would result in the performance of duties which the members of the SC could not lawfully take it upon themselves to perform.
    - Another anomaly is where the SC as a court is asked to determine if the members of the court may constitute a board of arbitrators, which is not a court at all.
- The SC is only granted exclusive judicial power and it cannot be authorized or required to exercise any other power or perform any other duty that is not judicial in nature.

d. Salary

Sec. 10, Art. VIII. The salary of the Chief Justice and of the Associate Justices of the Supreme Court, and of judges of lower courts, shall be fixed by law. During their continuance in office, their salary shall not be decreased.

Nitafan v. Commissioner of Internal Revenue (1987)

- Court reiterated that the salaries of the members of the Judiciary are subject to general income tax and this does not fall under the constitutional protection of their salaries during their office.
- Court ABANDONED the doctrine in *Perfecto v. Meer* & *Endencia v. David* (Income Tax = Diminution of Salary)

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- Equality amongst the 3 branches as well as the taxpayers since intent of the framers is for all citizens to bear the burden of maintaining the cost of government.

e. Tenure

Sec. 2, Art VIII. The Congress shall have the power to define, prescribe, and apportion the jurisdiction of various courts but may not deprive the Supreme Court of its jurisdiction over cases enumerated in Section 5 hereof.

No law shall be passed reorganizing the Judiciary when it undermines the security of tenure of its Members.

Sec. 11, Art. VIII. The Members of the Supreme Court and judges of lower courts shall hold office during good behavior until they reached the age of seventy years or become incapacitated to discharge the duties of their office. The Supreme Court en banc shall have the power to discipline judges of lower courts, or order their dismissal by a vote of a majority of the Members who actually took part in the deliberations on the issues in the case and voted thereon.

f. Removal

Sec. 2, Art. XI. The President, Vice-President, the Members of the Supreme Court, the Members of the Constitutional Commissions, and the Ombudsman may be removed from office on impeachment for, and conviction of, culpable violation of the Constitution, treason, bribery, graft and corruption, other high crimes, or betrayal of public trust. All other public officers and employees may be removed from office as provided by law, but not by impeachment.

Before 2018 (In re Gonzales, 1988)

- A public officer, who under the Constitution is required to be a Member of the Philippine Bar as a qualification for the office held by him and who may be removed from office only by impeachment, cannot be charged with disbarment during the incumbency of such public officer.
- Such public officer, during his incumbency, cannot be charged criminally before the Sandiganbayan or any other court with any offence which carries with it the penalty of removal from office, or any penalty service of which would amount to removal from office
- To grant disbarment during incumbency would circumvent constitutional mandate stating that the Members of the SC may be removed only through impeachment
- By only allowing the removal of a Member of the SC via impeachment, it protects the judicial independence of the Court and the members themselves from unsuccessful litigants

Does the doctrine only benefit members of the Supreme Court?

- No - Benefits all members of the Judiciary and Constitutional Commissions that are required to be members of the Bar (for ex. Ombudsman and his deputies as per. Sec. 8, Art. XI and Commissioners of COMELEC as per par. 1, Sec. 1, Art. IX)

After 2018 (Republic v. Sereno, 2018)

- Without legal qualification, an official has not attained and can never attain the status of an impeachable officer, so his or her removal may be affected by means other than by impeachment such as through *quo warranto*.
- The Court ruled in the case of *Republic v. Sereno*: "Sereno is found **disqualified** from and is hereby adjudged **guilty of unlawfully holding and exercising the office** of the Chief Justice [and] is **ousted** and **excluded** therefrom."
  - Sereno is ineligible as a candidate and nominee for the Chief Justice since compliance with the SALN is a constitutionally mandated requirement for every public official and non-filing shows lack of integrity
  - Appointment doesn't cure the defect or ineligibility
- The ruling of the Court overturned *In re Gonzales* by allowing an impeachable officer to be removed from office other than through the process of impeachment, but through a *quo warranto* proceeding

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- The Court held that it has exercised its power emanating from its original jurisdiction on public officials and *quo warranto* proceedings assailing the disqualification of a public officer from office
- A *quo warranto* petition and an impeachment are not mutually exclusive remedies. They are separate but simultaneously available

Is it beneficial to have the petition for quo warranto as a remedy of removing an impeachable public officer on the grounds of his/her qualifications?

- Yes – gives a judicial remedy to remove disqualified members other than the process of impeachment
- No – leaves the Supreme Court vulnerable for it weakens the judicial independence of the Court (an individual or the State can instigate *quo warranto* petitions)

Why is the SALN important for quo warranto cases?

- Quo warranto cases question the eligibility of the appointments. Failing to submit SALN marks a failure to meet the standard of integrity needed for judicial appointees.
- It is an additional constitutional requirement (though less precise in nature) in line with par. 3, Sec. 7, Art. VIII.

g. Fiscal Autonomy

Sec. 3, Art. VIII. The Judiciary shall enjoy fiscal autonomy. Appropriations for the Judiciary may not be reduced by the legislature below the amount appropriated for the previous year and, after approval, shall be automatically and regularly released.

Fiscal autonomy of the Judiciary

- the appropriation of the Judiciary may not be reduced by Congress below the amount appropriated for the previous year, and after approval, shall be automatically and regularly released.
- authorizes the Supreme Court to levy, assess and collect fees, and to determine how its funds should be utilized.

Two distinct concepts of Judicial Independence:

1) Decisional independence - a judge's ability to render decisions free from political/popular influence but based solely on the individual facts and applicable law
2) Institutional independence - refers to the collective independence of the judiciary like fiscal autonomy (freedom from outside control)

In re COA Opinion on Computation of Appraised Value of Properties Purchased by Supreme Court Justices (2012)

- Court's use of its own formula for computation of appraised value of properties purchased by SC justices is part of its exercise of discretionary authority and COA's interference violates not just the Court's fiscal autonomy but also its independence
  - The ruling is hinged on the intention to reward long and faithful service of the Court's justices as well as the rule that the CJ can determine privileges and benefits granted to members of the Judiciary
- Problem: COA has no oversight as to how the Supreme Court (nor all other Constitutional Institutions) exercises its fiscal autonomy

In re Clarification of Exemption from Payment of all Court and Sheriff's Fees of **Cooperatives (2012)**

- SC alone can promulgate its rules concerning pleading, practice and procedure, and the Executive and Legislature cannot intervene or share in these powers anymore
- Court ruled that this is well within their exercise of fiscal autonomy wherein the other branches must recognize the power and authority of the court to levy, assess, and collect fees, including legal fees
- The waiver of the filing fees in this case deprives the Court of its income, thus was not allowed by the Court

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h. Jurisdiction

Sec. 1 (2), Art. VIII. Judicial power includes the duty of the courts of justice to settle actual controversies involving rights which are legally demandable and enforceable, and to determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government.

Sec. 5, Art. VIII. The Supreme Court shall have the following powers:

(1) Exercise original jurisdiction over cases affecting ambassadors, other public ministers and consuls, and over petitions for certiorari, prohibition, mandamus, quo warranto, and habeas corpus.

(2) Review, revise, reverse, modify, or affirm on appeal or certiorari, as the law or the Rules of Court may provide, final judgments and orders of lower courts in:

(a) All cases in which the constitutionality or validity of any treaty, international or executive agreement, law, presidential decree, proclamation, order, instruction, ordinance, or regulation is in question.

(b) All cases involving the legality of any tax, impost, assessment, or toll, or any penalty imposed in relation thereto.

(c) All cases in which the jurisdiction of any lower court is in issue.

(d) All criminal cases in which the penalty imposed is reclusion perpetua or higher.

(e) All cases in which only an error or question of law is involved.

Jurisdiction

- Authority of a court or body to hear, try and decide a case

Original Jurisdiction

1. Cases involving ambassadors, other public ministers and consuls
2. Over petitions for certiorari, prohibition, mandamus, quo warranto, and habeas corpus
3. Review the factual basis for the declaration of martial law or suspension of the privilege of the writ of habeas corpus

Appellate Jurisdiction - Over final judgments and orders of lower courts in all cases in which

1. All cases in which the constitutionality or validity of any treaty, international or executive agreement, law, presidential decree, proclamation, order, instruction, ordinance, or regulation is in question
2. All cases involving the legality of any tax, impost, assessment, or toll, or any penalty imposed in relation thereto.
3. All cases in which the jurisdiction of any lower court is in issue.
4. All criminal cases in which the penalty imposed is *reclusion perpetua* or higher.
5. All cases in which only an error or question of law is involved.

Felipe v. Leuterio (1952)

- Judiciary has no power to reverse the award of the board of judges of an oratorical contest. It would not interfere in literary contests, beauty contests, and similar competitions. In any case, even IF the petition CAN be heard, the hierarchy of courts was ignored.
- Only a case can be made if there was a wrong or fraud that occurred

Almora v. Dela Rosa (2018)

- It is within the powers of the Supreme Court to conduct a hearing *en banc* on the constitutionality of the application or operation of the regulations enforcing the drug war campaign.
- The Court, inherent to this power, can require the production of the requested information and documents. It has the jurisdiction and discretion to determine which information are relevant to the issue.
- Any impartial and genuine judicial review or inquiry into the constitutionality, application or operation of the PNP and DILG circulars must logically start with reviewing the police reports of these drug operations which resulted in the death of citizens. The resolution of the present petitions will allow the Court to perform its constitutional duty to "promulgate rules concerning the protection and enforcement of constitutional rights"

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i. Deliberations

Sec. 4(2), Art. VIII. supra.

Sec. 4(3), Art. VIII. Cases or matters heard by a division shall be decided or resolved with the concurrence of a majority of the Members who actually took part in the deliberations on the issues in the case and voted thereon, and in no case, without the concurrence of at least three of such Members. When the required number is not obtained, the case shall be decided en banc: Provided, that no doctrine or principle of law laid down by the court in a decision rendered en banc or in division may be modified or reversed except by the court sitting en banc.

Sec. 13, Art. VIII. The conclusions of the Supreme Court in any case submitted to it for decision en banc or in division shall be reached in consultation before the case is assigned to a Member for the writing of the opinion of the Court. A certification to this effect signed by the Chief Justice shall be issued and a copy thereof attached to the record of the case and served upon the parties. Any Member who took no part, or dissented, or abstained from a decision or resolution must state the reason therefor.

The same requirements shall be observed by all lower collegiate courts.

Sec. 14, Art. VIII. No decision shall be rendered by any court without expressing therein clearly and distinctly the facts and the law on which it is based.

No petition for review or motion for reconsideration of a decision of the court shall be refused due course or denied without stating the legal basis therefor.

In re Production of Court Records and the Attendance of Court Officials for the Impeachment Prosecution (2012)

- Deliberations of a decision (ongoing, or released and cases terminated) cannot be subpoenaed due to the principle of separation of powers and the principle of comity, granting these documents Judicial Privilege
- Internal Rules of the Supreme Court (IRSC) defines that the confidentiality of Court records include the disclosure of those which may affect the Court's decision-making function including: (1) results of the case raffle; (2) case actions taken by the Court included in its session agenda; and (3) deliberations in court sessions on pending cases. Court deliberations are considered privileged communication (deliberative process privilege) and part of its internal adjudicatory functions
- IRSC also includes in the confidentiality of Court: (1) pre-decisional and deliberative court records, and other communications that are part of or related to the deliberative process; and (2) confidential information by the judiciary in the course of their official functions
- Thus, Justices are prohibited to disclose (and thus, testify) confidential information on matters relating to the internal deliberations and actions of the Court, in the exercise of their adjudicatory functions and duties
- Principle of Comity: Comity is the interdepartmental courtesy in undertaking constitutional duties
- Judiciary exercises restraint in the proceedings of other branches of gov't and only intervenes when there is clear grave abuse of discretion, taking upon only legal, not political, questions
- While Congress releases its records, the principle of comity cannot be applied to mandate the Judiciary to do the same, for it is necessary in order to arrive to the intention of the law – especially if the law being questioned is vague
- The Judicial Department cannot be compelled to release its records to the public for its members can be subjected to scrutiny even after the case has been resolved, which can lead to the undermining of the public's trust on the judiciary

j. Voting

Sec. 4(2), Art. VIII. All cases involving the constitutionality of a treaty, international or executive agreement, or law, which shall be heard by the Supreme Court *en banc*, and all other cases which under the Rules of Court are required to be heard *en banc*, including those involving the constitutionality, application, or operation of presidential decrees, proclamations, orders, instructions, ordinances, and other regulations, shall be decided with the concurrence of a majority of the Members who actually took part in the deliberations on the issues in the case and voted thereon.

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Sec. 4(3), Art. VIII. Cases or matters heard by a division shall be decided or resolved with the concurrence of a majority of the Members who actually took part in the deliberations on the issues in the case and voted thereon, and in no case, without the concurrence of at least three of such Members. When the required number is not obtained, the case shall be decided *en banc*: *Provided*, that no doctrine or principle of law laid down by the court in a decision rendered *en banc* or in division may be modified or reversed except by the court sitting *en banc*.

How many votes required to decide a case?

1. En Banc
    - Concurrence "of a majority of the members who actually took part in the deliberations on the issues in the case and voted thereon"
    - Quorum is 8 of 15 justices
2. Division
    - Decided or resolved with the concurrence of a majority of the Members who actually took part in the deliberations on the issues in the case and voted thereon, and in no case without the concurrence of at least 3 such Members
    - When the required number is not obtained, the case shall be decided *en banc*
        - EXCEPT: Motions for Reconsideration/Appeal of a decision decided by a Division
            - Failure of the division to resolve the motion because of a tie in the voting does not leave the case undecided, but the motion for reconsideration is lost (and original decision is affirmed)
    - Decisions of a division of the Supreme Court NOT appealable to the *en banc*
        - Since a decision by a division is a decision or resolution by the Supreme Court itself
        - Not an appellate court; Each division of the Court is considered not a body inferior to the Court en banc, and sits as the en banc itself

Cruz v. DENR (2000)

- In deciding whether the IPRA and its IRR are unconstitutional, the SC Justices votes were equally divided at 7–7 (even after another deliberation)
- As per Rule 56, Sec. 7 of the Rules of Civil Procedure, the petition was dismissed.
- IPRA remains Constitutional, unless it is challenged since in the votes, only 7 Justices voted to make IPRA unconstitutional. Without attaining the majority vote to grant the Petition to declare IPRA unconstitutional, the law remains constitutional

k. Requirements as to Decisions

Sec. 13, Art. VIII. The conclusions of the Supreme Court in any case submitted to it for decision en banc or in division shall be reached in consultation before the case is assigned to a Member for the writing of the opinion of the Court. A certification to this effect signed by the Chief Justice shall be issued and a copy thereof attached to the record of the case and served upon the parties. Any Member who took no part, or dissented, or abstained from a decision or resolution must state the reason therefor. The same requirements shall be observed by all lower collegiate courts.

Sec. 14, Art. VIII. No decision shall be rendered by any court without expressing therein clearly and distinctly the facts and the law on which it is based.

No petition for review or motion for reconsideration of a decision of the court shall be refused due course or denied without stating the legal basis therefor.

Fundamental requirements of a Decision:

- Section 13, Article VIII
    - 0 Reached in consultation (en banc or division) before the case is assigned to a Member for the writing of the opinion
    - Certification by the Chief Justice attached to the record of the case

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- Any Member who took no part, dissented, or abstained must state the reason
- Section 14, Article VIII
  - 0 "No decision shall be rendered by any court without expressing clearly and distinctly the facts and the law on which it is based.
  - "No petition for review or motion shall be refused due course without stating the basis therefor.
- Admin Circular No. 1
  - All judges to make complete findings of facts in their decisions - avoid the tendency to generalize and form conclusions without detailing the facts
- Parts of a decision
  - Statement of the case
  - Statement of the facts
  - Issues or assignment of errors
  - Court ruling
  - Dispositive portion
- To ensure fairness, the statement of facts on which the decision was based on must be in the decision
- The failure of the Chief Justice to certify that there was a deliberation conducted does not result in the conclusion that there was no deliberation that occurred and that the decision is void (the CJ can be subjected to an administrative complaint)
- The mandate of Sec. 14, Art. VIII is only applicable to cases submitted to the Court for "Decision" and not to an Order or Resolution refusing due course to a Petition for Certiorari

l. Petition for Review/Motion for Reconsideration

Sec. 14, Art. VIII. *supra.*

Tichangco v Enriquez (2004)

- A comprehensive statement of facts or mention of the applicable law is not necessary for appellate courts since the facts and the law have already been laid out in the assailed Decision. Merely a statement of facts and the "legal basis" for denying due course is required

Martinez v Court of Appeals (2001)

- The constitutional requirement was fully complied with when the CA, in denying reconsideration of its decision, stated in its resolution that it found no reason to change its ruling because the petitioner had not raised anything new in his motion.

m. Periods for Deciding Cases

Sec. 15, Art. VIII.
(1) All cases or matters filed after the effectivity of this Constitution must be decided or resolved within twenty-four months from date of submission for the Supreme Court, and, unless reduced by the Supreme Court, twelve months for all lower collegiate courts, and three months for all other lower courts.

(2) A case or matter shall be deemed submitted for decision or resolution upon the filing of the last pending, brief, or memorandum required by the Rules of Court or by the court itself.

(3) Upon the expiration of the corresponding period, a certification to this effect signed by the Chief Justice or the presiding judge shall forthwith be issued and a copy thereof attached to the record of the case or matter, and served upon the parties. The certification shall state why a decision or resolution has not been rendered or issued within said period.

(4) Despite the expiration of the applicable mandatory period, the court, without prejudice to such responsibility as may have been incurred in consequence thereof, shall decide or resolve the case or matter submitted thereto for determination, without further delay.

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Supreme Court - 24 Months
Lower Collegiate Courts (Court of Appeals) - 12 months
Other lower courts - 3 months
- **Including Sandiganbayan**

Is the Supreme Court bound by the 24-month period for deciding cases?

- *In re Complaint-Affidavit of Elvira N. Enables against Former Chief Justice Leonardo-De Castro (2019):* The Supreme Court is not bound by the 24-month reglementary period for deciding.
- "(w)hile the 24-month period provided under the 1987 Constitution is persuasive, it does not summarily bind this Court to the disposition of cases brought before it. It is a mere directive to ensure this Court's prompt resolution of cases, and should not be interpreted as an inflexible rule,

In re Delays in the Sandiganbayan
- The Sandiganbayan, as a special court, does not fall within the provision of Art. VIII, Sec. 15(1) since the provision only stated the Supreme Court, lower collegiate courts, and lower courts.
- Sandiganbayan is not a regular court but a special one having the same level as the Court of Appeals and possessing all the inherent powers of a court of justice with the functions of a trial court (allows introduction of evidence by parties)
- Pursuant to PD 1486, revised by PD 1606, and Rule XVIII, Sec. 3 of the Sandiganbayan Revised Rules of Procedure, judgment from the Sandiganbayan shall be rendered within 3 months from the date the case was submitted for decision. The Sandiganbayan ought to abide by its own rules.

Office of the Court Administrator v. Fuentes III
- Under the 1987 Constitution, trial judges are mandated to decide and resolve cases within 90 days from submission for decision or resolution.
- Should judges, for good reason, be unable to comply with the prescribed reglementary period to decide on cases, they may always ask for an extension from the Supreme Court which the latter has the discretion of granting.
- Unreasonable delay of a judge is a violation of the norms of judicial conduct and constitutes gross inefficiency that warrants the imposition of an administrative sanction against the defaulting magistrate.

n. Presidential Electoral Tribunal (PET)

Par. 7, Sec. 4, Art. VIII. xxx The Supreme Court, sitting en banc, shall be the sole judge of all contests relating to the election, returns, and qualifications of the President or Vice- President, and may promulgate its rules for the purpose.

Macalintal v. PET (2011)
- The PET is not simply an agency to which Members of the Court were designated. The PET, as intended by the framers of the Constitution, is to be an institution independent, but not separate, from the judicial department, i.e., the Supreme Court. The power wielded by PET is a derivative of the plenary judicial power allocated to courts of law, expressly provided in the Constitution.
- Doctrine of Necessary Implication: If a power is granted, it also implies a grant of other powers necessary to carry out that power into effect (such as promulgating its rules for the purpose)
- The power granted by the Art. 7, Sec. 4 does not limit the SC in exercising its power. The power includes the power to carry the power out in its own terms, thus allowing the creation of the PET despite the absence of an act of legislation.
- The SC sitting as the PET does not violate the prohibition in "performing quasijudicial or administrative functions" since what is being settled is actual controversies involving rights which are legally demandable and enforceable. It is a derivative of the plenary judicial power allocated to the courts of law.

Marcos, Jr. v. Robredo (2020)
- The Presidential Electoral Tribunal, composed by the SC en banc, shall have exclusive jurisdiction over electoral protests and quo warranto cases against the President or Vice-President.
- PET Rules shall govern the process of recount and revision in cases alleging electoral fraud. Should the initial recount of three pilot provinces fail to show that majority of the votes were illegally tampered/invalid/fraudulent, further

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proceedings will be dismissed. Otherwise, total recount will be conducted and the reappreciated vote count will be the final basis for determination of the rightfully elected President/Vice President.

- The litigant's right to seek inhibition (of Justice Leonen for alleged bias) must be balanced with the judge's duty to decide cases without fear of repression. Since the Court is a collegial body which decides cases through the majority of its members, the Member-in-Charge simply recommends the action to be taken. Accusing J. Leonen of bias and delay, by extension, all of PET as grossly ignorant of the law is disrespectful to the Tribunal.

o. Auxiliary Administrative Powers

A. Supervision of Lower Courts

Sec. 6, Art. VIII. The Supreme Court shall have administrative supervision over all courts and the personnel thereof.

Sec. 11, Art. VIII. The Members of the Supreme Court and judges of lower courts shall hold office during good behavior until they reached the age of seventy years or become incapacitated to discharge the duties of their office. The Supreme Court en banc shall have the power to discipline judges of lower courts, or order their dismissal by a vote of a majority of the Members who actually took part in the deliberations on the issues in the case and voted thereon.

In re Demetria (2001)

- The code of Judicial Conduct mandates a judge to "refrain from influencing in any manner the outcome of litigation or dispute pending before another court or administrative agency. "The slightest form of interference cannot be countenanced. Once a judge uses his influence to derail or interfere in the regular course of a legal or judicial proceeding for the benefit of one or any of the parties therein, public confidence in the judicial system is diminished, if not totally eroded.
- Justice Demetria was found guilty of violating the Code of Judicial Conduct (Rule 2.04) and was dismissed from service for interceding on behalf of the suspected drug queen Yu Yuk Lai.
    - **RULE 2.04:** A judge should refrain from influencing in any manner the outcome of litigation or dispute pending before another court or administrative agency.

Caoibes v Ombudsman (2001)

- Two judges fought in the premises of the court. Charges were filed in the Ombudsman and administrative case before the SC. SC held that the Ombudsman must defer action on the criminal case pending resolution of the administrative case filed in the SC
- Only the SC can oversee the judges' and court personnel's compliance with all laws and take the proper administrative action against them if they commit any violation thereof. No other branch of government may intrude into this power, without violating the doctrine of separation of powers
- The power of the SC is an exemption to the power of the Ombudsman.

In re Conrado M. Vazquez, Jr. (2008)

- SC rendered different penalties upon the guilty CA Justices as deemed appropriate by the latter's actions and conduct unbecoming of a CA Justice: dismissal for Justice Roxas, suspension for Justice Sabio, reprimand for Presiding Justice Vasquez and Justice Reyes, and admonition for Justice Dimaraanan-Vidal
- It is the SC's bounded duty to determine the culpability or innocence of the members of the Judiciary involved in a controversy regarding judicial decisions made, and to discipline anyone whose conduct has failed to conform to the canons of judicial ethics, which uphold integrity, independence, impartiality, competence, and propriety in the performance of official functions.

In re Undated Letter of Mr. Louis C. Biraogo (2009)

- The investigation of the Investigating Committee concluded that the leak came from the office of and was leaked by Justice Reyes himself
- As Justice Reyes has retired, he is nonetheless held liable for grave misconduct and was served with the penalty of a fine held against his retirement benefits, and disqualification from holding a public office

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- The Court can still exercise its administrative supervision over retired personnel of the court and their actions as personnel of the court.
- If incumbent judge, another possible penalty may be suspension for n years.

B. Temporarily Assign Judges to Other Stations in Public Interest

Sec. 5, Art. VIII. The Supreme Court shall have the following powers:
(3) Assign temporarily judges of lower courts to other stations as public interest may require. Such temporary assignment shall not exceed six months without the consent of the judge concerned.

- 1987 Constitution is silent on who can effect a permanent transfer
- Transfer imports removal from one office and since a judge enjoys security of tenure, it cannot be effected without the consent of the judge concerned.

C. Order a Change of Venue or Place of Trial to Avoid Miscarriage of Justice

- The Court has ordered the change of venue or place of trial to avoid a miscarriage of justice when it found that there exists a threat to the life of the accused (*People v. Pilotin; Mondiguing v. Abad*), the life of the witnesses (*People v. Sola*), or due to potential bias.
- The change of trial venue in criminal cases should not be granted for whimsical or flimsy reasons (*Mondiguing v. Abad*)
- The issue for change of venues lies with the literal geographical location, not jurisdiction because for the latter, the RTC has hold on it all over the country anyway.

D. Appointment of Officials & Employees of entire Judiciary

Sec. 5, Art. VIII. The Supreme Court shall have the following powers:
(6) Appoint all officials and employees of the Judiciary in accordance with the Civil Service Law.

E. Promulgate Rules Concerning the Enforcement & Protection of Constitutional Rights

Sec. 5, Art. VIII. The Supreme Court shall have the following powers:
(5) Promulgate rules concerning the protection and enforcement of constitutional rights, pleading, practice, and procedure in all courts, the admission to the practice of law, the Integrated Bar, and legal assistance to the underprivileged. Such rules shall provide a simplified and inexpensive procedure for the speedy disposition of cases, shall be uniform for all courts of the same grade, and shall not diminish, increase, or modify substantive rights. Rules of procedure of special courts and quasi-judicial bodies shall remain effective unless disapproved by the Supreme Court.

Writ of Amparo

- Remedy available to any person whose right to life, liberty and security is violated or threatened with violation by an unlawful act or omission of a public official or employee, or of a private individual or entity
- Covers extralegal killings and enforced disappearances or threats thereof
- Does not determine guilt nor pinpoint criminal culpability for the disappearance [threats thereof or extrajudicial killings]; it determines responsibility, or at least accountability for purposes of imposing the appropriate remedies to address the disappearance
- Difference with writ of habeas corpus: Habeas corpus is designed to enforce the right to freedom of the person, while amparo is designed to protect those other fundamental human rights enshrined in the Constitution but not covered by the writ of habeas corpus
- Elements:
  1. There be an arrest, detention, abduction or any form of deprivation of liberty
  2. It be carried out by, or with the authorization, support or acquiescence of the State or a political organization

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3. It be followed by the State or political organization's refusal to acknowledge or give information on the fate or whereabouts of the person subject of the amparo petition
4. That the intention for such refusal is to remove subject person from the protection of the law for a prolonged period of time

- Return: Within 72 hours after service of the writ, the respondent shall file a verified return which contain his defenses (a general denial is not allowed)
- Proof required: Substantial evidence – allegation and proof that the persons subject thereof are missing are not enough.

Habeas Data -

- An independent and summary remedy designed to protect the image, privacy, honor, information, and freedom of information of an individual, and to provide a forum to enforce one's right to the truth and to informational privacy.
- Devised to ensure autonomous control over personal information. It deters illegal acquisition of information protected y theright ot privacy which may be used to the detriment of citizens.
- Remedy available to any person whose right to privacy in life, liberty or security is violated or threatened by an unlawful act or omission of a public official or employee, or of a private individual or entity engaged in the gathering, collecting or storing of data or information regarding the person, family, home and correspondence of the aggrieved party.
- Can be used to discover what information is held about his or her person (via rectification or destruction of the personal data held)
- Balancing test of the alleged intrusion upon the private life of the person and the relevant state interest involved.

Writ of Kalikasan

- Remedy against violation or threat of violation of constitutional right to a balanced and healthful ecology by an unlawful act or omission of a public official or employee, or private individual or entity, involving environmental damage of such magnitude as to prejudice the life, health or property of inhabitants in two or more cities or provinces
- Is best for urgent environmental cases such as possible gas leaks in a building, oil disasters, etc.
- Requisites for the Issuance of the Writ *(Segovia v. Climate Change Commission)*
  1) Actual or threatened violation of said constitutional right
  2) Actual or threatened violation arises from an unlawful act or omission of a public official or employee, or private individual or entity
  3) Actual or threatened violation involves or will lead to an environmental damage of such magnitude as to prejudice the life, health or property of inhabitants in two or more cities or provinces
- Who may file: natural or juridical persons, NGO or public interest groups

Extraordinary Writs

- Interim reliefs, such as a temporary protection order, will no longer be granted once a Writ of *Amparo* has been issued
- The grant of the Writ of *Amparo* provides protection (under the privilege of the writ), and requires respondents to avoid endangering the petitioner and to report to the Court their knowledge on the alleged enforced disappearance
- The grant of the Writ of *Habeas Data* requires respondents to report and present all information gathered about the petitioner
- The extraordinary writs instills accountability and responsibility on the part of the respondents
- In a Writ of *Amparo*, respondents must prove ordinary (if private individual) or extraordinary (if public official/employee) diligence was observed in the performance of duty. The public official/employee cannot invoke presumption of regularity of performance of official duty to evade liability. (*Bautista v. DannugSalucon*)
- The grant of the Writ of *Kalikasan* is exercised under the jurisdiction of every Regional Trial Court (*Dolot v. Paje*)

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- "Once a court acquires jurisdiction over the petition for habeas corpus, said court has the power and authority to carry the petition to its conclusion." (*Agcaoili v Farinas*)

In re Writ of Amparo of Sanchez (2021)

- Court granted the petition for writ of amparo after finding that petitioner Vivian Sanchez proved with substantial evidence that she and her children became persons of interest and were put under surveillance because of her dead husband's suspected affiliation with the NPA
- Court pointed out that spousal and filial privileges continue to exist after the death of a spouse, protected petitioner and her children from inquiries regarding her husband's activities
- In determining existing of substantial evidence for writ of amparo, judges should also be cognizant of the different power dynamics at play in assessing if there is an actual or future threat
- Right to privacy must be balanced with mandate to investigate of PNP (The State)

Bautista v. Dannug-Salucon (2018)

- The privilege of the writ of *amparo* may be granted on the basis of the application of the totality of evidence standard. Such application may extend to the use of relevant circumstantial evidence.
- Evidentiary difficulties compel the Court to adopt flexibile standards considering that no EJF/enforced disappearance had yet occurred but difficult for the Court to ignore threats to her life, liberty and secuirty
- Atty. Maria Dannug-Salucon filed for writ of amparo and habeas data after authorities conducted surveillance on her for being the lawyer of suspected NPA and CPP members; her paralegal was shot dead

Dolot v. Paje (2013)

- Under Continuing Mandamus, the court has the authority to compel the performance of an act specifically enjoined by law involving environmental issues and retains jurisdiction in order to ensure continuing compliance
- Petitioners filed a petition for continuing mandamus alleging the violation of the Small Scale Mining Act and Philippine Mining Act in Matnog.

Infant Caram v. Segui (2014)

- The Writ of *Amparo* is issued in order to provide a rapid response to the enforced disappearances and EJKs, not to regain parental authority over a child, which should be through an action for custody
- Christina Caram had a child out of wedlock and gave the child up for adoption at the DSWD. But now seeks to recover custody of the child through a petition for writ of amparo

Agcaoili v. Farinas (2018)

- Once a court acquires jurisdiction over the petition for habeas corpus, said court has the power and authority to carry the petition to its conclusion. Petitioners cannot invoke Sec. 6 of Article 8 because the Court's administrative supervision only covers the overseeing of the operations of agencies. The administrative power of the Court to transfer cases to prevent the miscarriage of justice, is also a matter of venue and not of jurisdiction.

Procedural loopholes of the extraordinary writs (taken from "Podcast: Law of Duterte land: Are extraordinary writs still effective in the time of Duterte?" **)**

- The writs were instituted by C.J. Puno due to the rise of EJKs and enforced disappearances in 2007, in addition to the writ of *habeas corpus*
- Ilagan v. Enrile doctrine - *Habeas corpus*: moot the moment the military/police successfully files charges against the activist in Court (*Are prosecutors really investigating the killings or just fearful of the administration?*)
  - 0 *Cf. Agcaoili v Farinas*
- Writ of *Amparo*
  - 0 There is no need to grant interim reliefs (TPO) when the writ of *amparo* has been issued
  - ○ A writ is different from an interim relief
  - ○ Writ – procedural step; an order compelling the gov't to answer the accusations and explain themselves to the Court, where it can conduct trials and issue

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interim reliefs (i.e. TPO) and upon judgement, grant full privileges of a Full Protection Order (if petitioners win)

- ○ *Cf. In re Petition in favor of Noriel H. Rodriguez*

- Writ of *Habeas Data*
  - 0 Rule on the Writ of Habeas Data, § 22: when a criminal action has been commenced, no petition on the writ shall be filed
  - ○ Does criminal action also cover administrative cases? Does criminal action means charges filed in Court or complaints filed before prosecutors?
  - ○ The CA admitted that it does not know for sure: "The court is confronted with issues which reflect the dearth of case law pertaining to the writ of *habeas data* in our jurisdiction."

Are writs helpful?

- If the target of the writ is the "bad guy" and they are also being directed to do things by the Court (like provide protection for a person under threat) in order to solve the problem, then they are less likely to do it (*Bautista v. Dannug-Salocon).*
- At best, failure to fulfill the directives leads to admonishment/contempt from the Court.

Writs against Red-baiting [Zarate v. Aquino (2015)]

- Petitioners are members of various progressive party-list/organizations that have been wrongfully tagged by the military as "communist front organizations".
- Court held that only actual threats, as may be established from all the facts and circumstances of the case, can qualify as a violation that may be addressed under the Writ of Amparo. Substantial evidence is required and petitioners failed to prove that their life, liberty and security are threated with violation.
- Mere membership in the organizations that were extrajudicially killed cannot equate to an actual threat that would warrant the issuance of the writ of amparo.
- Writ of amparo is sought individually and granted individually, and lumping together the experiences of the petitioners may give off the impression that, taken together, their life, liberty and security are threatened to be violated.
- Habeas data presupposes that the aggrieved party is still alive, and show how the violation of the aggrieved party's right to privacy affect his right to life, liberty and security. Heirs do not have legal standing to file the petition.
- *Dissenting (Leonen, J):* Red-baiting or red-tagging – when military or government units implicate progressive civil group leaders to heinous crimes is called red baiting.
  - o Respondents should comment on the Petition to show cause why these writs should not be issued
  - o The rules do not suggest that the petition should be dismissed absent prima facie showing of violation or threat; comment is different from a verified return as a comment merely discusses the issues raised but the return has to comply with the requisites under the rules

F. Promulgate Rules Concerning Pleading, Practice, and Procedure

Sec. 5(5), Art. VIII. *supra.*

Limitations on Rule-Making Power

- Shall provide a simplified and inexpensive procedure for the speedy disposition of cases
- Shall be uniform for all courts of the same grade
- Shall not diminish, increase, or modify substantive rights

Pimentel v LEB, (2019)

- The Court's exclusive jurisdiction does not extend to the admission to the study of law; legal education is within the functions of the executive, not a residual power of the Court
- LEB's supervision and regulation of legal education is a valid exercise of police power, limited to reasonable supervisory and regulatory exercise (not control) [SEC. 4(1), Art 14 (IV)]
- Some LEB memorandum sections encroached on this exclusive power of the Court over the practice of law. The PHILSAT was not unconstitutional on this ground,

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but infringes on the academic freedom of law schools by requiring the PhilSAT for admission to law schools

How did the Court decide that legal education was an executive function?

- Looked into the history of legal education which was always under the supervision of the executive

G. Admission to the Practice of Law

Sec. 5(5), Art. VIII. *supra.*

Zaldivar v. Gonzales (1988)

- Courts have the authority to discipline members of the bar under its power to regulate the admission to the practice of law and the practice itself
- Disciplinary cases are not criminal in nature and are instituted in order to hold officers of the court to account for their actions
- Disciplinary actions on lawyers can be exercised whether or not their conduct constitutes contempt of court
- Members of the bar are free to express their opinions, as long as it is exercised within the bounds of fair criticism and is qualified by the interest to maintain the integrity of the Judiciary

Baguio Market Vendors Multi-Purpose Cooperative v. Cabato-Cortes (2010)

- The Court's the sole power to promulgate rules of procedure under the 1987 Constitution, which removed the power-sharing scheme of Congress and the SC
- Congress cannot create laws that interfere with rules of procedure, such as annulling the payment of court fees prescribed by the Court
- Baguio Market Vendors seek exemption from legal fees under RA 6938 (Cooperative Development Act), Court struck down the exemption

Aguirre v. Rana (2003)

- Admission to the bar is a privilege, not a right, that can be withheld by the Court under its mandate to regulate admission to the practice of law, such as for persons not of good moral character

In re Ong (2014)

- While the administrative investigation was insufficient to prove corruption or bribery, the association of Justice Ong with Napoles during the pendency and after the promulgation of the decision in the Kevlar case (which resulted in Napoles' acquittal) is characterized as grossly improper, constituting gross misconduct
- "Judges shall avoid impropriety and the appearance of impropriety in all of their activities." (SEC. 1, Canon 4, New Code of Judicial Conduct)

Zoleta v. Sandiganbayan (2015)

- While Justice Ong was removed from office, all his actions acting as Sandiganbayan Justice are valid as he held the office in a *de facto* position

Estipona v. Lobringo (2017)

- Congress cannot create laws that are infringes on the rule-making authority of the SC (such as restriction on plea-bargaining agreements)
- Under the 1987 Constitution, Congress participation in the Judiciary is in creating lower courts and defining their jurisdictions

G. Integration of the Bar

Sec. 5(5), Art. VIII. *supra.*

Integration of the Bar

- Official unification of the entire lawyer population in the Philippines.
- Requires membership and financial support (in reasonable amount) of every attorney as conditions sine qua non to the practice of law and the retention of his name in the Roll of Attorneys of the Supreme Court

In re Edillon (1978)

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- The Court may subject the members to payment of dues to fund improvements of the profession which even Edillon will benefit from, as a lawyer, whether or not he chooses to participate in the IBP activities
- The practice of law is subject to police power of the State, practiced by the Court, since such is a matter subject to regulation and inquiry

In re IBP Elections (1989)

- IBP By-Laws enshrines the idea of a "strictly non-political" Integrated Bar. Analogous to this is the rule that elections in the IBP to be based on merits and not the campaigning or lobbying of the candidates
- The result of the investigation of the candidates resorting to overspending in their campaigns and bribery to secure votes violates the IBP rule on non-political elections.
- The elections were declared by this Court to be null and void

G. Legal Assistance to the Underprivileged

Sec. 5(5), Art. VIII. *supra.*

Report on the Judiciary

Sec. 16, Art. VIII. The Supreme Court shall, within thirty days from the opening of each regular session of the Congress, submit to the President and the Congress an annual report on the operations and activities of the Judiciary.

Lower Courts

a) Qualifications & Appointment

Sec. 7, Art. VIII.

(1) No person shall be appointed Member of the Supreme Court or any lower collegiate court unless he is a natural-born citizen of the Philippines. A Member of the Supreme Court must be at least forty years of age, and must have been for fifteen years or more a judge of a lower court or engaged in the practice of law in the Philippines.

(2) The Congress shall prescribe the qualifications of judges of lower courts, but no person may be appointed judge thereof unless he is a citizen of the Philippines and a member of the Philippine Bar.

(3) A Member of the Judiciary must be a person of proven competence, integrity, probity, and independence.

Sec. 9, Art. VIII. The Members of the Supreme Court and judges of lower courts shall be appointed by the President from a list of at least three nominees prepared by the Judicial and Bar Council for every vacancy. Such appointments need no confirmation.

For the lower courts, the President shall issue the appointments within ninety days from the submission of the list.

Qualifications of judges of Lower Courts (Non-Collegiate)

1. Citizens of the Philippines (in contrast to natural-born requirement for Members of the SC and Collegiate courts)
2. Members of the Philippine Bar
3. Possession other qualifications as may be prescribed by Congress
4. Persons of proven competence, integrity, probity and independence

Appointment: Appointed by the President from the list of nominees prepared by the Judicial and Bar Council; at least 3 nominees for each vacancy

b) Tenure

Sec. 2, Art. VIII. The Congress shall have the power to define, prescribe, and apportion the jurisdiction of various courts but may not deprive the Supreme Court of its jurisdiction over cases enumerated in Section 5 hereof.

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No law shall be passed reorganizing the Judiciary when it undermines the security of tenure of its Members.

Sec. 11, Art. VIII. The Members of the Supreme Court and judges of lower courts shall hold office during good behavior until they reached the age of seventy years or become incapacitated to discharge the duties of their office. The Supreme Court en banc shall have the power to discipline judges of lower courts, or order their dismissal by a vote of a majority of the Members who actually took part in the deliberations on the issues in the case and voted thereon.

Power of Congress over Judicial System

- Congress has the power to create new courts and apportion jurisdiction among various courts ● Limitations:
  - ○ May not impair the independence of the judiciary
  - ○ May not impair the rule-making power of the Supreme Court on matters of pleading, practice and procedure in the lower courts

De La Llana v. Alba (1982)

- BP Blg. 129 reorganized lower courts and declared that judges and justices of inferior courts, unless appointed to the newly created courts, would be considered separated from the judiciary upon the completion of the reorganization provided in the Act. The law was challenged as a violative of the security of tenure and as an undue delegation of powers to the President.
- BP 129 was not declared unconstitutional for there exists a pressing need for the reorganization of the Judiciary.
- On the main issue of security of tenure, what the act effectsd is the abolition of office not removal of officers. Abolition of office, when done in good faith, does not violate security of tenure. The legislature has the power to abolish corts inferior to the Supreme Court.
- An official cannot be legally removed from office by abolishing the office held and creating a "new" office with similar or the same functions ⇒ illegal removal
- There was no undue delegation of legislative power to the President in regards to the compensation and allowances of the Justices and judges, for the completeness test and sufficiency test (guidelines were set by the legislature in their list of laws for the President to be working within) were complied with

Does De la Llana v. Alba still hold in view of Sec. 2 (2), Art. VIII? Yes since it does not affect the principle accepted in the *de la Llana* case, namely that reorganization by itself need not affect security of tenure.

REPUBLIC ACT NO. 11459
AN ACT CREATING THE POSITIONS FOR JUDGES-AT-LARGE, AMENDING FOR THE PURPOSE BATAS PAMBANSA BLG. 129, OTHERWISE KNOWN AS "THE JUDICIARY REORGANIZATION ACT OF 1980", AND APPROPRIATING FUNDS THEREFOR

- Is it still the mandate of the JBC to provide a permanent *sala* for judges-at-large after the period of temporary assignment?
- As a constitutional body under the control of the SC, why would the JBC be tasked with doing actions not mandated by the Constitution? [*cf.* SEC. 8(1) & 9, Art. 8
  (VIII); SEC. 9, Art. 11 (XI)]

Ocampo v. Secretary of Justice (1955)

- Congress has the power to abolish courts inferior to the SC, as it is implied in their constitutional power to create inferior courts.
- Abolition of office is valid when done in good faith and not for political or personal reasons. In such a situation, properly and logically speaking, there is no removal from office because a removal implies that the office exists after the ouster.
- It is wrong to interpret that any attempt to abolish the position of a judge should only be made effective after the expiration of the term. There would have been a provision if the security of tenure of members of the Judiciary can limit the power to abolish

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The Judicial and Bar Council (JBC)

Sec. 8, Art. VIII.

(1) A Judicial and Bar Council is hereby created under the supervision of the Supreme Court composed of the Chief Justice as ex officio Chairman, the Secretary of Justice, and a representative of the Congress as ex officio Members, a representative of the Integrated Bar, a professor of law, a retired Member of the Supreme Court, and a representative of the private sector.

(2) The regular Members of the Council shall be appointed by the President for a term of four years with the consent of the Commission on Appointments. Of the Members first appointed, the representative of the Integrated Bar shall serve for four years, the professor of law for three years, the retired Justice for two years, and the representative of the private sector for one year.

(3) The Clerk of the Supreme Court shall be the Secretary ex officio of the Council and shall keep a record of its proceedings.

(4) The regular Members of the Council shall receive such emoluments as may be determined by the Supreme Court. The Supreme Court shall provide in its annual budget the appropriations for the Council.

(5) The Council shall have the principal function of recommending appointees to the Judiciary. It may exercise such other functions and duties as the Supreme Court may assign to it.

Sec. 9, Art. VIII. The Members of the Supreme Court and judges of lower courts shall be appointed by the President from a list of at least three nominees prepared by the Judicial and Bar Council for every vacancy. Such appointments need no confirmation.

For the lower courts, the President shall issue the appointments within ninety days from the submission of the list.

Composition

Ex-officio members [Sec. 8(1), Art. VIII] - remain in council while the person occupies the main office

1. Chief Justice as ex-officio Chairman
2. Secretary of Justice
3. One representative of Congress

Regular members [Sec. 8(1), Art. VIII] - appointed by the President, with the confirmation of the Commission on Appointments; term of 4 years

1. Representative of the Integrated Bar
2. Professor of law
3. Retired member of the SC
4. Representative of private sector

Secretary ex-officio [Sec. 8(3), Art. VIII, Const.]: Clerk of Court of the SC, who shall keep a record of its proceedings; not a member of the JBC.

Chairman: In the absence of the Chief Justice because of his impeachment, the most Senior Justice of the Supreme Court, who is not an applicant for Chief Justice, should participate in the deliberations for the selection of nominees for the said vacant post and preside over the proceedings, pursuant to Section 12 of Republic Act No. 296, or the Judiciary Act of 1948 [*Famela Dulay v. Judicial and Bar Council,* G.R. No. 202143 (2012)].

Powers [Sec. 8(5), Art. VIII]

- Recommend appointees to the judiciary
- May exercise such other functions and duties as the SC may assign to it
- Power to promulgate rules (doctrine of necessary implication)

Dulay v. JBC (2012)

- The constitutional mandate of the President is clear: to appoint members of the SC without distinction as to whether it is the Chief Justice or Associate Justice

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- Evident in the 1986 ConCom deliberations, the JBC can still be operational even without a Chief Justice – though a complete body is preferred. It can carry out its mandate to recommend nominees for appointment to the Judiciary
- In the event that the Chief Justice is unable to perform his duties and powers, the most senior Justice who is not an applicant for the position of CJ should participate in the deliberations and preside over the proceedings (Sec. 12 RA 296).

Citizens Adaza v. Aquino (2013)

- Pending petitions cannot delay the replacement process as the President is mandated by the Constitution to appoint a member of the Supreme Court within 90 days of the occurrence of a vacancy [SEC. 4(1), Art. 8 (VIII)]
- **OBITER:** CJ Corona had the chance to question the decision of the Senate Impeachment Court and bring the matter to court. However, he respected the decision instead.

○ The impeachment of CJ Corona led to a vacancy which the JBC is mandated to fill as part of its duties

Chavez v Judicial and Bar Council (2013)

- Court firmly relies on verba legis. The use of the singular letter "a" to describe "representative of Congress" means that framers intended that Congress be allowed only 1 seat in the JBC
- **No need for each House to be represented** in the JBC as there is no interaction between the two houses in their participation in the JBC. Also, allowing two representatives for Congress in the JBC will negate the **principle of equality** among the three branches of government.
- The ex-officio members of the JBC – the Chief Justice representing the judiciary, the Secretary of Justice from the Executive and the member of Congress from the Legislative department, represent the major branches of government in addition to the 4 regular members. The total is seven (7), not eight.
- Giving two votes for Congress will run counter to the intent of the framers. In addition, bringing the number to 8 could lead to deadlock and a clear violation of what is in the Constitution.
- *Dissent:* Congress does not exist separate from the Senate and the HOR. Opinion that a Senator or a Member of the HOR may represent the whole of Congress is contrary to the intent of the Constitution of bicameralism.

Umali v. JBC (2017)

• (Chavez v. JBC (2013) applies due to *stare decisis*)

- Only 1 seat in the JBC can be represented by Congress. The JBC cannot be faulted for simply complying with the Constitution and *Chavez.* The six-month rotational scheme by the JBC and Congress is proper and adheres to the ruling in *Chavez.*
- Congress representation is not a primary legislative function meaning there is essentially no interaction between the two Houses in their participation in the JBC, thus no need to represent each House distinctly. The 7 members was intended to avoid deadlock in voting

Jardeleza v. Sereno, JBC (2014)

- SC is given supervisory authority over the JBC via Art. VIII, Sec. 8. This includes overseeing if the JBC is compliant with its rules. The invocation and use of the unanimity rule was improper in this case as it was vague and unfair.
- Due process is available in JBC proceedings in cases where objections in their application is raised to give the JBC a clearer understanding of the situation and the objections, thereby guarding it from making an unsound and capricious judgement

Villanueva v. JBC (2015)

- The JBC is not precluded from promulgating its own rules and procedures to effectively carry out its mandate (Constitution has no specific process for the JBC to carry out its mandate)
- Equal Protection Clause is not violated due to a rational basis (a reasonable classification to gauge proven competence of applicants) for the 5-year requirement

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- JBC had to establish a set of uniform criteria in order to assess whether an applicant possesses the qualities expected of him and his office.
- the adoption of the five-year requirement policy applied by the JBC is necessary and incidental to the function conferred by the Constitution to the JBC.

Aguinaldo v. Aquino (2016; 2017)

- The JBC only has the power to recommend nominees to the President for the Judiciary; it cannot be used to encroach on the paramount power of the President to appoint
- Rule on clustering nominees restricts the President's power. The JBC must submit 3 nominees for each vacancy, and when there are several vacancies of the same ran k, the JBC need only submit 1 list.
- A vital part of the President's power to appoint is the power to determine the numerical order of seniority of the appointees (by controlling the order and date of issuance of appointment)

Automatic Release of Appropriation for the Judiciary

Sec. 3, Art. VIII. The Judiciary shall enjoy fiscal autonomy. Appropriations for the Judiciary may not be reduced by the legislature below the amount appropriated for the previous year and, after approval, shall be automatically and regularly released.

**See discussion on Fiscal Autonomy*

Bengzon v. Drilon (1992)

- President C. Aquino vetoed a provision in the 1992 GAA relating to the automatic readjustment of pensions of the retired judges and justices (based on RA 1797, which was not repealed owing to the non-publication of PD644). The Court ruled that the President cannot veto a law (RA 1797) nor the Court's Resolution. This veto violates the separation of powers and erodes the fiscal autonomy and independence of the Judiciary by dictating how the funds should be utilized
- Automatic Release of Appropriation for the Judiciartydeprived the CJ of their fiscal autonomy or the flexibility to allocate and utilize their resources with wisdom and dispatch that their needs require (such as the retirement benefits of retired Justices)
- The President does not have the authority to set aside or reverse a final and executory judgment of the Court through veto power.